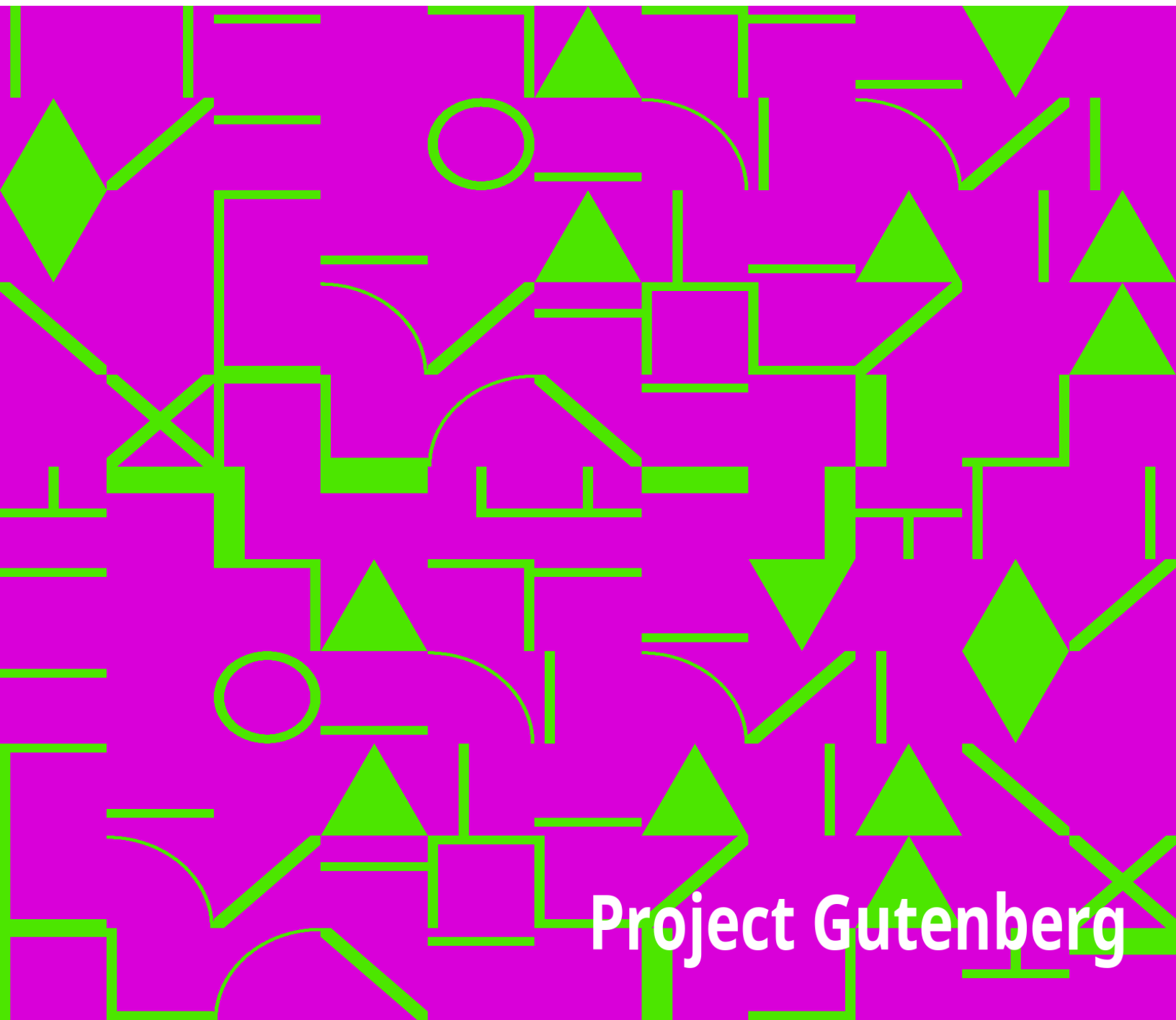


The Papers and Writings of Abraham Lincoln — Volume 5: 1858-1862

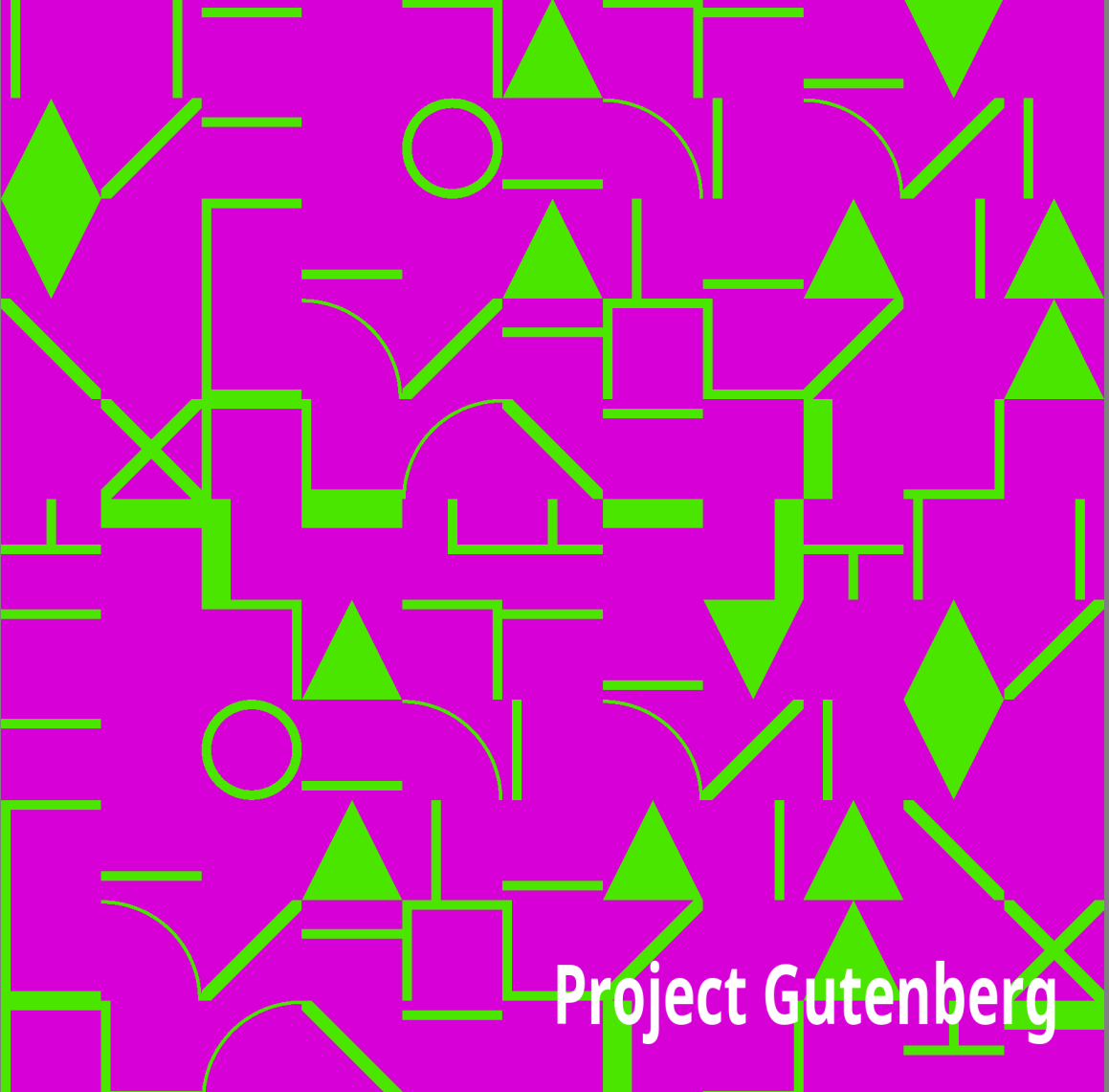
Abraham Lincoln and Arthur Brooks

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The Papers and Writings of Abraham Lincoln — Volume 5: 1858-1862

Abraham Lincoln and Arthur Brooks



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THE PAPERS AND WRITINGS OF ABRAHAM LINCOLN

VOLUME FIVE

CONSTITUTIONAL EDITION

Edited by Arthur Brooks Lapsley

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**THE WRITINGS OF ABRAHAM
LINCOLN,
Volume Five, 1858-1862**

1858

TO SYDNEY SPRING, GRAYVILLE, ILL.

SPRINGFIELD, June 19, 1858.

SYDNEY SPRING, Esq.

MY DEAR SIR:—Your letter introducing Mr. Faree was duly received. There was no opening to nominate him for Superintendent of Public Instruction, but through him Egypt made a most valuable contribution to the convention. I think it may be fairly said that he came off the lion of the day—or rather of the night. Can you not elect him to the Legislature? It seems to me he would be hard to beat. What objection could be made to him? What is your Senator Martin saying and doing? What is Webb about?

Please write me. Yours truly,

A. LINCOLN.

TO H. C. WHITNEY.

SPRINGFIELD, June 24, 1858

H. C. WHITNEY, ESQ.

DEAR SIR:—Your letter enclosing the attack of the Times upon me was received this morning. Give yourself no concern about my voting against the supplies. Unless you are without faith that a lie can be successfully contradicted, there is not a word of truth in the charge, and I am just considering a little as to the best shape to put a contradiction in. Show this to whomever you please, but do not publish it in the paper.

Your friend as ever,

A. LINCOLN.

TO J. W. SOMERS.

SPRINGFIELD, June 25, 1858.

JAMES W. SOMERS, Esq.

MY DEAR SIR:—Yours of the 22nd, inclosing a draft of two hundred dollars, was duly received. I have paid it on the judgment, and herewith you have the receipt. I do not wish to say anything as to who shall be the Republican candidate for the Legislature in your district, further than that I have full confidence in Dr. Hull. Have you ever got in the way of consulting with McKinley in political matters? He is true as steel, and his judgment is very good. The last I heard from him, he rather thought Weldon, of De Witt, was our best timber for representative, all things considered. But you there must settle it among yourselves. It may well puzzle older heads than yours to understand how, as the Dred Scott decision holds, Congress can authorize a Territorial Legislature to do everything else, and cannot authorize them to prohibit slavery. That is one of the things the court can decide, but can never give an intelligible reason for.

Yours very truly,

A. LINCOLN.

TO A. CAMPBELL.

SPRINGFIELD, June 28, 1858.

A. CAMPBELL, Esq.

MY DEAR SIR:—In 1856 you gave me authority to draw on you for any sum not exceeding five hundred dollars. I see clearly that such a privilege would be more available now than it was then. I am aware that times are tighter now than they were then. Please write me at all events, and whether you can now do anything or not I shall continue grateful for the past.

Yours very truly,

A. LINCOLN.

TO J. GILLESPIE.

SPRINGFIELD, July 16, 1858.

HON. JOSEPH GILLESPIE.

MY DEAR SIR:—I write this to say that from the specimens of Douglas Democracy we occasionally see here from Madison, we learn that they are making very confident calculation of beating you and your friends for the lower house, in that county. They offer to bet upon it. Billings and Job, respectively, have been up here, and were each as I learn, talking largely about it. If they do so, it can only be done by carrying the Fillmore men of 1856 very differently from what they seem to [be] going in the other party. Below is the vote of 1856, in your district:

Counties.

<i>Counties.</i>	<i>Buchanan.</i>	<i>Fremont.</i>	<i>Fillmore.</i>
<i>Bond.....</i>	<i>607</i>	<i>153</i>	<i>659</i>
<i>Madison.....</i>	<i>1451</i>	<i>1111</i>	<i>1658</i>
<i>Montgomery.....</i>	<i>992</i>	<i>162</i>	<i>686</i>
	<i>3050</i>	<i>1426</i>	<i>3003</i>

By this you will see, if you go through the calculation, that if they get one quarter of the Fillmore votes, and you three quarters, they will beat you 125 votes. If they get one fifth, and you four fifths, you beat them 179. In Madison, alone, if our friends get 1000 of the Fillmore votes, and their opponents the remainder, 658, we win by just two votes.

This shows the whole field, on the basis of the election of 1856.

Whether, since then, any Buchanan, or Fremonters, have shifted ground, and how the majority of new votes will go, you can judge better than I.

Of course you, on the ground, can better determine your line of tactics than any one off the ground; but it behooves you to be wide awake and actively working.

Don't neglect it; and write me at your first leisure. Yours as ever,

A. LINCOLN.

TO JOHN MATHERS, JACKSONVILLE, ILL.

SPRINGFIELD, JULY 20, 1858.

JNO. MATHERS, Esq.

MY DEAR SIR:—Your kind and interesting letter of the 19th was duly received. Your suggestions as to placing one's self on the offensive rather than the defensive are certainly correct. That is a point which I shall not disregard. I spoke here on Saturday night. The speech, not very well reported, appears in the State journal of this morning. You doubtless will see it; and I hope that you will perceive in it that I am already improving. I would mail you a copy now, but have not one [at] hand. I thank you for your letter and shall be pleased to hear from you again.

Yours very truly,

A. LINCOLN.

TO JOSEPH GILLESPIE.

SPRINGFIELD, JULY 25, 1858.

HON. J. GILLESPIE.

MY DEAR SIR:—Your doleful letter of the 8th was received on my return from Chicago last night. I do hope you are worse scared than hurt, though you ought to know best. We must not lose the district. We must make a job of it, and save it. Lay hold of the proper agencies, and secure all the Americans you can, at once. I do hope, on closer inspection, you will find they are not half gone. Make a little test. Run down one of the poll-books of the Edwardsville precinct, and take the first hundred known American names. Then quietly ascertain how many of them are actually going for Douglas. I think you will find less than fifty. But even if you find fifty, make sure of the other fifty, that is, make sure of all you can, at all events. We will set other agencies to work which shall compensate for the loss of a good many Americans. Don't fail to check the stampede at once. Trumbull, I think, will be with you before long.

There is much he cannot do, and some he can. I have reason to hope there will be other help of an appropriate kind. Write me again.

Yours as ever,

A. LINCOLN.

TO B. C. COOK.

SPRINGFIELD, Aug. 2, 1858.

Hon. B. C. COOK.

MY DEAR SIR:—I have a letter from a very true and intelligent man insisting that there is a plan on foot in La Salle and Bureau to run Douglas Republicans for Congress and for the Legislature in those counties, if they can only get the encouragement of our folks nominating pretty extreme abolitionists.

It is thought they will do nothing if our folks nominate men who are not very obnoxious to the charge of abolitionism. Please have your eye upon this. Signs are looking pretty fair.

Yours very truly,

A. LINCOLN.

TO HON. J. M. PALMER.

SPRINGFIELD, Aug. 5, 1858.

HON. J. M. PALMER.

DEAR SIR:—Since we parted last evening no new thought has occurred to [me] on the subject of which we talked most yesterday.

I have concluded, however, to speak at your town on Tuesday, August 31st, and have promised to have it so appear in the papers of to-morrow. Judge Trumbull has not yet reached here.

Yours as ever,

A. LINCOLN.

TO ALEXANDER SYMPSON.

SPRINGFIELD, Aug. 11, 1858.

ALEXANDER SYMPSON, Esq.

DEAR SIR:—Yours of the 6th received. If life and health continue I shall pretty likely be at Augusta on the 25th.

Things look reasonably well. Will tell you more fully when I see you.

Yours truly,

A. LINCOLN.

TO J. O. CUNNINGHAM.

OTTAWA, August 22, 1858.

J. O. CUNNINGHAM, Esq.

MY DEAR SIR:—Yours of the 18th, signed as secretary of the Republican club, is received. In the matter of making speeches I am a good deal pressed by invitations from almost all quarters, and while I hope to be at Urbana some time during the canvass, I cannot yet say when. Can you not see me at Monticello on the 6th of September?

Douglas and I, for the first time this canvass, crossed swords here yesterday; the fire flew some, and I am glad to know I am yet alive. There was a vast concourse of people—more than could get near enough to hear.

Yours as ever,

A. LINCOLN.

ON SLAVERY IN A DEMOCRACY.

August??, 1858

As I would not be a slave, so I would not be a master. This expresses my idea of democracy. Whatever differs from this, to the extent of the difference, is no democracy.

A. LINCOLN.

TO B. C. COOK.

SPRINGFIELD, August 2, 1858

HON. B. C. COOK.

MY DEAR SIR:—I have a letter from a very true friend, and intelligent man, writing that there is a plan on foot in La Salle and Bureau, to run Douglas Republican for Congress and for the Legislature in those counties, if they can only get the encouragement of our folks nominating pretty extreme abolitionists. It is thought they will do nothing if our folks nominate men who are not very [undecipherable word looks like "obnoxious"] to the charge of abolitionism. Please have your eye upon this. Signs are looking pretty fair.

Yours very truly,

A. LINCOLN.

TO DR. WILLIAM FITHIAN, DANVILLE, ILL.

BLOOMINGTON, Sept. 3, 1858

DEAR DOCTOR:—Yours of the 1st was received this morning, as also one from Mr. Harmon, and one from Hiram Beckwith on the same subject. You will see by the Journal that I have been appointed to speak at Danville on the 22d of Sept.,—the day after Douglas speaks there. My recent experience shows that speaking at the same place the next day after D. is the very thing,—it is, in fact, a concluding speech on him. Please show this to Messrs. Harmon and Beckwith; and tell them they must excuse me from writing separate letters to them.

Yours as ever,

A. LINCOLN

P. S.—Give full notice to all surrounding country. A.L.

FRAGMENT OF SPEECH AT PARIS, ILL.,

SEPT. 8, 1858.

Let us inquire what Judge Douglas really invented when he introduced the Nebraska Bill? He called it Popular Sovereignty. What does that mean? It means the sovereignty of the people over their own affairs—in other words, the right of the people to govern themselves. Did Judge Douglas invent this? Not quite. The idea of popular sovereignty was floating about several ages before the author of the Nebraska Bill was born—indeed, before Columbus set foot on this continent. In the year 1776 it took form in the noble words which you are all familiar with: "We hold these truths to be self-evident, that all men are created equal," etc. Was not this the origin of popular sovereignty as applied to the American people? Here we are told that governments are instituted among men deriving their just powers from the consent of the governed. If that is not popular sovereignty, then I have no conception of the meaning of words. If Judge Douglas did not invent this kind of popular sovereignty, let us pursue the inquiry and find out what kind he did invent. Was it the right of emigrants to Kansas and Nebraska to govern themselves, and a lot of "niggers," too, if they wanted them? Clearly this was no invention of his because General Cass put forth the same doctrine in 1848 in his so called Nicholson letter, six years before Douglas thought of such a thing. Then what was it that the "Little Giant" invented? It never occurred to General Cass to call his discovery by the odd name of popular sovereignty. He had not the face to say that the right of the people to govern "niggers" was the right of the people to govern themselves. His notions of the fitness of things were not moulded to the brazenness of calling the right to put a hundred "niggers" through under the lash in Nebraska a "sacred" right of self-government. And here I submit to you was Judge Douglas's discovery, and the whole of it: He discovered that the right to breed and flog negroes in Nebraska was popular sovereignty.

SPEECH AT CLINTON, ILLINOIS,

SEPTEMBER 8, 1858.

The questions are sometimes asked "What is all this fuss that is being made about negroes? What does it amount to? And where will it end?" These questions imply that those who ask them consider the slavery question a very insignificant matter they think that it amounts to little or nothing and that those who agitate it are extremely foolish. Now it must be admitted that if the great question which has caused so much trouble is insignificant, we are very foolish to have anything to do with it—if it is of no importance we had better throw it aside and busy ourselves with something else. But let us inquire a little into this insignificant matter, as it is called by some, and see if it is not important enough to demand the close attention of every well-wisher of the Union. In one of Douglas's recent speeches, I find a reference to one which was made by me in Springfield some time ago. The judge makes one quotation from that speech that requires some little notice from me at this time. I regret that I have not my Springfield speech before me, but the judge has quoted one particular part of it so often that I think I can recollect it. It runs I think as follows:

"We are now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to slavery agitation. Under the operation of that policy that agitation has not only not ceased but has constantly augmented. In my opinion it will not cease until a crisis shall have been reached and passed.

"A house divided against itself cannot stand. I believe this government cannot endure permanently half slave and half free. I do not expect the Union to be dissolved. I do not expect the house to fall, but I do expect it will cease to be divided. It will become all one thing or all the other. Either the opponents of slavery will arrest the further spread of it and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction; or its advocates will push it forward till it shall become alike lawful in all the States, old as well as new, North as well as South."

Judge Douglas makes use of the above quotation, and finds a great deal of fault with it. He deals unfairly with me, and tries to make the people of this State believe that I advocated dangerous doctrines in my Springfield speech. Let us see if that portion of my Springfield speech of which Judge Douglas complains so bitterly, is as objectionable to others as it is to him. We are, certainly, far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to slavery agitation. On the fourth day of January, 1854, Judge Douglas introduced the Kansas-Nebraska bill. He initiated a new policy, and that policy, so he says, was to put an end to the agitation of the slavery question. Whether that was his object or not I will not stop to discuss, but at all events some kind of a policy was initiated; and what has been the result? Instead of the quiet and good feeling which were promised us by the self-styled author of Popular Sovereignty, we have had nothing but ill-feeling and agitation. According to Judge Douglas, the passage of the Nebraska bill would tranquilize the whole country—there would be no more slavery agitation in or out of Congress, and the vexed question would be left entirely to the people of the Territories. Such was the opinion of Judge Douglas, and such were the opinions of the leading men of the Democratic Party. Even as late as the spring of 1856 Mr. Buchanan said, a short time subsequent to his nomination by the Cincinnati convention, that the territory of Kansas would be tranquil in less than six weeks. Perhaps he thought so, but Kansas has not been and is not tranquil, and it may be a long time before she may be so.

We all know how fierce the agitation was in Congress last winter, and what a narrow escape Kansas had from being admitted into the Union with a constitution that was detested by ninety-nine hundredths of her citizens. Did the angry debates which took place at Washington during the last season of Congress lead you to suppose that the slavery agitation was settled?

An election was held in Kansas in the month of August, and the constitution which was submitted to the people was voted down by a large majority. So Kansas is still out of the Union, and there is a probability that she will remain out for some time. But Judge Douglas says the slavery question is settled. He says the bill he introduced into the Senate of the United States on the 4th day of January, 1854, settled the slavery question forever! Perhaps he can tell us how that bill settled the slavery question, for if he is able to settle a question of such great magnitude he ought to be able

to explain the manner in which he does it. He knows and you know that the question is not settled, and that his ill-timed experiment to settle it has made it worse than it ever was before.

And now let me say a few words in regard to Douglas's great hobby of negro equality. He thinks—he says at least—that the Republican party is in favor of allowing whites and blacks to intermarry, and that a man can't be a good Republican unless he is willing to elevate black men to office and to associate with them on terms of perfect equality. He knows that we advocate no such doctrines as these, but he cares not how much he misrepresents us if he can gain a few votes by so doing. To show you what my opinion of negro equality was in times past, and to prove to you that I stand on that question where I always stood, I will read you a few extracts from a speech that was made by me in Peoria in 1854. It was made in reply to one of Judge Douglas's speeches.

(Mr. Lincoln then read a number of extracts which had the ring of the true metal. We have rarely heard anything with which we have been more pleased. And the audience after hearing the extracts read, and comparing their conservative sentiments with those now advocated by Mr. Lincoln, testified their approval by loud applause. How any reasonable man can hear one of Mr. Lincoln's speeches without being converted to Republicanism is something that we can't account for. Ed.)

Slavery, continued Mr. Lincoln, is not a matter of little importance, it overshadows every other question in which we are interested. It has divided the Methodist and Presbyterian churches, and has sown discord in the American Tract Society. The churches have split and the society will follow their example before long. So it will be seen that slavery is agitated in the religious as well as in the political world. Judge Douglas is very much afraid in the triumph that the Republican party will lead to a general mixture of the white and black races. Perhaps I am wrong in saying that he is afraid, so I will correct myself by saying that he pretends to fear that the success of our party will result in the amalgamation of the blacks and whites. I think I can show plainly, from documents now before me, that Judge Douglas's fears are groundless. The census of 1800 tells us that in that year there were over four hundred thousand mulattoes in the United States. Now let us take what is called an Abolition State—the Republican, slavery-hating State of New Hampshire—and see how many mulattoes we

can find within her borders. The number amounts to just one hundred and eighty-four. In the Old Dominion—in the Democratic and aristocratic State of Virginia—there were a few more mulattoes than the Census-takers found in New Hampshire. How many do you suppose there were? Seventy-nine thousand, seven hundred and seventy-five—twenty-three thousand more than there were in all the free States! In the slave States there were in 1800, three hundred and forty-eight thousand mulattoes all of home production; and in the free States there were less than sixty thousand mulattoes—and a large number of them were imported from the South.

FRAGMENT OF SPEECH AT EDWARDSVILLE, ILL.,

SEPT. 13, 1858.

I have been requested to give a concise statement of the difference, as I understand it, between the Democratic and Republican parties, on the leading issues of the campaign. This question has been put to me by a gentleman whom I do not know. I do not even know whether he is a friend of mine or a supporter of Judge Douglas in this contest, nor does that make any difference. His question is a proper one. Lest I should forget it, I will give you my answer before proceeding with the line of argument I have marked out for this discussion.

The difference between the Republican and the Democratic parties on the leading issues of this contest, as I understand it, is that the former consider slavery a moral, social and political wrong, while the latter do not consider it either a moral, a social or a political wrong; and the action of each, as respects the growth of the country and the expansion of our population, is squared to meet these views. I will not affirm that the Democratic party consider slavery morally, socially and politically right, though their tendency to that view has, in my opinion, been constant and unmistakable for the past five years. I prefer to take, as the accepted maxim of the party, the idea put forth by Judge Douglas, that he "don't care whether slavery is voted down or voted up." I am quite willing to believe that many Democrats would prefer that slavery should be always voted down, and I know that some prefer that it be always voted up; but I have a right to insist that their action, especially if it be their constant action, shall determine their ideas and preferences on this subject. Every measure of the Democratic party of late years, bearing directly or indirectly on the slavery question, has corresponded with this notion of utter indifference whether slavery or freedom shall outrun in the race of empire across to the Pacific—every measure, I say, up to the Dred Scott decision, where, it seems to me, the idea is boldly suggested that slavery is better than freedom. The Republican

party, on the contrary, hold that this government was instituted to secure the blessings of freedom, and that slavery is an unqualified evil to the negro, to the white man, to the soil, and to the State. Regarding it as an evil, they will not molest it in the States where it exists, they will not overlook the constitutional guards which our fathers placed around it; they will do nothing that can give proper offence to those who hold slaves by legal sanction; but they will use every constitutional method to prevent the evil from becoming larger and involving more negroes, more white men, more soil, and more States in its deplorable consequences. They will, if possible, place it where the public mind shall rest in the belief that it is in course of ultimate peaceable extinction in God's own good time. And to this end they will, if possible, restore the government to the policy of the fathers, the policy of preserving the new Territories from the baneful influence of human bondage, as the Northwestern Territories were sought to be preserved by the Ordinance of 1787, and the Compromise Act of 1820. They will oppose, in all its length and breadth, the modern Democratic idea, that slavery is as good as freedom, and ought to have room for expansion all over the continent, if people can be found to carry it. All, or nearly all, of Judge Douglas's arguments are logical, if you admit that slavery is as good and as right as freedom, and not one of them is worth a rush if you deny it. This is the difference, as I understand it, between the Republican and Democratic parties.

My friends, I have endeavored to show you the logical consequences of the Dred Scott decision, which holds that the people of a Territory cannot prevent the establishment of slavery in their midst. I have stated what cannot be gainsaid, that the grounds upon which this decision is made are equally applicable to the free States as to the free Territories, and that the peculiar reasons put forth by Judge Douglas for indorsing this decision commit him, in advance, to the next decision and to all other decisions coming from the same source. And when, by all these means, you have succeeded in dehumanizing the negro; when you have put him down and made it impossible for him to be but as the beasts of the field; when you have extinguished his soul in this world and placed him where the ray of hope is blown out as in the darkness of the damned, are you quite sure that the demon you have roused will not turn and rend you? What constitutes the bulwark of our own liberty and independence? It is not our frowning battlements, our bristling sea coasts, our army and our navy. These are not

our reliance against tyranny All of those may be turned against us without making us weaker for the struggle. Our reliance is in the love of liberty which God has planted in us. Our defense is in the spirit which prizes liberty as the heritage of all men, in all lands everywhere. Destroy this spirit and you have planted the seeds of despotism at your own doors. Familiarize yourselves with the chains of bondage and you prepare your own limbs to wear them. Accustomed to trample on the rights of others, you have lost the genius of your own independence and become the fit subjects of the first cunning tyrant who rises among you. And let me tell you, that all these things are prepared for you by the teachings of history, if the elections shall promise that the next Dred Scott decision and all future decisions will be quietly acquiesced in by the people.

VERSE TO "LINNIE"

September 30,? 1858.

TO "LINNIE":

*A sweet plaintive song did I hear
And I fancied that she was the singer.
May emotions as pure as that song set astir
Be the wont that the future shall bring her.*

NEGROES ARE MEN

TO J. U. BROWN.

SPRINGFIELD, OCT 18, 1858 HON. J. U. BROWN.

MY DEAR SIR:—I do not perceive how I can express myself more plainly than I have in the fore-going extracts. In four of them I have expressly disclaimed all intention to bring about social and political equality between the white and black races and in all the rest I have done the same thing by clear implication.

I have made it equally plain that I think the negro is included in the word "men" used in the Declaration of Independence.

I believe the declaration that "all men are created equal" is the great fundamental principle upon which our free institutions rest; that negro slavery is violative of that principle; but that, by our frame of government, that principle has not been made one of legal obligation; that by our frame of government, States which have slavery are to retain it, or surrender it at their own pleasure; and that all others—individuals, free States and national Government—are constitutionally bound to leave them alone about it.

I believe our Government was thus framed because of the necessity springing from the actual presence of slavery, when it was framed.

That such necessity does not exist in the Territories when slavery is not present.

In his Mendenhall speech Mr. Clay says: "Now as an abstract principle there is no doubt of the truth of that declaration (all men created equal), and it is desirable, in the original construction of society, to keep it in view as a great fundamental principle."

Again, in the same speech Mr. Clay says: "If a state of nature existed and we were about to lay the foundations of society, no man would be more strongly opposed than I should to incorporate the institution of slavery among its elements."

Exactly so. In our new free Territories, a state of nature does exist. In them Congress lays the foundations of society; and in laying those foundations, I say, with Mr. Clay, it is desirable that the declaration of the equality of all men shall be kept in view as a great fundamental principle, and that Congress, which lays the foundations of society, should, like Mr. Clay, be strongly opposed to the incorporation of slavery and its elements.

But it does not follow that social and political equality between whites and blacks must be incorporated because slavery must not. The declaration does not so require.

Yours as ever,

A. LINCOLN

[Newspaper cuttings of Lincoln's speeches at Peoria, in 1854, at Springfield, Ottawa, Chicago, and Charleston, in 1858. They were pasted in a little book in which the above letter was also written.]

TO A. SYMPSON.

BLANDINSVILLE, Oct 26, 1858

A. SYMPSON, Esq.

DEAR SIR:—Since parting with you this morning I heard some things which make me believe that Edmunds and Morrill will spend this week among the National Democrats, trying to induce them to content themselves by voting for Jake Davis, and then to vote for the Douglas candidates for senator and representative. Have this headed off, if you can. Call Wagley's attention to it and have him and the National Democrat for Rep. to counteract it as far as they can.

Yours as ever,

A. LINCOLN.

SENATORIAL ELECTION LOST AND OUT OF MONEY

TO N. B. JUDD.

SPRINGFIELD, NOVEMBER 16, 1858 HON. N. B. JUDD

DEAR SIR:—Yours of the 15th is just received. I wrote you the same day. As to the pecuniary matter, I am willing to pay according to my ability; but I am the poorest hand living to get others to pay. I have been on expenses so long without earning anything that I am absolutely without money now for even household purposes. Still, if you can put in two hundred and fifty dollars for me toward discharging the debt of the committee, I will allow it when you and I settle the private matter between us. This, with what I have already paid, and with an outstanding note of mine, will exceed my subscription of five hundred dollars. This, too, is exclusive of my ordinary expenses during the campaign, all of which, being added to my loss of time and business, bears pretty heavily upon one no better off in [this] world's goods than I; but as I had the post of honor, it is not for me to be over nice. You are feeling badly,—“And this too shall pass away,” never fear.

Yours as ever,

A. LINCOLN.

THE FIGHT MUST GO ON

TO H. ASBURY.

SPRINGFIELD, November 19, 1858.

HENRY ASBURY, Esq.

DEAR SIR:—Yours of the 13th was received some days ago. The fight must go on. The cause of civil liberty must not be surrendered at the end of one or even one hundred defeats. Douglas had the ingenuity to be supported in the late contest both as the best means to break down and to uphold the slave interest. No ingenuity can keep these antagonistic elements in harmony long. Another explosion will soon come.

Yours truly,

A. LINCOLN.

REALIZATION THAT DEBATES MUST BE SAVED

TO C. H. RAY.

SPRINGFIELD, Nov.20, 1858

DR. C. H. RAY

MY DEAR SIR:—I wish to preserve a set of the late debates (if they may be called so), between Douglas and myself. To enable me to do so, please get two copies of each number of your paper containing the whole, and send them to me by express; and I will pay you for the papers and for your trouble. I wish the two sets in order to lay one away in the [undecipherable word] and to put the other in a scrapbook. Remember, if part of any debate is on both sides of the sheet it will take two sets to make one scrap-book.

I believe, according to a letter of yours to Hatch, you are "feeling like h-ll yet." Quit that—you will soon feel better. Another "blow up" is coming; and we shall have fun again. Douglas managed to be supported both as the best instrument to down and to uphold the slave power; but no ingenuity can long keep the antagonism in harmony.

Yours as ever,

A. LINCOLN

TO H. C. WHITNEY.

SPRINGFIELD, November 30, 1858

H. C. WHITNEY, ESQ.

MY DEAR SIR:—Being desirous of preserving in some permanent form the late joint discussion between Douglas and myself, ten days ago I wrote to Dr. Ray, requesting him to forward to me by express two sets of the numbers of the Tribune which contain the reports of those discussions. Up to date I have no word from him on the subject. Will you, if in your power, procure them and forward them to me by express? If you will, I will pay all charges, and be greatly obliged, to boot. Hoping to visit you before long, I remain

As ever your friend,

A. LINCOLN.

TO H. D. SHARPE.

SPRINGFIELD, Dec. 8, 1858.

H. D. SHARPE, Esq.

DEAR SIR:—Your very kind letter of Nov. 9th was duly received. I do not know that you expected or desired an answer; but glancing over the contents of yours again, I am prompted to say that, while I desired the result of the late canvass to have been different, I still regard it as an exceeding small matter. I think we have fairly entered upon a durable struggle as to whether this nation is to ultimately become all slave or all free, and though I fall early in the contest, it is nothing if I shall have contributed, in the least degree, to the final rightful result.

Respectfully yours,

A. LINCOLN.

TO A. SYMPSON.

SPRINGFIELD, Dec.12, 1858.

ALEXANDER SYMPSON, Esq.

MY DEAR SIR:—I expect the result of the election went hard with you. So it did with me, too, perhaps not quite so hard as you may have supposed. I have an abiding faith that we shall beat them in the long run. Step by step the objects of the leaders will become too plain for the people to stand them. I write merely to let you know that I am neither dead nor dying. Please give my respects to your good family, and all inquiring friends.

Yours as ever,

A. LINCOLN.

ON BANKRUPTCY

NOTES OF AN ARGUMENT.

December [?], 1858.

Legislation and adjudication must follow and conform to the progress of society.

The progress of society now begins to produce cases of the transfer for debts of the entire property of railroad corporations; and to enable transferees to use and enjoy the transferred property, legislation and adjudication begin to be necessary.

Shall this class of legislation just now beginning with us be general or special?

Section Ten of our Constitution requires that it should be general,

if possible. (Read the section.)

Special legislation always trenches upon the judicial department; and in so far violates Section Two of the Constitution. (Read it.)

Just reasoning—policy—is in favor of general legislation—else the Legislature will be loaded down with the investigation of smaller cases—a work which the courts ought to perform, and can perform much more perfectly. How can the Legislature rightly decide the facts between P. & B. and S.C.

It is said that under a general law, whenever a R. R. Co. gets tired of its debts, it may transfer fraudulently to get rid of them. So they may—so may individuals; and which—the Legislature or the courts—is best suited to try the question of fraud in either case?

It is said, if a purchaser have acquired legal rights, let him not be robbed of them, but if he needs legislation let him submit to just terms to obtain it.

Let him, say we, have general law in advance (guarded in every possible way against fraud), so that, when he acquires a legal right, he will have no occasion to wait for additional legislation; and if he has practiced fraud let the courts so decide.

A LEGAL OPINION BY ABRAHAM LINCOLN.

The 11th Section of the Act of Congress, approved Feb. 11, 1805, prescribing rules for the subdivision of sections of land within the United States system of surveys, standing unrepealed, in my opinion, is binding on the respective purchasers of different parts of the same section, and furnishes the true rule for surveyors in establishing lines between them. That law, being in force at the time each became a purchaser, becomes a condition of the purchase.

And, by that law, I think the true rule for dividing into quarters any interior section or sections, which is not fractional, is to run straight lines through the section from the opposite quarter section corners, fixing the point where such straight lines cross, or intersect each other, as the middle or centre of the section.

Nearly, perhaps quite, all the original surveys are to some extent erroneous, and in some of the sections, greatly so. In each of the latter, it is obvious that a more equitable mode of division than the above might be adopted; but as error is infinitely various perhaps no better single rules can be prescribed.

At all events I think the above has been prescribed by the competent authority.

SPRINGFIELD, Jany. 6, 1859.

A. LINCOLN.

TO M. W. DELAHAY.

SPRINGFIELD, March 4, 1859.

M. W. DELAHAY, Esq.

MY DEAR SIR: Your second letter in relation to my being with you at your Republican convention was duly received. It is not at hand just now, but I have the impression from it that the convention was to be at Leavenworth; but day before yesterday a friend handed me a letter from Judge M. F. Caraway, in which he also expresses a wish for me to come, and he fixes the place at Ossawatimie. This I believe is off of the river, and will require more time and labor to get to it. It will push me hard to get there without injury to my own business; but I shall try to do it, though I am not yet quite certain I shall succeed.

I should like to know before coming, that while some of you wish me to come, there may not be others who would quite as lief I would stay away. Write me again.

Yours as ever,

A. LINCOLN.

TO W. M. MORRIS.

SPRINGFIELD, March 28, 1859.

W. M. MORRIS, Esq.

DEAR SIR:—Your kind note inviting me to deliver a lecture at Galesburg is received. I regret to say I cannot do so now; I must stick to the courts awhile. I read a sort of lecture to three different audiences during the last month and this; but I did so under circumstances which made it a waste of no time whatever.

Yours very truly,

TO H. L. PIERCE AND OTHERS.

SPRINGFIELD, ILLINOIS, April 6, 1859.

GENTLEMEN:—Your kind note inviting me to attend a festival in Boston, on the 28th instant, in honor of the birthday of Thomas Jefferson, was duly received. My engagements are such that I cannot attend.

Bearing in mind that about seventy years ago two great political parties were first formed in this country, that Thomas Jefferson was the head of one of them and Boston the headquarters of the other, it is both curious and interesting that those supposed to descend politically from the party opposed to Jefferson should now be celebrating his birthday in their own original seat of empire, while those claiming political descent from him have nearly ceased to breathe his name everywhere.

Remembering, too, that the Jefferson party was formed upon its supposed superior devotion to the personal rights of men, holding the rights of property to be secondary only, and greatly inferior, and assuming that the so-called Democracy of to-day are the Jefferson, and their opponents the anti-Jefferson, party, it will be equally interesting to note how completely the two have changed hands as to the principle upon which they were originally supposed to be divided. The Democracy of to-day hold the liberty of one man to be absolutely nothing, when in conflict with another man's right of property; Republicans, on the contrary, are for both the man and the dollar, but in case of conflict the man before the dollar.

I remember being once much amused at seeing two partially intoxicated men engaged in a fight with their great-coats on, which fight, after a long and rather harmless contest, ended in each having fought himself out of his own coat and into that of the other. If the two leading parties of this day are really identical with the two in the days of Jefferson and Adams, they have performed the same feat as the two drunken men.

But soberly, it is now no child's play to save the principles of Jefferson from total overthrow in this nation. One would state with great confidence that he could convince any sane child that the simpler propositions of

Euclid are true; but nevertheless he would fail, utterly, with one who should deny the definitions and axioms. The principles of Jefferson are the definitions and axioms of free society. And yet they are denied and evaded, with no small show of success. One dashinglly calls them "glittering generalities." Another bluntly calls them "self-evident lies." And others insidiously argue that they apply to "superior races." These expressions, differing in form, are identical in object and effect—the supplanting the principles of free government, and restoring those of classification, caste, and legitimacy. They would delight a convocation of crowned heads plotting against the people. They are the vanguard, the miners and sappers, of returning despotism. We must repulse them, or they will subjugate us. This is a world of compensation; and he who would be no slave must consent to have no slave. Those who deny freedom to others deserve it not for themselves, and, under a just God, cannot long retain it. All honor to Jefferson to the man who, in the concrete pressure of a struggle for national independence by a single people, had the coolness, forecast, and capacity to introduce into a mere revolutionary document an abstract truth, applicable to all men and all times, and so to embalm it there that to-day and in all coming days it shall be a rebuke and a stumbling-block to the very harbingers of reappearing tyranny and oppression.

Your obedient servant,

A. LINCOLN.

TO T. CANISIUS.

SPRINGFIELD, May 17, 1859.

DR. THEODORE CANISIUS.

DEAR SIR:—Your note asking, in behalf of yourself and other German citizens, whether I am for or against the constitutional provision in regard to naturalized citizens, lately adopted by Massachusetts, and whether I am for or against a fusion of the Republicans and other opposition elements for the canvass of 1860, is received.

Massachusetts is a sovereign and independent State; and it is no privilege of mine to scold her for what she does. Still, if from what she has done an inference is sought to be drawn as to what I would do, I may without impropriety speak out. I say, then, that, as I understand the Massachusetts provision, I am against its adoption in Illinois, or in any other place where I have a right to oppose it. Understanding the spirit of our institutions to aim at the elevation of men, I am opposed to whatever tends to degrade them. I have some little notoriety for commiserating the oppressed negro; and I should be strangely inconsistent if I could favor any project for curtailing the existing rights of white men, even though born in different lands, and speaking different languages from myself. As to the matter of fusion, I am for it if it can be had on Republican grounds; and I am not for it on any other terms. A fusion on any other terms would be as foolish as unprincipled. It would lose the whole North, while the common enemy would still carry the whole South. The question of men is a different one. There are good, patriotic men and able statesmen in the South whom I would cheerfully support, if they would now place themselves on Republican ground, but I am against letting down the Republican standard a hairsbreadth.

I have written this hastily, but I believe it answers your questions substantially.

Yours truly,

A. LINCOLN.

TO THE GOVERNOR, AUDITOR, AND TREASURER OF THE STATE OF ILLINOIS.

GENTLEMEN:

In reply to your inquiry; requesting our written opinion as to what your duty requires you to do in executing the latter clause of the Seventh Section of "An Act in relation to the payment of the principal and interest of the State debt," approved Feb'y 22, 1859, we reply that said last clause of said section is certainly indefinite, general, and ambiguous in its description of the bonds to be issued by you; giving no time at which the bonds are to be made payable, no place at which either principal or interest are to be paid, and no rate of interest which the bonds are to bear; nor any other description except that they are to be coupon bonds, which in commercial usage means interest-paying bonds with obligations or orders attached to them for the payment of annual or semiannual interest; there is we suppose no difficulty in ascertaining, if this act stood alone, what ought to be the construction of the terms "coupon bonds" and that it, would mean bonds bearing interest from the time of issuing the same. And under this act considered by itself the creditors would have a right to require such bonds. But your inquiry in regard to a class of bonds on which no interest is to be paid or shall begin to run until January 1, 1860, is whether the Act of February 18, 1857, would not authorize you to refuse to give bonds with any coupons attached payable before the first day of July, 1860. We have very maturely considered this question and have arrived at the conclusion that you have a right to use such measures as will secure the State against the loss of six months' interest on these bonds by the indefiniteness of the Act of 1859. While it cannot be denied that the letter of the laws favor the construction claimed by some of the creditors that interest-bearing bonds were required to be issued to them, inasmuch as the restriction that no interest is to run on said bonds until 1st January, 1860, relates solely to the bonds issued under the Act of 1857. And the Act of 1859 directing you to issue new bonds does not contain this restriction, but directs you to issue coupon bonds. Nevertheless the very indefiniteness and generality of the

Act of 1859, giving no rate of interest, no time due, no place of payment, no postponement of the time when interest commences, necessarily implies that the Legislature intended to invest you with a discretion to impose such terms and restrictions as would protect the interest of the State; and we think you have a right and that it is your duty to see that the State Bonds are so issued that the State shall not lose six months' interest. Two plans present themselves either of which will secure the State. 1st. If in literal compliance with the law you issue bonds bearing interest from 1st July, 1859, you may deduct from the bonds presented three thousand from every \$100,000 of bonds and issue \$97,000 of coupon bonds; by this plan \$3000 out of \$100,000 of principal would be extinguished in consideration of paying \$2910 interest on the first of January, 1860—and the interest on the \$3000 would forever cease; this would be no doubt most advantageous to the State. But if the Auditor will not consent to this, then, 2nd. Cut off of each bond all the coupons payable before 1st July, 1860.

One of these plans would undoubtedly have been prescribed by the Legislature if its attention had been directed to this question.

May 28, 1859.

ON LINCOLN'S SCRAP BOOK

TO H. C. WHITNEY.

SPRINGFIELD, December 25, 1858.

H. C. WHITNEY, ESQ.

MY DEAR SIR:—I have just received yours of the 23rd inquiring whether I received the newspapers you sent me by express. I did receive them, and am very much obliged. There is some probability that my scrap-book will be reprinted, and if it shall, I will save you a copy.

Your friend as ever,

A. LINCOLN.

1859

FIRST SUGGESTION OF A PRESIDENTIAL OFFER.

TO S. GALLOWAY.

SPRINGFIELD, ILL., July 28, 1859.

HON. SAMUEL GALLOWAY.

MY DEAR SIR:—Your very complimentary, not to say flattering, letter of the 23d inst. is received. Dr. Reynolds had induced me to expect you here; and I was disappointed not a little by your failure to come. And yet I fear you have formed an estimate of me which can scarcely be sustained on a personal acquaintance.

Two things done by the Ohio Republican convention—the repudiation of Judge Swan, and the "plank" for a repeal of the Fugitive Slave Law—I very much regretted. These two things are of a piece; and they are viewed by many good men, sincerely opposed to slavery, as a struggle against, and in disregard of, the Constitution itself. And it is the very thing that will greatly endanger our cause, if it be not kept out of our national convention. There is another thing our friends are doing which gives me some uneasiness. It is their leaning toward "popular sovereignty." There are three substantial objections to this: First, no party can command respect which sustains this year what it opposed last. Secondly, Douglas (who is the most dangerous enemy of liberty, because the most insidious one) would have little support in the North, and by consequence, no capital to trade on in the South, if it were not for his friends thus magnifying him and his humbug. But lastly, and chiefly, Douglas's popular sovereignty, accepted by the public mind as a just principle, nationalizes slavery, and revives the African slave trade inevitably.

Taking slaves into new Territories, and buying slaves in Africa, are identical things, identical rights or identical wrongs, and the argument which establishes one will establish the other. Try a thousand years for a sound reason why Congress shall not hinder the people of Kansas from having slaves, and, when you have found it, it will be an equally good one why Congress should not hinder the people of Georgia from importing slaves from Africa.

As to Governor Chase, I have a kind side for him. He was one of the few distinguished men of the nation who gave us, in Illinois, their sympathy last year. I never saw him, but suppose him to be able and right-minded; but still he may not be the most suitable as a candidate for the Presidency.

I must say I do not think myself fit for the Presidency. As you propose a correspondence with me, I shall look for your letters anxiously.

I have not met Dr. Reynolds since receiving your letter; but when I shall, I will present your respects as requested.

Yours very truly,

A. LINCOLN.

IT IS BAD TO BE POOR.

TO HAWKINS TAYLOR

SPRINGFIELD, ILL. Sept. 6, 1859.

HAWKINS TAYLOR, Esq.

DEAR SIR:—Yours of the 3d is just received. There is some mistake about my expected attendance of the U.S. Court in your city on the 3d Tuesday of this month. I have had no thought of being there.

It is bad to be poor. I shall go to the wall for bread and meat if I neglect my business this year as well as last. It would please me much to see the city and good people of Keokuk, but for this year it is little less than an impossibility. I am constantly receiving invitations which I am compelled to decline. I was pressingly urged to go to Minnesota; and I now have two invitations to go to Ohio. These last are prompted by Douglas going there; and I am really tempted to make a flying trip to Columbus and Cincinnati.

I do hope you will have no serious trouble in Iowa. What thinks Grimes about it? I have not known him to be mistaken about an election in Iowa. Present my respects to Col. Carter, and any other friends, and believe me

Yours truly,

A. LINCOLN.

SPEECH AT COLUMBUS, OHIO.

SEPTEMBER 16, 1859.

FELLOW-CITIZENS OF THE STATE OF OHIO: I cannot fail to remember that I appear for the first time before an audience in this now great State,—an audience that is accustomed to hear such speakers as Corwin, and Chase, and Wade, and many other renowned men; and, remembering this, I feel that it will be well for you, as for me, that you should not raise your expectations to that standard to which you would have been justified in raising them had one of these distinguished men appeared before you. You would perhaps be only preparing a disappointment for yourselves, and, as a consequence of your disappointment, mortification to me. I hope, therefore, that you will commence with very moderate expectations; and perhaps, if you will give me your attention, I shall be able to interest you to a moderate degree.

Appearing here for the first time in my life, I have been somewhat embarrassed for a topic by way of introduction to my speech; but I have been relieved from that embarrassment by an introduction which the Ohio Statesman newspaper gave me this morning. In this paper I have read an article, in which, among other statements, I find the following:

"In debating with Senator Douglas during the memorable contest of last fall, Mr. Lincoln declared in favor of negro suffrage, and attempted to defend that vile conception against the Little Giant."

I mention this now, at the opening of my remarks, for the purpose of making three comments upon it. The first I have already announced,—it furnishes me an introductory topic; the second is to show that the gentleman is mistaken; thirdly, to give him an opportunity to correct it.

In the first place, in regard to this matter being a mistake. I have found that it is not entirely safe, when one is misrepresented under his very nose, to allow the misrepresentation to go uncontradicted. I therefore propose, here at the outset, not only to say that this is a misrepresentation, but to show conclusively that it is so; and you will bear with me while I read a

couple of extracts from that very "memorable" debate with Judge Douglas last year, to which this newspaper refers. In the first pitched battle which Senator Douglas and myself had, at the town of Ottawa, I used the language which I will now read. Having been previously reading an extract, I continued as follows:

"Now, gentlemen, I don't want to read at any greater length, but this is the true complexion of all I have ever said in regard to the institution of slavery and the black race. This is the whole of it; and anything that argues me into his idea of perfect social and political equality with the negro, is but a specious and fantastic arrangement of words, by which a man can prove a horse-chestnut to be a chestnut horse. I will say here, while upon this subject, that I have no purpose directly or indirectly to interfere with the institution of slavery in the States where it exists. I believe I have no lawful right to do so, and I have no inclination to do so. I have no purpose to introduce political and social equality between the white and the black races. There is a physical difference between the two which, in my judgment, will probably forbid their ever living together upon the footing of perfect equality; and inasmuch as it becomes a necessity that there must be a difference, I, as well as Judge Douglas, am in favor of the race to which I belong having the superior position. I have never said anything to the contrary, but I hold that, notwithstanding all this, there is no reason in the world why the negro is not entitled to all the natural rights enumerated in the Declaration of Independence,—the right to life, liberty and the pursuit of happiness. I hold that he is as much entitled to these as the white man. I agree with judge Douglas, he is not my equal in many respects,—certainly not in color, perhaps not in moral or intellectual endowments. But in the right to eat the bread, without leave of anybody else, which his own hand earns, he is my equal, and the equal of Judge Douglas, and the equal of every living man."

Upon a subsequent occasion, when the reason for making a statement like this occurred, I said:

"While I was at the hotel to-day an elderly gentleman called upon me to know whether I was really in favor of producing perfect equality between the negroes and white people. While I had not proposed to myself on this occasion to say much on that subject, yet, as the question was asked me, I thought I would occupy perhaps five minutes in saying something in regard

to it. I will say, then, that I am not, nor ever have been, in favor of bringing about in any way the social and political equality of the white and black races; that I am not, nor ever have been, in favor of making voters or jurors of negroes, nor of qualifying them to hold office, or intermarry with the white people; and I will say in addition to this that there is a physical difference between the white and black races which I believe will forever forbid the two races living together on terms of social and political equality. And inasmuch as they can not so live, while they do remain together there must be the position of superior and inferior, and I, as much as any other man, am in favor of having the superior position assigned to the white race. I say upon this occasion I do not perceive that because the white man is to have the superior position, the negro should be denied everything. I do not understand that because I do not want a negro woman for a slave, I must necessarily want her for a wife. My understanding is that I can just let her alone. I am now in my fiftieth year, and I certainly never have had a black woman for either a slave or a wife. So it seems to me quite possible for us to get along without making either slaves or wives of negroes. I will add to this that I have never seen, to my knowledge, a man, woman, or child, who was in favor of producing perfect equality, social and political, between negroes and white men. I recollect of but one distinguished instance that I ever heard of so frequently as to be satisfied of its correctness, and that is the case of Judge Douglas's old friend Colonel Richard M. Johnson. I will also add to the remarks I have made (for I am not going to enter at large upon this subject), that I have never had the least apprehension that I or my friends would marry negroes, if there was no law to keep them from it; but as judge Douglas and his friends seem to be in great apprehension that they might, if there were no law to keep them from it, I give him the most solemn pledge that I will to the very last stand by the law of the State which forbids the marrying of white people with negroes."

There, my friends, you have briefly what I have, upon former occasions, said upon this subject to which this newspaper, to the extent of its ability, has drawn the public attention. In it you not only perceive, as a probability, that in that contest I did not at any time say I was in favor of negro suffrage, but the absolute proof that twice—once substantially, and once expressly—I declared against it. Having shown you this, there remains but a word of comment upon that newspaper article. It is this, that I presume the editor of that paper is an honest and truth-loving man, and that he will be greatly

obliged to me for furnishing him thus early an opportunity to correct the misrepresentation he has made, before it has run so long that malicious people can call him a liar.

The Giant himself has been here recently. I have seen a brief report of his speech. If it were otherwise unpleasant to me to introduce the subject of the negro as a topic for discussion, I might be somewhat relieved by the fact that he dealt exclusively in that subject while he was here. I shall, therefore, without much hesitation or diffidence, enter upon this subject.

The American people, on the first day of January, 1854, found the African slave trade prohibited by a law of Congress. In a majority of the States of this Union, they found African slavery, or any other sort of slavery, prohibited by State constitutions. They also found a law existing, supposed to be valid, by which slavery was excluded from almost all the territory the United States then owned. This was the condition of the country, with reference to the institution of slavery, on the first of January, 1854. A few days after that, a bill was introduced into Congress, which ran through its regular course in the two branches of the national legislature, and finally passed into a law in the month of May, by which the Act of Congress prohibiting slavery from going into the Territories of the United States was repealed. In connection with the law itself, and, in fact, in the terms of the law, the then existing prohibition was not only repealed, but there was a declaration of a purpose on the part of Congress never thereafter to exercise any power that they might have, real or supposed, to prohibit the extension or spread of slavery. This was a very great change; for the law thus repealed was of more than thirty years' standing. Following rapidly upon the heels of this action of Congress, a decision of the Supreme Court is made, by which it is declared that Congress, if it desires to prohibit the spread of slavery into the Territories, has no constitutional power to do so. Not only so, but that decision lays down principles which, if pushed to their logical conclusion,—I say pushed to their logical conclusion,—would decide that the constitutions of free States, forbidding slavery, are themselves unconstitutional. Mark me, I do not say the judges said this, and let no man say I affirm the judges used these words; but I only say it is my opinion that what they did say, if pressed to its logical conclusion, will inevitably result thus.

Looking at these things, the Republican party, as I understand its principles and policy, believes that there is great danger of the institution of slavery being spread out and extended until it is ultimately made alike lawful in all the States of this Union; so believing, to prevent that incidental and ultimate consummation is the original and chief purpose of the Republican organization. I say "chief purpose" of the Republican organization; for it is certainly true that if the National House shall fall into the hands of the Republicans, they will have to attend to all the other matters of national house-keeping, as well as this. The chief and real purpose of the Republican party is eminently conservative. It proposes nothing save and except to restore this government to its original tone in regard to this element of slavery, and there to maintain it, looking for no further change in reference to it than that which the original framers of the Government themselves expected and looked forward to.

The chief danger to this purpose of the Republican party is not just now the revival of the African slave trade, or the passage of a Congressional slave code, or the declaring of a second Dred Scott decision, making slavery lawful in all the States. These are not pressing us just now. They are not quite ready yet. The authors of these measures know that we are too strong for them; but they will be upon us in due time, and we will be grappling with them hand to hand, if they are not now headed off. They are not now the chief danger to the purpose of the Republican organization; but the most imminent danger that now threatens that purpose is that insidious Douglas popular sovereignty. This is the miner and sapper. While it does not propose to revive the African slave trade, nor to pass a slave code, nor to make a second Dred Scott decision, it is preparing us for the onslaught and charge of these ultimate enemies when they shall be ready to come on, and the word of command for them to advance shall be given. I say this "Douglas popular sovereignty"; for there is a broad distinction, as I now understand it, between that article and a genuine popular sovereignty.

I believe there is a genuine popular sovereignty. I think a definition of "genuine popular sovereignty," in the abstract, would be about this: That each man shall do precisely as he pleases with himself, and with all those things which exclusively concern him. Applied to government, this principle would be, that a general government shall do all those things which pertain to it, and all the local governments shall do precisely as they please in respect to those matters which exclusively concern them. I

understand that this government of the United States, under which we live, is based upon this principle; and I am misunderstood if it is supposed that I have any war to make upon that principle.

Now, what is judge Douglas's popular sovereignty? It is, as a principle, no other than that if one man chooses to make a slave of another man neither that other man nor anybody else has a right to object. Applied in government, as he seeks to apply it, it is this: If, in a new Territory into which a few people are beginning to enter for the purpose of making their homes, they choose to either exclude slavery from their limits or to establish it there, however one or the other may affect the persons to be enslaved, or the infinitely greater number of persons who are afterwards to inhabit that Territory, or the other members of the families of communities, of which they are but an incipient member, or the general head of the family of States as parent of all, however their action may affect one or the other of these, there is no power or right to interfere. That is Douglas's popular sovereignty applied.

He has a good deal of trouble with popular sovereignty. His explanations explanatory of explanations explained are interminable. The most lengthy, and, as I suppose, the most maturely considered of this long series of explanations is his great essay in Harper's Magazine. I will not attempt to enter on any very thorough investigation of his argument as there made and presented. I will nevertheless occupy a good portion of your time here in drawing your attention to certain points in it. Such of you as may have read this document will have perceived that the judge early in the document quotes from two persons as belonging to the Republican party, without naming them, but who can readily be recognized as being Governor Seward of New York and myself. It is true that exactly fifteen months ago this day, I believe, I for the first time expressed a sentiment upon this subject, and in such a manner that it should get into print, that the public might see it beyond the circle of my hearers; and my expression of it at that time is the quotation that Judge Douglas makes. He has not made the quotation with accuracy, but justice to him requires me to say that it is sufficiently accurate not to change the sense.

The sense of that quotation condensed is this: that this slavery element is a durable element of discord among us, and that we shall probably not have perfect peace in this country with it until it either masters the free principle

in our government, or is so far mastered by the free principle as for the public mind to rest in the belief that it is going to its end. This sentiment, which I now express in this way, was, at no great distance of time, perhaps in different language, and in connection with some collateral ideas, expressed by Governor Seward. Judge Douglas has been so much annoyed by the expression of that sentiment that he has constantly, I believe, in almost all his speeches since it was uttered, been referring to it. I find he alluded to it in his speech here, as well as in the copyright essay. I do not now enter upon this for the purpose of making an elaborate argument to show that we were right in the expression of that sentiment. In other words, I shall not stop to say all that might properly be said upon this point, but I only ask your attention to it for the purpose of making one or two points upon it.

If you will read the copyright essay, you will discover that judge Douglas himself says a controversy between the American Colonies and the Government of Great Britain began on the slavery question in 1699, and continued from that time until the Revolution; and, while he did not say so, we all know that it has continued with more or less violence ever since the Revolution.

Then we need not appeal to history, to the declarations of the framers of the government, but we know from judge Douglas himself that slavery began to be an element of discord among the white people of this country as far back as 1699, or one hundred and sixty years ago, or five generations of men,—counting thirty years to a generation. Now, it would seem to me that it might have occurred to Judge Douglas, or anybody who had turned his attention to these facts, that there was something in the nature of that thing, slavery, somewhat durable for mischief and discord.

There is another point I desire to make in regard to this matter, before I leave it. From the adoption of the Constitution down to 1820 is the precise period of our history when we had comparative peace upon this question,—the precise period of time when we came nearer to having peace about it than any other time of that entire one hundred and sixty years in which he says it began, or of the eighty years of our own Constitution. Then it would be worth our while to stop and examine into the probable reason of our coming nearer to having peace then than at any other time. This was the precise period of time in which our fathers adopted, and during which they

followed, a policy restricting the spread of slavery, and the whole Union was acquiescing in it. The whole country looked forward to the ultimate extinction of the institution. It was when a policy had been adopted, and was prevailing, which led all just and right-minded men to suppose that slavery was gradually coming to an end, and that they might be quiet about it, watching it as it expired. I think Judge Douglas might have perceived that too; and whether he did or not, it is worth the attention of fair-minded men, here and elsewhere, to consider whether that is not the truth of the case. If he had looked at these two facts,—that this matter has been an element of discord for one hundred and sixty years among this people, and that the only comparative peace we have had about it was when that policy prevailed in this government which he now wars upon, he might then, perhaps, have been brought to a more just appreciation of what I said fifteen months ago,—that "a house divided against itself cannot stand. I believe that this government cannot endure permanently, half slave and half free. I do not expect the house to fall, I do not expect the Union to dissolve; but I do expect it will cease to be divided. It will become all one thing, or all the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind will rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward until it shall become alike lawful in all the States, old as well as new, North as well as South." That was my sentiment at that time. In connection with it, I said: "We are now far into the fifth year since a policy was inaugurated with the avowed object and confident promise of putting an end to slavery agitation. Under the operation of the policy that agitation has not only not ceased, but has constantly augmented." I now say to you here that we are advanced still farther into the sixth year since that policy of Judge Douglas—that popular sovereignty of his—for quieting the slavery question was made the national policy. Fifteen months more have been added since I uttered that sentiment; and I call upon you and all other right-minded men to say whether that fifteen months have belied or corroborated my words.

While I am here upon this subject, I cannot but express gratitude that this true view of this element of discord among us—as I believe it is—is attracting more and more attention. I do not believe that Governor Seward uttered that sentiment because I had done so before, but because he reflected upon this subject and saw the truth of it. Nor do I believe because Governor Seward or I uttered it that Mr. Hickman of Pennsylvania, in,

different language, since that time, has declared his belief in the utter antagonism which exists between the principles of liberty and slavery. You see we are multiplying. Now, while I am speaking of Hickman, let me say, I know but little about him. I have never seen him, and know scarcely anything about the man; but I will say this much of him: Of all the anti-Lecompton Democracy that have been brought to my notice, he alone has the true, genuine ring of the metal. And now, without indorsing anything else he has said, I will ask this audience to give three cheers for Hickman. [The audience responded with three rousing cheers for Hickman.]

Another point in the copyright essay to which I would ask your attention is rather a feature to be extracted from the whole thing, than from any express declaration of it at any point. It is a general feature of that document, and, indeed, of all of Judge Douglas's discussions of this question, that the Territories of the United States and the States of this Union are exactly alike; that there is no difference between them at all; that the Constitution applies to the Territories precisely as it does to the States; and that the United States Government, under the Constitution, may not do in a State what it may not do in a Territory, and what it must do in a State it must do in a Territory. Gentlemen, is that a true view of the case? It is necessary for this squatter sovereignty, but is it true?

Let us consider. What does it depend upon? It depends altogether upon the proposition that the States must, without the interference of the General Government, do all those things that pertain exclusively to themselves,—that are local in their nature, that have no connection with the General Government. After Judge Douglas has established this proposition, which nobody disputes or ever has disputed, he proceeds to assume, without proving it, that slavery is one of those little, unimportant, trivial matters which are of just about as much consequence as the question would be to me whether my neighbor should raise horned cattle or plant tobacco; that there is no moral question about it, but that it is altogether a matter of dollars and cents; that when a new Territory is opened for settlement, the first man who goes into it may plant there a thing which, like the Canada thistle or some other of those pests of the soil, cannot be dug out by the millions of men who will come thereafter; that it is one of those little things that is so trivial in its nature that it has no effect upon anybody save the few men who first plant upon the soil; that it is not a thing which in any way affects the family of communities composing these States, nor any way

endangers the General Government. Judge Douglas ignores altogether the very well known fact that we have never had a serious menace to our political existence, except it sprang from this thing, which he chooses to regard as only upon a par with onions and potatoes.

Turn it, and contemplate it in another view. He says that, according to his popular sovereignty, the General Government may give to the Territories governors, judges, marshals, secretaries, and all the other chief men to govern them, but they, must not touch upon this other question. Why? The question of who shall be governor of a Territory for a year or two, and pass away, without his track being left upon the soil, or an act which he did for good or for evil being left behind, is a question of vast national magnitude; it is so much opposed in its nature to locality that the nation itself must decide it: while this other matter of planting slavery upon a soil,—a thing which, once planted, cannot be eradicated by the succeeding millions who have as much right there as the first comers, or, if eradicated, not without infinite difficulty and a long struggle, he considers the power to prohibit it as one of these little local, trivial things that the nation ought not to say a word about; that it affects nobody save the few men who are there.

Take these two things and consider them together, present the question of planting a State with the institution of slavery by the side of a question who shall be Governor of Kansas for a year or two, and is there a man here, is there a man on earth, who would not say the governor question is the little one, and the slavery question is the great one? I ask any honest Democrat if the small, the local, and the trivial and temporary question is not, Who shall be governor? while the durable, the important, and the mischievous one is, Shall this soil be planted with slavery?

This is an idea, I suppose, which has arisen in Judge Douglas's mind from his peculiar structure. I suppose the institution of slavery really looks small to him. He is so put up by nature that a lash upon his back would hurt him, but a lash upon anybody else's back does not hurt him. That is the build of the man, and consequently he looks upon the matter of slavery in this unimportant light.

Judge Douglas ought to remember, when he is endeavoring to force this policy upon the American people, that while he is put up in that way, a good many are not. He ought to remember that there was once in this country a man by the name of Thomas Jefferson, supposed to be a Democrat,—a man

whose principles and policy are not very prevalent amongst Democrats to-day, it is true; but that man did not take exactly this view of the insignificance of the element of slavery which our friend judge Douglas does. In contemplation of this thing, we all know he was led to exclaim, "I tremble for my country when I remember that God is just!" We know how he looked upon it when he thus expressed himself. There was danger to this country,—danger of the avenging justice of God, in that little unimportant popular sovereignty question of judge Douglas. He supposed there was a question of God's eternal justice wrapped up in the enslaving of any race of men, or any man, and that those who did so braved the arm of Jehovah; that when a nation thus dared the Almighty, every friend of that nation had cause to dread his wrath. Choose ye between Jefferson and Douglas as to what is the true view of this element among us.

There is another little difficulty about this matter of treating the Territories and States alike in all things, to which I ask your attention, and I shall leave this branch of the case. If there is no difference between them, why not make the Territories States at once? What is the reason that Kansas was not fit to come into the Union when it was organized into a Territory, in Judge Douglas's view? Can any of you tell any reason why it should not have come into the Union at once? They are fit, as he thinks, to decide upon the slavery question,—the largest and most important with which they could possibly deal: what could they do by coming into the Union that they are not fit to do, according to his view, by staying out of it? Oh, they are not fit to sit in Congress and decide upon the rates of postage, or questions of ad valorem or specific duties on foreign goods, or live-oak timber contracts, they are not fit to decide these vastly important matters, which are national in their import, but they are fit, "from the jump," to decide this little negro question. But, gentlemen, the case is too plain; I occupy too much time on this head, and I pass on.

Near the close of the copyright essay, the judge, I think, comes very near kicking his own fat into the fire. I did not think, when I commenced these remarks, that I would read that article, but I now believe I will:

"This exposition of the history of these measures shows conclusively that the authors of the Compromise measures of 1850 and of the Kansas-Nebraska Act of 1854, as well as the members of the Continental Congress of 1774., and the founders of our system of government subsequent to the

Revolution, regarded the people of the Territories and Colonies as political communities which were entitled to a free and exclusive power of legislation in their provisional legislatures, where their representation could alone be preserved, in all cases of taxation and internal polity."

When the judge saw that putting in the word "slavery" would contradict his own history, he put in what he knew would pass synonymous with it, "internal polity." Whenever we find that in one of his speeches, the substitute is used in this manner; and I can tell you the reason. It would be too bald a contradiction to say slavery; but "internal polity" is a general phrase, which would pass in some quarters, and which he hopes will pass with the reading community for the same thing.

"This right pertains to the people collectively, as a law-abiding and peaceful community, and not in the isolated individuals who may wander upon the public domain in violation of the law. It can only be exercised where there are inhabitants sufficient to constitute a government, and capable of performing its various functions and duties,—a fact to be ascertained and determined by" who do you think? Judge Douglas says "by Congress!" "Whether the number shall be fixed at ten, fifteen or twenty thousand inhabitants, does not affect the principle."

Now, I have only a few comments to make. Popular sovereignty, by his own words, does not pertain to the few persons who wander upon the public domain in violation of law. We have his words for that. When it does pertain to them, is when they are sufficient to be formed into an organized political community, and he fixes the minimum for that at ten thousand, and the maximum at twenty thousand. Now, I would like to know what is to be done with the nine thousand? Are they all to be treated, until they are large enough to be organized into a political community, as wanderers upon the public land, in violation of law? And if so treated and driven out, at what point of time would there ever be ten thousand? If they were not driven out, but remained there as trespassers upon the public land in violation of the law, can they establish slavery there? No; the judge says popular sovereignty don't pertain to them then. Can they exclude it then? No; popular sovereignty don't pertain to them then. I would like to know, in the case covered by the essay, what condition the people of the Territory are in before they reach the number of ten thousand?

But the main point I wish to ask attention to is, that the question as to when they shall have reached a sufficient number to be formed into a regular organized community is to be decided "by Congress." Judge Douglas says so. Well, gentlemen, that is about all we want. No, that is all the Southerners want. That is what all those who are for slavery want. They do not want Congress to prohibit slavery from coming into the new Territories, and they do not want popular sovereignty to hinder it; and as Congress is to say when they are ready to be organized, all that the South has to do is to get Congress to hold off. Let Congress hold off until they are ready to be admitted as a State, and the South has all it wants in taking slavery into and planting it in all the Territories that we now have or hereafter may have. In a word, the whole thing, at a dash of the pen, is at last put in the power of Congress; for if they do not have this popular sovereignty until Congress organizes them, I ask if it at last does not come from Congress? If, at last, it amounts to anything at all, Congress gives it to them. I submit this rather for your reflection than for comment. After all that is said, at last, by a dash of the pen, everything that has gone before is undone, and he puts the whole question under the control of Congress. After fighting through more than three hours, if you undertake to read it, he at last places the whole matter under the control of that power which he has been contending against, and arrives at a result directly contrary to what he had been laboring to do. He at last leaves the whole matter to the control of Congress.

There are two main objects, as I understand it, of this Harper's Magazine essay. One was to show, if possible, that the men of our Revolutionary times were in favor of his popular sovereignty, and the other was to show that the Dred Scott decision had not entirely squelched out this popular sovereignty. I do not propose, in regard to this argument drawn from the history of former times, to enter into a detailed examination of the historical statements he has made. I have the impression that they are inaccurate in a great many instances,—sometimes in positive statement, but very much more inaccurate by the suppression of statements that really belong to the history. But I do not propose to affirm that this is so to any very great extent, or to enter into a very minute examination of his historical statements. I avoid doing so upon this principle,—that if it were important for me to pass out of this lot in the least period of time possible, and I came to that fence, and saw by a calculation of my known strength and agility

that I could clear it at a bound, it would be folly for me to stop and consider whether I could or not crawl through a crack. So I say of the whole history contained in his essay where he endeavored to link the men of the Revolution to popular sovereignty. It only requires an effort to leap out of it, a single bound to be entirely successful. If you read it over, you will find that he quotes here and there from documents of the Revolutionary times, tending to show that the people of the colonies were desirous of regulating their own concerns in their own way, that the British Government should not interfere; that at one time they struggled with the British Government to be permitted to exclude the African slave trade,—if not directly, to be permitted to exclude it indirectly, by taxation sufficient to discourage and destroy it. From these and many things of this sort, judge Douglas argues that they were in favor of the people of our own Territories excluding slavery if they wanted to, or planting it there if they wanted to, doing just as they pleased from the time they settled upon the Territory. Now, however his history may apply and whatever of his argument there may be that is sound and accurate or unsound and inaccurate, if we can find out what these men did themselves do upon this very question of slavery in the Territories, does it not end the whole thing? If, after all this labor and effort to show that the men of the Revolution were in favor of his popular sovereignty and his mode of dealing with slavery in the Territories, we can show that these very men took hold of that subject, and dealt with it, we can see for ourselves how they dealt with it. It is not a matter of argument or inference, but we know what they thought about it.

It is precisely upon that part of the history of the country that one important omission is made by Judge Douglas. He selects parts of the history of the United States upon the subject of slavery, and treats it as the whole, omitting from his historical sketch the legislation of Congress in regard to the admission of Missouri, by which the Missouri Compromise was established and slavery excluded from a country half as large as the present United States. All this is left out of his history, and in nowise alluded to by him, so far as I can remember, save once, when he makes a remark, that upon his principle the Supreme Court were authorized to pronounce a decision that the act called the Missouri Compromise was unconstitutional. All that history has been left out. But this part of the history of the country was not made by the men of the Revolution.

There was another part of our political history, made by the very men who were the actors in the Revolution, which has taken the name of the Ordinance of '87. Let me bring that history to your attention. In 1784, I believe, this same Mr. Jefferson drew up an ordinance for the government of the country upon which we now stand, or, rather, a frame or draft of an ordinance for the government of this country, here in Ohio, our neighbors in Indiana, us who live in Illinois, our neighbors in Wisconsin and Michigan. In that ordinance, drawn up not only for the government of that Territory, but for the Territories south of the Ohio River, Mr. Jefferson expressly provided for the prohibition of slavery. Judge Douglas says, and perhaps is right, that that provision was lost from that ordinance. I believe that is true. When the vote was taken upon it, a majority of all present in the Congress of the Confederation voted for it; but there were so many absentees that those voting for it did not make the clear majority necessary, and it was lost. But three years after that, the Congress of the Confederation were together again, and they adopted a new ordinance for the government of this Northwest Territory, not contemplating territory south of the river, for the States owning that territory had hitherto refrained from giving it to the General Government; hence they made the ordinance to apply only to what the Government owned. In fact, the provision excluding slavery was inserted aside, passed unanimously, or at any rate it passed and became a part of the law of the land. Under that ordinance we live. First here in Ohio you were a Territory; then an enabling act was passed, authorizing you to form a constitution and State Government, provided it was republican and not in conflict with the Ordinance of '87. When you framed your constitution and presented it for admission, I think you will find the legislation upon the subject will show that, whereas you had formed a constitution that was republican, and not in conflict with the Ordinance of '87, therefore you were admitted upon equal footing with the original States. The same process in a few years was gone through with in Indiana, and so with Illinois, and the same substantially with Michigan and Wisconsin.

Not only did that Ordinance prevail, but it was constantly looked to whenever a step was taken by a new Territory to become a State. Congress always turned their attention to it, and in all their movements upon this subject they traced their course by that Ordinance of '87. When they admitted new States, they advertised them of this Ordinance, as a part of the legislation of the country. They did so because they had traced the

Ordinance of '87 throughout the history of this country. Begin with the men of the Revolution, and go down for sixty entire years, and until the last scrap of that Territory comes into the Union in the form of the State of Wisconsin, everything was made to conform with the Ordinance of '87, excluding slavery from that vast extent of country.

I omitted to mention in the right place that the Constitution of the United States was in process of being framed when that Ordinance was made by the Congress of the Confederation; and one of the first Acts of Congress itself, under the new Constitution itself, was to give force to that Ordinance by putting power to carry it out in the hands of the new officers under the Constitution, in the place of the old ones, who had been legislated out of existence by the change in the Government from the Confederation to the Constitution. Not only so, but I believe Indiana once or twice, if not Ohio, petitioned the General Government for the privilege of suspending that provision and allowing them to have slaves. A report made by Mr. Randolph, of Virginia, himself a slaveholder, was directly against it, and the action was to refuse them the privilege of violating the Ordinance of '87.

This period of history, which I have run over briefly, is, I presume, as familiar to most of this assembly as any other part of the history of our country. I suppose that few of my hearers are not as familiar with that part of history as I am, and I only mention it to recall your attention to it at this time. And hence I ask how extraordinary a thing it is that a man who has occupied a position upon the floor of the Senate of the United States, who is now in his third term, and who looks to see the government of this whole country fall into his own hands, pretending to give a truthful and accurate history of the slavery question in this country, should so entirely ignore the whole of that portion of our history—the most important of all. Is it not a most extraordinary spectacle that a man should stand up and ask for any confidence in his statements who sets out as he does with portions of history, calling upon the people to believe that it is a true and fair representation, when the leading part and controlling feature of the whole history is carefully suppressed?

But the mere leaving out is not the most remarkable feature of this most remarkable essay. His proposition is to establish that the leading men of the Revolution were for his great principle of nonintervention by the government in the question of slavery in the Territories, while history shows

that they decided, in the cases actually brought before them, in exactly the contrary way, and he knows it. Not only did they so decide at that time, but they stuck to it during sixty years, through thick and thin, as long as there was one of the Revolutionary heroes upon the stage of political action. Through their whole course, from first to last, they clung to freedom. And now he asks the community to believe that the men of the Revolution were in favor of his great principle, when we have the naked history that they themselves dealt with this very subject matter of his principle, and utterly repudiated his principle, acting upon a precisely contrary ground. It is as impudent and absurd as if a prosecuting attorney should stand up before a jury and ask them to convict A as the murderer of B, while B was walking alive before them.

I say, again, if judge Douglas asserts that the men of the Revolution acted upon principles by which, to be consistent with themselves, they ought to have adopted his popular sovereignty, then, upon a consideration of his own argument, he had a right to make you believe that they understood the principles of government, but misapplied them, that he has arisen to enlighten the world as to the just application of this principle. He has a right to try to persuade you that he understands their principles better than they did, and, therefore, he will apply them now, not as they did, but as they ought to have done. He has a right to go before the community and try to convince them of this, but he has no right to attempt to impose upon any one the belief that these men themselves approved of his great principle. There are two ways of establishing a proposition. One is by trying to demonstrate it upon reason, and the other is, to show that great men in former times have thought so and so, and thus to pass it by the weight of pure authority. Now, if Judge Douglas will demonstrate somehow that this is popular sovereignty,—the right of one man to make a slave of another, without any right in that other or any one else to object,—demonstrate it as Euclid demonstrated propositions,—there is no objection. But when he comes forward, seeking to carry a principle by bringing to it the authority of men who themselves utterly repudiate that principle, I ask that he shall not be permitted to do it.

I see, in the judge's speech here, a short sentence in these words: "Our fathers, when they formed this government under which we live, understood this question just as well, and even better than, we do now." That is true; I stick to that. I will stand by Judge Douglas in that to the bitter

end. And now, Judge Douglas, come and stand by me, and truthfully show how they acted, understanding it better than we do. All I ask of you, Judge Douglas, is to stick to the proposition that the men of the Revolution understood this subject better than we do now, and with that better understanding they acted better than you are trying to act now.

I wish to say something now in regard to the Dred Scott decision, as dealt with by Judge Douglas. In that "memorable debate" between Judge Douglas and myself, last year, the judge thought fit to commence a process of catechising me, and at Freeport I answered his questions, and propounded some to him. Among others propounded to him was one that I have here now. The substance, as I remember it, is, "Can the people of a United States Territory, under the Dred Scott decision, in any lawful way, against the wish of any citizen of the United States, exclude slavery from its limits, prior to the formation of a State constitution?" He answered that they could lawfully exclude slavery from the United States Territories, notwithstanding the Dred Scot decision. There was something about that answer that has probably been a trouble to the judge ever since.

The Dred Scott decision expressly gives every citizen of the United States a right to carry his slaves into the United States Territories. And now there was some inconsistency in saying that the decision was right, and saying, too, that the people of the Territory could lawfully drive slavery out again. When all the trash, the words, the collateral matter, was cleared away from it, all the chaff was fanned out of it, it was a bare absurdity,—no less than that a thing may be lawfully driven away from where it has a lawful right to be. Clear it of all the verbiage, and that is the naked truth of his proposition,—that a thing may be lawfully driven from the place where it has a lawful right to stay. Well, it was because the judge could n't help seeing this that he has had so much trouble with it; and what I want to ask your especial attention to, just now, is to remind you, if you have not noticed the fact, that the judge does not any longer say that the people can exclude slavery. He does not say so in the copyright essay; he did not say so in the speech that he made here; and, so far as I know, since his re-election to the Senate he has never said, as he did at Freeport, that the people of the Territories can exclude slavery. He desires that you, who wish the Territories to remain free, should believe that he stands by that position; but he does not say it himself. He escapes to some extent the absurd position I have stated, by changing his language entirely. What he says now is

something different in language, and we will consider whether it is not different in sense too. It is now that the Dred Scott decision, or rather the Constitution under that decision, does not carry slavery into the Territories beyond the power of the people of the Territories to control it as other property. He does not say the people can drive it out, but they can control it as other property. The language is different; we should consider whether the sense is different. Driving a horse out of this lot is too plain a proposition to be mistaken about; it is putting him on the other side of the fence. Or it might be a sort of exclusion of him from the lot if you were to kill him and let the worms devour him; but neither of these things is the same as "controlling him as other property." That would be to feed him, to pamper him, to ride him, to use and abuse him, to make the most money out of him, "as other property"; but, please you, what do the men who are in favor of slavery want more than this? What do they really want, other than that slavery, being in the Territories, shall be controlled as other property? If they want anything else, I do not comprehend it. I ask your attention to this, first, for the purpose of pointing out the change of ground the judge has made; and, in the second place, the importance of the change,—that that change is not such as to give you gentlemen who want his popular sovereignty the power to exclude the institution or drive it out at all. I know the judge sometimes squints at the argument that in controlling it as other property by unfriendly legislation they may control it to death; as you might, in the case of a horse, perhaps, feed him so lightly and ride him so much that he would die. But when you come to legislative control, there is something more to be attended to. I have no doubt, myself, that if the Territories should undertake to control slave property as other property that is, control it in such a way that it would be the most valuable as property, and make it bear its just proportion in the way of burdens as property, really deal with it as property,—the Supreme Court of the United States will say, "God speed you, and amen." But I undertake to give the opinion, at least, that if the Territories attempt by any direct legislation to drive the man with his slave out of the Territory, or to decide that his slave is free because of his being taken in there, or to tax him to such an extent that he cannot keep him there, the Supreme Court will unhesitatingly decide all such legislation unconstitutional, as long as that Supreme Court is constructed as the Dred Scott Supreme Court is. The first two things they have already decided, except that there is a little quibble among lawyers between the words

"dicta" and "decision." They have already decided a negro cannot be made free by Territorial legislation.

What is the Dred Scott decision? Judge Douglas labors to show that it is one thing, while I think it is altogether different. It is a long opinion, but it is all embodied in this short statement: "The Constitution of the United States forbids Congress to deprive a man of his property, without due process of law; the right of property in slaves is distinctly and expressly affirmed in that Constitution: therefore, if Congress shall undertake to say that a man's slave is no longer his slave when he crosses a certain line into a Territory, that is depriving him of his property without due process of law, and is unconstitutional." There is the whole Dred Scott decision. They add that if Congress cannot do so itself, Congress cannot confer any power to do so; and hence any effort by the Territorial Legislature to do either of these things is absolutely decided against. It is a foregone conclusion by that court.

Now, as to this indirect mode by "unfriendly legislation," all lawyers here will readily understand that such a proposition cannot be tolerated for a moment, because a legislature cannot indirectly do that which it cannot accomplish directly. Then I say any legislation to control this property, as property, for its benefit as property, would be hailed by this Dred Scott Supreme Court, and fully sustained; but any legislation driving slave property out, or destroying it as property, directly or indirectly, will most assuredly, by that court, be held unconstitutional.

Judge Douglas says if the Constitution carries slavery into the Territories, beyond the power of the people of the Territories to control it as other property; then it follows logically that every one who swears to support the Constitution of the United States must give that support to that property which it needs. And, if the Constitution carries slavery into the Territories, beyond the power of the people, to control it as other property, then it also carries it into the States, because the Constitution is the supreme law of the land. Now, gentlemen, if it were not for my excessive modesty, I would say that I told that very thing to Judge Douglas quite a year ago. This argument is here in print, and if it were not for my modesty, as I said, I might call your attention to it. If you read it, you will find that I not only made that argument, but made it better than he has made it since.

There is, however, this difference: I say now, and said then, there is no sort of question that the Supreme Court has decided that it is the right of the slave holder to take his slave and hold him in the Territory; and saying this, judge Douglas himself admits the conclusion. He says if that is so, this consequence will follow; and because this consequence would follow, his argument is, the decision cannot, therefore, be that way,—"that would spoil my popular sovereignty; and it cannot be possible that this great principle has been squelched out in this extraordinary way. It might be, if it were not for the extraordinary consequences of spoiling my humbug."

Another feature of the judge's argument about the Dred Scott case is, an effort to show that that decision deals altogether in declarations of negatives; that the Constitution does not affirm anything as expounded by the Dred Scott decision, but it only declares a want of power a total absence of power, in reference to the Territories. It seems to be his purpose to make the whole of that decision to result in a mere negative declaration of a want of power in Congress to do anything in relation to this matter in the Territories. I know the opinion of the Judges states that there is a total absence of power; but that is, unfortunately; not all it states: for the judges add that the right of property in a slave is distinctly and expressly affirmed in the Constitution. It does not stop at saying that the right of property in a slave is recognized in the Constitution, is declared to exist somewhere in the Constitution, but says it is affirmed in the Constitution. Its language is equivalent to saying that it is embodied and so woven in that instrument that it cannot be detached without breaking the Constitution itself. In a word, it is part of the Constitution.

Douglas is singularly unfortunate in his effort to make out that decision to be altogether negative, when the express language at the vital part is that this is distinctly affirmed in the Constitution. I think myself, and I repeat it here, that this decision does not merely carry slavery into the Territories, but by its logical conclusion it carries it into the States in which we live. One provision of that Constitution is, that it shall be the supreme law of the land,—I do not quote the language,—any constitution or law of any State to the contrary notwithstanding. This Dred Scott decision says that the right of property in a slave is affirmed in that Constitution which is the supreme law of the land, any State constitution or law notwithstanding. Then I say that to destroy a thing which is distinctly affirmed and supported by the supreme law of the land, even by a State constitution or law, is a violation of that

supreme law, and there is no escape from it. In my judgment there is no avoiding that result, save that the American people shall see that constitutions are better construed than our Constitution is construed in that decision. They must take care that it is more faithfully and truly carried out than it is there expounded.

I must hasten to a conclusion. Near the beginning of my remarks I said that this insidious Douglas popular sovereignty is the measure that now threatens the purpose of the Republican party to prevent slavery from being nationalized in the United States. I propose to ask your attention for a little while to some propositions in affirmance of that statement. Take it just as it stands, and apply it as a principle; extend and apply that principle elsewhere; and consider where it will lead you. I now put this proposition, that Judge Douglas's popular sovereignty applied will reopen the African slave trade; and I will demonstrate it by any variety of ways in which you can turn the subject or look at it.

The Judge says that the people of the Territories have the right, by his principle, to have slaves, if they want them. Then I say that the people in Georgia have the right to buy slaves in Africa, if they want them; and I defy any man on earth to show any distinction between the two things,—to show that the one is either more wicked or more unlawful; to show, on original principles, that one is better or worse than the other; or to show, by the Constitution, that one differs a whit from the other. He will tell me, doubtless, that there is no constitutional provision against people taking slaves into the new Territories, and I tell him that there is equally no constitutional provision against buying slaves in Africa. He will tell you that a people, in the exercise of popular sovereignty, ought to do as they please about that thing, and have slaves if they want them; and I tell you that the people of Georgia are as much entitled to popular sovereignty and to buy slaves in Africa, if they want them, as the people of the Territory are to have slaves if they want them. I ask any man, dealing honestly with himself, to point out a distinction.

I have recently seen a letter of Judge Douglas's in which, without stating that to be the object, he doubtless endeavors to make a distinction between the two. He says he is unalterably opposed to the repeal of the laws against the African slave trade. And why? He then seeks to give a reason that would not apply to his popular sovereignty in the Territories. What is that reason?

"The abolition of the African slave trade is a compromise of the Constitution!" I deny it. There is no truth in the proposition that the abolition of the African slave trade is a compromise of the Constitution. No man can put his finger on anything in the Constitution, or on the line of history, which shows it. It is a mere barren assertion, made simply for the purpose of getting up a distinction between the revival of the African slave trade and his "great principle."

At the time the Constitution of the United States was adopted, it was expected that the slave trade would be abolished. I should assert and insist upon that, if judge Douglas denied it. But I know that it was equally expected that slavery would be excluded from the Territories, and I can show by history that in regard to these two things public opinion was exactly alike, while in regard to positive action, there was more done in the Ordinance of '87 to resist the spread of slavery than was ever done to abolish the foreign slave trade. Lest I be misunderstood, I say again that at the time of the formation of the Constitution, public expectation was that the slave trade would be abolished, but no more so than the spread of slavery in the Territories should be restrained. They stand alike, except that in the Ordinance of '87 there was a mark left by public opinion, showing that it was more committed against the spread of slavery in the Territories than against the foreign slave trade.

Compromise! What word of compromise was there about it? Why, the public sense was then in favor of the abolition of the slave trade; but there was at the time a very great commercial interest involved in it, and extensive capital in that branch of trade. There were doubtless the incipient stages of improvement in the South in the way of farming, dependent on the slave trade, and they made a proposition to Congress to abolish the trade after allowing it twenty years,—a sufficient time for the capital and commerce engaged in it to be transferred to other channel. They made no provision that it should be abolished in twenty years; I do not doubt that they expected it would be, but they made no bargain about it. The public sentiment left no doubt in the minds of any that it would be done away. I repeat, there is nothing in the history of those times in favor of that matter being a compromise of the constitution. It was the public expectation at the time, manifested in a thousand ways, that the spread of slavery should also be restricted.

Then I say, if this principle is established, that there is no wrong in slavery, and whoever wants it has a right to have it, is a matter of dollars and cents, a sort of question as to how they shall deal with brutes, that between us and the negro here there is no sort of question, but that at the South the question is between the negro and the crocodile, that is all, it is a mere matter of policy, there is a perfect right, according to interest, to do just as you please,—when this is done, where this doctrine prevails, the miners and sappers will have formed public opinion for the slave trade. They will be ready for Jeff. Davis and Stephens and other leaders of that company to sound the bugle for the revival of the slave trade, for the second Dred Scott decision, for the flood of slavery to be poured over the free States, while we shall be here tied down and helpless and run over like sheep.

It is to be a part and parcel of this same idea to say to men who want to adhere to the Democratic party, who have always belonged to that party, and are only looking about for some excuse to stick to it, but nevertheless hate slavery, that Douglas's popular sovereignty is as good a way as any to oppose slavery. They allow themselves to be persuaded easily, in accordance with their previous dispositions, into this belief, that it is about as good a way of opposing slavery as any, and we can do that without straining our old party ties or breaking up old political associations. We can do so without being called negro-worshippers. We can do that without being subjected to the jibes and sneers that are so readily thrown out in place of argument where no argument can be found. So let us stick to this popular sovereignty,—this insidious popular sovereignty.

Now let me call your attention to one thing that has really happened, which shows this gradual and steady debauching of public opinion, this course of preparation for the revival of the slave trade, for the Territorial slave code, and the new Dred Scott decision that is to carry slavery into the Free States. Did you ever, five years ago, hear of anybody in the world saying that the negro had no share in the Declaration of National Independence; that it does not mean negroes at all; and when "all men" were spoken of, negroes were not included?

I am satisfied that five years ago that proposition was not put upon paper by any living being anywhere. I have been unable at any time to find a man in an audience who would declare that he had ever known of anybody

saying so five years ago. But last year there was not a Douglas popular sovereign in Illinois who did not say it. Is there one in Ohio but declares his firm belief that the Declaration of Independence did not mean negroes at all? I do not know how this is; I have not been here much; but I presume you are very much alike everywhere. Then I suppose that all now express the belief that the Declaration of Independence never did mean negroes. I call upon one of them to say that he said it five years ago.

If you think that now, and did not think it then, the next thing that strikes me is to remark that there has been a change wrought in you,—and a very significant change it is, being no less than changing the negro, in your estimation, from the rank of a man to that of a brute. They are taking him down and placing him, when spoken of, among reptiles and crocodiles, as Judge Douglas himself expresses it.

Is not this change wrought in your minds a very important change? Public opinion in this country is everything. In a nation like ours, this popular sovereignty and squatter sovereignty have already wrought a change in the public mind to the extent I have stated. There is no man in this crowd who can contradict it.

Now, if you are opposed to slavery honestly, as much as anybody, I ask you to note that fact, and the like of which is to follow, to be plastered on, layer after layer, until very soon you are prepared to deal with the negro every where as with the brute. If public sentiment has not been debauched already to this point, a new turn of the screw in that direction is all that is wanting; and this is constantly being done by the teachers of this insidious popular sovereignty. You need but one or two turns further, until your minds, now ripening under these teachings, will be ready for all these things, and you will receive and support, or submit to, the slave trade, revived with all its horrors, a slave code enforced in our Territories, and a new Dred Scott decision to bring slavery up into the very heart of the free North. This, I must say, is but carrying out those words prophetically spoken by Mr. Clay,—many, many years ago,—I believe more than thirty years, when he told an audience that if they would repress all tendencies to liberty and ultimate emancipation they must go back to the era of our independence, and muzzle the cannon which thundered its annual joyous return on the Fourth of July; they must blow out the moral lights around us; they must penetrate the human soul, and eradicate the love of liberty: but

until they did these things, and others eloquently enumerated by him, they could not repress all tendencies to ultimate emancipation.

I ask attention to the fact that in a pre-eminent degree these popular sovereigns are at this work: blowing out the moral lights around us; teaching that the negro is no longer a man, but a brute; that the Declaration has nothing to do with him; that he ranks with the crocodile and the reptile; that man, with body and soul, is a matter of dollars and cents. I suggest to this portion of the Ohio Republicans, or Democrats, if there be any present, the serious consideration of this fact that there is now going on among you a steady process of debauching public opinion on this subject. With this, my friends, I bid you adieu.

SPEECH AT CINCINNATI OHIO, SEPTEMBER 17, 1859

My Fellow-Citizens of the State of Ohio: This is the first time in my life that I have appeared before an audience in so great a city as this: I therefore—though I am no longer a young man—make this appearance under some degree of embarrassment. But I have found that when one is embarrassed, usually the shortest way to get through with it is to quit talking or thinking about it, and go at something else.

I understand that you have had recently with you my very distinguished friend Judge Douglas, of Illinois; and I understand, without having had an opportunity (not greatly sought, to be sure) of seeing a report of the speech that he made here, that he did me the honor to mention my humble name. I suppose that he did so for the purpose of making some objection to some sentiment at some time expressed by me. I should expect, it is true, that Judge Douglas had reminded you, or informed you, if you had never before heard it, that I had once in my life declared it as my opinion that this government cannot endure permanently, half slave and half free; that a house divided against itself cannot stand, and, as I had expressed it, I did not expect the house to fall, that I did not expect the Union to be dissolved, but that I did expect that it would cease to be divided, that it would become all one thing, or all the other; that either the opponents of slavery would arrest the further spread of it, and place it where the public mind would rest in the belief that it was in the course of ultimate extinction, or the friends of slavery will push it forward until it becomes alike lawful in all the States, old or new, free as well as slave. I did, fifteen months ago, express that opinion, and upon many occasions Judge Douglas has denounced it, and has greatly, intentionally or unintentionally, misrepresented my purpose in the expression of that opinion.

I presume, without having seen a report of his speech, that he did so here. I presume that he alluded also to that opinion, in different language, having been expressed at a subsequent time by Governor Seward of New York, and that he took the two in a lump and denounced them; that he tried to point

out that there was something couched in this opinion which led to the making of an entire uniformity of the local institutions of the various States of the Union, in utter disregard of the different States, which in their nature would seem to require a variety of institutions and a variety of laws, conforming to the differences in the nature of the different States.

Not only so: I presume he insisted that this was a declaration of war between the free and slave States, that it was the sounding to the onset of continual war between the different States, the slave and free States.

This charge, in this form, was made by Judge Douglas on, I believe, the 9th of July, 1858, in Chicago, in my hearing. On the next evening, I made some reply to it. I informed him that many of the inferences he drew from that expression of mine were altogether foreign to any purpose entertained by me, and in so far as he should ascribe these inferences to me, as my purpose, he was entirely mistaken; and in so far as he might argue that, whatever might be my purpose, actions conforming to my views would lead to these results, he might argue and establish if he could; but, so far as purposes were concerned, he was totally mistaken as to me.

When I made that reply to him, I told him, on the question of declaring war between the different States of the Union, that I had not said that I did not expect any peace upon this question until slavery was exterminated; that I had only said I expected peace when that institution was put where the public mind should rest in the belief that it was in course of ultimate extinction; that I believed, from the organization of our government until a very recent period of time, the institution had been placed and continued upon such a basis; that we had had comparative peace upon that question through a portion of that period of time, only because the public mind rested in that belief in regard to it, and that when we returned to that position in relation to that matter, I supposed we should again have peace as we previously had. I assured him, as I now, assure you, that I neither then had, nor have, or ever had, any purpose in any way of interfering with the institution of slavery, where it exists. I believe we have no power, under the Constitution of the United States, or rather under the form of government under which we live, to interfere with the institution of slavery, or any other of the institutions of our sister States, be they free or slave States. I declared then, and I now re-declare, that I have as little inclination to interfere with the institution of slavery where it now exists, through the instrumentality of

the General Government, or any other instrumentality, as I believe we have no power to do so. I accidentally used this expression: I had no purpose of entering into the slave States to disturb the institution of slavery. So, upon the first occasion that Judge Douglas got an opportunity to reply to me, he passed by the whole body of what I had said upon that subject, and seized upon the particular expression of mine that I had no purpose of entering into the slave States to disturb the institution of slavery. "Oh, no," said he, "he [Lincoln] won't enter into the slave States to disturb the institution of slavery, he is too prudent a man to do such a thing as that; he only means that he will go on to the line between the free and slave States, and shoot over at them. This is all he means to do. He means to do them all the harm he can, to disturb them all he can, in such a way as to keep his own hide in perfect safety."

Well, now, I did not think, at that time, that that was either a very dignified or very logical argument but so it was, I had to get along with it as well as I could.

It has occurred to-me here to-night that if I ever do shoot over the line at the people on the other side of the line into a slave State, and purpose to do so, keeping my skin safe, that I have now about the best chance I shall ever have. I should not wonder if there are some Kentuckians about this audience—we are close to Kentucky; and whether that be so or not, we are on elevated ground, and, by speaking distinctly, I should not wonder if some of the Kentuckians would hear me on the other side of the river. For that reason I propose to address a portion of what I have to say to the Kentuckians.

I say, then, in the first place, to the Kentuckians, that I am what they call, as I understand it, a "Black Republican." I think slavery is wrong, morally and politically. I desire that it should be no further spread in—these United States, and I should not object if it should gradually terminate in the whole Union. While I say this for myself, I say to you Kentuckians that I understand you differ radically with me upon this proposition; that you believe slavery is a good thing; that slavery is right; that it ought to be extended and perpetuated in this Union. Now, there being this broad difference between us, I do not pretend, in addressing myself to you Kentuckians, to attempt proselyting you; that would be a vain effort. I do not enter upon it. I only propose to try to show you that you ought to

nominate for the next Presidency, at Charleston, my distinguished friend Judge Douglas. In all that there is a difference between you and him, I understand he is sincerely for you, and more wisely for you than you are for yourselves. I will try to demonstrate that proposition. Understand, now, I say that I believe he is as sincerely for you, and more wisely for you, than you are for yourselves.

What do you want more than anything else to make successful your views of slavery,—to advance the outspread of it, and to secure and perpetuate the nationality of it? What do you want more than anything else? What—is needed absolutely? What is indispensable to you? Why, if I may, be allowed to answer the question, it is to retain a hold upon the North, it is to retain support and strength from the free States. If you can get this support and strength from the free States, you can succeed. If you do not get this support and this strength from the free States, you are in the minority, and you are beaten at once.

If that proposition be admitted,—and it is undeniable,—then the next thing I say to you is, that Douglas, of all the men in this nation, is the only man that affords you any hold upon the free States; that no other man can give you any strength in the free States. This being so, if you doubt the other branch of the proposition, whether he is for you—whether he is really for you, as I have expressed it,—I propose asking your attention for a while to a few facts.

The issue between you and me, understand, is, that I think slavery is wrong, and ought not to be outspread; and you think it is right, and ought to be extended and perpetuated. [A voice, "Oh, Lord!"] That is my Kentuckian I am talking to now.

I now proceed to try to show you that Douglas is as sincerely for you and more wisely for you than you are for yourselves.

In the first place, we know that in a government like this, in a government of the people, where the voice of all the men of the country, substantially, enters into the execution—or administration, rather—of the government, in such a government, what lies at the bottom of all of it is public opinion. I lay down the proposition, that Judge Douglas is not only the man that promises you in advance a hold upon the North, and support in the North, but he constantly moulds public opinion to your ends; that in every possible way he can he constantly moulds the public opinion of the

North to your ends; and if there are a few things in which he seems to be against you,—a few things which he says that appear to be against you, and a few that he forbears to say which you would like to have him say you ought to remember that the saying of the one, or the forbearing to say the other, would lose his hold upon the North, and, by consequence, would lose his capacity to serve you.

Upon this subject of moulding public opinion I call your attention to the fact—for a well established fact it is—that the Judge never says your institution of slavery is wrong. There is not a public man in the United States, I believe, with the exception of Senator Douglas, who has not, at some time in his life, declared his opinion whether the thing is right or wrong; but Senator Douglas never declares it is wrong. He leaves himself at perfect liberty to do all in your favor which he would be hindered from doing if he were to declare the thing to be wrong. On the contrary, he takes all the chances that he has for inveigling the sentiment of the North, opposed to slavery, into your support, by never saying it is right. This you ought to set down to his credit: You ought to give him full credit for this much; little though it be, in comparison to the whole which he does for you.

Some other, things I will ask your attention to. He said upon the floor of the United States Senate, and he has repeated it, as I understand, a great many times, that he does not care whether slavery is "voted up or voted down." This again shows you, or ought to show you, if you would reason upon it, that he does not believe it to be wrong; for a man may say when he sees nothing wrong in a thing; that he, does not care whether it be voted up or voted down but no man can logically say that he cares not whether a thing goes up or goes down which to him appears to be wrong. You therefore have a demonstration in this that to Judge Douglas's mind your favorite institution, which you would have spread out and made perpetual, is no wrong.

Another thing he tells you, in a speech made at Memphis in Tennessee, shortly after the canvass in Illinois, last year. He there distinctly told the people that there was a "line drawn by the Almighty across this continent, on the one side of which the soil must always be cultivated by slaves"; that he did not pretend to know exactly where that line was, but that there was such a line. I want to ask your attention to that proposition again; that there is one portion of this continent where the Almighty has signed the soil shall

always be cultivated by slaves; that its being cultivated by slaves at that place is right; that it has the direct sympathy and authority of the Almighty. Whenever you can get these Northern audiences to adopt the opinion that slavery is right on the other side of the Ohio, whenever you can get them, in pursuance of Douglas's views, to adopt that sentiment, they will very readily make the other argument, which is perfectly logical, that that which is right on that side of the Ohio cannot be wrong on this, and that if you have that property on that side of the Ohio, under the seal and stamp of the Almighty, when by any means it escapes over here it is wrong to have constitutions and laws "to devil" you about it. So Douglas is moulding the public opinion of the North, first to say that the thing is right in your State over the Ohio River, and hence to say that that which is right there is not wrong here, and that all laws and constitutions here recognizing it as being wrong are themselves wrong, and ought to be repealed and abrogated. He will tell you, men of Ohio, that if you choose here to have laws against slavery, it is in conformity to the idea that your climate is not suited to it, that your climate is not suited to slave labor, and therefore you have constitutions and laws against it.

Let us attend to that argument for a little while and see if it be sound. You do not raise sugar-cane (except the new-fashioned sugar-cane, and you won't raise that long), but they do raise it in Louisiana. You don't raise it in Ohio, because you can't raise it profitably, because the climate don't suit it. They do raise it in Louisiana, because there it is profitable. Now, Douglas will tell you that is precisely the slavery question: that they do have slaves there because they are profitable, and you don't have them here because they are not profitable. If that is so, then it leads to dealing with the one precisely as with the other. Is there, then, anything in the constitution or laws of Ohio against raising sugar-cane? Have you found it necessary to put any such provision in your law? Surely not! No man desires to raise sugar-cane in Ohio, but if any man did desire to do so, you would say it was a tyrannical law that forbids his doing so; and whenever you shall agree with Douglas, whenever your minds are brought to adopt his argument, as surely you will have reached the conclusion that although it is not profitable in Ohio, if any man wants it, is wrong to him not to let him have it.

In this matter Judge Douglas is preparing the public mind for you of Kentucky to make perpetual that good thing in your estimation, about which you and I differ.

In this connection, let me ask your attention to another thing. I believe it is safe to assert that five years ago no living man had expressed the opinion that the negro had no share in the Declaration of Independence. Let me state that again: five years ago no living man had expressed the opinion that the negro had no share in the Declaration of Independence. If there is in this large audience any man who ever knew of that opinion being put upon paper as much as five years ago, I will be obliged to him now or at a subsequent time to show it.

If that be true I wish you then to note the next fact: that within the space of five years Senator Douglas, in the argument of this question, has got his entire party, so far as I know, without exception, in saying that the negro has no share in the Declaration of Independence. If there be now in all these United States one Douglas man that does not say this, I have been unable upon any occasion to scare him up. Now, if none of you said this five years ago, and all of you say it now, that is a matter that you Kentuckians ought to note. That is a vast change in the Northern public sentiment upon that question.

Of what tendency is that change? The tendency of that change is to bring the public mind to the conclusion that when men are spoken of, the negro is not meant; that when negroes are spoken of, brutes alone are contemplated. That change in public sentiment has already degraded the black man in the estimation of Douglas and his followers from the condition of a man of some sort, and assigned him to the condition of a brute. Now, you Kentuckians ought to give Douglas credit for this. That is the largest possible stride that can be made in regard to the perpetuation of your thing of slavery.

A voice: Speak to Ohio men, and not to Kentuckians!

Mr. LINCOLN: I beg permission to speak as I please.

In Kentucky perhaps, in many of the slave States certainly, you are trying to establish the rightfulness of slavery by reference to the Bible. You are trying to show that slavery existed in the Bible times by divine ordinance. Now, Douglas is wiser than you, for your own benefit, upon that subject. Douglas knows that whenever you establish that slavery was—right by the Bible, it will occur that that slavery was the slavery of the white man, of men without reference to color; and he knows very well that you may entertain that idea in Kentucky as much as you please, but you will never

win any Northern support upon it. He makes a wiser argument for you: he makes the argument that the slavery of the black man; the slavery of the man who has a skin of a different color from your own, is right. He thereby brings to your support Northern voters who could not for a moment be brought by your own argument of the Bible right of slavery. Will you give him credit for that? Will you not say that in this matter he is more wisely for you than you are for yourselves?

Now, having established with his entire party this doctrine, having been entirely successful in that branch of his efforts in your behalf, he is ready for another.

At this same meeting at Memphis he declared that in all contests between the negro and the white man he was for the white man, but that in all questions between the negro and the crocodile he was for the negro. He did not make that declaration accidentally at Memphis. He made it a great many times in the canvass in Illinois last year (though I don't know that it was reported in any of his speeches there, but he frequently made it). I believe he repeated it at Columbus, and I should not wonder if he repeated it here. It is, then, a deliberate way of expressing himself upon that subject. It is a matter of mature deliberation with him thus to express himself upon that point of his case. It therefore requires deliberate attention.

The first inference seems to be that if you do not enslave the negro, you are wronging the white man in some way or other, and that whoever is opposed to the negro being enslaved, is, in some way or other, against the white man. Is not that a falsehood? If there was a necessary conflict between the white man and the negro, I should be for the white man as much as Judge Douglas; but I say there is no such necessary conflict. I say that there is room enough for us all to be free, and that it not only does not wrong the white man that the negro should be free, but it positively wrongs the mass of the white men that the negro should be enslaved; that the mass of white men are really injured by the effects of slave labor in the vicinity of the fields of their own labor.

But I do not desire to dwell upon this branch of the question more than to say that this assumption of his is false, and I do hope that that fallacy will not long prevail in the minds of intelligent white men. At all events, you ought to thank Judge Douglas for it; it is for your benefit it is made.

The other branch of it is, that in the struggle between the negro and the crocodile; he is for the negro. Well, I don't know that there is any struggle between the negro and the crocodile, either. I suppose that if a crocodile (or, as we old Ohio River boatmen used to call them, alligators) should come across a white man, he would kill him if he could; and so he would a negro. But what, at last, is this proposition? I believe it is a sort of proposition in proportion, which may be stated thus: "As the negro is to the white man, so is the crocodile to the negro; and as the negro may rightfully treat the crocodile as a beast or reptile, so the white man may rightfully treat the negro as a beast or a reptile." That is really the "knip" of all that argument of his.

Now, my brother Kentuckians, who believe in this, you ought to thank Judge Douglas for having put that in a much more taking way than any of yourselves have done.

Again, Douglas's great principle, "popular sovereignty," as he calls it, gives you, by natural consequence, the revival of the slave trade whenever you want it. If you question this, listen awhile, consider awhile what I shall advance in support of that proposition.

He says that it is the sacred right of the man who goes into the Territories to have slavery if he wants it. Grant that for argument's sake. Is it not the sacred right of the man who don't go there equally to buy slaves in Africa, if he wants them? Can you point out the difference? The man who goes into the Territories of Kansas and Nebraska, or any other new Territory, with the sacred right of taking a slave there which belongs to him, would certainly have no more right to take one there than I would, who own no slave, but who would desire to buy one and take him there. You will not say you, the friends of Judge Douglas but that the man who does not own a slave has an equal right to buy one and take him to the Territory as the other does.

A voice: I want to ask a question. Don't foreign nations interfere with the slave trade?

Mr. LINCOLN: Well! I understand it to be a principle of Democracy to whip foreign nations whenever, they interfere with us.

Voice: I only asked for information. I am a Republican myself.

Mr. LINCOLN: You and I will be on the best terms in the world, but I do not wish to be diverted from the point I was trying to press.

I say that Douglas's popular sovereignty, establishing his sacred right in the people, if you please, if carried to its logical conclusion gives equally the sacred right to the people of the States or the Territories themselves to buy slaves wherever they can buy them cheapest; and if any man can show a distinction, I should like to hear him try it. If any man can show how the people of Kansas have a better right to slaves, because they want them, than the people of Georgia have to buy them in Africa, I want him to do it. I think it cannot be done. If it is "popular sovereignty" for the people to have slaves because they want them, it is popular sovereignty for them to buy them in Africa because they desire to do so.

I know that Douglas has recently made a little effort, not seeming to notice that he had a different theory, has made an effort to get rid of that. He has written a letter, addressed to somebody, I believe, who resides in Iowa, declaring his opposition to the repeal of the laws that prohibit the Africa slave trade. He bases his opposition to such repeal upon the ground that these laws are themselves one of the compromises of the Constitution of the United States. Now, it would be very interesting to see Judge Douglas or any of his friends turn, to the Constitution of the United States and point out that compromise, to show where there is any compromise in the Constitution, or provision in the Constitution; express or implied, by which the administrators of that Constitution are under any obligation to repeal the African slave trade. I know, or at least I think I know, that the framers of that Constitution did expect the African slave trade would be abolished at the end of twenty years, to which time their prohibition against its being abolished extended there is abundant contemporaneous history to show that the framers of the Constitution expected it to be abolished. But while they so expected, they gave nothing for that expectation, and they put no provision in the Constitution requiring it should be so abolished. The migration or importation of such persons as the States shall see fit to admit shall not be prohibited, but a certain tax might be levied upon such importation. But what was to be done after that time? The Constitution is as silent about that as it is silent, personally, about myself. There is absolutely nothing in it about that subject; there is only the expectation of the framers of the Constitution that the slave trade would be abolished at the end of that time; and they expected it would be abolished, owing to public sentiment, before that time; and they put that provision in, in order that it should not be

abolished before that time, for reasons which I suppose they thought to be sound ones, but which I will not now try to enumerate before you.

But while, they expected the slave trade would be abolished at that time, they expected that the spread of slavery into the new Territories should also be restricted. It is as easy to prove that the framers of the Constitution of the United States expected that slavery should be prohibited from extending into the new Territories, as it is to prove that it was expected that the slave trade should be abolished. Both these things were expected. One was no more expected than the other, and one was no more a compromise of the Constitution than the other. There was nothing said in the Constitution in regard to the spread of slavery into the Territory. I grant that; but there was something very important said about it by the same generation of men in the adoption of the old Ordinance of '87, through the influence of which you here in Ohio, our neighbors in Indiana, we in Illinois, our neighbors in Michigan and Wisconsin, are happy, prosperous, teeming millions of free men. That generation of men, though not to the full extent members of the convention that framed the Constitution, were to some extent members of that convention, holding seats at the same time in one body and the other, so that if there was any compromise on either of these subjects, the strong evidence is that that compromise was in favor of the restriction of slavery from the new Territories.

But Douglas says that he is unalterably opposed to the repeal of those laws because, in his view, it is a compromise of the Constitution. You Kentuckians, no doubt, are somewhat offended with that. You ought not to be! You ought to be patient! You ought to know that if he said less than that, he would lose the power of "lugging" the Northern States to your support. Really, what you would push him to do would take from him his entire power to serve you. And you ought to remember how long, by precedent, Judge Douglas holds himself obliged to stick by compromises. You ought to remember that by the time you yourselves think you are ready to inaugurate measures for the revival of the African slave trade, that sufficient time will have arrived, by precedent, for Judge Douglas to break through, that compromise. He says now nothing more strong than he said in 1849 when he declared in favor of Missouri Compromise,—and precisely four years and a quarter after he declared that Compromise to be a sacred thing, which "no ruthless hand would ever dare to touch," he himself brought forward the measure ruthlessly to destroy it. By a mere calculation of time it will

only be four years more until he is ready to take back his profession about the sacredness of the Compromise abolishing the slave trade. Precisely as soon as you are ready to have his services in that direction, by fair calculation, you may be sure of having them.

But you remember and set down to Judge Douglas's debt, or discredit, that he, last year, said the people of Territories can, in spite of the Dred Scott decision, exclude your slaves from those Territories; that he declared, by "unfriendly legislation" the extension of your property into the new Territories may be cut off, in the teeth of the decision of the Supreme Court of the United States.

He assumed that position at Freeport on the 27th of August, 1858. He said that the people of the Territories can exclude slavery, in so many words: You ought, however, to bear in mind that he has never said it since. You may hunt in every speech that he has since made, and he has never used that expression once. He has never seemed to notice that he is stating his views differently from what he did then; but by some sort of accident, he has always really stated it differently. He has always since then declared that "the Constitution does not carry slavery into the Territories of the United States beyond the power of the people legally to control it, as other property." Now, there is a difference in the language used upon that former occasion and in this latter day. There may or may not be a difference in the meaning, but it is worth while considering whether there is not also a difference in meaning.

What is it to exclude? Why, it is to drive it out. It is in some way to put it out of the Territory. It is to force it across the line, or change its character so that, as property, it is out of existence. But what is the controlling of it "as other property"? Is controlling it as other property the same thing as destroying it, or driving it away? I should think not. I should think the controlling of it as other property would be just about what you in Kentucky should want. I understand the controlling of property means the controlling of it for the benefit of the owner of it. While I have no doubt the Supreme Court of the United States would say "God speed" to any of the Territorial Legislatures that should thus control slave property, they would sing quite a different tune if, by the pretence of controlling it, they were to undertake to pass laws which virtually excluded it,—and that upon a very well known principle to all lawyers, that what a Legislature cannot directly do, it cannot

do by indirection; that as the Legislature has not the power to drive slaves out, they have no power, by indirection, by tax, or by imposing burdens in any way on that property, to effect the same end, and that any attempt to do so would be held by the Dred Scott court unconstitutional.

Douglas is not willing to stand by his first proposition that they can exclude it, because we have seen that that proposition amounts to nothing more nor less than the naked absurdity that you may lawfully drive out that which has a lawful right to remain. He admitted at first that the slave might be lawfully taken into the Territories under the Constitution of the United States, and yet asserted that he might be lawfully driven out. That being the proposition, it is the absurdity I have stated. He is not willing to stand in the face of that direct, naked, and impudent absurdity; he has, therefore, modified his language into that of being "controlled as other property."

The Kentuckians don't like this in Douglas! I will tell you where it will go. He now swears by the court. He was once a leading man in Illinois to break down a court, because it had made a decision he did not like. But he now not only swears by the court, the courts having got to working for you, but he denounces all men that do not swear by the courts, as unpatriotic, as bad citizens. When one of these acts of unfriendly legislation shall impose such heavy burdens as to, in effect, destroy property in slaves in a Territory, and show plainly enough that there can be no mistake in the purpose of the Legislature to make them so burdensome, this same Supreme Court will decide that law to be unconstitutional, and he will be ready to say for your benefit "I swear by the court; I give it up"; and while that is going on he has been getting all his men to swear by the courts, and to give it up with him. In this again he serves you faithfully, and, as I say, more wisely than you serve yourselves.

Again: I have alluded in the beginning of these remarks to the fact that Judge Douglas has made great complaint of my having expressed the opinion that this government "cannot endure permanently, half slave and half free." He has complained of Seward for using different language, and declaring that there is an "irrepressible conflict" between the principles of free and slave labor. [A voice: "He says it is not original with Seward. That it is original with Lincoln."] I will attend to that immediately, sir. Since that time, Hickman of Pennsylvania expressed the same sentiment. He has never denounced Mr. Hickman: why? There is a little chance, notwithstanding

that opinion in the mouth of Hickman, that he may yet be a Douglas man. That is the difference! It is not unpatriotic to hold that opinion if a man is a Douglas man.

But neither I, nor Seward, nor Hickman is entitled to the enviable or unenviable distinction of having first expressed that idea. That same idea was expressed by the Richmond Enquirer, in Virginia, in 1856,—quite two years before it was expressed by the first of us. And while Douglas was pluming himself that in his conflict with my humble self, last year, he had "squelched out" that fatal heresy, as he delighted to call it, and had suggested that if he only had had a chance to be in New York and meet Seward he would have "squelched" it there also, it never occurred to him to breathe a word against Pryor. I don't think that you can discover that Douglas ever talked of going to Virginia to "squelch" out that idea there. No. More than that. That same Roger A. Pryor was brought to Washington City and made the editor of the par excellence Douglas paper, after making use of that expression, which, in us, is so unpatriotic and heretical. From all this, my Kentucky friends may see that this opinion is heretical in his view only when it is expressed by men suspected of a desire that the country shall all become free, and not when expressed by those fairly known to entertain the desire that the whole country shall become slave. When expressed by that class of men, it is in nowise offensive to him. In this again, my friends of Kentucky, you have Judge Douglas with you.

There is another reason why you Southern people ought to nominate Douglas at your convention at Charleston. That reason is the wonderful capacity of the man,—the power he has of doing what would seem to be impossible. Let me call your attention to one of these apparently impossible things:

Douglas had three or four very distinguished men of the most extreme anti-slavery views of any men in the Republican party expressing their desire for his re-election to the Senate last year. That would, of itself, have seemed to be a little wonderful; but that wonder is heightened when we see that Wise of Virginia, a man exactly opposed to them, a man who believes in the divine right of slavery, was also expressing his desire that Douglas should be reelected; that another man that may be said to be kindred to Wise, Mr. Breckinridge, the Vice-President, and of your own State, was also agreeing with the anti-slavery men in the North that Douglas ought to be re-

elected. Still to heighten the wonder, a senator from Kentucky, whom I have always loved with an affection as tender and endearing as I have ever loved any man, who was opposed to the anti-slavery men for reasons which seemed sufficient to him, and equally opposed to Wise and Breckinridge, was writing letters into Illinois to secure the reelection of Douglas. Now, that all these conflicting elements should be brought, while at daggers' points with one another, to support him, is a feat that is worthy for you to note and consider. It is quite probable that each of these classes of men thought, by the re-election of Douglas, their peculiar views would gain something: it is probable that the anti-slavery men thought their views would gain something; that Wise and Breckinridge thought so too, as regards their opinions; that Mr. Crittenden thought that his views would gain something, although he was opposed to both these other men. It is probable that each and all of them thought that they were using Douglas; and it is yet an unsolved problem whether he was not using them all. If he was, then it is for you to consider whether that power to perform wonders is one for you lightly to throw away.

There is one other thing that I will say to you, in this relation. It is but my opinion, I give it to you without a fee. It is my opinion that it is for you to take him or be defeated; and that if you do take him you may be beaten. You will surely be beaten if you do not take him. We, the Republicans and others forming the opposition of the country, intend to "stand by our guns," to be patient and firm, and in the long run to beat you, whether you take him or not. We know that before we fairly beat you we have to beat you both together. We know that you are "all of a feather," and that we have to beat you all together, and we expect to do it. We don't intend to be very impatient about it. We mean to be as deliberate and calm about it as it is possible to be, but as firm and resolved as it is possible for men to be. When we do as we say,—beat you,—you perhaps want to know what we will do with you.

I will tell you, so far as I am authorized to speak for the opposition, what we mean to do with you. We mean to treat you, as near as we possibly can, as Washington, Jefferson, and Madison treated you. We mean to leave you alone, and in no way interfere with your institution; to abide by all and every compromise of the Constitution, and, in a word, coming back to the original proposition, to treat you, so far as degenerated men (if we have degenerated) may, according to the examples of those noble fathers,

Washington, Jefferson, and Madison. We mean to remember that you are as good as we; that there is no difference between us other than the difference of circumstances. We mean to recognize and bear in mind always that you have as good hearts in your bosoms as other people, or as we claim to have, and treat you accordingly. We mean to marry your girls when we have a chance, the white ones I mean; and I have the honor to inform you that I once did have a chance in that way.

I have told you what we mean to do. I want to know, now, when that thing takes place, what do you mean to do? I often hear it intimated that you mean to divide the Union whenever a Republican, or anything like it, is elected President of the United States. [A voice: "That is so."] "That is so," one of them says; I wonder if he is a Kentuckian? [A voice: "He is a Douglas man."] Well, then, I want to know what you are going to do with your half of it? Are you going to split the Ohio down through, and push your half off a piece? Or are you going to keep it right alongside of us outrageous fellows? Or are you going to build up a wall some way between your country and ours, by which that movable property of yours can't come over here any more, to the danger of your losing it? Do you think you can better yourselves, on that subject, by leaving us here under no obligation whatever to return those specimens of your movable property that come hither? You have divided the Union because we would not do right with you, as you think, upon that subject; when we cease to be under obligations to do anything for you, how much better off do you think you will be? Will you make war upon us and kill us all? Why, gentlemen, I think you are as gallant and as brave men as live; that you can fight as bravely in a good cause, man for man, as any other people living; that you have shown yourselves capable of this upon various occasions: but, man for man, you are not better than we are, and there are not so many of you as there are of us. You will never make much of a hand at whipping us. If we were fewer in numbers than you, I think that you could whip us; if we were equal, it would likely be a drawn battle; but being inferior in numbers, you will make nothing by attempting to master us.

But perhaps I have addressed myself as long, or longer, to the Kentuckians than I ought to have done, inasmuch as I have said that whatever course you take we intend in the end to beat you. I propose to address a few remarks to our friends, by way of discussing with them the best means of keeping that promise that I have in good faith made.

It may appear a little episodical for me to mention the topic of which I will speak now. It is a favorite position of Douglas's that the interference of the General Government, through the Ordinance of '87, or through any other act of the General Government never has made or ever can make a free State; the Ordinance of '87 did not make free States of Ohio, Indiana, or Illinois; that these States are free upon his "great principle" of popular sovereignty, because the people of those several States have chosen to make them so. At Columbus, and probably here, he undertook to compliment the people that they themselves have made the State of Ohio free, and that the Ordinance of '87 was not entitled in any degree to divide the honor with them. I have no doubt that the people of the State of Ohio did make her free according to their own will and judgment, but let the facts be remembered.

In 1802, I believe, it was you who made your first constitution, with the clause prohibiting slavery, and you did it, I suppose, very nearly unanimously; but you should bear in mind that you—speaking of you as one people—that you did so unembarrassed by the actual presence of the institution amongst you; that you made it a free State not with the embarrassment upon you of already having among you many slaves, which if they had been here, and you had sought to make a free State, you would not know what to do with. If they had been among you, embarrassing difficulties, most probably, would have induced you to tolerate a slave constitution instead of a free one, as indeed these very difficulties have constrained every people on this continent who have adopted slavery.

Pray what was it that made you free? What kept you free? Did you not find your country free when you came to decide that Ohio should be a free State? It is important to inquire by what reason you found it so. Let us take an illustration between the States of Ohio and Kentucky. Kentucky is separated by this River Ohio, not a mile wide. A portion of Kentucky, by reason of the course of the Ohio, is farther north than this portion of Ohio, in which we now stand. Kentucky is entirely covered with slavery; Ohio is entirely free from it: What made that difference? Was it climate? No. A portion of Kentucky was farther north than this portion of Ohio. Was it soil? No. There is nothing in the soil of the one more favorable to slave than the other. It was not climate or soil that mused one side of the line to be entirely covered with slavery, and the other side free of it. What was it? Study over it. Tell us, if you can, in all the range of conjecture, if there be anything you can conceive of that made that difference, other than that there was no law

of any sort keeping it out of Kentucky, while the Ordinance of '87 kept it out of Ohio. If there is any other reason than this, I confess that it is wholly beyond my power to conceive of it. This, then, I offer to combat the idea that that Ordinance has never made any State free.

I don't stop at this illustration. I come to the State of Indiana; and what I have said as between Kentucky and Ohio, I repeat as between Indiana and Kentucky: it is equally applicable. One additional argument is applicable also to Indiana. In her Territorial condition she more than once petitioned Congress to abrogate the Ordinance entirely, or at least so far as to suspend its operation for a time, in order that they should exercise the "popular sovereignty" of having slaves if they wanted them. The men then controlling the General Government, imitating the men of the Revolution, refused Indiana that privilege. And so we have the evidence that Indiana supposed she could have slaves, if it were not for that Ordinance; that she besought Congress to put that barrier out of the way; that Congress refused to do so; and it all ended at last in Indiana being a free State. Tell me not then that the Ordinance of '87 had nothing to do with making Indiana a free State, when we find some men chafing against, and only restrained by, that barrier.

Come down again to our State of Illinois. The great Northwest Territory, including Ohio, Indiana, Illinois, Michigan, and Wisconsin, was acquired first, I believe, by the British Government, in part at least, from the French. Before the establishment of our independence it became a part of Virginia, enabling Virginia afterward to transfer it to the General Government. There were French settlements in what is now Illinois, and at the same time there were French settlements in what is now Missouri, in the tract of country that was not purchased till about 1803. In these French settlements negro slavery had existed for many years, perhaps more than a hundred; if not as much as two hundred years,—at Kaskaskia, in Illinois, and at St. Genevieve, or Cape Girardeau, perhaps, in Missouri. The number of slaves was not very great, but there was about the same number in each place. They were there when we acquired the Territory. There was no effort made to break up the relation of master and slave, and even the Ordinance of 1787 was not so enforced as to destroy that slavery in Illinois; nor did the Ordinance apply to Missouri at all.

What I want to ask your attention to; at this point, is that Illinois and Missouri came into the Union about the same time, Illinois in the latter part of 1818, and Missouri, after a struggle, I believe sometime in 1820. They had been filling up with American people about the same period of time; their progress enabling them to come into the Union about the same time. At the end of that ten years, in which they had been so preparing (for it was about that period of time), the number of slaves in Illinois had actually decreased; while in Missouri, beginning with very few, at the end of that ten years there were about ten thousand. This being so, and it being remembered that Missouri and Illinois are, to a certain extent, in the same parallel of latitude, that the northern half of Missouri and the southern half of Illinois are in the same parallel of latitude, so that climate would have the same effect upon one as upon the other, and that in the soil there is no material difference so far as bears upon the question of slavery being settled upon one or the other,—there being none of those natural causes to produce a difference in filling them, and yet there being a broad difference to their filling up, we are led again to inquire what was the cause of that difference.

It is most natural to say that in Missouri there was no law to keep that country from filling up with slaves, while in Illinois there was the Ordinance of 1807. The Ordinance being there, slavery decreased during that ten years; the Ordinance not being in the other, it increased from a few to ten thousand. Can anybody doubt the reason of the difference?

I think all these facts most abundantly prove that my friend Judge Douglas's proposition, that the Ordinance of '07, or the national restriction of slavery, never had a tendency to make a free State, is a fallacy,—a proposition without the shadow or substance of truth about it.

Douglas sometimes says that all the States (and it is part of this same proposition I have been discussing) that have become free have become so upon his "great principle"; that the State of Illinois itself came into the Union as a slave State, and that the people, upon the "great principle" of popular sovereignty, have since made it a free State. Allow me but a little while to state to you what facts there are to justify him in saying that Illinois came into the Union as a slave State.

I have mentioned to you that there were a few old French slaves there. They numbered, I think, one or two hundred. Besides that, there had been a Territorial law for indenturing black persons. Under that law, in violation of

the Ordinance of '87, but without any enforcement of the Ordinance to overthrow the system, there had been a small number of slaves introduced as indentured persons. Owing to this, the clause for the prohibition of slavery was slightly modified. Instead of running like yours, that neither slavery nor involuntary servitude, except for crime, of which the party shall have been duly convicted, should exist in the State, they said that neither slavery nor involuntary servitude should thereafter be introduced; and that the children of indentured servants should be born free; and nothing was said about the few old French slaves. Out of this fact, that the clause for prohibiting slavery was modified because of the actual presence of it, Douglas asserts again and again that Illinois came into the Union as a slave State. How far the facts sustain the conclusion that he draws, it is for intelligent and impartial men to decide. I leave it with you, with these remarks, worthy of being remembered, that that little thing, those few indentured servants being there, was of itself sufficient to modify a constitution made by a people ardently desiring to have a free constitution; showing the power of the actual presence of the institution of slavery to prevent any people, however anxious to make a free State, from making it perfectly so.

I have been detaining you longer, perhaps, than I ought to do.

I am in some doubt whether to introduce another topic upon which I could talk a while. [Cries of "Go on," and "Give us it."] It is this, then: Douglas's Popular sovereignty, as a principle, is simply this: If one man chooses to make a slave of another man, neither that man nor anybody else has a right to object. Apply it to government, as he seeks to apply it, and it is this: If, in a new Territory into which a few people are beginning to enter for the purpose of making their homes, they choose to either exclude slavery from their limits, or to establish it there, however one or the other may affect the persons to be enslaved, or the infinitely greater number of persons who are afterward to inhabit that Territory, or the other members of the family of communities of which they are but an incipient member, or the general head of the family of States as parent of all, however their action may affect one or the other of these, there is no power or right to interfere. That is Douglas's popular sovereignty applied. Now, I think that there is a real popular sovereignty in the world. I think the definition of popular sovereignty, in the abstract, would be about this: that each man shall do precisely as he pleases with himself, and with all those things

which exclusively concern him. Applied in government, this principle would be that a general government shall do all those things which pertain to it, and all the local governments shall do precisely as they please in respect to those matters which exclusively concern them.

Douglas looks upon slavery as so insignificant that the people must decide that question for themselves; and yet they are not fit to decide who shall be their governor, judge, or secretary, or who shall be any of their officers. These are vast national matters in his estimation; but the little matter in his estimation is that of planting slavery there. That is purely of local interest, which nobody should be allowed to say a word about.

Labor is the great source from which nearly all, if not all, human comforts and necessities are drawn. There is a difference in opinion about the elements of labor in society. Some men assume that there is necessary connection between capital and labor, and that connection draws within it the whole of the labor of the community. They assume that nobody works unless capital excites them to work. They begin next to consider what is the best way. They say there are but two ways: one is to hire men, and to allure them to labor by their consent; the other is to buy the men, and drive them, to it, and that is slavery. Having assumed that, they proceed to discuss the question of whether the laborers themselves are better off in the condition of slaves or of hired laborers, and they usually decide that they are better off in the condition of slaves.

In the first place, I say that the whole thing is a mistake. That there is a certain relation between capital and labor, I admit. That it does exist, and rightfully exists, I think is true. That men who are industrious, and sober, and honest in the pursuit of their own interests should after a while accumulate capital, and after that should be allowed to enjoy it in peace, and also, if they should choose, when they have accumulated it, to use it to save themselves from actual labor, and hire other people to labor for them, is right. In doing so they do not wrong the man they employ, for they find men who have not of their own land to work upon, or shops to work in, and who are benefited by working for others, hired laborers, receiving their capital for it. Thus a few men, that own capital, hire a few others, and these establish the relation of capital and labor rightfully, a relation of which I make no complaint. But I insist that that relation, after all, does not embrace more than one eighth of the labor of the country.

[The speaker proceeded to argue that the hired laborer, with his ability to become an employer, must have every precedence over him who labors under the inducement of force. He continued:]

I have taken upon myself in the name of some of you to say that we expect upon these principles to ultimately beat them. In order to do so, I think we want and must have a national policy in regard to the institution of slavery that acknowledges and deals with that institution as being wrong. Whoever desires the prevention of the spread of slavery and the nationalization of that institution yields all when he yields to any policy that either recognizes slavery as being right or as being an indifferent thing. Nothing will make you successful but setting up a policy which shall treat the thing as being wrong: When I say this, I do not mean to say that this General Government is charged with the duty of redressing or preventing all the wrongs in the world, but I do think that it is charged with preventing and redressing all wrongs which are wrongs to itself. This Government is expressly charged with the duty of providing for the general welfare. We believe that the spreading out and perpetuity of the institution of slavery impairs the general welfare. We believe—nay, we know—that that is the only thing that has ever threatened the perpetuity of the Union itself. The only thing which has ever menaced the destruction of the government under which we live is this very thing. To repress this thing, we think, is, Providing for the general welfare. Our friends in Kentucky differ from us. We need not make our argument for them, but we who think it is wrong in all its relations, or in some of them at least, must decide as to our own actions and our own course, upon our own judgment.

I say that we must not interfere with the institution of slavery in the States where it exists, because the Constitution forbids it, and the general welfare does not require us to do so. We must not withhold an efficient Fugitive Slave law, because the Constitution requires us, as I understand it, not to withhold such a law. But we must prevent the outspreading of the institution, because neither the Constitution nor general welfare requires us to extend it. We must prevent the revival of the African slave trade, and the enacting by Congress of a Territorial slave code. We must prevent each of these things being done by either Congresses or courts. The people of these United States are the rightful masters of both Congresses and courts, not to overthrow the Constitution, but to overthrow the men who pervert the Constitution.

To do these things we must employ instrumentalities. We must hold conventions; we must adopt platforms, if we conform to ordinary custom; we must nominate candidates; and we must carry elections. In all these things, I think that we ought to keep in view our real purpose, and in none do anything that stands adverse to our purpose. If we shall adopt a platform that fails to recognize or express our purpose, or elect a man that declares himself inimical to our purpose, we not only take nothing by our success, but we tacitly admit that we act upon no other principle than a desire to have "the loaves and fishes," by which, in the end, our apparent success is really an injury to us.

I know that this is very desirable with me, as with everybody else, that all the elements of the opposition shall unite in the next Presidential election and in all future time. I am anxious that that should be; but there are things seriously to be considered in relation to that matter. If the terms can be arranged, I am in favor of the union. But suppose we shall take up some man, and put him upon one end or the other of the ticket, who declares himself against us in regard to the prevention of the spread of slavery, who turns up his nose and says he is tired of hearing anything more about it, who is more against us than against the enemy, what will be the issue? Why, he will get no slave States, after all,—he has tried that already until being beat is the rule for him. If we nominate him upon that ground, he will not carry a slave State; and not only so, but that portion of our men who are high-strung upon the principle we really fight for will not go for him, and he won't get a single electoral vote anywhere, except, perhaps, in the State of Maryland. There is no use in saying to us that we are stubborn and obstinate because we won't do some such thing as this. We cannot do it. We cannot get our men to vote it. I speak by the card, that we cannot give the State of Illinois in such case by fifty thousand. We would be flatter down than the "Negro Democracy" themselves have the heart to wish to see us.

After saying this much let me say a little on the other side. There are plenty of men in the slave States that are altogether good enough for me to be either President or Vice-President, provided they will profess their sympathy with our purpose, and will place themselves on the ground that our men, upon principle, can vote for them. There are scores of them, good men in their character for intelligence and talent and integrity. If such a one will place himself upon the right ground, I am for his occupying one place upon the next Republican or opposition ticket. I will heartily go for him.

But unless he does so place himself, I think it a matter of perfect nonsense to attempt to bring about a union upon any other basis; that if a union be made, the elements will scatter so that there can be no success for such a ticket, nor anything like success. The good old maxims of the Bible are applicable, and truly applicable, to human affairs, and in this, as in other things, we may say here that he who is not for us is against us; he who gathereth not with us, scattereth. I should be glad to have some of the many good and able and noble men of the South to place themselves where we can confer upon them the high honor of an election upon one or the other end of our ticket. It would do my soul good to do that thing. It would enable us to teach them that, inasmuch as we select one of their own number to carry out our principles, we are free from the charge that we mean more than we say.

But, my friends, I have detained you much longer than I expected to do. I believe I may do myself the compliment to say that you have stayed and heard me with great patience, for which I return you my most sincere thanks.

ON PROTECTIVE TARIFFS

TO EDWARD WALLACE.

CLINTON, October 11, 1859

Dr. EDWARD WALLACE.

MY DEAR SIR:—I am here just now attending court. Yesterday, before I left Springfield, your brother, Dr. William S. Wallace, showed me a letter of yours, in which you kindly mention my name, inquiring for my tariff views, and suggest the propriety of my writing a letter upon the subject. I was an old Henry-Clay-Tariff Whig. In old times I made more speeches on that subject than any other.

I have not since changed my views. I believe yet, if we could have a moderate, carefully adjusted protective tariff, so far acquiesced in as not to be a perpetual subject of political strife, squabbles changes, and uncertainties, it would be better for us. Still it is my opinion that just now the revival of that question will not advance the cause itself, or the man who revives it.

I have not thought much on the subject recently, but my general impression is that the necessity for a protective tariff will ere long force its old opponents to take it up; and then its old friends can join in and establish it on a more firm and durable basis. We, the Old Whigs, have been entirely beaten out on the tariff question, and we shall not be able to re-establish the policy until the absence of it shall have demonstrated the necessity for it in the minds of men heretofore opposed to it. With this view, I should prefer to not now write a public letter on the subject. I therefore wish this to be considered confidential. I shall be very glad to receive a letter from you.

Yours truly,

A. LINCOLN.

ON MORTGAGES

TO W. DUNGY.

SPRINGFIELD, November, 2, 1859.

WM. DUNGY, Esq.

DEAR SIR:—Yours of October 27 is received. When a mortgage is given to secure two notes, and one of the notes is sold and assigned, if the mortgaged premises are only sufficient to pay one note, the one assigned will take it all. Also, an execution from a judgment on the assigned note may take it all; it being the same thing in substance. There is redemption on execution sales from the United States Court just as from any other court.

You did not mention the name of the plaintiff or defendant in the suit, and so I can tell nothing about it as to sales, bids, etc. Write again.

Yours truly,

A. LINCOLN.

FRAGMENT OF SPEECH AT LEAVENWORTH, KANSAS,

DECEMBER, 1859.

..... But you Democrats are for the Union; and you greatly fear the success of the Republicans would destroy the Union. Why? Do the Republicans declare against the Union? Nothing like it. Your own statement of it is that if the Black Republicans elect a President, you "won't stand it." You will break up the Union. If we shall constitutionally elect a President, it will be our duty to see that you submit. Old John Brown has been executed for treason against a State. We cannot object, even though he agreed with us in thinking slavery wrong. That cannot excuse violence, bloodshed and treason. It could avail him nothing that he might think himself right. So, if we constitutionally elect a President, and therefore you undertake to destroy the Union, it will be our duty to deal with you as old John Brown has been dealt with. We shall try to do our duty. We hope and believe that in no section will a majority so act as to render such extreme measures necessary.

**TO G. W. DOLE, G. S. HUBBARD, AND W. H.
BROWN.**

SPRINGFIELD, Dec. 14, 1859

MESSRS. DOLE, HUBBARD & BROWN.

GENT.:—Your favor of the 12th is at hand, and it gives me pleasure to be able to answer it. It is not my intention to take part in any of the rivalries for the gubernatorial nomination; but the fear of being misunderstood upon that subject ought not to deter me from doing justice to Mr. Judd, and preventing a wrong being done to him by the use of my name in connection with alleged wrongs to me.

In answer to your first question, as to whether Mr. Judd was guilty of any unfairness to me at the time of Senator Trumbull's election, I answer unhesitatingly in the negative; Mr. Judd owed no political allegiance to any party whose candidate I was. He was in the Senate, holding over, having been elected by a Democratic Constituency. He never was in any caucus of the friends who sought to make me U. S. Senator, never gave me any promises or pledges to support me, and subsequent events have greatly tended to prove the wisdom, politically, of Mr. Judd's course. The election of Judge Trumbull strongly tended to sustain and preserve the position of that lion of the Democrats who condemned the repeal of the Missouri Compromise, and left them in a position of joining with us in forming the Republican party, as was done at the Bloomington convention in 1856.

During the canvass of 1858 for the senatorship my belief was, and still is, that I had no more sincere and faithful friend than Mr. Judd—certainly none whom I trusted more. His position as chairman of the State Central Committee led to my greater intercourse with him, and to my giving him a larger share of my confidence, than with or to almost any other friend; and I have never suspected that that confidence was, to any degree, misplaced.

My relations with Mr. Judd since the organization of the Republican party, in, our State, in 1856, and especially since the adjournment of the Legislature in Feb., 1857, have been so very intimate that I deem it an

impossibility that he could have been dealing treacherously with me. He has also, at all times, appeared equally true and faithful to the party. In his position as chairman of the committee, I believe he did all that any man could have done. The best of us are liable to commit errors, which become apparent by subsequent developments; but I do not know of a single error, even, committed by Mr. Judd, since he and I have acted together politically.

I, had occasionally heard these insinuations against Mr. Judd, before the receipt of your letter; and in no instance have I hesitated to pronounce them wholly unjust, to the full extent of my knowledge and belief. I have been, and still am, very anxious to take no part between the many friends, all good and true, who are mentioned as candidates for a Republican gubernatorial nomination; but I can not feel that my own honor is quite clear if I remain silent when I hear any one of them assailed about matters of which I believe I know more than his assailants.

I take pleasure in adding that, of all the avowed friends I had in the canvass of last year, I do not suspect any of having acted treacherously to me, or to our cause; and that there is not one of them in whose honesty, honor, and integrity I, today, have greater confidence than I have in those of Mr. Judd.

I dislike to appear before the public in this matter; but you are at liberty to make such use of this letter as you may think justice requires.

Yours very truly,

A. LINCOLN.

TO G. M. PARSONS AND OTHERS.

SPRINGFIELD, ILLINOIS, December 19, 1859.

MESSRS. G. M. PARSONS AND OTHERS, CENTRAL EXECUTIVE COMMITTEE, ETC.

GENTLEMEN:—Your letter of the 7th instant, accompanied by a similar one from the governor-elect, the Republican State officers, and the Republican members of the State Board of Equalization of Ohio, both requesting of me, for publication in permanent form, copies of the political debates between Senator Douglas and myself last year, has been received. With my grateful acknowledgments to both you and them for the very flattering terms in which the request is communicated, I transmit you the copies. The copies I send you are as reported and printed by the respective friends of Senator Douglas and myself, at the time—that is, his by his friends, and mine by mine. It would be an unwarrantable liberty for us to change a word or a letter in his, and the changes I have made in mine, you perceive, are verbal only, and very few in number. I wish the reprint to be precisely as the copies I send, without any comment whatever.

Yours very truly,

A. LINCOLN.

AUTOBIOGRAPHICAL SKETCH

TO J. W. FELL,

SPRINGFIELD, December 20, 1859.

J. W. FELL, Esq.

MY DEAR SIR:—Herewith is a little sketch, as you requested. There is not much of it, for the reason, I suppose, that there is not much of me. If anything be made out of it, I wish it to be modest, and not to go beyond the material. If it were thought necessary to incorporate anything from any of my speeches I suppose there would be no objection. Of course it must not appear to have been written by myself.

Yours very truly, A. LINCOLN

I was born February 12, 1809, in Hardin County, Kentucky. My parents were both born in Virginia, of undistinguished families—second families, perhaps I should say. My mother, who died in my tenth year, was of a family of the name of Hanks, some of whom now reside in Adams, and others in Macon County, Illinois. My paternal grandfather, Abraham Lincoln, emigrated from Rockingham County, Virginia, to Kentucky about 1781 or 1782, where a year or two later he was killed by the Indians, not in battle, but by stealth, when he was laboring to open a farm in the forest. His ancestors, who were Quakers, went to Virginia from Berks County, Pennsylvania. An effort to identify them with the New England family of the same name ended in nothing more definite than a similarity of Christian names in both families, such as Enoch, Levi, Mordecai, Solomon, Abraham, and the like.

My father, at the death of his father, was but six years of age, and he grew up literally without education. He removed from Kentucky to what is now Spencer County, Indiana, in my eighth year. We reached our new home about the time that State came into the Union. It was a wild region, with many bears and other wild animals still in the woods. There I grew up. There were some schools, so called, but no qualification was ever required

of a teacher beyond "readin', writin', and cipherin'" to the Rule of Three. If a straggler supposed to understand Latin happened to sojourn in the neighborhood he was looked upon as a wizard. There was absolutely nothing to excite ambition for education. Of course, when I came of age I did not know much. Still, somehow, I could read, write, and cipher to the Rule of Three, but that was all. I have not been to school since. The little advance I now have upon this store of education I have picked up from time to time under the pressure of necessity.

I was raised to farm work, which I continued till I was twenty-two. At twenty-one I came to Illinois, Macon County. Then I got to New Salem, at that time in Sangamon, now in Menard County, where I remained a year as a sort of clerk in a store. Then came the Black Hawk war; and I was elected a captain of volunteers, a success which gave me more pleasure than any I have had since. I went the campaign, was elected, ran for the Legislature the same year (1832), and was beaten—the only time I ever have been beaten by the people. The next and three succeeding biennial elections I was elected to the Legislature. I was not a candidate afterward. During this legislative period I had studied law, and removed to Springfield to practice it. In 1846 I was once elected to the lower House of Congress. Was not a candidate for re-election. From 1849 to 1854, both inclusive, practiced law more assiduously than ever before. Always a Whig in politics; and generally on the Whig electoral tickets, making active canvasses. I was losing interest in politics when the repeal of the Missouri Compromise aroused me again. What I have done since then is pretty well known.

If any personal description of me is thought desirable, it may be said I am, in height, six feet four inches, nearly; lean in flesh, weighing on an average one hundred and eighty pounds; dark complexion, with coarse black hair and gray eyes. No other marks or brands recollected.

Yours truly,

A. LINCOLN.

ON NOMINATION TO THE NATIONAL TICKET

To N. B. JUDD.

SPRINGFIELD, FEBRUARY 9, 1859 HON. N. B. JUDD.

DEAR Sir:—I am not in a position where it would hurt much for me to not be nominated on the national ticket; but I am where it would hurt some for me to not get the Illinois delegates. What I expected when I wrote the letter to Messrs. Dole and others is now happening. Your discomfited assailants are most bitter against me; and they will, for revenge upon me, lay to the Bates egg in the South, and to the Seward egg in the North, and go far toward squeezing me out in the middle with nothing. Can you help me a little in this matter in your end of the vineyard. I mean this to be private.

Yours as ever,

A. LINCOLN

1860

SPEECH AT THE COOPER INSTITUTE, NEW YORK FEBRUARY 27, 1860

MR. PRESIDENT AND FELLOW-CITIZENS OF NEW YORK:—The facts with which I shall deal this evening are mainly old and familiar; nor is there anything new in the general use I shall make of them. If there shall be any novelty, it will be in the mode of presenting the facts, and the inferences and observations following that presentation.

In his speech last autumn at Columbus, Ohio, as reported in the New York Times, Senator Douglas said:

"Our fathers, when they framed the Government under which we live, understood this question just as well, and even better than we do now."

I fully indorse this, and I adopt it as a text for this discourse. I so adopt it because it furnishes a precise and an agreed starting-point for a discussion between Republicans and that wing of the Democracy headed by Senator Douglas. It simply leaves the inquiry: What was the understanding those fathers had of the question mentioned?

What is the frame of Government under which we live?

The answer must be—the Constitution of the United States. That Constitution consists of the original, framed in 1787 (and under which the present Government first went into operation), and twelve subsequently framed amendments, the first ten of which were framed in 1789.

Who were our fathers that framed the Constitution? I suppose the "thirty-nine" who signed the original instrument may be fairly called our fathers who framed that part of the present Government. It is almost exactly true to say they framed it, and it is altogether true to say they fairly represented the opinion and sentiment of the whole nation at that time.

Their names, being familiar to nearly all, and accessible to quite all, need not now be repeated.

I take these "thirty-nine," for the present, as being our "fathers who framed the Government under which we live."

What is the question which, according to the text, those fathers understood "just as well, and even better than we do now"?

It is this: Does the proper division of local from Federal authority, or anything in the Constitution, forbid our Federal Government to control as to slavery in our Federal Territories?

Upon this Senator Douglas holds the affirmative, and Republicans the negative. This affirmation and denial form an issue, and this issue—this question is precisely what the text declares our fathers understood "better than we."

Let us now inquire whether the "thirty-nine," or any of them, acted upon this question; and if they did, how they acted upon it—how they expressed that better understanding.

In 1784, three years before the Constitution—the United States then owning the Northwestern Territory, and no other—the Congress of the Confederation had before them the question of prohibiting slavery in that Territory; and four of the "thirty nine" who afterward framed the Constitution were in that Congress and voted on that question. Of these, Roger Sherman, Thomas Mifflin, and Hugh Williamson voted for the prohibition, thus showing that, in their understanding, no line dividing local from Federal authority, nor anything else, properly forbade the Federal Government to control as to slavery in Federal territory. The other of the four—James McHenry voted against the prohibition, showing that, for some cause, he thought it improper to vote for it.

In 1787, still before the Constitution, but while the convention was in session framing it, and while the Northwestern Territory still was the only Territory owned by the United States, the same question of prohibiting slavery in the Territory again came before the Congress of the Confederation; and two more of the "thirty-nine" who afterward signed the Constitution were in that Congress, and voted on the question. They were William Blount and William Few; and they both voted for the prohibition thus showing that, in their understanding, no line dividing local from Federal authority, nor anything else, properly forbade the Federal Government to control as to slavery in Federal territory. This time the prohibition became a law, being part of what is now well known as the Ordinance of '87.

The question of Federal control of slavery in the Territories seems not to have been directly before the convention which framed the original Constitution; and hence it is not recorded that the "thirty-nine," or any of them, while engaged on that instrument, expressed any opinion on that precise question.

In 1789, by the first Congress which sat under the Constitution, an act was passed to enforce the Ordinance of '87, including the prohibition of slavery in the Northwestern Territory. The bill for this act was reported by one of the "thirty-nine," Thomas Fitzsimmons, then a member of the House of Representatives from Pennsylvania. It went through all its stages without a word of opposition, and finally passed both branches without yeas and nays, which is equivalent to a unanimous passage. In this Congress there were sixteen of the thirty-nine fathers who framed the original Constitution. They were John Langdon, Nicholas Gilman, Wm. S. Johnson, Roger Sherman, Robert Morris, Thos. Fitzsimmons, William Few, Abraham Baldwin, Rufus King, William Paterson, George Claiborne, Richard Bassett, George Read, Pierce Butler, Daniel Carroll, James Madison.

This shows that, in their understanding, no line dividing local from Federal authority, nor anything in the Constitution, properly forbade Congress to prohibit slavery in the Federal territory; else both their fidelity to correct principles and their oath to support the Constitution would have constrained them to oppose the prohibition.

Again: George Washington, another of the "thirty nine," was then President of the United States, and, as such, approved and signed the bill; thus completing its validity as a law, and thus showing that, in his understanding, no line dividing local from Federal authority, nor anything in the Constitution, forbade the Federal Government to control as to slavery in Federal territory.

No great while after the adoption of the original Constitution, North Carolina ceded to the Federal Government the country now constituting the State of Tennessee; and, a few years later, Georgia ceded that which now constitutes the States of Mississippi and Alabama. In both deeds of cession it was made a condition by the ceding States that the Federal Government should not prohibit slavery in the ceded country. Besides this, slavery was then actually in the ceded country. Under these circumstances, Congress, on taking charge of these countries, did not absolutely prohibit slavery within

them. But they did interfere with it—take control of it—even there, to a certain extent. In 1798, Congress organized the Territory of Mississippi: In the act of organization they prohibited the bringing of slaves into the Territory from any place without the United States, by fine and giving freedom to slaves so brought. This act passed both branches of Congress without yeas and nays. In that Congress were three of the "thirty-nine" who framed the original Constitution. They were John Langdon, George Read, and Abraham Baldwin. They all, probably, voted for it. Certainly they would have placed their opposition to it upon record, if, in their understanding, any line dividing local from Federal authority, or anything in the Constitution, properly forbade the Federal Government to control as to slavery in Federal territory.

In 1803, the Federal Government purchased the Louisiana country. Our former territorial acquisitions came from certain of our own States; but this Louisiana country was acquired from a foreign nation. In 1804, Congress gave a territorial organization to that part of it which now constitutes the State of Louisiana. New Orleans, lying within that part, was an old and comparatively large city. There were other considerable towns and settlements, and slavery was extensively and thoroughly intermingled with the people. Congress did not, in the Territorial Act, prohibit slavery; but they did interfere with it take control of it—in a more marked and extensive way than they did in the case of Mississippi. The substance of the provision therein made in relation to slaves was:

First. That no slave should be imported into the Territory from foreign parts.

Second. That no slave should be carried into it who had been imported into the United States since the first day of May, 1798.

Third. That no slave should be carried into it except by the owner, and for his own use as a settler; the penalty in all the cases being a fine upon the violator of the law, and freedom to the slave.

This act also was passed without yeas and nays. In the Congress which passed it there were two of the "thirty-nine." They were Abraham Baldwin and Jonathan Dayton. As stated in the case of Mississippi, it is probable they both voted for it. They would not have allowed it to pass without recording their opposition to it, if, in their understanding, it violated either

the line properly dividing local from Federal authority, or any provision of the Constitution.

In 1819-20 came and passed the Missouri question. Many votes were taken, by yeas and nays, in both branches of Congress, upon the various phases of the general question. Two of the "thirty-nine"—Rufus King and Charles Pinckney were members of that Congress. Mr. King steadily voted for slavery prohibition and against all compromises, while Mr. Pinckney as steadily voted against slavery prohibition, and against all compromises. By this, Mr. King showed that, in his understanding, no line dividing local from Federal authority, nor anything in the Constitution, was violated by Congress prohibiting slavery in Federal territory; while Mr. Pinckney, by his vote, showed that in his understanding there was some sufficient reason for opposing such prohibition in that case.

The cases I have mentioned are the only acts of the "thirty-nine," or of any of them, upon the direct issue, which I have been able to discover.

To enumerate the persons who thus acted, as being four in 1784, two in 1787, seventeen in 1789, three in 1798, two in 1804, and two in 1819-20—there would be thirty of them. But this would be counting, John Langdon, Roger Sherman, William Few, Rufus King, and George Read, each twice, and Abraham Baldwin three times. The true number of those of the "thirty-nine" whom I have shown to have acted upon the question which, by the text, they understood better than we, is twenty-three, leaving sixteen not shown to have acted upon it in any way.

Here, then, we have twenty-three out of our thirty-nine fathers "who framed the Government under which we live," who have, upon their official responsibility and their corporal oaths, acted upon the very question which the text affirms they "understood just as well, and even better than we do now"; and twenty-one of them—a clear majority of the whole "thirty-nine"—so acting upon it as to make them guilty of gross political impropriety and wilful perjury, if, in their understanding, any proper division between local and Federal authority, or anything in the Constitution they had made themselves, and sworn to support, forbade the Federal Government to control as to slavery in the Federal Territories. Thus the twenty-one acted; and, as actions speak louder than words, so actions under such responsibilities speak still louder.

Two of the twenty-three voted against Congressional prohibition of slavery in the Federal Territories, in the instances in which they acted upon the question. But for what reasons they so voted is not known. They may have done so because they thought a proper division of local from Federal authority, or some provision or principle of the Constitution, stood in the way; or they may, without any such question, have voted against the prohibition on what appeared to them to be sufficient grounds of expediency. No one who has sworn to support the Constitution can conscientiously vote for what he understands to be an unconstitutional measure, however expedient he may think it; but one may and ought to vote against a measure which he deems constitutional, if, at the same time, he deems it inexpedient. It therefore would be unsafe to set down even the two who voted against the prohibition as having done so because, in their understanding, any proper division of local from Federal authority, or anything in the Constitution, forbade the Federal Government to control as to slavery in Federal territory.

The remaining sixteen of the "thirty-nine," so far as I have discovered, have left no record of their understanding upon the direct question of Federal control on slavery in the Federal Territories. But there is much reason to believe that their understanding upon that question would not have appeared different from that of their twenty-three compeers, had it been manifested at all.

For the purpose of adhering rigidly to the text, I have purposely omitted whatever understanding may have been manifested by any person, however distinguished, other than the thirty-nine fathers who framed the original Constitution; and, for the same reason, I have also omitted whatever understanding may have been manifested by any of the "thirty nine" even on any other phase of the general question of slavery. If we should look into their acts and declarations on those other phases, as the foreign slave trade, and the morality and policy of slavery generally, it would appear to us that on the direct question of Federal control of slavery in Federal Territories, the sixteen, if they had acted at all, would probably have acted just as the twenty-three did. Among that sixteen were several of the most noted anti-slavery men of those times—as Dr. Franklin, Alexander Hamilton, and Gouverneur Morris while there was not one now known to have been otherwise, unless it may be John Rutledge, of South Carolina.

The sum of the whole is, that of our thirty-nine fathers who framed the original Constitution, twenty-one—a clear majority of the whole—certainly understood that no proper division of local from Federal authority, nor any part of the Constitution, forbade the Federal Government to control slavery in the Federal Territories; whilst all the rest probably had the same understanding. Such, unquestionably, was the understanding of our fathers who framed the original Constitution; and the text affirms that they understood the question "better than we."

But, so far, I have been considering the understanding of the question manifested by the framers of the original Constitution. In and by the original instrument, a mode was provided for amending it; and, as I have already stated, the present frame of "the Government under which we live" consists of that original, and twelve amendatory articles framed and adopted since. Those who now insist that Federal control of slavery in Federal Territories violates the Constitution, point us to the provisions which they suppose it thus violates; and, as I understand, they all fix upon provisions in these amendatory articles, and not in the original instrument. The Supreme Court, in the Dred Scott case, plant themselves upon the fifth amendment, which provides that no person shall be deprived of "life, liberty, or property without due process of law"; while Senator Douglas and his peculiar adherents plant themselves upon the tenth amendment, providing that "the powers not delegated to the United States by the Constitution" "are reserved to the States respectively, or to the people."

Now, it so happens that these amendments were framed by the first Congress which sat under the Constitution—the identical Congress which passed the act already mentioned, enforcing the prohibition of slavery in the Northwestern Territory. Not only was it the same Congress, but they were the identical same individual men who, at the same session, and at the same time within the session, had under consideration, and in progress toward maturity, these Constitutional amendments, and this act prohibiting slavery in all the territory the nation then owned. The Constitutional amendments were introduced before and passed after the act enforcing the Ordinance of '87; so that, during the whole pendency of the act to enforce the Ordinance, the Constitutional amendments were also pending.

The seventy-six members of that Congress, including sixteen of the framers of the original Constitution, as before stated, were pre-eminently

our fathers who framed that part of "the Government under which we live," which is now claimed as forbidding the Federal Government to control slavery in the Federal Territories.

Is it not a little presumptuous in any one at this day to affirm that the two things which that Congress deliberately framed, and carried to maturity at the same time, are absolutely inconsistent with each other? And does not such affirmation become impudently absurd when coupled with the other affirmation from the same mouth, that those who did the two things alleged to be inconsistent understood whether they really were inconsistent better than we—better than he who affirms that they are inconsistent?

It is surely safe to assume that the thirty-nine framers of the original Constitution, and the seventy-six members of the Congress which framed the amendments thereto, taken together, do certainly include those who may be fairly called "our fathers who framed the Government under which we live." And, so assuming, I defy any man to show that any one of them ever, in his whole life, declared that, in his understanding, any proper division of local from Federal authority, or any part of the Constitution, forbade the Federal Government to control as to slavery in the Federal Territories. I go a step further. I defy any one to show that any living man in the world ever did, prior to the beginning of the present century (and I might almost say prior to the beginning of the last half of the present century), declare that, in his understanding, any proper division of local from Federal authority, or any part of the Constitution, forbade the Federal Government to control as to slavery in the Federal Territories. To those who now so declare, I give not only "our fathers who framed the Government under which we live," but with them all other living men within the century in which it was framed, among whom to search, and they shall not be able to find the evidence of a single man agreeing with them.

Now and here let me guard a little against being misunderstood. I do not mean to say we are bound to follow implicitly in whatever our fathers did. To do so would be to discard all the lights of current experience to reject all progress, all improvement. What I do say is that, if we would supplant the opinions and policy of our fathers in any case, we should do so upon evidence so conclusive, and argument so clear, that even their great authority, fairly considered and weighed, cannot stand; and most surely not

in a case whereof we ourselves declare they understood the question better than we.

If any man at this day sincerely believes that proper division of local from Federal authority, or any part of the Constitution, forbids the Federal Government to control as to slavery in the Federal Territories, he is right to say so, and to enforce his position by all truthful evidence and fair argument which he can. But he has no right to mislead others who have less access to history, and less leisure to study it, into the false belief that "our fathers who framed the Government under which we live" were of the same opinion thus substituting falsehood and deception for truthful evidence and fair argument. If any man at this day sincerely believes "our fathers, who framed the Government under which we live," used and applied principles, in other cases, which ought to have led them to understand that a proper division of local from Federal authority, or some part of the Constitution, forbids the Federal Government to control as to slavery in the Federal Territories, he is right to say so. But he should, at the same time, brave the responsibility of declaring that, in his opinion, he understands their principles better than they did themselves; and especially should he not shirk that responsibility by asserting that they "understood the question just as well, and even better than we do now."

But enough! Let all who believe that "our fathers, who framed the Government under which we live, understood this question just as well, and even better than we do now," speak as they spoke, and act as they acted upon it. This is all Republicans ask—all Republicans desire—in relation to slavery. As those fathers marked it, so let it be again marked, as an evil not to be extended, but to be tolerated and protected only because of, and so far as, its actual presence among us makes that toleration and protection a necessity. Let all the guaranties those fathers gave it be not grudgingly, but fully and fairly maintained. For this Republicans contend, and with this, so far as I know or believe, they will be content.

And now, if they would listen—as I suppose they will not—I would address a few words to the Southern people.

I would say to them: You consider yourselves a reasonable and a just people; and I consider that in the general qualities of reason and justice you are not inferior to any other people. Still, when you speak of us Republicans, you do so only to denounce us as reptiles, or, at the best, as no

better than outlaws. You will grant a hearing to pirates or murderers, but nothing like it to "Black Republicans." In all your contentions with one another, each of you deems an unconditional condemnation of "Black Republicanism" as the first thing to be attended to. Indeed, such condemnation of us seems to be an indispensable prerequisite license, so to speak among you, to be admitted or permitted to speak at all: Now; can you, or not, be prevailed upon to pause, and to consider whether this is quite just to us, or even to yourselves? Bring forward your charges and specifications, and then be patient long enough to hear us deny or justify.

You say we are sectional. We deny it. That makes an issue; and the burden of proof is upon you. You produce your proof; and what is it? Why, that our party has no existence in your section—gets no votes in your section. The fact is substantially true; but does it prove the issue? If it does, then in case we should, without change of principle, begin to get votes in your section, we should thereby cease to be sectional. You cannot escape this conclusion; and yet, are you willing to abide by it? If you are, you will probably soon find that we have ceased to be sectional, for we shall get votes in your section this very year. You will then begin to discover, as the truth plainly is, that your proof, does not touch the issue. The fact that we get no votes in your section is a fact of your making, and not of ours. And if there be fault in that fact, that fault is primarily yours, and remains so until you show that we repel you by, some wrong principle or practice. If we do repel you by any wrong principle or practice, the fault is ours; but this brings you to where you ought to have started to a discussion of the right or wrong of our principle. If our principle, put in practice, would wrong your section for the benefit of ours, or for any other object, then our principle, and we with it, are sectional, and are justly opposed and denounced as such. Meet us, then, on the question of whether our principle, put in practice, would wrong your section; and so meet us as if it were possible that something may be said on our side. Do you accept the challenge? No! Then you really believe that the principle which "our fathers who framed the Government under which we live" thought so clearly right as to adopt it, and indorse it again and again, upon their official oaths, is in fact so clearly wrong as to demand your condemnation without a moment's consideration.

Some of you delight to flaunt in our faces the warning against sectional parties given by Washington in his Farewell Address. Less than eight years before Washington gave that warning, he had, as President of the United

States, approved and signed an act of Congress enforcing the prohibition of slavery in the Northwestern Territory, which act embodied the policy of the Government upon that subject up to, and at, the very moment he penned that warning; and about one year after he penned it, he wrote La Fayette that he considered that prohibition a wise measure, expressing in the same connection his hope that we should at some time have a confederacy of free States.

Bearing this in mind, and seeing that sectionalism has since arisen upon this same subject, is that warning a weapon in your hands against us, or in our hands against you? Could Washington himself speak, would he cast the blame of that sectionalism upon us, who sustain his policy, or upon you, who repudiate it? We respect that warning of Washington, and we commend it to you, together with his example pointing to the right application of it.

But you say you are conservative—eminently conservative—while we are revolutionary, destructive, or something, of the sort. What is conservatism? Is it not adherence to the old and tried, against a new and untried? We stick to, contend for, the identical old policy on the point in controversy which was adopted by "our fathers who framed the Government under which we live"; while you with one accord reject, and scout, and spit upon that old policy and insist upon substituting something new. True, you disagree among yourselves as to what that substitute shall be. You are divided on new propositions and plans, but you are unanimous in rejecting and denouncing the old policy of the fathers. Some of you are for reviving the foreign slave trade; some for a Congressional slave code for the Territories; some for Congress forbidding the Territories to prohibit slavery within their limits; some for maintaining slavery in the Territories through the judiciary; some for the "gur-reat pur-rinciple" that "if one man would enslave another, no third man should object," fantastically called "popular sovereignty"; but never a man among you in favor of Federal prohibition of slavery in Federal Territories, according to the practice of "our fathers who framed the Government under which we live." Not one of all your various plans can show a precedent or an advocate in the century within which our Government originated. Consider, then, whether your claim of conservatism for yourselves, and your charge of destructiveness against us, are based on the most clear and stable foundations.

Again: You say we have made the slavery question more prominent than it formerly was. We deny it. We admit that it is more prominent, but we deny that we made it so. It was not we, but you, who discarded the old policy of the fathers. We resisted and still resist your innovation; and thence comes the greater prominence of the question. Would you have that question reduced to its former proportions? Go back to that old policy. What has been will be again, under the same conditions. If you would have the peace of the old times, readopt the precepts and policy of the old times.

You charge that we stir up insurrections among your slaves. We deny it; and what is your proof? Harper's Ferry! John Brown!! John Brown was no Republican; and you have failed to implicate a single Republican in his Harper's Ferry enterprise. If any member of our party is guilty in that matter you know it or you do not know it. If you do know it, you are inexcusable for not designating the man and proving the fact. If you do not know it, you are inexcusable for asserting it, and especially for persisting in the assertion after you have tried and failed to make the proof. You need not be told that persisting in a charge which one does not know to be true is simply malicious slander.

Some of you admit that no Republican designedly aided or encouraged the Harper's Ferry affair, but still insist that our doctrines and declarations necessarily lead to such results. We do not believe it. We know we hold to no doctrine, and make no declaration, which were not held to and made by our fathers who framed the Government under which we live. You never dealt fairly by us in relation to this affair. When it occurred, some important State elections were near at hand, and you were in evident glee with the belief that, by charging the blame upon us, you could get an advantage of us in those elections. The elections came, and your expectations were not quite fulfilled. Every Republican man knew that, as to himself at least, your charge was a slander, and he was not much inclined by it to cast his vote in your favor. Republican doctrines and declarations are accompanied with a continued protest against any interference whatever with your slaves, or with you about your slaves. Surely, this does not encourage them to revolt. True, we do, in common with "our fathers, who framed the Government under which we live," declare our belief that slavery is wrong; but the slaves do not hear us declare even this. For any thing we say or do, the slaves would scarcely know there is a Republican party. I believe they would not, in fact, generally know it but for your misrepresentations of us

in their hearing. In your political contests among yourselves, each faction charges the other with sympathy with Black Republicanism; and then, to give point to the charge, defines Black Republicanism to simply be insurrection, blood, and thunder among the slaves.

Slave insurrections are no more common now than they were before the Republican party was organized. What induced the Southampton insurrection, twenty-eight years ago, in which, at least, three times as many lives were lost as at Harper's Ferry? You can scarcely stretch your very elastic fancy to the conclusion that Southampton was "got up by Black Republicanism." In the present state of things in the United States, I do not think a general or even a very extensive slave insurrection is possible. The indispensable concert of action cannot be attained. The slaves have no means of rapid communication; nor can incendiary freemen, black or white, supply it. The explosive materials are everywhere in parcels; but there neither are, nor can be supplied the indispensable connecting trains.

Much is said by Southern people about the affection of slaves for their masters and mistresses; and a part of it, at least, is true. A plot for an uprising could scarcely be devised and communicated to twenty individuals before some one of them, to save the life of a favorite master or mistress, would divulge it. This is the rule; and the slave revolution in Hayti was not an exception to it, but a case occurring under peculiar circumstances. The gunpowder plot of British history, though not connected with slaves, was more in point. In that case, only about twenty were admitted to the secret; and yet one of them, in his anxiety to save a friend, betrayed the plot to that friend, and, by consequence, averted the calamity. Occasional poisonings from the kitchen, and open or stealthy assassinations in the field, and local revolts, extending to a score or so, will continue to occur as the natural results of slavery; but no general insurrection of slaves, as I think, can happen in this country for a long time. Whoever much fears or much hopes for such an event will be alike disappointed.

In the language of Mr. Jefferson, uttered many years ago, "It is still in our power to direct the process of emancipation and deportation peaceably, and in such slow degrees as that the evil will wear off insensibly, and their places be, *pari passu*, filled up by free white laborers. If, on the contrary, it is left to force itself on, human nature must shudder at the prospect held up."

Mr. Jefferson did not mean to say, nor do I, that the power of emancipation is in the Federal Government. He spoke of Virginia; and, as to the power of emancipation, I speak of the slave holding States only. The Federal Government, however, as we insist, has the power of restraining the extension of the institution—the power to insure that a slave insurrection shall never occur on any American soil which is now free from slavery.

John Brown's effort was peculiar. It was not a slave insurrection. It was an attempt by white men to get up a revolt among slaves, in which the slaves refused to participate. In fact, it was so absurd that the slaves, with all their ignorance, saw plainly enough it could not succeed. That affair, in its philosophy, corresponds with the many attempts related in history at the assassination of kings and emperors. An enthusiast broods over the oppression of a people till he fancies himself commissioned by Heaven to liberate them. He ventures the attempt, which ends in little else than his own execution. Orsini's attempt on Louis Napoleon and John Brown's attempt at Harper's Ferry were, in their philosophy, precisely the same. The eagerness to cast blame on old England in the one case, and on New England in the other, does not disprove the sameness of the two things.

And how much would it avail you, if you could, by the use of John Brown, Helper's Book, and the like, break up the Republican organization? Human action can be modified to some extent, but human nature cannot be changed. There is a judgment and a feeling against slavery in this nation, which cast at least a million and a half of votes. You cannot destroy that judgment and feeling—that sentiment—by breaking up the political organization which rallies around it. You can scarcely scatter and disperse an army which has been formed into order in the face of your heaviest fire; but if you could, how much would you gain by forcing the sentiment which created it out of the peaceful channel of the ballot-box, into some other channel? What would that other channel probably be? Would the number of John Browns be lessened or enlarged by the operation?

But you will break up the Union rather than submit to a denial of your constitutional rights.

That has a somewhat reckless sound; but it would be palliated, if not fully justified, were we proposing, by the mere force of numbers, to deprive you of some right plainly written down in the Constitution. But we are proposing no such thing.

When you make these declarations, you have a specific and well-understood allusion to an assumed constitutional right of yours to take slaves into the Federal Territories, and to hold them there as property. But no such right is specifically written in the Constitution. That instrument is literally silent about any such right. We, on the contrary, deny that such a right has any existence in the Constitution, even by implication.

Your purpose, then, plainly stated, is that you will destroy the Government unless you be allowed to construe and enforce the Constitution as you please on all points in dispute between you and us. You will rule or ruin, in all events.

This, plainly stated, is your language. Perhaps you will say the Supreme Court has decided the disputed constitutional question in your favor. Not quite so. But, waiving the lawyer's distinction between dictum and decision, the court have decided the question for you in a sort of way. The court have substantially said it is your constitutional right to take slaves into the Federal Territories, and to hold them there as property. When I say, the decision was made in a sort of way, I mean it was made in a divided court, by a bare majority of the judges, and they not quite agreeing with one another in the reasons for making it; that it is so made as that its avowed supporters disagree with one another about its meaning, and that it was mainly based upon a mistaken statement of fact—the statement in the opinion that "the right of property in a slave is distinctly and expressly affirmed in the Constitution."

An inspection of the Constitution will show that the right of property in a slave is not "distinctly and expressly affirmed" in it. Bear in mind, the judges do not pledge their judicial opinion that such right is impliedly affirmed in the Constitution; but they pledge their veracity that it is "distinctly and expressly" affirmed there—"distinctly," that is, not mingled with anything else; "expressly," that is, in words meaning just that, without the aid of any inference, and susceptible of no other meaning.

If they had only pledged their judicial opinion that such right is affirmed in the instrument by implication, it would be open to others to show that neither the word "slave" nor "slavery" is to be found in the Constitution, nor the word "property" even, in any connection with language alluding to the things slave or slavery; and that wherever in that instrument the slave is alluded to, he is called a "person"; and wherever his master's legal right in

relation to him is alluded to, it is spoken of as "service or labor which may be due," as a debt payable in service or labor. Also, it would be open to show, by contemporaneous history, that this mode of alluding to slaves and slavery, instead of speaking of them, was employed on purpose to exclude from the Constitution the idea that there could be property in man.

To show all this, is easy and certain.

When this obvious mistake of the judges shall be brought to their notice, is it not reasonable to expect that they will withdraw the mistaken statement, and reconsider the conclusion based upon it?

And then it is to be remembered that "our fathers; who framed the Government under which we live",—the men who made the Constitution—decided this same constitutional question in our favor, long ago; decided it without division among themselves, when making the decision, without division among themselves about the meaning of it after it was made, and, so far as any evidence is left, without basing it upon any mistaken statement of facts.

Under all these circumstances, do you really feel yourselves justified to break up this Government unless such a court decision as yours is shall be at once submitted to as a conclusive and final rule of political action? But you will not abide the election of a Republican President! In that supposed event, you say, you will destroy the Union; and then, you say, the great crime of having destroyed it will be upon us! That is cool. A highwayman holds a pistol to my ear, and mutters through his teeth, "stand and deliver, or I shall kill you, and then you'll be a murderer!"

To be sure, what the robber demanded of me—my money was my own, and I had a clear right to keep it; but it was no more my own than my vote is my own; and the threat of death to me, to extort my money, and the threat of destruction to the Union, to extort my vote, can scarcely be distinguished in principle.

A few words now to Republicans: It is exceedingly desirable that all parts of this great confederacy shall be at peace and in harmony one with another. Let us Republicans do our part to have it so. Even though much provoked, let us do nothing through passion and ill temper. Even though the Southern people will not so much as listen to us, let us calmly consider their demands, and yield to them if, in our deliberate view of our duty, we possibly can. Judging by all they say and do, and by the subject and nature

of their controversy with us, let us determine, if we can, what will satisfy them.

Will they be satisfied if the Territories be unconditionally surrendered to them? We know they will not. In all their present complaints against us, the Territories are scarcely mentioned. Invasions and insurrections are the rage now. Will it satisfy them if, in the future, we have nothing to do with invasions and, insurrections? We know it will not. We so know because we know we never had anything to do with invasions and insurrections; and yet this total abstaining does not exempt us from the charge and the denunciation.

The question recurs, what will satisfy them? Simply this: We must not only let them alone, but we must, somehow, convince them that we do let them alone. This, we know by experience, is no easy task. We have been so trying to convince them from the very beginning of our organization, but with no success. In all our platforms and speeches we have constantly protested our purpose to let them alone; but this has had no tendency to convince them. Alike unavailing to convince them is the fact that they have never detected a man of us in any attempt to disturb them.

These natural and apparently adequate means all failing, what will convince them? This, and this only: cease to call slavery wrong, and join them in calling it right. And this must be done thoroughly—done in acts as well as in words. Silence will not be tolerated—we must place ourselves avowedly with them. Senator Douglas's new sedition law must be enacted and enforced, suppressing all declarations that slavery is wrong, whether made in politics, in presses, in pulpits; or in private. We must arrest and return their fugitive slaves with greedy pleasure. We must pull down our free State constitutions. The whole atmosphere must be disinfected from all taint of opposition to slavery, before they will cease to believe that all their troubles proceed from us.

I am quite aware they do not state their case precisely in this way. Most of them would probably say to us, "Let us alone, do nothing to us, and say what you please about slavery." But we do let them alone have never disturbed them—so that after all it is what we say which dissatisfies them. They will continue to accuse us of doing, until we cease saying.

I am also aware they have not as yet, in terms, demanded the overthrow of our free State constitutions. Yet those constitutions declare the wrong of

slavery, with more solemn emphasis than do all other sayings against it; and when all these other sayings shall have been silenced, the overthrow of these constitutions will be demanded, and nothing be left to resist the demand. It is nothing to the contrary, that they do not demand the whole of this just now. Demanding what they do, and for the reason they do, they can voluntarily stop nowhere short of this consummation. Holding, as they do, that slavery is morally right, and socially elevating, they cannot cease to demand a full national recognition of it, as a legal right and a social blessing.

Nor can we justifiably withhold this on any ground save our conviction that slavery is wrong. If slavery is right, all words, acts, laws, and constitutions against it are themselves wrong, and should be silenced and swept away. If it is right, we cannot justly object to its nationality its universality; if it is wrong, they cannot justly insist upon its extension—its enlargement. All they ask we could readily grant if we thought slavery right; all we ask they could as readily grant, if they thought it wrong. Their thinking it right and our thinking it wrong is the precise fact upon which depends the whole controversy. Thinking it right, as they do, they are not to blame for desiring its full recognition, as being right; but thinking it wrong, as we do, can we yield to them? Can we cast our votes with their view, and against our own? In view of our moral, social, and political responsibilities, can we do this? Wrong as we think slavery is, we can yet afford to let it alone where it is, because that much is due to the necessity arising from its actual presence in the nation; but can we, while our votes will prevent it, allow it to spread into the national Territories, and to overrun us here in these free States? If our sense of duty forbids this, then let us stand by our duty, fearlessly and effectively. Let us be diverted by none of those sophistical contrivances wherewith we are so industriously plied and belabored—contrivances such as groping for some middle ground between the right and the wrong, vain as the search for a man who should be neither a living man nor a dead man—such as a policy of "don't care" on a question about which all true men do care—such as Union appeals beseeching true Union men to yield to Disunionists, reversing the divine rule, and calling, not the sinners, but the righteous to repentance—such as invocations to Washington, imploring men to unsay what Washington said, and undo what Washington did.

Neither let us be slandered from our duty by false accusations against us, nor frightened from it by menaces of destruction to the Government nor of dungeons to ourselves. LET US HAVE FAITH THAT RIGHT MAKES MIGHT, AND IN THAT FAITH LET US, TO THE END, DARE TO DO OUR DUTY AS WE UNDERSTAND IT.

SPEECH AT NEW HAVEN, CONNECTICUT, MARCH 6, 1860

MR. PRESIDENT, AND FELLOW-CITIZENS OF NEW HAVEN:—If the Republican party of this nation shall ever have the national House entrusted to its keeping, it will be the duty of that party to attend to all the affairs of national housekeeping. Whatever matters of importance may come up, whatever difficulties may arise in its way of administration of the Government, that party will then have to attend to. It will then be compelled to attend to other questions, besides this question which now assumes an overwhelming importance—the question of slavery. It is true that in the organization of the Republican party this question of slavery was more important than any other: indeed, so much more important has it become that no more national question can even get a hearing just at present. The old question of tariff—a matter that will remain one of the chief affairs of national house-keeping to all time; the question of the management of financial affairs; the question of the disposition of the public domain how shall it be managed for the purpose of getting it well settled, and of making there the homes of a free and happy people? these will remain open and require attention for a great while yet, and these questions will have to be attended to by whatever party has the control of the Government. Yet, just now, they cannot even obtain a hearing, and I do not propose to detain you upon these topics or what sort of hearing they should have when opportunity shall come.

For, whether we will or not, the question of slavery is the question, the all-absorbing topic of the day. It is true that all of us—and by that I mean, not the Republican party alone, but the whole American people, here and elsewhere—all of us wish this question settled, wish it out of the way. It stands in the way, and prevents the adjustment, and the giving of necessary attention to other questions of national house-keeping. The people of the whole nation agree that this question ought to be settled, and yet it is not settled. And the reason is that they are not yet agreed how it shall be settled. All wish it done, but some wish one way and some another, and some a third, or fourth, or fifth; different bodies are pulling in different directions,

and none of them, having a decided majority, are able to accomplish the common object.

In the beginning of the year 1854, a new policy was inaugurated with the avowed object and confident promise that it would entirely and forever put an end to the slavery agitation. It was again and again declared that under this policy, when once successfully established, the country would be forever rid of this whole question. Yet under the operation of that policy this agitation has not only not ceased, but it has been constantly augmented. And this too, although, from the day of its introduction, its friends, who promised that it would wholly end all agitation, constantly insisted, down to the time that the Lecompton Bill was introduced, that it was working admirably, and that its inevitable tendency was to remove the question forever from the politics of the country. Can you call to mind any Democratic speech, made after the repeal of the Missouri Compromise, down to the time of the Lecompton Bill, in which it was not predicted that the slavery agitation was just at an end, that "the abolition excitement was played out," "the Kansas question was dead," "they have made the most they can out of this question and it is now forever settled"? But since the Lecompton Bill no Democrat, within my experience, has ever pretended that he could see the end. That cry has been dropped. They themselves do not pretend, now, that the agitation of this subject has come to an end yet.

The truth is that this question is one of national importance, and we cannot help dealing with it; we must do something about it, whether we will or not. We cannot avoid it; the subject is one we cannot avoid considering; we can no more avoid it than a man can live without eating. It is upon us; it attaches to the body politic as much and closely as the natural wants attach to our natural bodies. Now I think it important that this matter should be taken up in earnest, and really settled: And one way to bring about a true settlement of the question is to understand its true magnitude.

There have been many efforts made to settle it. Again and again it has been fondly hoped that it was settled; but every time it breaks out afresh, and more violently than ever. It was settled, our fathers hoped, by the Missouri Compromise, but it did not stay settled. Then the compromises of 1850 were declared to be a full and final settlement of the question. The two great parties, each in national convention, adopted resolutions declaring that the settlement made by the Compromise of 1850 was a finality that it would

last forever. Yet how long before it was unsettled again? It broke out again in 1854, and blazed higher and raged more furiously than ever before, and the agitation has not rested since.

These repeated settlements must have some faults about them. There must be some inadequacy in their very nature to the purpose to which they were designed. We can only speculate as to where that fault, that inadequacy, is, but we may perhaps profit by past experiences.

I think that one of the causes of these repeated failures is that our best and greatest men have greatly underestimated the size of this question. They have constantly brought forward small cures for great sores—plasters too small to cover the wound. That is one reason that all settlements have proved temporary—so evanescent.

Look at the magnitude of this subject: One sixth of our population, in round numbers—not quite one sixth, and yet more than a seventh,—about one sixth of the whole population of the United States are slaves. The owners of these slaves consider them property. The effect upon the minds of the owners is that of property, and nothing else it induces them to insist upon all that will favorably affect its value as property, to demand laws and institutions and a public policy that shall increase and secure its value, and make it durable, lasting, and universal. The effect on the minds of the owners is to persuade them that there is no wrong in it. The slaveholder does not like to be considered a mean fellow for holding that species of property, and hence, he has to struggle within himself and sets about arguing himself into the belief that slavery is right. The property influences his mind. The dissenting minister who argued some theological point with one of the established church was always met with the reply, "I can't see it so." He opened a Bible and pointed him a passage, but the orthodox minister replied, "I can't see it so." Then he showed him a single word—"Can you see that?" "Yes, I see it," was the reply. The dissenter laid a guinea over the word and asked, "Do you see it now?" So here. Whether the owners of this species of property do really see it as it is, it is not for me to say, but if they do, they see it as it is through two thousand millions of dollars, and that is a pretty thick coating. Certain it is that they do not see it as we see it. Certain it is that this two thousand millions of dollars, invested in this species of property, all so concentrated that the mind can grasp it at once—this immense pecuniary interest—has its influence upon their minds.

But here in Connecticut and at the North slavery does not exist, and we see it through no such medium.

To us it appears natural to think that slaves are human beings; men, not property; that some of the things, at least, stated about men in the Declaration of Independence apply to them as well as to us. I say we think, most of us, that this charter of freedom applies to the slaves as well as to ourselves; that the class of arguments put forward to batter down that idea are also calculated to break down the very idea of a free government, even for white men, and to undermine the very foundations of free society. We think slavery a great moral wrong, and, while we do not claim the right to touch it where it exists, we wish to treat it as a wrong in the Territories, where our votes will reach it. We think that a respect for ourselves, a regard for future generations and for the God that made us, require that we put down this wrong where our votes will properly reach it. We think that species of labor an injury to free white men—in short, we think slavery a great moral, social, and political evil, tolerable only because, and so far as, its actual existence makes it necessary to tolerate it, and that beyond that it ought to be treated as a wrong.

Now these two ideas, the property idea that slavery is right, and the idea that it is wrong, come into collision, and do actually produce that irrepressible conflict which Mr. Seward has been so roundly abused for mentioning. The two ideas conflict, and must conflict.

Again, in its political aspect, does anything in any way endanger the perpetuity of this Union but that single thing, slavery? Many of our adversaries are anxious to claim that they are specially devoted to the Union, and take pains to charge upon us hostility to the Union. Now we claim that we are the only true Union men, and we put to them this one proposition: Whatever endangers this Union, save and except slavery? Did any other thing ever cause a moment's fear? All men must agree that this thing alone has ever endangered the perpetuity of the Union. But if it was threatened by any other influence, would not all men say that the best thing that could be done, if we could not or ought not to destroy it, would be at least to keep it from growing any larger? Can any man believe, that the way to save the Union is to extend and increase the only thing that threatens the Union, and to suffer it to grow bigger and bigger?

Whenever this question shall be settled, it must be settled on some philosophical basis. No policy that does not rest upon some philosophical opinion can be permanently maintained. And hence there are but two policies in regard to slavery that can be at all maintained. The first, based on the property view that slavery is right, conforms to that idea throughout, and demands that we shall do everything for it that we ought to do if it were right. We must sweep away all opposition, for opposition to the right is wrong; we must agree that slavery is right, and we must adopt the idea that property has persuaded the owner to believe that slavery is morally right and socially elevating. This gives a philosophical basis for a permanent policy of encouragement.

The other policy is one that squares with the idea that slavery is wrong, and it consists in doing everything that we ought to do if it is wrong. Now, I don't wish to be misunderstood, nor to leave a gap down to be misrepresented, even. I don't mean that we ought to attack it where it exists. To me it seems that if we were to form a government anew, in view of the actual presence of slavery we should find it necessary to frame just such a government as our fathers did—giving to the slaveholder the entire control where the system was established, while we possessed the power to restrain it from going outside those limits. From the necessities of the case we should be compelled to form just such a government as our blessed fathers gave us; and, surely, if they have so made it, that adds another reason why we should let slavery alone where it exists.

If I saw a venomous snake crawling in the road, any man would say I might seize the nearest stick and kill it; but if I found that snake in bed with my children, that would be another question. I might hurt the children more than the snake, and it might bite them. Much more if I found it in bed with my neighbor's children, and I had bound myself by a solemn compact not to meddle with his children under any circumstances, it would become me to let that particular mode of getting rid of the gentleman alone. But if there was a bed newly made up, to which the children were to be taken, and it was proposed to take a batch of young snakes and put them there with them, I take it no man would say there was any question how I ought to decide!

That is just the case. The new Territories are the newly made bed to which our children are to go, and it lies with the nation to say whether they

shall have snakes mixed up with them or not. It does not seem as if there could be much hesitation what our policy should be!

Now I have spoken of a policy based on the idea that slavery is wrong, and a policy based on the idea that it is right. But an effort has been made for a policy that shall treat it as neither right nor wrong. It is based upon utter indifference. Its leading advocate [Douglas] has said, "I don't care whether it be voted up or down." "It is merely a matter of dollars and cents." "The Almighty has drawn a line across this continent, on one side of which all soil must forever be cultivated by slave labor, and on the other by free." "When the struggle is between the white man and the negro, I am for the white man; when it is between the negro and the crocodile, I am for the negro." Its central idea is indifference. It holds that it makes no more difference to us whether the Territories become free or slave States than whether my neighbor stocks his farm with horned cattle or puts in tobacco. All recognize this policy, the plausible sugar-coated name of which is "popular sovereignty."

This policy chiefly stands in the way of a permanent settlement of the question. I believe there is no danger of its becoming the permanent policy of the country, for it is based on a public indifference. There is nobody that "don't care." All the people do care one way or the other! I do not charge that its author, when he says he "don't care," states his individual opinion; he only expresses his policy for the government. I understand that he has never said as an individual whether he thought slavery right or wrong—and he is the only man in the nation that has not! Now such a policy may have a temporary run; it may spring up as necessary to the political prospects of some gentleman; but it is utterly baseless: the people are not indifferent, and it can therefore have no durability or permanence.

But suppose it could: Then it could be maintained only by a public opinion that shall say, "We don't care." There must be a change in public opinion; the public mind must be so far debauched as to square with this policy of caring not at all. The people must come to consider this as "merely a question of dollars and cents," and to believe that in some places the Almighty has made slavery necessarily eternal. This policy can be brought to prevail if the people can be brought round to say honestly, "We don't care"; if not, it can never be maintained. It is for you to say whether that can be done.

You are ready to say it cannot, but be not too fast! Remember what a long stride has been taken since the repeal of the Missouri Compromise! Do you know of any Democrat, of either branch of the party—do you know one who declares that he believes that the Declaration of Independence has any application to the negro? Judge Taney declares that it has not, and Judge Douglas even vilifies me personally and scolds me roundly for saying that the Declaration applies to all men, and that negroes are men. Is there a Democrat here who does not deny that the Declaration applies to the negro? Do any of you know of one? Well, I have tried before perhaps fifty audiences, some larger and some smaller than this, to find one such Democrat, and never yet have I found one who said I did not place him right in that. I must assume that Democrats hold that, and now, not one of these Democrats can show that he said that five years ago! I venture to defy the whole party to produce one man that ever uttered the belief that the Declaration did not apply to negroes, before the repeal of the Missouri Compromise! Four or five years ago we all thought negroes were men, and that when "all men" were named, negroes were included. But the whole Democratic party has deliberately taken negroes from the class of men and put them in the class of brutes. Turn it as you will it is simply the truth! Don't be too hasty, then, in saying that the people cannot be brought to this new doctrine, but note that long stride. One more as long completes the journey from where negroes are estimated as men to where they are estimated as mere brutes—as rightful property!

That saying "In the struggle between white men and the negro," etc., which I know came from the same source as this policy—that saying marks another step. There is a falsehood wrapped up in that statement. "In the struggle between the white man and the negro" assumes that there is a struggle, in which either the white man must enslave the negro or the negro must enslave the white. There is no such struggle! It is merely the ingenious falsehood to degrade and brutalize the negro. Let each let the other alone, and there is no struggle about it. If it was like two wrecked seamen on a narrow plank, when each must push the other off or drown himself, I would push the negro off or a white man either, but it is not; the plank is large enough for both. This good earth is plenty broad enough for white man and negro both, and there is no need of either pushing the other off.

So that saying, "In the struggle between the negro and the crocodile," etc., is made up from the idea that down where the crocodile inhabits, a

white man can't labor; it must be nothing else but crocodile or negro; if the negro does not the crocodile must possess the earth; in that case he declares for the negro. The meaning of the whole is just this: As a white man is to a negro, so is a negro to a crocodile; and as the negro may rightfully treat the crocodile, so may the white man rightfully treat the negro. This very dear phrase coined by its author, and so dear that he deliberately repeats it in many speeches, has a tendency to still further brutalize the negro, and to bring public opinion to the point of utter indifference whether men so brutalized are enslaved or not. When that time shall come, if ever, I think that policy to which I refer may prevail. But I hope the good freemen of this country will never allow it to come, and until then the policy can never be maintained.

Now consider the effect of this policy. We in the States are not to care whether freedom or slavery gets the better, but the people in the Territories may care. They are to decide, and they may think what they please; it is a matter of dollars and cents! But are not the people of the Territories detailed from the States? If this feeling of indifference this absence of moral sense about the question prevails in the States, will it not be carried into the Territories? Will not every man say, "I don't care, it is nothing to me"? If any one comes that wants slavery, must they not say, "I don't care whether freedom or slavery be voted up or voted down"? It results at last in nationalizing the institution of slavery. Even if fairly carried out, that policy is just as certain to nationalize slavery as the doctrine of Jeff Davis himself. These are only two roads to the same goal, and "popular sovereignty" is just as sure and almost as short as the other.

What we want, and all we want, is to have with us the men who think slavery wrong. But those who say they hate slavery, and are opposed to it, but yet act with the Democratic party—where are they? Let us apply a few tests. You say that you think slavery is wrong, but you denounce all attempts to restrain it. Is there anything else that you think wrong that you are not willing to deal with as wrong? Why are you so careful, so tender, of this one wrong and no other? You will not let us do a single thing as if it was wrong; there is no place where you will even allow it to be called wrong! We must not call it wrong in the free States, because it is not there, and we must not call it wrong in the slave States, because it is there; we must not call it wrong in politics because that is bringing morality into politics, and we must not call it wrong in the pulpit because that is bringing

politics into religion; we must not bring it into the Tract Society or the other societies, because those are such unsuitable places—and there is no single place, according to you, where this wrong thing can properly be called wrong!

Perhaps you will plead that if the people of the slave States should themselves set on foot an effort for emancipation, you would wish them success, and bid them God-speed. Let us test that: In 1858 the emancipation party of Missouri, with Frank Blair at their head, tried to get up a movement for that purpose, and having started a party contested the State. Blair was beaten, apparently if not truly, and when the news came to Connecticut, you, who knew that Frank Blair was taking hold of this thing by the right end, and doing the only thing that you say can properly be done to remove this wrong—did you bow your heads in sorrow because of that defeat? Do you, any of you, know one single Democrat that showed sorrow over that result? Not one! On the contrary every man threw up his hat, and hallooed at the top of his lungs, "Hooray for Democracy!"

Now, gentlemen, the Republicans desire to place this great question of slavery on the very basis on which our fathers placed it, and no other. It is easy to demonstrate that "our fathers, who framed this Government under which we live," looked on slavery as wrong, and so framed it and everything about it as to square with the idea that it was wrong, so far as the necessities arising from its existence permitted. In forming the Constitution they found the slave trade existing, capital invested in it, fields depending upon it for labor, and the whole system resting upon the importation of slave labor. They therefore did not prohibit the slave trade at once, but they gave the power to prohibit it after twenty years. Why was this? What other foreign trade did they treat in that way? Would they have done this if they had not thought slavery wrong?

Another thing was done by some of the same men who framed the Constitution, and afterwards adopted as their own the act by the first Congress held under that Constitution, of which many of the framers were members, that prohibited the spread of slavery into Territories. Thus the same men, the framers of the Constitution, cut off the supply and prohibited the spread of slavery, and both acts show conclusively that they considered that the thing was wrong.

If additional proof is wanted it can be found in the phraseology of the Constitution. When men are framing a supreme law and chart of government, to secure blessings and prosperity to untold generations yet to come, they use language as short and direct and plain as can be found, to express their meaning. In all matters but this of slavery the framers of the Constitution used the very clearest, shortest, and most direct language. But the Constitution alludes to slavery three times without mentioning it once. The language used becomes ambiguous, roundabout, and mystical. They speak of the "immigration of persons," and mean the importation of slaves, but do not say so. In establishing a basis of representation they say "all other persons," when they mean to say slaves—why did they not use the shortest phrase? In providing for the return of fugitives they say "persons held to service or labor." If they had said slaves it would have been plainer, and less liable to misconstruction. Why did n't they do it? We cannot doubt that it was done on purpose. Only one reason is possible, and that is supplied us by one of the framers of the Constitution—and it is not possible for man to conceive of any other—they expected and desired that the system would come to an end, and meant that when it did, the Constitution should not show that there ever had been a slave in this good free country of ours.

I will dwell on that no longer. I see the signs of approaching triumph of the Republicans in the bearing of their political adversaries. A great deal of their war with us nowadays is mere bushwhacking. At the battle of Waterloo, when Napoleon's cavalry had charged again and again upon the unbroken squares of British infantry, at last they were giving up the attempt, and going off in disorder, when some of the officers in mere vexation and complete despair fired their pistols at those solid squares. The Democrats are in that sort of extreme desperation; it is nothing else. I will take up a few of these arguments.

There is "the irrepressible conflict." How they rail at Seward for that saying! They repeat it constantly; and, although the proof has been thrust under their noses again and again that almost every good man since the formation of our Government has uttered that same sentiment, from General Washington, who "trusted that we should yet have a confederacy of free States," with Jefferson, Jay, Monroe, down to the latest days, yet they refuse to notice that at all, and persist in railing at Seward for saying it. Even Roger A. Pryor, editor of the *Richmond Enquirer*, uttered the same

sentiment in almost the same language, and yet so little offence did it give the Democrats that he was sent for to Washington to edit the States—the Douglas organ there—while Douglas goes into hydrophobia and spasms of rage because Seward dared to repeat it. This is what I call bushwhacking, a sort of argument that they must know any child can see through.

Another is John Brown: "You stir up insurrections, you invade the South; John Brown! Harper's Ferry!" Why, John Brown was not a Republican! You have never implicated a single Republican in that Harper's Ferry enterprise. We tell you that if any member of the Republican party is guilty in that matter, you know it or you do not know it. If you do know it, you are inexcusable not to designate the man and prove the fact. If you do not know it, you are inexcusable to assert it, and especially to persist in the assertion after you have tried and failed to make the proof. You need not be told that persisting in a charge which one does not know to be true is simply malicious slander. Some of you admit that no Republican designedly aided or encouraged the Harper's Ferry affair, but still insist that our doctrines and declarations necessarily lead to such results. We do not believe it. We know we hold to no doctrines, and make no declarations, which were not held to and made by our fathers who framed the Government 'under which we live, and we cannot see how declarations that were patriotic when they made them are villainous when we make them. You never dealt fairly by us in relation to that affair—and I will say frankly that I know of nothing in your character that should lead us to suppose that you would. You had just been soundly thrashed in elections in several States, and others were soon to come. You rejoiced at the occasion, and only were troubled that there were not three times as many killed in the affair. You were in evident glee; there was no sorrow for the killed nor for the peace of Virginia disturbed; you were rejoicing that by charging Republicans with this thing you might get an advantage of us in New York, and the other States. You pulled that string as tightly as you could, but your very generous and worthy expectations were not quite fulfilled. Each Republican knew that the charge was a slander as to himself at least, and was not inclined by it to cast his vote in your favor. It was mere bushwhacking, because you had nothing else to do. You are still on that track, and I say, go on! If you think you can slander a woman into loving you or a man into voting for you, try it till you are satisfied!

Another specimen of this bushwhacking, that "shoe strike." Now be it understood that I do not pretend to know all about the matter. I am merely going to speculate a little about some of its phases. And at the outset, I am glad to see that a system of labor prevails in New England under which laborers can strike when they want to, where they are not obliged to work under all circumstances, and are not tied down and obliged to labor whether you pay them or not! I like the system which lets a man quit when he wants to, and wish it might prevail everywhere. One of the reasons why I am opposed to slavery is just here. What is the true condition of the laborer? I take it that it is best for all to leave each man free to acquire property as fast as he can. Some will get wealthy. I don't believe in a law to prevent a man from getting rich; it would do more harm than good. So, while we do not propose any war upon capital, we do wish to allow the humblest man an equal chance to get rich with everybody else. When one starts poor, as most do in the race of life, free society is such that he knows he can better his condition; he knows that there is no fixed condition of labor for his whole life. I am not ashamed to confess that twenty-five years ago I was a hired laborer, mauling rails, at work on a flatboat—just what might happen to any poor man's son! I want every man to have a chance—and I believe a Black man is entitled to it—in which he can better his condition; when he may look forward and hope to be a hired laborer this year and the next, work for himself afterward, and finally to hire men to work for him! That is the system. Up here in New England, you have a soil that scarcely sprouts black-eyed beans, and yet where will you find wealthy men so wealthy, and poverty so rarely in extremity? There is not another such place on earth! I desire that if you get too thick here, and find it hard to better your condition on this soil, you may have a chance to strike and go somewhere else, where you may not be degraded, nor have your families corrupted, by forced rivalry with negro slaves. I want you to have a clean bed and no snakes in it! Then you can better your condition, and so it may go on and on in one endless round so long as man exists on the face of the earth!

Now, to come back to this shoe strike,—if, as the senator from Illinois asserts, this is caused by withdrawal of Southern votes, consider briefly how you will meet the difficulty. You have done nothing, and have protested that you have done nothing, to injure the South. And yet, to get back the shoe trade, you must leave off doing something which you are now doing. What is it? You must stop thinking slavery wrong! Let your

institutions be wholly changed; let your State constitutions be subverted; glorify slavery, and so you will get back the shoe trade—for what? You have brought owned labor with it, to compete with your own labor, to underwork you, and to degrade you! Are you ready to get back the trade on those terms?

But the statement is not correct. You have not lost that trade; orders were never better than now! Senator Mason, a Democrat, comes into the Senate in homespun, a proof that the dissolution of the Union has actually begun! but orders are the same. Your factories have not struck work, neither those where they make anything for coats, nor for pants nor for shirts, nor for ladies' dresses. Mr. Mason has not reached the manufacturers who ought to have made him a coat and pants! To make his proof good for anything he should have come into the Senate barefoot!

Another bushwhacking contrivance; simply that, nothing else! I find a good many people who are very much concerned about the loss of Southern trade. Now either these people are sincere or they are not. I will speculate a little about that. If they are sincere, and are moved by any real danger of the loss of Southern trade, they will simply get their names on the white list, and then, instead of persuading Republicans to do likewise, they will be glad to keep you away! Don't you see that they cut off competition? They would not be whispering around to Republicans to come in and share the profits with them. But if they are not sincere, and are merely trying to fool Republicans out of their votes, they will grow very anxious about your pecuniary prospects; they are afraid you are going to get broken up and ruined; they do not care about Democratic votes, oh, no, no, no! You must judge which class those belong to whom you meet: I leave it to you to determine from the facts.

Let us notice some more of the stale charges against Republicans. You say we are sectional. We deny it. That makes an issue; and the burden of proof is upon you. You produce your proof; and what is it? Why, that our party has no existence in your section—gets no votes in your section. The fact is substantially true; but does it prove the issue? If it does, then in case we should, without this change of principle, begin to get votes in your section, we should thereby cease to be sectional. You cannot escape this conclusion; and yet, are you willing to abide by it? If you are, you will probably soon find that we have ceased to be sectional, for we shall get votes in your section this very year. The fact that we get no votes in your section is a fact of your making and not of ours. And if there be fault in that fact, that fault is primarily yours, and remains so until you show that we repel you by some wrong principle or practice. If we ours; but this brings you to where you ought to have started—to a

discussion of the right or wrong of our principle. If our principle, put in practice, would wrong your section for the benefit of ours, or for any other object, then our principle, and we with it, are sectional, and are justly opposed and denounced as such. Meet us, then, on the question of whether our principle put in practice would wrong your section; and so meet it as if it were possible that something may be said on our side. Do you accept the challenge? No? Then you really believe that the principle which our fathers who framed the Government under which we live thought so clearly right as to adopt it, and indorse it again and again, upon their official oaths, is in fact so clearly wrong as to demand our condemnation without a moment's consideration. Some of you delight to flaunt in our faces the warning against sectional parties given by Washington in his Farewell Address. Less than eight years before Washington gave that warning, he had, as President of the United States, approved and signed an act of Congress enforcing the prohibition of slavery in the Northwestern Territory, which act embodied the policy of government upon that subject, up to and at the very moment he penned that warning; and about one year after he penned it he wrote La Fayette that he considered that prohibition a wise measure, expressing in the same connection his hope that we should sometime have a confederacy of free States.

Bearing this in mind, and seeing that sectionalism has since arisen upon this same subject, is that warning a weapon in your hands against us, or in our hands against you? Could Washington himself speak, would he cast the blame of that sectionalism upon us, who sustain his policy, or upon you, who repudiate it? We respect that warning of Washington, and we commend it to you, together with his example pointing to the right application of it.

But you say you are conservative—eminently conservative—while we are revolutionary, destructive, or something of the sort. What is conservatism? Is it not adherence to the old and tried, against the new and untried? We stick to, contend for, the identical old policy on the point in controversy which was adopted by our fathers who framed the Government under which we live; while you with one accord reject and scout and spit upon that old policy, and insist upon substituting something new.

True, you disagree among yourselves as to what that substitute shall be. You have considerable variety of new propositions and plans, but you are unanimous in rejecting and denouncing the old policy of the fathers. Some of you are for reviving the foreign slave-trade; some for a congressional slave code for the Territories; some for Congress forbidding the Territories to prohibit slavery within their limits; some for maintaining slavery in the Territories through the judiciary; some for the "gur-reat pur-rinciple" that if one man would enslave another, no third man should object—fantastically called "popular sovereignty." But never a man among you in favor of prohibition of slavery in Federal Territories, according to the practice of our fathers who framed the Government under which we live. Not one of all

your various plans can show a precedent or an advocate in the century within which our Government originated. And yet you draw yourselves up and say, "We are eminently conservative."

It is exceedingly desirable that all parts of this great confederacy shall be at peace, and in harmony one with another. Let us Republicans do our part to have it so. Even though much provoked, let us do nothing through passion and ill-temper. Even though the Southern people will not so much as listen to us, let us calmly consider their demands, and yield to them if, in our deliberate view of our duty, we possibly can. Judging by all they say and do, and by the subject and nature of their controversy with us, let us determine, if we can, what will satisfy them.

Will they be satisfied if the Territories be unconditionally surrendered to them? We know they will not. In all their present complaints against us, the Territories are scarcely mentioned. Invasions and insurrections are the rage now. Will it satisfy them, in the future, if we have nothing to do with invasions and insurrections? We know it will not. We so know because we know we never had anything to do with invasions and insurrections; and yet this total abstaining does not exempt us from the charge and the denunciation.

The question recurs, what will satisfy them? Simply this: we must not only let them alone, but we must, somehow, convince them that we do let them alone. This, we know by experience, is no easy task. We have been so trying to convince them, from the very beginning of our organization, but with no success. In all our platforms and speeches, we have constantly protested our purpose to let them alone; but this had no tendency to convince them. Alike unavailing to convince them is the fact that they have never detected a man of us in any attempt to disturb them.

These natural and apparently adequate means all failing, what will convince them? This, and this only: cease to call slavery wrong, and join them in calling it right. And this must be done thoroughly—done in acts as well as in words. Silence will not be tolerated—we must place ourselves avowedly with them. Douglas's new sedition law must be enacted and enforced, suppressing all declarations that slavery is wrong, whether made in politics, in presses, in pulpits, or in private. We must arrest and return their fugitive slaves with greedy pleasure. We must pull down our free State constitutions. The whole atmosphere must be disinfected of all taint of

opposition to slavery, before they will cease to believe that all their troubles proceed from us. So long as we call slavery wrong, whenever a slave runs away they will overlook the obvious fact that he ran away because he was oppressed, and declare he was stolen off. Whenever a master cuts his slaves with a lash, and they cry out under it, he will overlook the obvious fact that the negroes cry out because they are hurt, and insist that they were put up to it by some rascally abolitionist.

I am quite aware that they do not state their case precisely in this way. Most of them would probably say to us, "Let us alone, do nothing to us, and say what you please about slavery." But we do let them alone—have never disturbed them—so that, after all, it is what we say which dissatisfies them. They will continue to accuse us of doing, until we cease saying.

I am also aware that they have not as yet in terms demanded the overthrow of our free-State constitutions. Yet those constitutions declare the wrong of slavery with more solemn emphasis than do all other sayings against it; and when all these other sayings shall have been silenced, the overthrow of these constitutions will be demanded. It is nothing to the contrary that they do not demand the whole of this just now. Demanding what they do, and for the reason they do, they can voluntarily stop nowhere short of this consummation. Holding as they do that slavery is morally right, and socially elevating, they cannot cease to demand a full national recognition of it, as a legal right, and a social blessing.

Nor can we justifiably withhold this on any ground save our conviction that slavery is wrong. If slavery is right, all words, acts, laws, and constitutions against it are themselves wrong and should be silenced and swept away. If it is right, we cannot justly object to its nationality—its universality: if it is wrong, they cannot justly insist upon its extension—its enlargement. All they ask, we could readily grant, if we thought slavery right; all we ask, they could as readily grant, if they thought it wrong. Their thinking it right and our thinking it wrong is the precise fact on which depends the whole controversy. Thinking it right as they do, they are not to blame for desiring its full recognition, as being right; but, thinking it wrong, as we do, can we yield to them? Can we cast our votes with their view, and against our own? In view of our moral, social, and political responsibilities, can we do this?

Wrong as we think slavery is, we can yet afford to let it alone where it is because that much is due to the necessity arising from its actual presence in the nation; but can we, while our votes will prevent it, allow it to spread into the national Territories, and to overrun us here in these free States?

If our sense of duty forbids this, then let us stand by our duty, fearlessly and effectively. Let us be diverted by none of those sophistical contrivances wherewith we are so industriously plied and belabored—contrivances such as groping for some middle ground between the right and the wrong, vain as the search for a man who would be neither a living man nor a dead man—such as a policy of "don't care" on a question about which all free men do care—such as Union appeals beseeching true Union men to yield to Disunionists, reversing the divine rule, and caning, not the sinners, but the righteous to repentance—such as invocations of Washington, imploring men to unsay what Washington did.

Neither let us be slandered from our duty by false accusations against us, nor frightened from it by menaces of destruction to the Government, nor of dungeons to ourselves. Let us have faith that right makes might; and in that faith, let us, to the end, dare to do our duty as we understand it.

[As Mr. Lincoln concluded his address, there was witnessed the wildest scene of enthusiasm and excitement that has been in New Haven for years. The Palladium editorially says: "We give up most of our space to-day to a very full report of the eloquent speech of the HON. Abraham Lincoln, of Illinois, delivered last night at Union Hall."]

RESPONSE TO AN ELECTOR'S REQUEST FOR MONEY

TO ————— March 16, 1860

As to your kind wishes for myself, allow me to say I cannot enter the ring on the money basis—first, because in the main it is wrong; and secondly, I have not and cannot get the money.

I say, in the main, the use of money is wrong; but for certain objects in a political contest, the use of some is both right and indispensable. With me, as with yourself, the long struggle has been one of great pecuniary loss.

I now distinctly say this—if you shall be appointed a delegate to Chicago, I will furnish one hundred dollars to bear the expenses of the trip.

Your friend as ever,

A. LINCOLN.

[Extract from a letter to a Kansas delegate.]

TO J. W. SOMERS.

SPRINGFIELD, March 17, 1860

JAMES W. SOMERS, Esq.

DEAR SIR:—Reaching home three days ago, I found your letter of February 26th. Considering your difficulty of hearing, I think you had better settle in Chicago, if, as you say, a good man already in fair practice there will take you into partnership. If you had not that difficulty, I still should think it an even balance whether you would not better remain in Chicago, with such a chance for copartnership.

If I went west, I think I would go to Kansas, to Leavenworth or Atchison. Both of them are and will continue to be fine growing places.

I believe I have said all I can, and I have said it with the deepest interest for your welfare.

Yours truly,

A. LINCOLN.

ACCUSATION OF HAVING BEEN PAID FOR A POLITICAL SPEECH

TO C. F. MCNEIL.

SPRINGFIELD, April 6, 1860

C. F. MCNEIL, Esq.

DEAR SIR:—Reaching home yesterday, I found yours of the 23d March, inclosing a slip from The Middleport Press. It is not true that I ever charged anything for a political speech in my life; but this much is true: Last October I was requested by letter to deliver some sort of speech in Mr. Beecher's church, in Brooklyn—two hundred dollars being offered in the first letter. I wrote that I could do it in February, provided they would take a political speech if I could find time to get up no other. They agreed; and subsequently I informed them the speech would have to be a political one. When I reached New York, I for the first time learned that the place was changed to "Cooper Institute." I made the speech, and left for New Hampshire, where I have a son at school, neither asking for pay nor having any offered me. Three days after a check for two hundred dollars was sent to me at New Hampshire; and I took it, and did not know it was wrong. My understanding now is—though I knew nothing of it at the time—that they did charge for admittance to the Cooper Institute, and that they took in more than twice two hundred dollars.

I have made this explanation to you as a friend; but I wish no explanation made to our enemies. What they want is a squabble and a fuss, and that they can have if we explain; and they cannot have it if we don't.

When I returned through New York from New England, I was told by the gentlemen who sent me the Check that a drunken vagabond in the club, having learned something about the two hundred dollars, made the exhibition out of which The Herald manufactured the article quoted by The Press of your town.

My judgment is, and therefore my request is, that you give no denial and no explanation.

Thanking you for your kind interest in the matter, I remain, Yours truly,
A. LINCOLN.

TO H. TAYLOR.

SPRINGFIELD, ILL., April 21, 1860.

HAWKINS TAYLOR, Esq.

DEAR SIR:—Yours of the 15th is just received. It surprises me that you have written twice, without receiving an answer. I have answered all I ever received from you; and certainly one since my return from the East.

Opinions here, as to the prospect of Douglas being nominated, are quite conflicting—some very confident he will, and others that he will not be. I think his nomination possible, but that the chances are against him.

I am glad there is a prospect of your party passing this way to Chicago. Wishing to make your visit here as pleasant as we can, we wish you to notify us as soon as possible whether you come this way, how many, and when you will arrive.

Yours very truly,

A. LINCOLN

**TELEGRAM TO A MEMBER OF THE
ILLINOIS DELEGATION**

**AT THE CHICAGO CONVENTION. SPRINGFIELD, May
17? 1860.**

I authorize no bargains and will be bound by none.

A. LINCOLN.

**REPLY TO THE COMMITTEE SENT BY THE
CHICAGO CONVENTION TO INFORM
LINCOLN OF HIS NOMINATION,**

MAY 19, 1860.

Mr. CHAIRMAN AND GENTLEMEN OF THE COMMITTEE:—I tender to you, and through you to the Republican National Convention, and all the people represented in it, my profoundest thanks for the high honor done me, which you now formally announce. Deeply and even painfully sensible of the great responsibility which is inseparable from this high honor—a responsibility which I could almost wish had fallen upon some one of the far more eminent men and experienced statesmen whose distinguished names were before the convention—I shall, by your leave, consider more fully the resolutions of the convention, denominated their platform, and without any unnecessary or unreasonable delay respond to you, Mr. Chairman, in writing—not doubting that the platform will be found satisfactory, and the nomination gratefully accepted.

And now I will not longer defer the pleasure of taking you, and each of you, by the hand.

ACCEPTANCE OF NOMINATION AS REPUBLICAN CANDIDATE FOR PRESIDENT OF THE UNITED STATES

TO GEORGE ASHMUN AND OTHERS.

SPRINGFIELD ILLINOIS, May 23, 1860

HON. GEORGE ASHMUN, President of Republican National Convention.

SIR:—I accept the nomination tendered me by the convention over which you presided, and of which I am formally apprised in the letter of yourself and others, acting as a committee of the convention for that purpose.

The declaration of principles and sentiments which accompanies your letter meets my approval; and it shall be my care not to violate or disregard it in any part.

Imploring the assistance of Divine Providence, and with due regard to the views and feelings of all who were represented in the convention, to the rights of all the States and Territories and people of the nation, to the inviolability of the Constitution, and the perpetual union, harmony, and prosperity of all—I am most happy to co-operate for the practical success of the principles declared by the convention.

Your obliged friend and fellow-citizen,

A. LINCOLN.

To C. B. SMITH.

SPRINGFIELD, ILL., May 26, 1860.

HON. C. B. SMITH.

MY DEAR SIR:-Yours of the 21st was duly received, but have found no time until now to say a word in the way of answer. I am indeed much indebted to Indiana; and, as my home friends tell me, much to you personally. Your saying, you no longer consider it a doubtful State is very gratifying. The thing starts well everywhere—too well, I almost fear, to last. But we are in, and stick or go through must be the word.

Let me hear from Indiana occasionally.

Your friend, as ever,

A. LINCOLN.

FORM OF REPLY PREPARED BY MR. LINCOLN,

WITH WHICH HIS PRIVATE SECRETARY WAS INSTRUCTED TO
ANSWER A NUMEROUS CLASS OF LETTERS IN THE CAMPAIGN
OF 1860.

(Doctrine.)

SPRINGFIELD, ILLINOIS, ———, 1860

DEAR SIR:—Your letter to Mr. Lincoln of and by which you seek to obtain his opinions on certain political points, has been received by him. He has received others of a similar character, but he also has a greater number of the exactly opposite character. The latter class beseech him to write nothing whatever upon any point of political doctrine. They say his positions were well known when he was nominated, and that he must not now embarrass the canvass by undertaking to shift or modify them. He regrets that he cannot oblige all, but you perceive it is impossible for him to do so.

Yours, etc.,

JNO. J. NICOLAY.

TO E. B. WASHBURN.

SPRINGFIELD, ILLINOIS, MAY 26, 1860

HON. E. B. WASHBURN.

MY DEAR SIR:—I have several letters from you written since the nomination, but till now have found no moment to say a word by way of answer. Of course I am glad that the nomination is well received by our friends, and I sincerely thank you for so informing me. So far as I can learn, the nominations start well everywhere; and, if they get no back-set, it would seem as if they are going through. I hope you will write often; and as you write more rapidly than I do, don't make your letters so short as mine.

Yours very truly,

A. LINCOLN.

TO S. HAYCRAFT.

SPRINGFIELD, ILL., June 4, 1860.

HON. SAMUEL HAYCRAFT.

MY DEAR SIR:—Like yourself I belonged to the old Whig party from its origin to its close. I never belonged to the American party organization, nor ever to a party called a Union party; though I hope I neither am or ever have been less devoted to the Union than yourself or any other patriotic man.

Yours very truly,

A. LINCOLN.

ABRAHAM OR "ABRAM"

TO G. ASHMUN.

SPRINGFIELD, ILL. June 4, 1860

HON. GEORGE ASHMUN.

MY DEAR SIR:—It seems as if the question whether my first name is "Abraham" or "Abram" will never be settled. It is "Abraham," and if the letter of acceptance is not yet in print, you may, if you think fit, have my signature thereto printed "Abraham Lincoln." Exercise your judgment about this.

Yours as ever,

A. LINCOLN.

UNAUTHORIZED BIOGRAPHY

TO S. GALLOWAY.

SPRINGFIELD, ILL., June 19, 1860

HON. SAM'L GALLOWAY.

MY DEAR SIR:—Your very kind letter of the 15th is received. Messrs. Follett, Foster, & Co.'s Life of me is not by my authority; and I have scarcely been so much astounded by anything, as by their public announcement that it is authorized by me. They have fallen into some strange misunderstanding. I certainly knew they contemplated publishing a biography, and I certainly did not object to their doing so, upon their own responsibility. I even took pains to facilitate them. But, at the same time, I made myself tiresome, if not hoarse, with repeating to Mr. Howard, their only agent seen by me, my protest that I authorized nothing—would be responsible for nothing. How they could so misunderstand me, passes comprehension. As a matter wholly my own, I would authorize no biography, without time and opportunity [sic] to carefully examine and consider every word of it and, in this case, in the nature of things, I can have no such time and Opportunity [sic]. But, in my present position, when, by the lessons of the past, and the united voice of all discreet friends, I can neither write nor speak a word for the public, how dare I to send forth, by my authority, a volume of hundreds of pages, for adversaries to make points upon without end? Were I to do so, the convention would have a right to re-assemble and substitute another name for mine.

For these reasons, I would not look at the proof sheets—I am determined to maintain the position of [sic] truly saying I never saw the proof sheets, or any part of their work, before its publication.

Now, do not mistake me—I feel great kindness for Messrs. F., F., & Co.—do not think they have intentionally done wrong. There may be nothing wrong in their proposed book—I sincerely hope there will not. I barely suggest that you, or any of the friends there, on the party account, look it

over, and exclude what you may think would embarrass the party bearing in mind, at all times, that I authorize nothing—will be responsible for nothing.

Your friend, as ever,

A. LINCOLN.

[The custom then, and it may have been a good one, was for the Presidential candidate to do no personal canvassing or speaking—or as we have it now "running for election." He stayed at home and kept his mouth shut. Ed.]

TO HANNIBAL HAMLIN.

SPRINGFIELD, ILLINOIS, July 18, 1860.

HON. HANNIBAL HAMLIN. MY DEAR SIR:—It appears to me that you and I ought to be acquainted, and accordingly I write this as a sort of introduction of myself to you. You first entered the Senate during the single term I was a member of the House of Representatives, but I have no recollection that we were introduced. I shall be pleased to receive a line from you.

The prospect of Republican success now appears very flattering, so far as I can perceive. Do you see anything to the contrary?

Yours truly,

A. LINCOLN.

TO A. JONAS.

(Confidential.) SPRINGFIELD, ILLINOIS, JULY 21, 1860.

HON. A. JONAS.

MY DEAR SIR:—Yours of the 20th is received. I suppose as good or even better men than I may have been in American or Know-Nothing lodges; but in point of fact, I never was in one at Quincy or elsewhere. I was never in Quincy but one day and two nights while Know-Nothing lodges were in existence, and you were with me that day and both those nights. I had never been there before in my life, and never afterward, till the joint debate with Douglas in 1858. It was in 1854 when I spoke in some hall there, and after the speaking, you, with others, took me to an oyster-saloon, passed an hour there, and you walked with me to, and parted with me at, the Quincy House, quite late at night. I left by stage for Naples before daylight in the morning, having come in by the same route after dark the evening, previous to the speaking, when I found you waiting at the Quincy House to meet me. A few days after I was there, Richardson, as I understood, started this same story about my having been in a Know-Nothing lodge. When I heard of the charge, as I did soon after; I taxed my recollection for some incident which could have suggested it; and I remembered that on parting with you the last night I went to the office of the hotel to take my stage-passage for the morning, was told that no stage-office for that line was kept there, and that I must see the driver before retiring, to insure his calling for me in the morning; and a servant was sent with me to find the driver, who, after taking me a square or two, stopped me, and stepped perhaps a dozen steps farther, and in my hearing called to some one, who answered him, apparently from the upper part of a building, and promised to call with the stage for me at the Quincy House. I returned, and went to bed, and before day the stage called and took me. This is all.

That I never was in a Know-Nothing lodge in Quincy, I should expect could be easily proved by respectable men who were always in the lodges and never saw me there. An affidavit of one or two such would put the matter at rest.

And now a word of caution. Our adversaries think they can gain a point if they could force me to openly deny the charge, by which some degree of offence would be given to the Americans. For this reason it must not publicly appear that I am paying any attention to the charge.

Yours truly,

A. LINCOLN.

TO JOHN B. FRY.

SPRINGFIELD, ILLINOIS, August 15, 1860.

MY DEAR SIR:—Yours of the 9th, inclosing the letter of HON. John Minor Botts, was duly received. The latter is herewith returned according to your request. It contains one of the many assurances I receive from the South, that in no probable event will there be any very formidable effort to break up the Union. The people of the South have too much of good sense and good temper to attempt the ruin of the government rather than see it administered as it was administered by the men who made it. At least so I hope and believe. I thank you both for your own letter and a sight of that of Mr. Botts.

Yours very truly,

A. LINCOLN.

TO THURLOW WEED

SPRINGFIELD, ILL. August 17 1860.

MY DEAR SIR:—Yours of the 13th was received this morning. Douglas is managing the Bell element with great adroitness. He had his men in Kentucky to vote for the Bell candidate, producing a result which has badly alarmed and damaged Breckenridge, and at the same time has induced the Bell men to suppose that Bell will certainly be President, if they can keep a few of the Northern States away from us by throwing them to Douglas. But you, better than I, understand all this.

I think there will be the most extraordinary effort ever made to carry New York for Douglas. You and all others who write me from your State think the effort cannot succeed, and I hope you are right. Still, it will require close watching and great efforts on the other side.

Herewith I send you a copy of a letter written at New York, which sufficiently explains itself, and which may or may not give you a valuable hint. You have seen that Bell tickets have been put on the track both here and in Indiana. In both cases the object has been, I think, the same as the Hunt movement in New York—to throw States to Douglas. In our State, we know the thing is engineered by Douglas men, and we do not believe they can make a great deal out of it.

Yours very truly,

A. LINCOLN.

SLOW TO LISTEN TO CRIMINATIONS

TO HON. JOHN _____

(Private.)

SPRINGFIELD, ILL., Aug. 31, 1860

MY DEAR SIR:—Yours of the 27th is duly received. It consists almost exclusively of a historical detail of some local troubles, among some of our friends in Pennsylvania; and I suppose its object is to guard me against forming a prejudice against Mr. McC———, I have not heard near so much upon that subject as you probably suppose; and I am slow to listen to criminations among friends, and never expose their quarrels on either side. My sincere wish is that both sides will allow bygones to be bygones, and look to the present and future only.

Yours very truly,

A. LINCOLN.

TO HANNIBAL HAMLIN

SPRINGFIELD, ILLINOIS, September 4, 1860

HON. HANNIBAL HAMLIN.

MY DEAR SIR:—I am annoyed some by a letter from a friend in Chicago, in which the following passage occurs: "Hamlin has written Colfax that two members of Congress will, he fears, be lost in Maine, the first and sixth districts; and that Washburne's majority for governor will not exceed six thousand."

I had heard something like this six weeks ago, but had been assured since that it was not so. Your secretary of state,—Mr. Smith, I think,—whom you introduced to me by letter, gave this assurance; more recently, Mr. Fessenden, our candidate for Congress in one of those districts, wrote a relative here that his election was sure by at least five thousand, and that Washburne's majority would be from 14,000 to 17,000; and still later, Mr. Fogg, of New Hampshire, now at New York serving on a national committee, wrote me that we were having a desperate fight in Maine, which would end in a splendid victory for us.

Such a result as you seem to have predicted in Maine, in your letter to Colfax, would, I fear, put us on the down-hill track, lose us the State elections in Pennsylvania and Indiana, and probably ruin us on the main turn in November.

You must not allow it.

Yours very truly,

A. LINCOLN.

TO E. B. WASHBURNE.

SPRINGFIELD, ILLINOIS, September 9, 1860

HON. E. B. WASHBURNE.

MY DEAR SIR: Yours of the 5th was received last evening. I was right glad to see it. It contains the freshest "posting" which I now have. It relieved me some from a little anxiety I had about Maine. Jo Medill, on August 30th, wrote me that Colfax had a letter from Mr. Hamlin saying we were in great danger of losing two members of Congress in Maine, and that your brother would not have exceeding six thousand majority for Governor. I addressed you at once, at Galena, asking for your latest information. As you are at Washington, that letter you will receive some time after the Maine election.

Yours very truly,

A. LINCOLN.

TO W. H. HERNDON.

SPRINGFIELD, ILL., OCTOBER 10, 1860

DEAR WILLIAM:—I cannot give you details, but it is entirely certain that Pennsylvania and Indiana have gone Republican very largely. Pennsylvania 25,000, and Indiana 5000 to 10,000. Ohio of course is safe.

Yours as ever,

A. LINCOLN.

TO L. M. BOND.

SPRINGFIELD, ILL., October 15, 1860

L. MONTGOMERY BOND, Esq.

MY DEAR SIR: I certainly am in no temper and have no purpose to embitter the feelings of the South, but whether I am inclined to such a course as would in fact embitter their feelings you can better judge by my published speeches than by anything I would say in a short letter if I were inclined now, as I am not, to define my position anew.

Yours truly,

A. LINCOLN.

LETTER SUGGESTING A BEARD

TO MISS GRACE BEDELL, RIPLEY N.Y.

SPRINGFIELD, ILL., October 19, 1860

MISS GRACE BEDELL.

MY DEAR LITTLE MISS:—Your very agreeable letter of the 15th is received. I regret the necessity of saying I have no daughter. I have three sons—one seventeen, one nine, and one seven. They with their mother constitute my whole family. As to the whiskers, as I have never worn any, do you not think that people would call it a piece of silly affectation were I to begin wearing them now?

I am your true friend and sincere well-wisher,

A. LINCOLN.

EARLY INFORMATION ON ARMY DEFECTION IN SOUTH

TO D. HUNTER.

(Private and Confidential.) SPRINGFIELD, ILLINOIS, October 26, 1860
MAJOR DAVID HUNTER

MY DEAR SIR:—Your very kind letter of the 20th was duly received, for which please accept my thanks. I have another letter, from a writer unknown to me, saying the officers of the army at Fort Kearny have determined in case of Republican success at the approaching Presidential election, to take themselves, and the arms at that point, south, for the purpose of resistance to the government. While I think there are many chances to one that this is a humbug, it occurs to me that any real movement of this sort in the Army would leak out and become known to you. In such case, if it would not be unprofessional or dishonorable (of which you are to be judge), I shall be much obliged if you will apprise me of it.

Yours very truly,
A. LINCOLN.

TO HANNIBAL HAMLIN

(Confidential.) SPRINGFIELD. ILLINOIS, November 8, 1860

HON. HANNIBAL HAMLIN.

MY DEAR SIR:—I am anxious for a personal interview with you at as early a day as possible. Can you, without much inconvenience, meet me at Chicago? If you can, please name as early a day as you conveniently can, and telegraph me, unless there be sufficient time before the day named to communicate by mail.

Yours very truly,

A. LINCOLN.

TO SAMUEL HAYCRAFT.

(Private and Confidential.)

SPRINGFIELD, ILL., Nov.13, 1860

HON. SAMUEL HAYCRAFT.

MY DEAR SIR:—Yours of the 9th is just received. I can only answer briefly. Rest fully assured that the good people of the South who will put themselves in the same temper and mood towards me which you do will find no cause to complain of me.

Yours very truly,

A. LINCOLN. CELEBRATION OF LINCOLN'S ELECTION,
REMARKS AT THE MEETING AT SPRINGFIELD, ILLINOIS
NOVEMBER 20, 1860

FRIENDS AND FELLOW-CITIZENS:—Please excuse me on this occasion from making a speech. I thank you in common with all those who have thought fit by their votes to indorse the Republican cause. I rejoice with you in the success which has thus far attended that cause. Yet in all our rejoicings let us neither express nor cherish any hard feelings toward any citizen who by his vote has differed with us. Let us at all times remember that all American citizens are brothers of a common country, and should dwell together in the bonds of fraternal feeling. Let me again beg you to accept my thanks, and to excuse me from further speaking at this time.

TO ALEXANDER H. STEPHENS

SPRINGFIELD, ILL. NOV. 30, 1860

HON. A. H. STEPHENS.

MY DEAR SIR:—I have read in the newspapers your speech recently delivered (I think) before the Georgia Legislature, or its assembled members. If you have revised it, as is probable, I shall be much obliged if you will send me a copy.

Yours very truly,

A. LINCOLN.

TO HANNIBAL HAMLIN

(Private)

SPRINGFIELD, ILLINOIS, December 8, 1860

HON. HANNIBAL HAMLIN.

DEAR SIR:—Yours of the 4th was duly received. The inclosed to Governor Seward covers two notes to him, copies of which you find open for your inspection. Consult with Judge Trumbull; and if you and he see no reason to the contrary, deliver the letter to Governor Seward at once. If you see reason to the contrary write me at once.

I have an intimation that Governor Banks would yet accept a place in the Cabinet. Please ascertain and write me how this is,

Yours very truly,

A. LINCOLN.

BLOCKING "COMPROMISE" ON SLAVERY ISSUE

TO E. B. WASHBURNE

(Private and Confidential.)

SPRINGFIELD, ILL., December 13, 1860

HON. E. B. WASHBURNE.

MY DEAR SIR:—Your long letter received. Prevent, as far as possible, any of our friends from demoralizing themselves and our cause by entertaining propositions for compromise of any sort on "slavery extension." There is no possible compromise upon it but which puts us under again, and leaves all our work to do over again. Whether it be a Missouri line or Eli Thayer's popular sovereignty, it is all the same. Let either be done, and immediately filibustering and extending slavery recommences. On that point hold firm, as with a chain of steel.

Yours as ever,

A. LINCOLN.

OPINION ON SECESSION

TO THURLOW WEED

SPRINGFIELD, ILLINOIS, DECEMBER 17, 1860

MY DEAR SIR:—Yours of the 11th was received two days ago. Should the convocation of governors of which you speak seem desirous to know my views on the present aspect of things, tell them you judge from my speeches that I will be inflexible on the territorial question; but I probably think either the Missouri line extended, or Douglas's and Eli Thayer's popular sovereignty would lose us everything we gain by the election; that filibustering for all south of us and making slave States of it would follow in spite of us, in either case; also that I probably think all opposition, real and apparent, to the fugitive slave clause of the Constitution ought to be withdrawn.

I believe you can pretend to find but little, if anything, in my speeches, about secession. But my opinion is that no State can in any way lawfully get out of the Union without the consent of the others; and that it is the duty of the President and other government functionaries to run the machine as it is.

Truly yours,

A. LINCOLN.

SOME FORTS SURRENDERED TO THE SOUTH

TO E. B. WASHBURNE

(Confidential)

SPRINGFIELD, ILLINOIS, December 21, 1860

HON. E. B. WASHBURNE.

MY DEAR SIR:—Last night I received your letter giving an account of your interview with General Scott, and for which I thank you. Please present my respects to the General, and tell him, confidentially, I shall be obliged to him to be as well prepared as he can to either hold or retake the forts, as the case may require, at and after the inauguration.

Yours as ever,

A. LINCOLN.

TO A. H. STEPHENS.

**(For your own eye only) SPRINGFIELD, ILLINOIS,
DECEMBER 22, 1860**

HON. ALEXANDER STEVENS

MY DEAR SIR:—Your obliging answer to my short note is just received, and for which please accept my thanks. I fully appreciate the present peril the country is in, and the weight of responsibility on me. Do the people of the South really entertain fear that a Republican administration would, directly or indirectly, interfere with the slaves, or with them about the slaves? If they do, I wish to assure you, as once a friend, and still, I hope, not an enemy, that there is no cause for such fears. The South would be in no more danger in this respect than it was in the days of Washington. I suppose, however, this does not meet the case. You think slavery is right and ought to be extended, while we think it is wrong and ought to be restricted. That, I suppose, is the rub. It certainly is the only substantial difference between us.

Yours very truly,

A. LINCOLN.

SUPPORT OF THE FUGITIVE SLAVE CLAUSE

MEMORANDUM

December [22?], 1860

Resolved: That the fugitive slave clause of the Constitution ought to be enforced by a law of Congress, with efficient provisions for that object, not obliging private persons to assist in its execution, but punishing all who resist it, and with the usual safeguards to liberty, securing free men against being surrendered as slaves.

That all State laws, if there be such, really or apparently in conflict with such law of Congress, ought to be repealed; and no opposition to the execution of such law of Congress ought to be made.

That the Federal Union must be preserved.

Prepared for the consideration of the Republican members of the Senate Committee of Thirteen.

TO D. HUNTER.

(Confidential.)

SPRINGFIELD, ILLINOIS December 22, 1860

MAJOR DAVID HUNTER.

MY DEAR SIR:—I am much obliged by the receipt of yours of the 18th. The most we can do now is to watch events, and be as well prepared as possible for any turn things may take. If the forts fall, my judgment is that they are to be retaken. When I shall determine definitely my time of starting to Washington, I will notify you.

Yours truly,

A. LINCOLN.

TO I. N. MORRIS

(Confidential.)

SPRINGFIELD, ILL., Dec 24, 1860

HON. I. N. MORRIS.

MY DEAR SIR:—Without supposing that you and I are any nearer together, politically, than heretofore, allow me to tender you my sincere thanks for your Union resolution, expressive of views upon which we never were, and, I trust, never will be at variance.

Yours very truly,

A. LINCOLN.

ATTEMPT TO FORM A COALITION CABINET

TO HANNIBAL HAMLIN

SPRINGFIELD, ILLINOIS, December 14, 1860.

HON. HANNIBAL HAMLIN.

MY DEAR SIR:—I need a man of Democratic antecedents from New England. I cannot get a fair share of that element in without. This stands in the way of Mr. Adams. I think of Governor Banks, Mr. Welles, and Mr. Tuck. Which of them do the New England delegation prefer? Or shall I decide for myself?

Yours as ever,

A. LINCOLN.

1861

TO WILLIAM H. SEWARD.

(Private.)

SPRINGFIELD. ILL., January 3, 1861.

HON. W. H. SEWARD.

DEAR SIR:—Yours without signature was received last night. I have been considering your suggestions as to my reaching Washington somewhat earlier than is usual. It seems to me the inauguration is not the most dangerous point for us. Our adversaries have us now clearly at disadvantage on the second Wednesday of February, when the votes should be officially counted. If the two houses refuse to meet at all, or meet without a quorum of each, where shall we be? I do not think that this counting is constitutionally essential to the election, but how are we to proceed in the absence of it? In view of this, I think it is best for me not to attempt appearing in Washington till the result of that ceremony is known.

It certainly would be of some advantage if you could know who are to be at the heads of the War and Navy departments, but until I can ascertain definitely whether I can get any suitable men from the South, and who, and how many, I can not well decide. As yet, I have no word from Mr. Gilmer in answer to my request for an interview with him. I look for something on the subject, through you, before long.

Yours very truly,

A. LINCOLN.

TO W. H. SEWARD.

(Private.)

SPRINGFIELD, ILL., January 12, 1861

HON. W. H. SEWARD.

MY DEAR SIR:—Yours of the 8th received. I still hope Mr. Gilmer will, on a fair understanding with us, consent to take a place in the Cabinet. The preference for him over Mr. Hunt or Mr. Gentry is that, up to date—he has a living position in the South, while they have not. He is only better than Winter Davis in that he is farther south. I fear, if we could get, we could not safely take more than one such man—that is, not more than one who opposed us in the election—the danger being to lose the confidence of our own friends. Your selection for the State Department having become public, I am happy to find scarcely any objection to it. I shall have trouble with every other Northern Cabinet appointment—so much so that I shall have to defer them as long as possible to avoid being teased into insanity, to make changes.

Your obedient servant,

A. LINCOLN

TO E. D. MORGAN

SPRINGFIELD, ILL. FEB. 4, 1861

SIR:—Your letter of the 30th ult. inviting me, on behalf of the Legislature of New York, to pass through that State on my way to Washington, and tendering me the hospitalities of her authorities and people, has been duly received. With the feelings of deep gratitude to you and them for this testimonial of regard and esteem I beg you to notify them that I accept the invitation so kindly tendered.

Your obedient servant,

A. LINCOLN

P.S.—Please let the ceremonies be only such as to take the least time possible. A. L.

PATRONAGE CLAIMS

TO THURLOW WEED

SPRINGFIELD, ILL., February 4, 1861

DEAR SIR:—I have both your letter to myself and that to Judge Davis, in relation to a certain gentleman in your State claiming to dispense patronage in my name, and also to be authorized to use my name to advance the chances of Mr. Greeley for an election to the United States Senate.

It is very strange that such things should be said by any one. The gentleman you mention did speak to me of Mr. Greeley in connection with the senatorial election, and I replied in terms of kindness toward Mr. Greeley, which I really feel, but always with an expressed protest that my name must not be used in the senatorial election in favor of or against any one. Any other representation of me is a misrepresentation.

As to the matter of dispensing patronage, it perhaps will surprise you to learn that I have information that you claim to have my authority to arrange that matter in New York. I do not believe you have so claimed; but still so some men say. On that subject you know all I have said to you is "justice to all," and I have said nothing more particular to any one. I say this to reassure you that I have not changed my position.

In the hope, however, that you will not use my name in the matter, I am,

Yours truly,

A. LINCOLN.

FAREWELL ADDRESS AT SPRINGFIELD, ILLINOIS,

FEBRUARY 11, 1861

MY FRIENDS:—One who has never been placed in a like position cannot understand my feelings at this hour, nor the oppressive sadness I feel at this parting. For more than twenty-five years I have lived among you, and during all that time I have received nothing but kindness at your hands. Here the most cherished ties of earth were assumed. Here my children were born, and here one of them lies buried. To you, my friends, I owe all that I have, all that I am. All the strange checkered past seems to crowd upon my mind. To-day I leave you. I go to assume a task more difficult than that which devolved upon General Washington. Unless the great God who assisted him shall be with and aid me I cannot prevail; but if the same almighty arm that directed and protected him shall guide and support me I shall not fail; I shall succeed. Let us pray that the God of our fathers may not forsake us now. To Him I commend you all. Permit me to ask that with equal sincerity and faith you will all invoke His wisdom and goodness for me.

With these words I must leave you; for how long I know not. Friends, one and all, I must now wish you an affectionate farewell.

REMARKS AT TOLONO, ILLINOIS, FEBRUARY 11, 1861

I am leaving you on an errand of national importance, attended, as you are aware, with considerable difficulties. Let us believe, as some poet has expressed it, "Behind the cloud the sun is still shining." I bid you an affectionate farewell.

REPLY TO ADDRESS OF WELCOME, INDIANAPOLIS,

INDIANA, FEBRUARY 11, 1861

GOVERNOR MORTON AND FELLOW CITIZENS OF THE STATE
OF INDIANA:

Most heartily do I thank you for this magnificent reception, and while I cannot take to myself any share of the compliment thus paid, more than that which pertains to a mere instrument, an accidental instrument, perhaps I should say, of a great cause, I yet must look upon it as a most magnificent reception, and as such most heartily do thank you for it. You have been pleased to address yourself to me chiefly in behalf of this glorious Union in which we live, in all of which you have my hearty sympathy, and, as far as may be within my power, will have, one and inseparable, my hearty consideration. While I do not expect, upon this occasion, or until I get to Washington, to attempt any lengthy speech, I will only say to the salvation of the Union there needs but one single thing—the hearts of a people like yours.

The people—when they rise in mass in behalf of the Union and the liberties of their country, truly may it be said, "The gates of hell cannot prevail against them." In all trying positions in which I shall be placed—and, doubtless, I shall be placed in many such—my reliance will be placed upon you and the people of the United States; and I wish you to remember, now and forever, that it is your business, and not mine; that if the union of these States and the liberties of this people shall be lost, it is but little to any one man of fifty-two years of age, but a great deal to the thirty millions of people who inhabit these United States, and to their posterity in all coming time. It is your business to rise up and preserve the Union and liberty for yourselves, and not for me.

I desire they should be constitutionally performed. I, as already intimated, am but an accidental instrument, temporary, and to serve but for a limited time; and I appeal to you again to constantly bear in mind that

with you, and not with politicians, not with Presidents, not with office-seekers, but with you is the question, Shall the Union and shall the liberties of this country be preserved to the latest generations?

ADDRESS TO THE LEGISLATURE OF INDIANA, AT INDIANAPOLIS,

FEBRUARY 12, 1861

FELLOW-CITIZENS OF THE STATE OF INDIANA:—I am here to thank you much for this magnificent welcome, and still more for the generous support given by your State to that political cause which I think is the true and just cause of the whole country and the whole world.

Solomon says there is "a time to keep silence," and when men wrangle by the mouth with no certainty that they mean the same thing while using the same word, it perhaps were as well if they would keep silence.

The words "coercion" and "invasion" are much used in these days, and often with some temper and hot blood. Let us make sure, if we can, the meaning of those who use them. Let us get the exact definitions of these words, not from dictionaries, but from the men themselves, who certainly deprecate the things they would represent by the use of the words.

What, then, is coercion? What is invasion? Would the marching of an army into South Carolina, without the consent of her people, and with hostile intent toward them, be invasion? I certainly think it would, and it would be coercion also, if the South Carolinians were forced to submit. But if the United States should merely hold and retake its own forts and other property, and collect the duties on foreign importations, or even withhold the mails from places where they were habitually violated, would any or all of these things be invasion or coercion? Do our professed lovers of the Union, who spitefully resolve that they will resist coercion and invasion, understand that such things as these, on the part of the United States, would be coercion or invasion of a State? If so, their idea of means to preserve the object of their great affection would seem to be exceedingly thin and airy. If sick, the little pills of the homoeopathist would be much too large for it to swallow. In their view, the Union, as a family relation, would seem to be no regular marriage, but rather a sort of "free-love" arrangement, to be maintained on passional attraction.

By the way, in what consists the special sacredness of a State? I speak not of the position assigned to a State in the Union by the Constitution, for that is a bond we all recognize. That position, however, a State cannot carry out of the Union with it. I speak of that assumed primary right of a State to rule all which is less than itself, and to ruin all which is larger than itself. If a State and a county, in a given case, should be equal in number of inhabitants, in what, as a matter of principle, is the State better than the county? Would an exchange of name be an exchange of rights? Upon what principle, upon what rightful principle, may a State, being no more than one fiftieth part of the nation in soil and population, break up the nation, and then coerce a proportionably large subdivision of itself in the most arbitrary way? What mysterious right to play tyrant is conferred on a district of country, with its people, by merely calling it a State? Fellow-citizens, I am not asserting anything. I am merely asking questions for you to consider. And now allow me to bid you farewell.

INTENTIONS TOWARD THE SOUTH

ADDRESS TO THE MAYOR AND CITIZENS OF

CINCINNATI, OHIO, FEBRUARY 12, 1861

Mr. MAYOR, AND GENTLEMEN:—Twenty-four hours ago, at the capital of Indiana, I said to myself, "I have never seen so many people assembled together in winter weather." I am no longer able to say that. But it is what might reasonably have been expected—that this great city of Cincinnati would thus acquit herself on such an occasion. My friends, I am entirely overwhelmed by the magnificence of the reception which has been given, I will not say to me, but to the President-elect of the United States of America. Most heartily do I thank you, one and all, for it.

I have spoken but once before this in Cincinnati. That was a year previous to the late Presidential election. On that occasion, in a playful manner, but with sincere words, I addressed much of what I said to the Kentuckians. I gave my opinion that we, as Republicans, would ultimately beat them as Democrats, but that they could postpone that result longer by nominating Senator Douglas for the Presidency than they could by any other way. They did not, in any true sense of the word, nominate Mr. Douglas, and the result has come certainly as soon as ever I expected. I also told them how I expected they would be treated after they should have been beaten, and I now wish to call their attention to what I then said upon that subject. I then said:

"When we do as we say, beat you, you perhaps want to know what we will do with you. I will tell you, as far as I am authorized to speak for the Opposition, what we mean to do with you. We mean to treat you, as near as we possibly can, as Washington, Jefferson, and Madison treated you. We mean to leave you alone, and in no way to interfere with your institutions; to abide by all and every compromise of the Constitution, and, in a word, coming back to the original proposition, to treat you so far as degenerate men, if we have degenerated, may, according to the example of those noble fathers, Washington, Jefferson, and Madison.

"We mean to remember that you are as good as we; that there is no difference between us other than the difference of circumstances. We mean to recognize and bear in mind always that you have as good hearts in your bosoms as other people, or as we claim to have, and treat you accordingly."

Fellow-citizens of Kentucky—friends and brethren, may I call you in my new position?—I see no occasion and feel no inclination to retract a word of this. If it shall not be made good, be assured the fault shall not be mine.

ADDRESS TO THE GERMAN CLUB OF CINCINNATI, OHIO,

FEBRUARY 12, 1861

Mr. CHAIRMAN:—I thank you and those whom you represent for the compliment you have paid me by tendering me this address. In so far as there is an allusion to our present national difficulties, which expresses, as you have said, the views of the gentlemen present, I shall have to beg pardon for not entering fully upon the questions which the address you have now read suggests.

I deem it my duty—a duty which I owe to my constituents—to you, gentlemen, that I should wait until the last moment for a development of the present national difficulties before I express myself decidedly as to what course I shall pursue. I hope, then, not to be false to anything that you have expected of me.

I agree with you, Mr. Chairman, that the working men are the basis of all governments, for the plain reason that they are all the more numerous, and as you added that those were the sentiments of the gentlemen present, representing not only the working class, but citizens of other callings than those of the mechanic, I am happy to concur with you in these sentiments, not only of the native-born citizens, but also of the Germans and foreigners from other countries.

Mr. Chairman, I hold that while man exists it is his duty to improve not only his own condition, but to assist in ameliorating the condition of mankind; and therefore, without entering upon the details of the question, I will simply say that I am for those means which will give the greatest good to the greatest number.

In regard to the Homestead law, I have to say that, in so far as the government lands can be disposed of, I am in favor of cutting up the wild lands into parcels, so that every poor man may have a home.

In regard to the Germans and foreigners, I esteem them no better than other people, nor any worse. It is not my nature, when I see a people borne

down by the weight of their shackles—the oppression of tyranny—to make their life more bitter by heaping upon them greater burdens; but rather would I do all in my power to raise the yoke than to add anything that would tend to crush them.

Inasmuch as our own country is extensive and new, and the countries of Europe are densely populated, if there are any abroad who desire to make this the land of their adoption, it is not in my heart to throw aught in their way to prevent them from coming to the United States.

Mr. Chairman and gentlemen, I will bid you an affectionate farewell.

ADDRESS TO THE LEGISLATURE OF OHIO AT COLUMBUS

FEBRUARY 13, 1861

MR. PRESIDENT AND MR. SPEAKER, AND GENTLEMEN OF THE GENERAL ASSEMBLY OF OHIO:—It is true, as has been said by the president of the Senate, that very great responsibility rests upon me in the position to which the votes of the American people have called me. I am deeply sensible of that weighty responsibility. I cannot but know what you all know, that without a name, perhaps without a reason why I should have a name, there has fallen upon me a task such as did not rest even upon the Father of his Country; and so feeling, I can turn and look for that support without which it will be impossible for me to perform that great task. I turn, then, and look to the American people and to that God who has never forsaken them. Allusion has been made to the interest felt in relation to the policy of the new administration. In this I have received from some a degree of credit for having kept silence, and from others some deprecation. I still think that I was right.

In the varying and repeatedly shifting scenes of the present, and without a precedent which could enable me to judge by the past, it has seemed fitting that before speaking upon the difficulties of the country I should have gained a view of the whole field, being at liberty to modify and change the course of policy as future events may make a change necessary.

I have not maintained silence from any want of real anxiety. It is a good thing that there is no more than anxiety, for there is nothing going wrong. It is a consoling circumstance that when we look out there is nothing that really hurts anybody. We entertain different views upon political questions, but nobody is suffering anything. This is a most consoling circumstance, and from it we may conclude that all we want is time, patience, and a reliance on that God who has never forsaken this people.

Fellow-citizens, what I have said I have said altogether extemporaneously, and I will now come to a close.

ADDRESS AT STEUBENVILLE, OHIO,

FEBRUARY 14, 1861

I fear that the great confidence placed in my ability is unfounded. Indeed, I am sure it is. Encompassed by vast difficulties as I am, nothing shall be wanting on my part, if sustained by God and the American people. I believe the devotion to the Constitution is equally great on both sides of the river. It is only the different understanding of that instrument that causes difficulty. The only dispute on both sides is, "What are their rights?" If the majority should not rule, who would be the judge? Where is such a judge to be found? We should all be bound by the majority of the American people; if not, then the minority must control. Would that be right? Would it be just or generous? Assuredly not. I reiterate that the majority should rule. If I adopt a wrong policy, the opportunity for condemnation will occur in four years' time. Then I can be turned out, and a better man with better views put in my place.

ADDRESS AT PITTSBURGH, PENNSYLVANIA

FEBRUARY 15, 1861

I most cordially thank his Honor Mayor Wilson, and the citizens of Pittsburg generally, for their flattering reception. I am the more grateful because I know that it is not given to me alone, but to the cause I represent, which clearly proves to me their good-will, and that sincere feeling is at the bottom of it. And here I may remark that in every short address I have made to the people, in every crowd through which I have passed of late, some allusion has been made to the present distracted condition of the country. It is natural to expect that I should say something on this subject; but to touch upon it at all would involve an elaborate discussion of a great many questions and circumstances, requiring more time than I can at present command, and would, perhaps, unnecessarily commit me upon matters which have not yet fully developed themselves. The condition of the country is an extraordinary one, and fills the mind of every patriot with anxiety. It is my intention to give this subject all the consideration I possibly can before specially deciding in regard to it, so that when I do speak it may be as nearly right as possible. When I do speak I hope I may say nothing in opposition to the spirit of the Constitution, contrary to the integrity of the Union, or which will prove inimical to the liberties of the people, or to the peace of the whole country. And furthermore, when the time arrives for me to speak on this great subject, I hope I may say nothing to disappoint the people generally throughout the country, especially if the expectation has been based upon anything which I may have heretofore said. Notwithstanding the troubles across the river [the speaker pointing southwardly across the Monongahela, and smiling], there is no crisis but an artificial one. What is there now to warrant the condition of affairs presented by our friends over the river? Take even their own view of the questions involved, and there is nothing to justify the course they are pursuing. I repeat, then, there is no crisis, excepting such a one as may be gotten up at any time by turbulent men aided by designing politicians, My advice to them, under such circumstances, is to keep cool. If the great

American people only keep their temper on both sides of the line, the troubles will come to an end, and the question which now distracts the country will be settled, just as surely as all other difficulties of a like character which have originated in this government have been adjusted. Let the people on both sides keep their self-possession, and just as other clouds have cleared away in due time, so will this great nation continue to prosper as heretofore. But, fellow-citizens, I have spoken longer on this subject than I intended at the outset.

It is often said that the tariff is the specialty of Pennsylvania. Assuming that direct taxation is not to be adopted, the tariff question must be as durable as the government itself. It is a question of national housekeeping. It is to the government what replenishing the meal-tub is to the family. Every varying circumstances will require frequent modifications as to the amount needed and the sources of supply. So far there is little difference of opinion among the people. It is as to whether, and how far, duties on imports shall be adjusted to favor home production in the home market, that controversy begins. One party insists that such adjustment oppresses one class for the advantage of another; while the other party argues that, with all its incidents, in the long run all classes are benefited. In the Chicago platform there is a plank upon this subject which should be a general law to the incoming administration. We should do neither more nor less than we gave the people reason to believe we would when they gave us their votes. Permit me, fellow-citizens, to read the tariff plank of the Chicago platform, or rather have it read in your hearing by one who has younger eyes.

[Mr. Lincoln's private secretary then read Section 12 of the Chicago platform, as follows:]

"That, while providing revenue for the support of the General Government by duties upon imports, sound policy requires such an adjustment of these imposts as will encourage the development of the industrial interest of the whole country; and we commend that policy of national exchanges which secures to working-men liberal wages, to agriculture remunerating prices, to mechanics and manufacturers adequate return for their skill, labor, and enterprise, and to the nation commercial prosperity and independence."

As with all general propositions, doubtless, there will be shades of difference in construing this. I have by no means a thoroughly matured

judgment upon this subject, especially as to details; some general ideas are about all. I have long thought it would be to our advantage to produce any necessary article at home which can be made of as good quality and with as little labor at home as abroad, at least by the difference of the carrying from abroad. In such case the carrying is demonstrably a dead loss of labor. For instance, labor being the true standard of value, is it not plain that if equal labor get a bar of railroad iron out of a mine in England and another out of a mine in Pennsylvania, each can be laid down in a track at home cheaper than they could exchange countries, at least by the carriage? If there be a present cause why one can be both made and carried cheaper in money price than the other can be made without carrying, that cause is an unnatural and injurious one, and ought gradually, if not rapidly, to be removed. The condition of the treasury at this time would seem to render an early revision of the tariff indispensable. The Morrill [tariff] bill, now pending before Congress, may or may not become a law. I am not posted as to its particular provisions, but if they are generally satisfactory, and the bill shall now pass, there will be an end for the present. If, however, it shall not pass, I suppose the whole subject will be one of the most pressing and important for the next Congress. By the Constitution, the executive may recommend measures which he may think proper, and he may veto those he thinks improper, and it is supposed that he may add to these certain indirect influences to affect the action of Congress. My political education strongly inclines me against a very free use of any of these means by the executive to control the legislation of the country. As a rule, I think it better that Congress should originate as well as perfect its measures without external bias. I therefore would rather recommend to every gentleman who knows he is to be a member of the next Congress to take an enlarged view, and post himself thoroughly, so as to contribute his part to such an adjustment of the tariff as shall produce a sufficient revenue, and in its other bearings, so far as possible, be just and equal to all sections of the country and classes of the people.

ADDRESS AT CLEVELAND, OHIO,

FEBRUARY 15, 1861

Mr. CHAIRMAN AND FELLOW-CITIZENS OF CLEVELAND:—We have been marching about two miles through snow, rain, and deep mud. The large numbers that have turned out under these circumstances testify that you are in earnest about something or other. But do I think so meanly of you as to suppose that that earnestness is about me personally? I would be doing you an injustice to suppose you did. You have assembled to testify your respect for the Union, the Constitution, and the laws; and here let me say that it is with you, the people, to advance the great cause of the Union and the Constitution, and not with any one man. It rests with you alone. This fact is strongly impressed upon my mind at present. In a community like this, whose appearance testifies to their intelligence, I am convinced that the cause of liberty and the Union can never be in danger. Frequent allusion is made to the excitement at present existing in our national politics, and it is as well that I should also allude to it here. I think that there is no occasion for any excitement. 'The crisis, as it is called, is altogether an artificial crisis. In all parts of the nation there are differences of opinion on politics. There are differences of opinion even here. You did not all vote for the person who now addresses you. What is happening now will not hurt those who are farther away from here. Have they not all their rights now as they ever have had? Do they not have their fugitive slaves returned now as ever? Have they not the same Constitution that they have lived under for seventy-odd years? Have they not a position as citizens of this common country, and have we any power to change that position? What, then, is the matter with them? Why all this excitement? Why all these complaints?

As I said before, this crisis is all artificial! It has no foundation in facts. It is not argued up, as the saying is, and cannot, therefore, be argued down. Let it alone and it will go down of itself.

[Mr. Lincoln then said that they must be content with a few words from him, as he was tired, etc. Having been given to understand that the crowd was not all Republican, but consisted of men of all parties, he continued:]

This is as it should be. If Judge Douglas had been elected and had been here on his way to Washington, as I am to-night, the Republicans should have joined his supporters in welcoming him, just as his friends have joined with mine tonight. If all do not join now to save the good old ship of the Union this voyage, nobody will have a chance to pilot her on another voyage.

ADDRESS AT BUFFALO, NEW YORK,

FEBRUARY 16, 1861

Mr. MAYOR AND FELLOW-CITIZENS OF BUFFALO AND THE STATE OF NEW YORK:—I am here to thank you briefly for this grand reception given to me, not personally, but as the representative of our great and beloved country. Your worthy mayor has been pleased to mention, in his address to me, the fortunate and agreeable journey which I have had from home, on my rather circuitous route to the Federal capital. I am very happy that he was enabled in truth to congratulate myself and company on that fact. It is true we have had nothing thus far to mar the pleasure of the trip. We have not been met alone by those who assisted in giving the election to me—I say not alone by them, but by the whole population of the country through which we have passed. This is as it should be. Had the election fallen to any other of the distinguished candidates instead of myself, under the peculiar circumstances, to say the least, it would have been proper for all citizens to have greeted him as you now greet me. It is an evidence of the devotion of the whole people to the Constitution, the Union, and the perpetuity of the liberties of this country. I am unwilling on any occasion that I should be so meanly thought of as to have it supposed for a moment that these demonstrations are tendered to me personally. They are tendered to the country, to the institutions of the country, and to the perpetuity of the liberties of the country, for which these institutions were made and created.

Your worthy mayor has thought fit to express the hope that I may be able to relieve the country from the present, or, I should say, the threatened difficulties. I am sure I bring a heart true to the work. For the ability to perform it, I must trust in that Supreme Being who has never forsaken this favored land, through the instrumentality of this great and intelligent people. Without that assistance I shall surely fail; with it, I cannot fail. When we speak of threatened difficulties to the Country, it is natural that it should be expected that something should be said by myself with regard to particular measures. Upon more mature reflection, however, others will

agree with me that, when it is considered that these difficulties are without precedent, and have never been acted upon by any individual situated as I am, it is most proper I should wait and see the developments, and get all the light possible, so that when I do speak authoritatively, I may be as near right as possible. When I shall speak authoritatively, I hope to say nothing inconsistent with the Constitution, the Union, the rights of all the States, of each State, and of each section of the country, and not to disappoint the reasonable expectations of those who have confided to me their votes. In this connection allow me to say that you, as a portion of the great American people, need only to maintain your composure, stand up to your sober convictions of right, to your obligations to the Constitution, and act in accordance with those sober convictions, and the clouds now on the horizon will be dispelled, and we shall have a bright and glorious future; and when this generation has passed away, tens of thousands will inhabit this country where only thousands inhabit it now. I do not propose to address you at length; I have no voice for it. Allow me again to thank you for this magnificent reception, and bid you farewell.

ADDRESS AT ROCHESTER, NEW YORK,

FEBRUARY 18, 1861

I confess myself, after having seen many large audiences since leaving home, overwhelmed with this vast number of faces at this hour of the morning. I am not vain enough to believe that you are here from any wish to see me as an individual, but because I am for the time being the representative of the American people. I could not, if I would, address you at any length. I have not the strength, even if I had the time, for a speech at each of these many interviews that are afforded me on my way to Washington. I appear merely to see you, and to let you see me, and to bid you farewell. I hope it will be understood that it is from no disinclination to oblige anybody that I do not address you at greater length.

ADDRESS AT SYRACUSE, NEW YORK,

FEBRUARY 18, 1861.

LADIES AND GENTLEMEN:—I See you have erected a very fine and handsome platform here for me, and I presume you expected me to speak from it. If I should go upon it, you would imagine that I was about to deliver you a much longer speech than I am. I wish you to understand that I mean no discourtesy to you by thus declining. I intend discourtesy to no one. But I wish you to understand that, though I am unwilling to go upon this platform, you are not at liberty to draw inferences concerning any other platform with which my name has been or is connected. I wish you long life and prosperity individually, and pray that with the perpetuity of those institutions under which we have all so long lived and prospered, our happiness may be secured, our future made brilliant, and the glorious destiny of our country established forever. I bid you a kind farewell.

ADDRESS AT UTICA, NEW YORK,

FEBRUARY 18, 1860

LADIES AND GENTLEMEN:—I have no speech to make to you; and no time to speak in. I appear before you that I may see you, and that you may see me; and I am willing to admit that so far as the ladies are concerned I have the best of the bargain, though I wish it to be understood that I do not make the same acknowledgment concerning the men.

REPLY TO THE MAYOR OF ALBANY, NEW YORK

FEBRUARY 18, 1861.

MR. MAYOR:—I can hardly appropriate to myself the flattering terms in which you communicate the tender of this reception, as personal to myself. I most gratefully accept the hospitalities tendered to me, and will not detain you or the audience with any extended remarks at this time. I presume that in the two or three courses through which I shall have to go, I shall have to repeat somewhat, and I will therefore only express to you my thanks for this kind reception.

REPLY TO GOVERNOR MORGAN OF NEW YORK, AT ALBANY,

FEBRUARY 18, 1861.

GOVERNOR MORGAN:—I was pleased to receive an invitation to visit the capital of the great Empire State of this nation while on my way to the Federal capital. I now thank you, Mr. Governor, and you, the people of the capital of the State of New York, for this most hearty and magnificent welcome. If I am not at fault, the great Empire State at this time contains a larger population than did the whole of the United States of America at the time they achieved their national independence, and I was proud—to be invited to visit its capital, to meet its citizens, as I now have the honor to do. I am notified by your governor that this reception is tendered by citizens without distinction of party. Because of this I accept it the more gladly. In this country, and in any country where freedom of thought is tolerated, citizens attach themselves to political parties. It is but an ordinary degree of charity to attribute this act to the supposition that, in thus attaching themselves to the various parties, each man in his own judgment supposes he thereby best advances the interests of the whole country. And when an election is past it is altogether befitting a free people, as I suppose, that, until the next election, they should be one people. The reception you have extended me to-day is not given to me personally,—it should not be so,—but as the representative, for the time being, of the majority of the nation. If the election had fallen to any of the more distinguished citizens who received the support of the people, this same honor should have greeted him that greets me this day, in testimony of the universal, unanimous devotion of the whole people to the Constitution, the Union, and to the perpetual liberties of succeeding generations in this country.

I have neither the voice nor the strength to address you at any greater length. I beg you will therefore accept my most grateful thanks for this manifest devotion—not to me, but the institutions of this great and glorious country.

ADDRESS TO THE LEGISLATURE OF NEW YORK, AT ALBANY,

FEBRUARY 18, 1861.

MR. PRESIDENT AND GENTLEMEN OF THE GENERAL ASSEMBLY OF THE STATE OF NEW YORK:—It is with feelings of great diffidence, and, I may say, with feelings of awe, perhaps greater than I have recently experienced, that I meet you here in this place. The history of this great State, the renown of those great men who have stood here, and have spoken here, and have been heard here, all crowd around my fancy, and incline me to shrink from any attempt to address you. Yet I have some confidence given me by the generous manner in which you have invited me, and by the still more generous manner in which you have received me, to speak further. You have invited and received me without distinction of party. I cannot for a moment suppose that this has been done in any considerable degree with reference to my personal services, but that it is done in so far as I am regarded, at this time, as the representative of the majesty of this great nation. I doubt not this is the truth, and the whole truth of the case, and this is as it should be. It is much more gratifying to me that this reception has been given to me as the elected representative of a free people, than it could possibly be if tendered merely as an evidence of devotion to me, or to any one man personally.

And now I think it were more fitting that I should close these hasty remarks. It is true that, while I hold myself, without mock modesty, the humblest of all individuals that have ever been elevated to the Presidency, I have a more difficult task to perform than any one of them.

You have generously tendered me the support—the united support—of the great Empire State. For this, in behalf of the nation—in behalf of the present and future of the nation—in behalf of civil and religious liberty for all time to come, most gratefully do I thank you. I do not propose to enter into an explanation of any particular line of policy, as to our present difficulties, to be adopted by the incoming administration. I deem it just to

you, to myself, to all, that I should see everything, that I should hear everything, that I should have every light that can be brought within my reach, in order that, when I do so speak, I shall have enjoyed every opportunity to take correct and true ground; and for this reason I do not propose to speak at this time of the policy of the Government. But when the time comes, I shall speak, as well as I am able, for the good of the present and future of this country for the good both of the North and of the South—for the good of the one and the other, and of all sections of the country. In the meantime, if we have patience, if we restrain ourselves, if we allow ourselves not to run off in a passion, I still have confidence that the Almighty, the Maker of the universe, will, through the instrumentality of this great and intelligent people, bring us through this as He has through all the other difficulties of our country. Relying on this, I again thank you for this generous reception.

ADDRESS AT TROY, NEW YORK,

FEBRUARY 19, 1861

MR. MAYOR AND CITIZENS OF TROY:—I thank you very kindly for this great reception. Since I left my home it has not been my fortune to meet an assemblage more numerous and more orderly than this. I am the more gratified at this mark of your regard since you assure me it is tendered, not to the individual but to the high office you have called me to fill. I have neither strength nor time to make any extended remarks on this occasion, and I can only repeat to you my sincere thanks for the kind reception you have thought proper to extend to me.

ADDRESS AT POUGHKEEPSIE, NEW YORK,

FEBRUARY 19, 1861

FELLOW-CITIZENS:—It is altogether impossible I should make myself heard by any considerable portion of this vast assemblage; but, although I appear before you mainly for the purpose of seeing you, and to let you see rather than hear me, I cannot refrain from saying that I am highly gratified—as much here, indeed, under the circumstances, as I have been anywhere on my route—to witness this noble demonstration—made, not in honor of an individual, but of the man who at this time humbly, but earnestly, represents the majesty of the nation.

This reception, like all the others that have been tendered to me, doubtless emanates from all the political parties, and not from one alone. As such I accept it the more gratefully, since it indicates an earnest desire on the part of the whole people, with out regard to political differences, to save—not the country, because the country will save itself but to save the institutions of the country, those institutions under which, in the last three quarters of a century, we have grown to a great, and intelligent, and a happy people—the greatest, the most intelligent, and the happiest people in the world. These noble manifestations indicate, with unerring certainty, that the whole people are willing to make common cause for this object; that if, as it ever must be, some have been successful in the recent election and some have been beaten, if some are satisfied and some are dissatisfied, the defeated party are not in favor of sinking the ship, but are desirous of running it through the tempest in safety, and willing, if they think the people have committed an error in their verdict now, to wait in the hope of reversing it and setting it right next time. I do not say that in the recent election the people did the wisest thing, that could have been done—indeed, I do not think they did; but I do say that in accepting the great trust committed to me, which I do with a determination to endeavor to prove worthy of it, I must rely upon you, upon the people of the whole country, for support; and with their sustaining aid, even I, humble as I am, cannot fail to carry the ship of state safely through the storm.

I have now only to thank you warmly for your kind attendance, and bid you all an affectionate farewell.

ADDRESS AT HUDSON, NEW YORK.

FEBRUARY 19, 1860

FELLOW-CITIZENS:—I see that you are providing a platform for me. I shall have to decline standing upon it, because the president of the company tells me that I shall not have time to wait until it is brought to me. As I said yesterday, under similar circumstances at another gathering, you must not draw the inference that I have any intention of deserting any platform with which I have a legitimate connection because I do not stand on yours. Allow me to thank you for this splendid reception, and I now bid you farewell.

ADDRESS AT PEEKSKILL, NEW YORK,

FEBRUARY 19, 1861

LADIES AND GENTLEMEN:—I have but a moment to stand before you to listen to and return your kind greeting. I thank you for this reception, and for the pleasant manner in which it is tendered to me by our mutual friends. I will say in a single sentence, in regard to the difficulties that lie before me and our beloved country, that if I can only be as generously and unanimously sustained as the demonstrations I have witnessed indicate I shall be, I shall not fail; but without your sustaining hands I am sure that neither I nor any other man can hope to surmount these difficulties. I trust that in the course I shall pursue I shall be sustained not only by the party that elected me, but by the patriotic people of the whole country.

ADDRESS AT FISHKILL LANDING

FEBRUARY 19, 1861

LADIES AND GENTLEMEN:—I appear before you not to make a speech. I have not sufficient time, if I had the strength, to repeat speeches at every station where the people kindly gather to welcome me as we go along. If I had the strength, and should take the time, I should not get to Washington until after the inauguration, which you must be aware would not fit exactly. That such an untoward event might not transpire, I know you will readily forego any further remarks; and I close by bidding you farewell.

REMARKS AT THE ASTOR HOUSE, NEW YORK CITY, FEBRUARY 19, 1861

FELLOW-CITIZENS:—I have stepped before you merely in compliance with what appears to be your wish, and not with the purpose of making a speech. I do not propose making a speech this afternoon. I could not be heard by any but a small fraction of you, at best; but, what is still worse than that, I have nothing just now to say that is worthy of your hearing. I beg you to believe that I do not now refuse to address you from any disposition to disoblige you, but to the contrary. But, at the same time, I beg of you to excuse me for the present.

ADDRESS AT NEW YORK CITY,

FEBRUARY 19, 1861

Mr. CHAIRMAN AND GENTLEMEN:—I am rather an old man to avail myself of such an excuse as I am now about to do. Yet the truth is so distinct, and presses itself so distinctly upon me, that I cannot well avoid it—and that is, that I did not understand when I was brought into this room that I was to be brought here to make a speech. It was not intimated to me that I was brought into the room where Daniel Webster and Henry Clay had made speeches, and where one in my position might be expected to do something like those men or say something worthy of myself or my audience. I therefore beg you to make allowance for the circumstances in which I have been by surprise brought before you. Now I have been in the habit of thinking and sometimes speaking upon political questions that have for some years past agitated the country; and, if I were disposed to do so, and we could take up some one of the issues, as the lawyers call them, and I were called upon to make an argument about it to the best of my ability, I could do so without much preparation. But that is not what you desire to have done here to-night.

I have been occupying a position, since the Presidential election, of silence—of avoiding public speaking, of avoiding public writing. I have been doing so because I thought, upon full consideration, that was the proper course for me to take. I am brought before you now, and required to make a speech, when you all approve more than anything else of the fact that I have been keeping silence. And now it seems to me that the response you give to that remark ought to justify me in closing just here. I have not kept silence since the Presidential election from any party wantonness, or from any indifference to the anxiety that pervades the minds of men about the aspect of the political affairs of this country. I have kept silence for the reason that I supposed it was peculiarly proper that I should do so until the time came when, according to the custom of the country, I could speak officially.

I still suppose that, while the political drama being enacted in this country at this time is rapidly shifting its scenes—forbidding an anticipation with any degree of certainty to-day of what we shall see to-morrow—it is peculiarly fitting that I should see it all, up to the last minute, before I should take ground that I might be disposed, by the shifting of the scenes afterward, also to shift. I have said several times upon this journey, and I now repeat it to you, that when the time does come, I shall then take the ground that I think is right—right for the North, for the South, for the East, for the West, for the whole country. And in doing so I hope to feel no necessity pressing upon me to say anything in conflict with the Constitution, in conflict with the continued union of these States, in conflict with the perpetuation of the liberties of this people, or anything in conflict with anything whatever that I have ever given you reason to expect from me. And now, my friends, have I said enough? [Loud cries of "No, no!" and, "Three cheers for LINCOLN!"] Now, my friends, there appears to be a difference of opinion between you and me, and I really feel called upon to decide the question myself.

REPLY TO THE MAYOR OF NEW YORK CITY,

FEBRUARY 20, 1861

Mr. MAYOR:—It is with feelings of deep gratitude that I make my acknowledgments for the reception that has been given me in the great commercial city of New York. I cannot but remember that it is done by the people who do not, by a large majority, agree with me in political sentiment. It is the more grateful to me because in this I see that for the great principles of our Government the people are pretty nearly or quite unanimous. In regard to the difficulties that confront us at this time, and of which you have seen fit to speak so becomingly and so justly, I can only say I agree with the sentiments expressed. In my devotion to the Union I hope I am behind no man in the nation. As to my wisdom in conducting affairs so as to tend to the preservation of the Union, I fear too great confidence may have been placed in me. I am sure I bring a heart devoted to the work. There is nothing that could ever bring me to consent—willingly to consent—to the destruction of this Union (in which not only the great city of New York, but the whole country, has acquired its greatness), unless it would be that thing for which the Union itself was made. I understand that the ship is made for the carrying and preservation of the cargo; and so long as the ship is safe with the cargo, it shall not be abandoned. This Union shall never be abandoned, unless the possibility of its existence shall cease to exist without the necessity of throwing passengers and cargo overboard. So long, then, as it is possible that the prosperity and liberties of this people can be preserved within this Union, it shall be my purpose at all times to preserve it. And now, Mr. Mayor, renewing my thanks for this cordial reception, allow me to come to a close.

ADDRESS AT JERSEY CITY, NEW JERSEY

FEBRUARY 21, 1860

MR. DAYTON AND GENTLEMEN OF THE STATE OF NEW JERSEY:—I shall only thank you briefly for this very kind reception given me, not personally, but as the temporary representative of the majesty of the nation. To the kindness of your hearts, and of the hearts of your brethren in your State, I should be very proud to respond, but I shall not have strength to address you or other assemblages at length, even if I had the time to do so. I appear before you, therefore, for little else than to greet you, and to briefly say farewell. You have done me the very high honor to present your reception courtesies to me through your great man a man with whom it is an honor to be associated anywhere, and in owning whom no State can be poor. He has said enough, and by the saying of it suggested enough, to require a response of an hour, well considered. I could not in an hour make a worthy response to it. I therefore, ladies and gentlemen of New Jersey, content myself with saying, most heartily do I indorse all the sentiments he has expressed. Allow me, most gratefully, to bid you farewell.

REPLY TO THE MAYOR OF NEWARK, NEW JERSEY,

FEBRUARY 21, 1861.

MR. MAYOR:—I thank you for this reception at the city of Newark. With regard to the great work of which you speak, I will say that I bring to it a heart filled with love for my country, and an honest desire to do what is right. I am sure, however, that I have not the ability to do anything unaided of God, and that without His support and that of this free, happy, prosperous, and intelligent people, no man can succeed in doing that the importance of which we all comprehend. Again thanking you for the reception you have given me, I will now bid you farewell, and proceed upon my journey.

ADDRESS IN TRENTON AT THE TRENTON HOUSE,

FEBRUARY 21, 1861

I have been invited by your representatives to the Legislature to visit this the capital of your honored State, and in acknowledging their kind invitation, compelled to respond to the welcome of the presiding officers of each body, and I suppose they intended I should speak to you through them, as they are the representatives of all of you; and if I were to speak again here, I should only have to repeat in a great measure much that I have said, which would be disgusting to my friends around me who have met here. I have no speech to make, but merely appear to see you and let you look at me; and as to the latter I think I have greatly the best of the bargain. My friends, allow me to bid you farewell.

ADDRESS TO THE SENATE OF NEW JERSEY

FEBRUARY 21, 1861

MR. PRESIDENT AND GENTLEMEN OF THE SENATE OF THE STATE OF NEW JERSEY:—I am very grateful to you for the honorable reception of which I have been the object. I cannot but remember the place that New Jersey holds in our early history. In the Revolutionary struggle few of the States among the Old Thirteen had more of the battle-fields of the country within their limits than New Jersey. May I be pardoned if, upon this occasion, I mention that away back in my childhood, the earliest days of my being able to read, I got hold of a small book, such a one as few of the younger members have ever seen Weems's Life of Washington. I remember all the accounts there given of the battle-fields and struggles for the liberties of the country; and none fixed themselves upon my imagination so deeply as the struggle here at Trenton, New Jersey. The crossing of the river, the contest with the Hessians, the great hardships endured at that time, all fixed themselves on my memory more than any single Revolutionary event; and you all know, for you have all been boys, how these early impressions last longer than any others. I recollect thinking then, boy even though I was, that there must have been something more than common that these men struggled for. I am exceedingly anxious that that thing that something even more than national independence, that something that held out a great promise to all the people of the world to all time to come—I am exceedingly anxious that this Union, the Constitution, and the liberties of the people shall be perpetuated in accordance with the original idea for which that struggle was made; and I shall be most happy indeed if I shall be a humble instrument in the hands of the Almighty, and of this his almost chosen people, for perpetuating the object of that great struggle. You give me this reception, as I understand, without distinction of party. I learn that this body is composed of a majority of gentlemen who, in the exercise of their best judgment in the choice of a chief magistrate, did not think I was the man. I understand, nevertheless, that they come forward here to greet me as the constitutionally elected President of the United States—as

citizens of the United States to meet the man who, for the time being, is the representative of the majesty of the nation—united by the single purpose to perpetuate the Constitution, the union, and the liberties of the people. As such, I accept this reception more gratefully than I could do did I believe it were tendered to me as an individual.

ADDRESS TO THE ASSEMBLY OF NEW JERSEY,

FEBRUARY 21, 1861

MR. SPEAKER AND GENTLEMEN: I have just enjoyed the honor of a reception by the other branch of this Legislature, and I return to you and them my thanks for the reception which the people of New Jersey have given through their chosen representatives to me as the representative, for the time being, of the majesty of the people of the United States. I appropriate to myself very little of the demonstrations of respect with which I have been greeted. I think little should be given to any man, but that it should be a manifestation of adherence to the Union and the Constitution. I understand myself to be received here by the representatives of the people of New Jersey, a majority of whom differ in opinion from those with whom I have acted. This manifestation is therefore to be regarded by me as expressing their devotion to the Union, the Constitution, and the liberties of the people.

You, Mr. Speaker, have well said that this is a time when the bravest and wisest look with doubt and awe upon the aspect presented by our national affairs. Under these circumstances you will readily see why I should not speak in detail of the course I shall deem it best to pursue. It is proper that I should avail myself of all the information and all the time at my command, in order that when the time arrives in which I must speak officially, I shall be able to take the ground which I deem best and safest, and from which I may have no occasion to swerve. I shall endeavor to take the ground I deem most just to the North, the East, the West, the South, and the whole country. I shall take it, I hope, in good temper, certainly with no malice toward any section. I shall do all that may be in my power to promote a peaceful settlement of all our difficulties. The man does not live who is more devoted to peace than I am, none who would do more to preserve it, but it may be necessary to put the foot down firmly. And if I do my duty and do right, you will sustain me, will you not? [Loud cheers, and cries of "Yes,

yes; we will."] Received as I am by the members of a Legislature the majority of whom do not agree with me in political sentiments, I trust that I may have their assistance in piloting the ship of state through this voyage, surrounded by perils as it is; for if it should suffer wreck now, there will be no pilot ever needed for another voyage.

Gentlemen, I have already spoken longer than I intended, and must beg leave to stop here.

REPLY TO THE MAYOR OF PHILADELPHIA, PENNSYLVANIA,

FEBRUARY 21, 1861

MR. MAYOR AND FELLOW-CITIZENS OF PHILADELPHIA:—I appear before you to make no lengthy speech, but to thank you for this reception. The reception you have given me to-night is not to me, the man, the individual, but to the man who temporarily represents, or should represent, the majesty of the nation. It is true, as your worthy mayor has said, that there is great anxiety amongst the citizens of the United States at this time. I deem it a happy circumstance that this dissatisfied portion of our fellow-citizens does not point us to anything in which they are being injured or about to be injured; for which reason I have felt all the while justified in concluding that the crisis, the panic, the anxiety of the country at this time is artificial. If there be those who differ with me upon this subject, they have not pointed out the substantial difficulty that exists. I do not mean to say that an artificial panic may not do considerable harm; that it has done such I do not deny. The hope that has been expressed by your mayor, that I may be able to restore peace, harmony, and prosperity to the country, is most worthy of him; and most happy, indeed, will I be if I shall be able to verify and fulfil that hope. I promise you that I bring to the work a sincere heart. Whether I will bring a head equal to that heart will be for future times to determine. It were useless for me to speak of details of plans now; I shall speak officially next Monday week, if ever. If I should not speak then, it were useless for me to do so now. If I do speak then, it is useless for me to do so now. When I do speak, I shall take such ground as I deem best calculated to restore peace, harmony, and prosperity to the country, and tend to the perpetuity of the nation and the liberty of these States and these people. Your worthy mayor has expressed the wish, in which I join with him, that it were convenient for me to remain in your city long enough to consult your merchants and manufacturers; or, as it were, to listen to those breathings rising within the consecrated walls wherein the Constitution of the United States and, I will add, the Declaration of Independence, were

originally framed and adopted. I assure you and your mayor that I had hoped on this occasion, and upon all occasions during my life, that I shall do nothing inconsistent with the teachings of these holy and most sacred walls. I have never asked anything that does not breathe from those walls. All my political warfare has been in favor of the teachings that come forth from these sacred walls. May my right hand forget its cunning and my tongue cleave to the roof of my mouth if ever I prove false to those teachings. Fellow-citizens, I have addressed you longer than I expected to do, and now allow me to bid you goodnight.

ADDRESS IN THE HALL OF INDEPENDENCE, PHILADELPHIA,

FEBRUARY 22, 1861

MR. CUYLER:—I am filled with deep emotion at finding myself standing here, in this place, where were collected together the wisdom, the devotion to principle, from which sprang the institutions under which we live. You have kindly suggested to me that in my hands is the task of restoring peace to the present distracted condition of the country. I can say in return, sir, that all the political sentiments I entertain have been drawn, so far as I have been able to draw them, from the sentiments which originated and were given to the world from this hall. I have never had a feeling politically that did not spring from the sentiments embodied in the Declaration of Independence. I have often pondered over the dangers which were incurred by the men who assembled here and framed and adopted that Declaration of Independence. I have pondered over the toils that were endured by the officers and soldiers of the army who achieved that independence. I have often inquired of myself what great principle or idea it was that kept the confederacy so long together. It was not the mere matter of separation of the colonies from the motherland, but that sentiment in the Declaration of Independence which gave liberty, not alone to the people of this country, but, I hope, to the world for all future time. It was that which gave promise that in due time the weight would be lifted from the shoulders of all men. This is the sentiment embodied in the Declaration of Independence. Now, my friends, can the country be saved upon that basis? If it can, I will consider myself one of the happiest men in the world if I can help to save it. If it cannot be saved upon that principle, it will be truly awful. But if this country cannot be saved without giving up that principle, I was about to say I would rather be assassinated on this spot than surrender it. Now, in my view of the present aspect of affairs, there need be no bloodshed or war. There is no necessity for it. I am not in favor of such a course, and I may say, in advance, that there will be no bloodshed unless it

is forced upon the Government, and then it will be compelled to act in self-defence.

My friends; this is wholly an unexpected speech, and I did not expect to be called upon to say a word when I came here. I supposed it was merely to do something toward raising the flag. I may, therefore, have said something indiscreet. I have said nothing but what I am willing to live by and, if it be the pleasure of Almighty God, die by.

REPLY TO THE WILMINGTON DELEGATION,

FEBRUARY 22, 1861

MR. CHAIRMAN:—I feel highly flattered by the encomiums you have seen fit to bestow upon me. Soon after the nomination of General Taylor, I attended a political meeting in the city of Wilmington, and have since carried with me a fond remembrance of the hospitalities of the city on that occasion. The programme established provides for my presence in Harrisburg in twenty-four hours from this time. I expect to be in Washington on Saturday. It is, therefore, an impossibility that I should accept your kind invitation. There are no people whom I would more gladly accommodate than those of Delaware; but circumstances forbid, gentlemen. With many regrets for the character of the reply I am compelled to give you, I bid you adieu.

ADDRESS AT LANCASTER, PENNSYLVANIA,

FEBRUARY 22, 1860

LADIES AND GENTLEMEN OF OLD LANCASTER:—I appear not to make a speech. I have not time to make a speech at length, and not strength to make them on every occasion; and, worse than all, I have none to make. There is plenty of matter to speak about in these times, but it is well known that the more a man speaks the less he is understood—the more he says one thing, the more his adversaries contend he meant something else. I shall soon have occasion to speak officially, and then I will endeavor to put my thoughts just as plain as I can express myself—true to the Constitution and Union of all the States, and to the perpetual liberty of all the people. Until I so speak, there is no need to enter upon details. In conclusion, I greet you most heartily, and bid you an affectionate farewell.

ADDRESS TO THE LEGISLATURE OF PENNSYLVANIA, AT HARRISBURG,

FEBRUARY 22, 1861

MR. SPEAKER OF THE SENATE, AND ALSO MR. SPEAKER OF THE HOUSE OF REPRESENTATIVES, AND GENTLEMEN OF THE GENERAL ASSEMBLY OF THE STATE OF PENNSYLVANIA:—I appear before you only for a very few brief remarks in response to what has been said to me. I thank you most sincerely for this reception, and the generous words in which support has been promised me upon this occasion. I thank your great commonwealth for the overwhelming support it recently gave, not me personally, but the cause which I think a just one, in the late election.

Allusion has been made to the fact—the interesting fact perhaps we should say—that I for the first time appear at the capital of the great commonwealth of Pennsylvania upon the birthday of the Father of his Country. In connection with that beloved anniversary connected with the history of this country, I have already gone through one exceedingly interesting scene this morning in the ceremonies at Philadelphia. Under the kind conduct of gentlemen there, I was for the first time allowed the privilege of standing in old Independence Hall to have a few words addressed to me there, and opening up to me an opportunity of manifesting my deep regret that I had not more time to express something of my own feelings excited by the occasion, that had been really the feelings of my whole life.

Besides this, our friends there had provided a magnificent flag of the country. They had arranged it so that I was given the honor of raising it to the head of its staff, and when it went up I was pleased that it went to its place by the strength of my own feeble arm. When, according to the arrangement, the cord was pulled, and it floated gloriously to the wind, without an accident, in the bright, glowing sunshine of the morning, I could not help hoping that there was in the entire success of that beautiful

ceremony at least something of an omen of what is to come. Nor could I help feeling then, as I have often felt, that in the whole of that proceeding I was a very humbled instrument. I had not provided the flag; I had not made the arrangements for elevating it to its place; I had applied but a very small portion of even my feeble strength in raising it. In the whole transaction I was in the hands of the people who had arranged it, and if I can have the same generous co-operation of the people of this nation, I think the flag of our country may yet be kept flaunting gloriously.

I recur for a moment but to repeat some words uttered at the hotel in regard to what has been said about the military support which the General Government may expect from the commonwealth of Pennsylvania in a proper emergency. To guard against any possible mistake do I recur to this. It is not with any pleasure that I contemplate the possibility that a necessity may arise in this country for the use of the military arm. While I am exceedingly gratified to see the manifestation upon your streets of your military force here, and exceedingly gratified at your promise to use that force upon a proper emergency—while I make these acknowledgments I desire to repeat, in order to preclude any possible misconstruction, that I do most sincerely hope that we shall have no use for them; that it will never become their duty to shed blood, and most especially never to shed fraternal blood. I promise that so far as I may have wisdom to direct, if so painful a result shall in any wise be brought about, it shall be through no fault of mine.

Allusion has also been made by one of your honored speakers to some remarks recently made by myself at Pittsburg in regard to what is supposed to be the especial interest of this great commonwealth of Pennsylvania. I now wish only to say in regard to that matter, that the few remarks which I uttered on that occasion were rather carefully worded. I took pains that they should be so. I have seen no occasion since to add to them or subtract from them. I leave them precisely as they stand, adding only now that I am pleased to have an expression from you, gentlemen of Pennsylvania, signifying that they are satisfactory to you.

And now, gentlemen of the General Assembly of the Commonwealth of Pennsylvania, allow me again to return to you my most sincere thanks.

REPLY TO THE MAYOR OF WASHINGTON, D.C.,

FEBRUARY 27, 1861

Mr. MAYOR:—I thank you, and through you the municipal authorities of this city who accompany you, for this welcome. And as it is the first time in my life, since the present phase of politics has presented itself in this country, that I have said anything publicly within a region of country where the institution of slavery exists, I will take this occasion to say that I think very much of the ill feeling that has existed and still exists between the people in the section from which I came and the people here, is dependent upon a misunderstanding of one another. I therefore avail myself of this opportunity to assure you, Mr. Mayor, and all the gentlemen present, that I have not now, and never have had, any other than as kindly feelings toward you as to the people of my own section. I have not now, and never have had, any disposition to treat you in any respect otherwise than as my own neighbors. I have not now any purpose to withhold from you any of the benefits of the Constitution, under any circumstances, that I would not feel myself constrained to withhold from my own neighbors; and I hope, in a word, that when we shall become better acquainted—and I say it with great confidence—we shall like each other better. I thank you for the kindness of this reception.

REPLY TO A SERENADE AT WASHINGTON, D.C.,

FEBRUARY 28, 1861

MY FRIENDS:—I suppose that I may take this as a compliment paid to me, and as such please accept my thanks for it. I have reached this city of Washington under circumstances considerably differing from those under which any other man has ever reached it. I am here for the purpose of taking an official position amongst the people, almost all of whom were politically opposed to me, and are yet opposed to me, as I suppose.

I propose no lengthy address to you. I only propose to say, as I did on yesterday, when your worthy mayor and board of aldermen called upon me, that I thought much of the ill feeling that has existed between you and the people of your surroundings and that people from among whom I came, has depended, and now depends, upon a misunderstanding.

I hope that, if things shall go along as prosperously as I believe we all desire they may, I may have it in my power to remove something of this misunderstanding; that I may be enabled to convince you, and the people of your section of the country, that we regard you as in all things our equals, and in all things entitled to the same respect and the same treatment that we claim for ourselves; that we are in no wise disposed, if it were in our power, to oppress you, to deprive you of any of your rights under the Constitution of the United States, or even narrowly to split hairs with you in regard to these rights, but are determined to give you, as far as lies in our hands, all your rights under the Constitution—not grudgingly, but fully and fairly. I hope that, by thus dealing with you, we will become better acquainted, and be better friends.

And now, my friends, with these few remarks, and again returning my thanks for this compliment, and expressing my desire to hear a little more of your good music, I bid you good-night.

WASHINGTON, SUNDAY, MARCH 3, 1861

[During the struggle over the appointments of LINCOLN's Cabinet, the President-elect spoke as follows:]

Gentlemen, it is evident that some one must take the responsibility of these appointments, and I will do it. My Cabinet is completed. The positions are not definitely assigned, and will not be until I announce them privately to the gentlemen whom I have selected as my Constitutional advisers.

FIRST INAUGURAL ADDRESS, MARCH 4, 1861

FELLOW-CITIZENS OF THE UNITED STATES:—In compliance with a custom as old as the Government itself, I appear before you to address you briefly, and to take in your presence the oath prescribed by the Constitution of the United States to be taken by the President "before he enters on the execution of his office."

I do not consider it necessary at present for me to discuss those matters of administration about which there is no special anxiety or excitement.

Apprehension seems to exist among the people of the Southern States that by the accession of a Republican administration their property and their peace and personal security are to be endangered. There has never been any reasonable cause for such apprehension. Indeed, the most ample evidence to the contrary has all the while existed and been open to their inspection. It is found in nearly all the published speeches of him who now addresses you. I do but quote from one of those speeches when I declare that

"I have no purpose, directly or indirectly, to interfere with the institution of slavery in the States where it exists. I believe I have no lawful right to do so, and I have no inclination to do so."

Those who nominated and elected me did so with full knowledge that I had made this and many similar declarations, and had never recanted them. And, more than this, they placed in the platform for my acceptance, and as a law to themselves and to me, the clear and emphatic resolution which I now read:

"Resolved, That the maintenance inviolate of the rights of the States, and especially the right of each State to order and control its own domestic institutions according to its own judgment exclusively, is essential to that balance of power on which the perfection and endurance of our political fabric depend, and we denounce the lawless invasion by armed force of the soil of any State or Territory, no matter under what pretext, as amongst the gravest of crimes."

I now reiterate these sentiments; and, in doing so, I only press upon the public attention the most conclusive evidence of which the case is susceptible, that the property, peace, and security of no section are to be in any wise endangered by the now incoming administration. I add, too, that all the protection which, consistently with the Constitution and the laws, can be given, will be cheerfully given to all the States when lawfully demanded, for whatever cause—as cheerfully to one section as to another.

There is much controversy about the delivering up of fugitives from service or labor. The clause I now read is as plainly written in the Constitution as any other of its provisions:

"No person held to service or labor in one State, under the laws thereof, escaping into another, shall in consequence of any law or regulation therein be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due."

It is scarcely questioned that this provision was intended by those who made it for the reclaiming of what we call fugitive slaves; and the intention of the lawgiver is the law. All members of Congress swear their support to the whole Constitution—to this provision as much as to any other. To the proposition, then, that slaves whose cases come within the terms of this clause "shall be delivered up," their oaths are unanimous. Now, if they would make the effort in good temper, could they not with nearly equal unanimity frame and pass a law by means of which to keep good that unanimous oath?

There is some difference of opinion whether this clause should be enforced by national or by State authority; but surely that difference is not a very material one. If the slave is to be surrendered, it can be of but little consequence to him or to others by which authority it is done. And should any one in any case be content that his oath shall go unkept on a merely unsubstantial controversy as to how it shall be kept?

Again, in any law upon this subject, ought not all the safeguards of liberty known in civilized and humane jurisprudence to be introduced, so that a free man be not, in any case, surrendered as a slave? And might it not be well at the same time to provide by law for the enforcement of that clause in the Constitution which guarantees that "the citizens of each State shall be entitled to all privileges and immunities of citizens in the several States"?

I take the official oath to-day with no mental reservations, and with no purpose to construe the Constitution or laws by any hypercritical rules. And, while I do not choose now to specify particular acts of Congress as proper to be enforced, I do suggest that it will be much safer for all, both in official and private stations, to conform to and abide by all those acts which stand unrepealed, than to violate any of them, trusting to find impunity in having them held to be unconstitutional.

It is seventy-two years since the first inauguration of a President under our national Constitution. During that period fifteen different and greatly distinguished citizens have, in succession, administered the executive branch of the Government. They have conducted it through many perils, and generally with great success. Yet, with all this scope of precedent, I now enter upon the same task for the brief constitutional term of four years under great and peculiar difficulty. A disruption of the Federal Union, heretofore only menaced, is now formidably attempted.

I hold that, in contemplation of universal law and of the Constitution, the Union of these States is perpetual. Perpetuity is implied, if not expressed, in the fundamental law of all national governments. It is safe to assert that no government proper ever had a provision in its organic law for its own termination. Continue to execute all the express provisions of our national Constitution, and the Union will endure forever—it being impossible to destroy it except by some action not provided for in the instrument itself.

Again, if the United States be not a government proper, but an association of States in the nature of contract merely, can it as a contract be peaceably unmade by less than all the parties who made it? One party to a contract may violate it—break it, so to speak; but does it not require all to lawfully rescind it?

Descending from these general principles, we find the proposition that in legal contemplation the Union is perpetual confirmed by the history of the Union itself. The Union is much older than the Constitution. It was formed, in fact, by the Articles of Association in 1774. It was matured and continued by the Declaration of Independence in 1776. It was further matured, and the faith of all the then thirteen States expressly plighted and engaged that it should be perpetual, by the Articles of Confederation in 1778. And, finally, in 1787 one of the declared objects for ordaining and establishing the Constitution was "to form a more perfect Union."

But if the destruction of the Union by one or by a part only of the States be lawfully possible, the Union is less perfect than before the Constitution, having lost the vital element of perpetuity.

It follows from these views that no State upon its own mere motion can lawfully get out of the Union; that resolves and ordinances to that effect are legally void; and that acts of violence, within any State or States, against the authority of the United States, are insurrectionary or revolutionary, according to circumstances.

I therefore consider that, in view of the Constitution and the laws, the Union is unbroken; and to the extent of my ability I shall take care, as the Constitution itself expressly enjoins upon me, that the laws of the Union be faithfully executed in all the States. Doing this I deem to be only a simple duty on my part; and I shall perform it so far as practicable, unless my rightful masters, the American people, shall withhold the requisite means, or in some authoritative manner direct the contrary. I trust this will not be regarded as a menace, but only as the declared purpose of the Union that it will constitutionally defend and maintain itself.

In doing this there needs to be no bloodshed or violence; and there shall be none, unless it be forced upon the national authority. The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government, and to collect the duties and imposts; but beyond what may be necessary for these objects, there will be no invasion, no using of force against or among the people anywhere. Where hostility to the United States, in any interior locality, shall be so great and universal as to prevent competent resident citizens from holding the Federal offices, there will be no attempt to force obnoxious strangers among the people for that object. While the strict legal right may exist in the government to enforce the exercise of these offices, the attempt to do so would be so irritating, and so nearly impracticable withal, that I deem it better to forego for the time the uses of such offices.

The mails, unless repelled, will continue to be furnished in all parts of the Union. So far as possible, the people everywhere shall have that sense of perfect security which is most favorable to calm thought and reflection. The course here indicated will be followed unless current events and experience shall show a modification or change to be proper, and in every case and exigency my best discretion will be exercised according to circumstances

actually existing, and with a view and a hope of a peaceful solution of the national troubles and the restoration of fraternal sympathies and affections.

That there are persons in one section or another who seek to destroy the Union at all events, and are glad of any pretext to do it, I will neither affirm nor deny; but if there be such, I need address no word to them. To those, however, who really love the Union may I not speak?

Before entering upon so grave a matter as the destruction of our national fabric, with all its benefits, its memories, and its hopes, would it not be wise to ascertain precisely why we do it? Will you hazard so desperate a step while there is any possibility that any portion of the ills you fly from have no real existence? Will you, while the certain ills you fly to are greater than all the real ones you fly from—will you risk the commission of so fearful a mistake?

All profess to be content in the Union if all constitutional rights can be maintained. Is it true, then, that any right, plainly written in the Constitution, has been denied? I think not. Happily the human mind is so constituted that no party can reach to the audacity of doing this. Think, if you can, of a single instance in which a plainly written provision of the Constitution has ever been denied. If by the mere force of numbers a majority should deprive a minority of any clearly written constitutional right, it might, in a moral point of view, justify revolution—certainly would if such a right were a vital one. But such is not our case. All the vital rights of minorities and of individuals are so plainly assured to them by affirmations and negations, guaranties and prohibitions, in the Constitution, that controversies never arise concerning them. But no organic law can ever be framed with a provision specifically applicable to every question which may occur in practical administration. No foresight can anticipate, nor any document of reasonable length contain, express provisions for all possible questions. Shall fugitives from labor be surrendered by national or by State authority? The Constitution does not expressly say. May Congress prohibit slavery in the Territories? The Constitution does not expressly say. Must Congress protect slavery in the Territories? The Constitution does not expressly say.

From questions of this class spring all our constitutional controversies, and we divide upon them into majorities and minorities. If the minority will not acquiesce, the majority must, or the Government must cease. There is

no other alternative; for continuing the Government is acquiescence on one side or the other.

If a minority in such case will secede rather than acquiesce, they make a precedent which in turn will divide and ruin them; for a minority of their own will secede from them whenever a majority refuses to be controlled by such minority. For instance, why may not any portion of a new confederacy a year or two hence arbitrarily secede again, precisely as portions of the present Union now claim to secede from it? All who cherish disunion sentiments are now being educated to the exact temper of doing this.

Is there such perfect identity of interests among the States to compose a new Union as to produce harmony only, and prevent renewed secession?

Plainly, the central idea of secession is the essence of anarchy. A majority held in restraint by constitutional checks and limitations, and always changing easily with deliberate changes of popular opinions and sentiments, is the only true sovereign of a free people. Whoever rejects it does, of necessity, fly to anarchy or to despotism. Unanimity is impossible; the rule of a minority, as a permanent arrangement, is wholly inadmissible; so that, rejecting the majority principle, anarchy or despotism in some form is all that is left.

I do not forget the position assumed by some, that constitutional questions are to be decided by the Supreme Court; nor do I deny that such decisions must be binding, in any case, upon the parties to a suit, as to the object of that suit, while they are also entitled to very high respect and consideration in all parallel cases by all other departments of the government. And, while it is obviously possible that such decision may be erroneous in any given case, still the evil effect following it, being limited to that particular case, with the chance that it may be overruled and never become a precedent for other cases, can better be borne than could the evils of a different practice. At the same time, the candid citizen must confess that if the policy of the government, upon vital questions affecting the whole people, is to be irrevocably fixed by decisions of the Supreme Court, the instant they are made, in ordinary litigation between parties in personal actions, the people will have ceased to be their own rulers, having to that extent practically resigned the government into the hands of that eminent tribunal. Nor is there in this view any assault upon the court or the judges. It is a duty from which they may not shrink to decide cases properly brought

before them, and it is no fault of theirs if others seek to turn their decisions to political purposes.

One section of our country believes slavery is right, and ought to be extended, while the other believes it is wrong, and ought not to be extended. This is the only substantial dispute. The fugitive slave clause of the Constitution and the law for the suppression of the foreign slave trade are each as well enforced, perhaps, as any law can ever be in a community where the moral sense of the people imperfectly supports the law itself. The great body of the people abide by the dry legal obligation in both cases, and a few break over in each. This, I think, cannot be perfectly cured; and it would be worse in both cases after the separation of the sections than before. The foreign slave trade, now imperfectly suppressed, would be ultimately revived, without restriction, in one section, while fugitive slaves, now only partially surrendered, would not be surrendered at all by the other.

Physically speaking, we cannot separate. We cannot remove our respective sections from each other, nor build an impassable wall between them. A husband and wife may be divorced and go out of the presence and beyond the reach of each other; but the different parts of our country cannot do this. They cannot but remain face to face, and intercourse, either amicable or hostile, must continue between them. Is it possible, then, to make that intercourse more advantageous or more satisfactory after separation than before? Can aliens make treaties easier than friends can make laws? Can treaties be more faithfully enforced between aliens than laws can among friends? Suppose you go to war, you cannot fight always; and when, after much loss on both sides, and no gain on either, you cease fighting, the identical old questions as to terms of intercourse are again upon you.

This country, with its institutions, belongs to the people who inhabit it. Whenever they shall grow weary of the existing government, they can exercise their constitutional right of amending it, or their revolutionary right to dismember or overthrow it. I cannot be ignorant of the fact that many worthy and patriotic citizens are desirous of having the national Constitution amended. While I make no recommendation of amendments, I fully recognize the rightful authority of the people over the whole subject, to be exercised in either of the modes prescribed in the instrument itself, and I should, under existing circumstances, favor rather than oppose a fair

opportunity being afforded the people to act upon it. I will venture to add that to me the convention mode seems preferable, in that it allows amendments to originate with the people themselves, instead of only permitting them to take or reject propositions originated by others not especially chosen for the purpose, and which might not be precisely such as they would wish to either accept or refuse. I understand a proposed amendment to the Constitution which amendment, however, I have not seen—has passed Congress, to the effect that the Federal Government shall never interfere with the domestic institutions of the States, including that of persons held to service. To avoid misconstruction of what I have said, I depart from my purpose not to speak of particular amendments so far as to say that, holding such a provision to now be implied constitutional law, I have no objection to its being made express and irrevocable.

The chief magistrate derives all his authority from the people, and they have conferred none upon him to fix terms for the separation of the States. The people themselves can do this also if they choose; but the executive, as such, has nothing to do with it. His duty is to administer the present government, as it came to his hands, and to transmit it, unimpaired by him, to his successors.

Why should there not be a patient confidence in the ultimate justice of the people? Is there any better or equal hope in the world? In our present differences is either party without faith of being in the right? If the Almighty Ruler of nations, with his eternal truth and justice, be on your side of the North, or on yours of the South, that truth and that justice will surely prevail by the judgment of this great tribunal of the American people.

By the frame of the government under which we live, this same people have wisely given their public servants but little power for mischief; and have, with equal wisdom, provided for the return of that little to their own hands at very short intervals. While the people retain their virtue and vigilance, no administration, by any extreme of wickedness or folly, can very seriously injure the government in the short space of four years.

My countrymen, one and all, think calmly and well upon this whole subject. Nothing valuable can be lost by taking time. If there be an object to hurry any of you in hot haste to a step which you would never take deliberately, that object will be frustrated by taking time; but no good object can be frustrated by it. Such of you as are now dissatisfied still have the old

Constitution unimpaired, and, on the sensitive point, the laws of your own framing under it; while the new administration will have no immediate power, if it would, to change either. If it were admitted that you who are dissatisfied hold the right side in the dispute, there still is no single good reason for precipitate action. Intelligence, patriotism, Christianity, and a firm reliance on Him who has never yet forsaken this favored land, are still competent to adjust in the best way all our present difficulty.

In your hands, my dissatisfied fellow-countrymen, and not in mine, is the momentous issue of civil war. The government will not assail you. You can have no conflict without being yourselves the aggressors. You have no oath registered in heaven to destroy the government, while I shall have the most solemn one to "preserve, protect, and defend" it.

I am loath to close. We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break, our bonds of affection. The mystic chords of memory, stretching from every battle-field and patriot grave to every living heart and hearthstone all over this broad land, will yet swell the chorus of the Union when again touched, as surely they will be, by the better angels of our nature.

REFUSAL OF SEWARD RESIGNATION

TO WM. H. SEWARD.

EXECUTIVE MANSION, March 4, 1861.

MY DEAR SIR:—Your note of the 2d instant, asking to withdraw your acceptance of my invitation to take charge of the State Department, was duly received. It is the subject of the most painful solicitude with me, and I feel constrained to beg that you will countermand the withdrawal. The public interest, I think, demands that you should; and my personal feelings are deeply enlisted in the same direction. Please consider and answer by 9 A.M. to-morrow.

Your obedient servant,

A. LINCOLN.

REPLY TO THE PENNSYLVANIA DELEGATION,

WASHINGTON, MARCH 5, 1861

Mr. CHAIRMAN AND GENTLEMEN OF THE PENNSYLVANIAN DELEGATION:—As I have so frequently said heretofore, when I have had occasion to address the people of the Keystone, in my visits to that State, I can now but repeat the assurance of my gratification at the support you gave me at the election, and at the promise of a continuation of that support which is now tendered to me.

Allusion has been made to the hope that you entertain that you have a President and a government. In respect to that I wish to say to you that in the position I have assumed I wish to do more than I have ever given reason to believe I would do. I do not wish you to believe that I assume to be any better than others who have gone before me. I prefer rather to have it understood that if we ever have a government on the principles we profess, we should remember, while we exercise our opinion, that others have also rights to the exercise of their opinions, and that we should endeavor to allow these rights, and act in such a manner as to create no bad feeling. I hope we have a government and a President. I hope, and wish it to be understood, that there may be no allusion to unpleasant differences.

We must remember that the people of all the States are entitled to all the privileges and immunities of the citizens of the several States. We should bear this in mind, and act in such a way as to say nothing insulting or irritating. I would inculcate this idea, so that we may not, like Pharisees, set ourselves up to be better than other people.

Now, my friends, my public duties are pressing to-day, and will prevent my giving more time to you. Indeed, I should not have left them now, but I could not well deny myself to so large and respectable a body.

REPLY TO THE MASSACHUSETTS DELEGATION,

WASHINGTON, MARCH 5, 1861

I am thankful for this renewed assurance of kind feeling and confidence, and the support of the old Bay State, in so far as you, Mr. Chairman, have expressed, in behalf of those whom you represent, your sanction of what I have enunciated in my inaugural address. This is very grateful to my feelings. The object was one of great delicacy, in presenting views at the opening of an administration under the peculiar circumstances attending my entrance upon the official duties connected with the Government. I studied all the points with great anxiety, and presented them with whatever of ability and sense of justice I could bring to bear. If it met the approbation of our good friends in Massachusetts, I shall be exceedingly gratified, while I hope it will meet the approbation of friends everywhere. I am thankful for the expressions of those who have voted with us; and like every other man of you, I like them as certainly as I do others. As the President in the administration of the Government, I hope to be man enough not to know one citizen of the United States from another, nor one section from another. I shall be gratified to have good friends of Massachusetts and others who have thus far supported me in these national views still to support me in carrying them out.

TO SECRETARY SEWARD

EXECUTIVE CHAMBER, MARCH 7, 1861

MY DEAR SIR:—Herewith is the diplomatic address and my reply. To whom the reply should be addressed—that is, by what title or style—I do not quite understand, and therefore I have left it blank.

Will you please bring with you to-day the message from the War Department, with General Scott's note upon it, which we had here yesterday? I wish to examine the General's opinion, which I have not yet done.

Yours very truly

A. LINCOLN.

REPLY TO THE DIPLOMATIC CORPS

WASHINGTON, THURSDAY, MARCH 7, 1861

Mr. FIGANIERE AND GENTLEMEN OF THE DIPLOMATIC BODY:
—Please accept my sincere thanks for your kind congratulations. It affords me pleasure to confirm the confidence you so generously express in the friendly disposition of the United States, through me, towards the sovereigns and governments you respectively represent. With equal satisfaction I accept the assurance you are pleased to give, that the same disposition is reciprocated by your sovereigns, your governments, and yourselves.

Allow me to express the hope that these friendly relations may remain undisturbed, and also my fervent wishes for the health and happiness of yourselves personally.

TO SECRETARY SEWARD

EXECUTIVE MANSION, MARCH 11, 1861

HON. SECRETARY OF STATE. DEAR SIR:—What think you of sending ministers at once as follows: Dayton to England; Fremont to France; Clay to Spain; Corwin to Mexico?

We need to have these points guarded as strongly and quickly as possible. This is suggestion merely, and not dictation.

Your obedient servant,

A. LINCOLN.

TO J. COLLAMER

EXECUTIVE MANSION, MARCH 12, 1861

HON. JACOB COLLAMER. MY DEAR SIR:—God help me. It is said I have offended you. I hope you will tell me how.

Yours very truly,

A. LINCOLN.

March 14, 1861. DEAR SIR:—I am entirely unconscious that you have any way offended me. I cherish no sentiment towards you but that of kindness and confidence. Your humble servant, J. COLLAMER.

[Returned with indorsement:]

Very glad to know that I have n't.

A. LINCOLN.

TO THE POSTMASTER-GENERAL.

EXECUTIVE MANSION, MARCH 13, 1861

HON. P. M. G.

DEAR SIR:—The bearer of this, Mr. C. T. Hempstow, is a Virginian who wishes to get, for his son, a small place in your Dept. I think Virginia should be heard, in such cases.

LINCOLN.

NOTE ASKING CABINET OPINIONS ON FORT SUMTER.

EXECUTIVE MANSION, MARCH 15, 1861

THE HONORABLE SECRETARY OF WAR.

MY DEAR SIR:—Assuming it to be possible to now provision Fort Sumter, under all the circumstances is it wise to attempt it? Please give me your opinion in writing on this question.

Your obedient servant,

A. LINCOLN.

[Same to other members of the Cabinet.]

ON ROYAL ARBITRATION OF AMERICAN BOUNDARY LINE

TO THE SENATE OF THE UNITED STATES

The Senate has transmitted to me a copy of the message sent by my predecessor to that body on the 21st of February last, proposing to take its advice on the subject of a proposition made by the British Government through its minister here to refer the matter in controversy between that government and the Government of the United States to the arbitrament of the King of Sweden and Norway, the King of the Netherlands, or the Republic of the Swiss Confederation.

In that message my predecessor stated that he wished to present to the Senate the precise questions following, namely:

"Will the Senate approve a treaty referring to either of the sovereign powers above named the dispute now existing between the governments of the United States and Great Britain concerning the boundary line between Vancouver's Island and the American continent? In case the referee shall find himself unable to decide where the line is by the description of it in the treaty of June 15, 1846, shall he be authorized to establish a line according to the treaty as nearly as possible? Which of the three powers named by Great Britain as an arbiter shall be chosen by the United States?"

I find no reason to disapprove of the course of my predecessor in this important matter; but, on the contrary, I not only shall receive the advice of the Senate thereon cheerfully, but I respectfully ask the Senate for their advice on the three questions before recited.

ABRAHAM LINCOLN.

WASHINGTON, March 16, 1861

AMBASSADORIAL APPOINTMENTS

TO SECRETARY SEWARD.

EXECUTIVE MANSION, MARCH 18, 1861 HON. SECRETARY OF STATE.

MY DEAR SIR:—I believe it is a necessity with us to make the appointments I mentioned last night—that is, Charles F. Adams to England, William L. Dayton to France, George P. Marsh to Sardinia, and Anson Burlingame to Austria. These gentlemen all have my highest esteem, but no one of them is originally suggested by me except Mr. Dayton. Mr. Adams I take because you suggested him, coupled with his eminent fitness for the place. Mr. Marsh and Mr. Burlingame I take because of the intense pressure of their respective States, and their fitness also.

The objection to this card is that locally they are so huddled up—three being in New England and two from a single State. I have considered this, and will not shrink from the responsibility. This, being done, leaves but five full missions undisposed of—Rome, China, Brazil, Peru, and Chili. And then what about Carl Schurz; or, in other words, what about our German friends?

Shall we put the card through, and arrange the rest afterward? What say you?

Your obedient servant,

A. LINCOLN.

TO G. E. PATTEN.

EXECUTIVE MANSION, March 19, 1861.

TO MASTER GEO. EVANS PATTEN.

WHOM IT MAY CONCERN:—I did see and talk with Master Geo. Evans Patten last May at Springfield, Ill.

Respectfully,

A. LINCOLN.

[Written because of a denial that any interview with young Patten, then a schoolboy, had ever taken place.]

RESPONSE TO SENATE INQUIRY RE. FORT SUMTER

MESSAGE TO THE SENATE.

TO THE SENATE OF THE UNITED STATES:—I have received a copy of the resolution of the Senate, passed on the 25th instant, requesting me, if in my opinion not incompatible with the public interest, to communicate to the Senate the despatches of Major Robert Anderson to the War Department during the time he has been in command of Fort Sumter. On examination of the correspondence thus called for, I have, with the highest respect for the Senate, come to the conclusion that at the present moment the publication of it would be inexpedient.

A. LINCOLN WASHINGTON, MARCH 16, 1861

PREPARATION OF FIRST NAVAL ACTION

TO THE SECRETARY OF WAR

EXECUTIVE MANSION, MARCH 29, 1861 HONORABLE
SECRETARY OF WAR.

SIR:—I desire that an expedition to move by sea be got ready to sail as early as the 6th of April next, the whole according to memorandum attached, and that you cooperate with the Secretary of the Navy for that object.

Your obedient servant,

A. LINCOLN.

[Inclosure.]

Steamers Pocahontas at Norfolk, Paunee at Washington, Harriet Lane at New York, to be under sailing orders for sea, with stores, etc., for one month. Three hundred men to be kept ready for departure from on board the receiving-ships at New York. Two hundred men to be ready to leave Governor's Island in New York. Supplies for twelve months for one hundred men to be put in portable shape, ready for instant shipping. A large steamer and three tugs conditionally engaged.

TO ——— STUART.

WASHINGTON, March 30, 1861

DEAR STUART:

Cousin Lizzie shows me your letter of the 27th. The question of giving her the Springfield post-office troubles me. You see I have already appointed William Jayne a Territorial governor and Judge Trumbull's brother to a land-office. Will it do for me to go on and justify the declaration that Trumbull and I have divided out all the offices among our relatives? Dr. Wallace, you know, is needy, and looks to me; and I personally owe him much.

I see by the papers, a vote is to be taken as to the post-office. Could you not set up Lizzie and beat them all? She, being here, need know nothing of it, so therefore there would be no indelicacy on her part.

Yours as ever,

**TO THE COMMANDANT OF THE NEW YORK
NAVY-YARD.**

NAVY DEPT., WASHINGTON, April 1, 1861

TO THE COMMANDANT OF THE NAVY-YARD, Brooklyn, N. Y.

Fit out the Powhatan to go to sea at the earnest possible moment under sealed orders. Orders by a confidential messenger go forward to-morrow.

A. LINCOLN.

TO LIEUTENANT D. D. PORTER

EXECUTIVE MANSION, April 1, 1861

LIEUTENANT D. D. PORTER, United States Navy.

SIR:—You will proceed to New York, and with the least possible delay, assuming command of any naval steamer available, proceed to Pensacola Harbor, and at any cost or risk prevent any expedition from the mainland reaching Fort Pickens or Santa Rosa Island.

You will exhibit this order to any naval officer at Pensacola, if you deem it necessary, after you have established yourself within the harbor, and will request co-operation by the entrance of at least one other steamer.

This order, its object, and your destination will be communicated to no person whatever until you reach the harbor of Pensacola.

A. LINCOLN.

Recommended, WILLIAM H. SEWARD.

RELIEF EXPEDITION FOR FORT SUMTER

ORDER TO OFFICERS OF THE ARMY AND NAVY.

WASHINGTON, EXECUTIVE MANSION, April 1, 1861.

All officers of the army and navy to whom this order may be exhibited will aid by every means in their power the expedition under the command of Colonel Harvey Brown, supplying him with men and material, and co-operating with him as he may desire.

A. LINCOLN.

ORDER TO CAPTAIN SAMUEL MERCER.

(Confidential.)

WASHINGTON CITY, April 1, 1861

SIR:—Circumstances render it necessary to place in command of your ship (and for a special purpose) an officer who is fully informed and instructed in relation to the wishes of the Government, and you will therefore consider yourself detached. But in taking this step the Government does not in the least reflect upon your efficiency or patriotism; on the contrary, have the fullest confidence in your ability to perform any duty required of you. Hoping soon to be able to give you a better command than the one you now enjoy, and trusting that you will have full confidence in the disposition of the Government toward you, I remain, etc.,

A. LINCOLN.

SECRETARY SEWARD'S BID FOR POWER

MEMORANDUM FROM SECRETARY SEWARD, APRIL 1, 1861

Some thoughts for the President's Consideration,

First. We are at the end of a month's administration, and yet without a policy either domestic or foreign.

Second. This, however, is not culpable, and it has even been unavoidable. The presence of the Senate, with the need to meet applications for patronage, have prevented attention to other and more grave matters.

Third. But further delay to adopt and prosecute our policies for both domestic and foreign affairs would not only bring scandal on the administration, but danger upon the country.

Fourth. To do this we must dismiss the applicants for office. But how? I suggest that we make the local appointments forthwith, leaving foreign or general ones for ulterior and occasional action.

Fifth. The policy at home. I am aware that my views are singular, and perhaps not sufficiently explained. My system is built upon this idea as a ruling one, namely, that we must **CHANGE THE QUESTION BEFORE THE PUBLIC FROM ONE UPON SLAVERY, OR ABOUT SLAVERY, for a question upon UNION OR DISUNION:** In other words, from what would be regarded as a party question, to one of patriotism or union.

The occupation or evacuation of Fort Sumter, although not in fact a slavery or a party question, is so regarded. Witness the temper manifested by the Republicans in the free States, and even by the Union men in the South.

I would therefore terminate it as a safe means for changing the issue. I deem it fortunate that the last administration created the necessity.

For the rest, I would simultaneously defend and reinforce all the ports in the gulf, and have the navy recalled from foreign stations to be prepared for a blockade. Put the island of Key West under martial law.

This will raise distinctly the question of union or disunion. I would maintain every fort and possession in the South.

FOR FOREIGN NATIONS,

I would demand explanations from Spain and France, categorically, at once.

I would seek explanations from Great Britain and Russia, and send agents into Canada, Mexico, and Central America to rouse a vigorous continental spirit of independence on this continent against European intervention.

And, if satisfactory explanations are not received from Spain and France, Would convene Congress and declare war against them.

But whatever policy we adopt, there must be an energetic prosecution of it.

For this purpose it must be somebody's business to pursue and direct it incessantly.

Either the President must do it himself, and be all the while active in it, or Devolve it on some member of his Cabinet. Once adopted, debates on it must end, and all agree and abide.

It is not in my especial province; But I neither seek to evade nor assume responsibility.

REPLY TO SECRETARY SEWARD'S MEMORANDUM

EXECUTIVE MANSION, APRIL 1, 1861

HON. W. H. SEWARD.

MY DEAR SIR:—Since parting with you I have been considering your paper dated this day, and entitled "Some Thoughts for the President's Consideration." The first proposition in it is, "First, We are at the end of a month's administration, and yet without a policy either domestic or foreign."

At the beginning of that month, in the inaugural, I said: "The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government, and to Collect the duties and imposts." This had your distinct approval at the time; and, taken in connection with the order I immediately gave General Scott, directing him to employ every means in his power to strengthen and hold the forts, comprises the exact domestic policy you now urge, with the single exception that it does not propose to abandon Fort Sumter.

Again, I do not perceive how the reinforcement of Fort Sumter would be done on a slavery or a party issue, while that of Fort Pickens would be on a more national and patriotic one.

The news received yesterday in regard to St. Domingo certainly brings a new item within the range of our foreign policy; but up to that time we have been preparing circulars and instructions to ministers and the like, all in perfect harmony, without even a suggestion that we had no foreign policy.

Upon your Closing propositions—that,

"Whatever policy we adopt, there must be an energetic prosecution of it.

"For this purpose it must be somebody's business to pursue and direct it incessantly.

"Either the President must do it himself, and be all the while active in it, or,

"Devolve it on some member of his Cabinet. Once adopted, debates on it must end, and all agree and abide"—

I remark that if this must be done, I must do it. When a general line of policy is adopted, I apprehend there is no danger of its being changed without good reason, or continuing to be a subject of unnecessary debate; still, upon points arising in its progress I wish, and suppose I am entitled to have, the advice of all the Cabinet.

Your obedient servant,

A. LINCOLN.

REPLY TO A COMMITTEE FROM THE VIRGINIA CONVENTION, APRIL 13, 1861

HON. WILLIAM BALLARD PRESTON, ALEXANDER H. H. STUART, GEORGE W. RANDOLPH, Esq.

GENTLEMEN:—As a committee of the Virginia Convention now in Session, you present me a preamble and resolution in these words:

"Whereas, in the opinion of this Convention, the uncertainty which prevails in the public mind as to the policy which the Federal Executive intends to pursue toward the seceded States is extremely injurious to the industrial and commercial interests of the country, tends to keep up an excitement which is unfavorable to the adjustment of pending difficulties, and threatens a disturbance of the public peace: therefore

"Resolved, that a committee of three delegates be appointed by this Convention to wait upon the President of the United States, present to him this preamble and resolution, and respectfully ask him to communicate to this Convention the policy which the Federal Executive intends to pursue in regard to the Confederate States.

"Adopted by the Convention of the State of Virginia, Richmond, April 8, 1861."

In answer I have to say that, having at the beginning of my official term expressed my intended policy as plainly as I was able, it is with deep regret and some mortification I now learn that there is great and injurious uncertainty in the public mind as to what that policy is, and what course I intend to pursue. Not having as yet seen occasion to change, it is now my purpose to pursue the course marked out in the inaugural address. I commend a careful consideration of the whole document as the best expression I can give of my purposes.

As I then and therein said, I now repeat: "The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government, and to collect the duties and imposts; but beyond what is necessary for these objects, there will be no invasion, no using of force against or among the people anywhere." By the words "property and places

belonging to the Government," I chiefly allude to the military posts and property which were in the possession of the Government when it came to my hands.

But if, as now appears to be true, in pursuit of a purpose to drive the United States authority from these places, an unprovoked assault has been made upon Fort Sumter, I shall hold myself at liberty to repossess, if I can, like places which had been seized before the Government was devolved upon me. And in every event I shall, to the extent of my ability, repel force by force. In case it proves true that Fort Sumter has been assaulted, as is reported, I shall perhaps cause the United States mails to be withdrawn from all the States which claim to have seceded, believing that the commencement of actual war against the Government justifies and possibly demands this.

I scarcely need to say that I consider the military posts and property situated within the States which claim to have seceded as yet belonging to the Government of the United States as much as they did before the supposed secession.

Whatever else I may do for the purpose, I shall not attempt to collect the duties and imposts by any armed invasion of any part of the country; not meaning by this, however, that I may not land a force deemed necessary to relieve a fort upon a border of the country.

From the fact that I have quoted a part of the inaugural address, it must not be inferred that I repudiate any other part, the whole of which I reaffirm, except so far as what I now say of the mails may be regarded as a modification.

PROCLAMATION CALLING FOR 75,000 MILITIA,

**AND CONVENING CONGRESS IN EXTRA SESSION,
APRIL 15, 1861.**

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA:

A Proclamation.

Whereas the laws of the United States have been for some time past and now are opposed, and the execution thereof obstructed, in the States of South Carolina, Georgia, Alabama, Florida, Mississippi, Louisiana, and Texas, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings, or by the powers vested in the marshals bylaw:

Now, therefore, I, A. LINCOLN, President of the United States, in virtue of the power in me vested by the Constitution and the laws, have thought fit to call forth, and hereby do call forth, the militia of the several States of the Union, to the aggregate number of seventy-five thousand, in order to suppress said combinations, and to cause the laws to be duly executed.

The details for this object will be immediately communicated to the State authorities through the War Department.

I appeal to all loyal citizens to favor, facilitate, and aid this effort to maintain the honor, the integrity, and the existence of our National Union, and the perpetuity of popular government; and to redress wrongs already long enough endured.

I deem it proper to say that the first service assigned to the forces hereby called forth will probably be to repossess the forts, places, and property which have been seized from the Union; and in every event the utmost care will be observed, consistently with the objects aforesaid, to avoid any devastation, any destruction of or interference with property, or any disturbance of peaceful citizens in any part of the country.

And I hereby command the persons composing the combinations aforesaid to disperse and retire peacefully to their respective abodes within twenty days from date.

Deeming that the present condition of public affairs presents an extraordinary occasion, I do hereby, in virtue of the power in me vested by the Constitution, convene both Houses of Congress. Senators and Representatives are therefore summoned to assemble at their respective chambers, at twelve o'clock noon, on Thursday, the fourth day of July next, then and there to consider and determine such measures as, in their wisdom, the public safety and interest may seem to demand.

In witness whereof, I have hereunto set my hand, and caused the seal of the United States to be affixed.

Done at the city of Washington, this fifteenth day of April, in the year of our Lord one thousand eight hundred and sixty-one, and of the independence of the United States the eighty-fifth.

A. LINCOLN

By the President:

WILLIAM H. SEWARD, Secretary of State.

PROCLAMATION OF BLOCKADE, APRIL 19, 1861

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA:

A Proclamation.

Whereas an insurrection against the Government of the United States has broken out in the States of South Carolina, Georgia, Alabama, Florida, Mississippi, Louisiana, and Texas, and the laws of the United States for the collection of the revenue cannot be effectually executed therein conformably to that provision of the Constitution which requires duties to be uniform throughout the United States:

And Whereas a combination of persons engaged in such insurrection have threatened to grant pretended letters of marque to authorize the bearers thereof to commit assaults on the lives, vessels, and property of good citizens of the country lawfully engaged in commerce on the high seas, and in waters of the United States:

And Whereas an executive proclamation has been already issued requiring the persons engaged in these disorderly proceedings to desist therefrom, calling out a militia force for the purpose of repressing the same, and convening Congress in extraordinary session to deliberate and determine thereon:

Now, therefore, I, Abraham LINCOLN, President of the United States, with a view to the same purposes before mentioned, and to the protection of the public peace, and the lives and property of quiet and orderly citizens pursuing their lawful occupations, until Congress shall have assembled and deliberated on the said unlawful proceedings, or until the same shall have ceased, have further deemed it advisable to set on foot a blockade of the ports within the States aforesaid, in pursuance of the laws of the United States, and of the law of nations in such case provided. For this purpose a competent force will be posted so as to prevent entrance and exit of vessels from the ports aforesaid. If, therefore, with a view to violate such blockade,

a vessel shall approach or shall attempt to leave either of the said ports, she will be duly warned by the commander of one of the blockading vessels, who will indorse on her register the fact and date of such warning, and if the same vessel shall again attempt to enter or leave the blockaded port, she will be captured and sent to the nearest convenient port, for such proceedings against her and her cargo, as prize, as may be deemed advisable.

And I hereby proclaim and declare that if any person, under the pretended authority of the said States, or under any other pretense, shall molest a vessel of the United States, or the persons or cargo on board of her, such person will be held amenable to the laws of the United States for the prevention and punishment of piracy.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this nineteenth day of April, in the year of our Lord one thousand eight hundred and sixty-one, and of the independence of the United States the eighty-fifth.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

TO GOVERNOR HICKS AND MAYOR BROWN.

WASHINGTON, April 20, 1861

GOVERNOR HICKS AND MAYOR BROWN.

GENTLEMEN:—Your letter by Messrs. Bond, Dobbin, and Brune is received. I tender you both my sincere thanks for your efforts to keep the peace in the trying situation in which you are placed.

For the future troops must be brought here, but I make no point of bringing them through Baltimore. Without any military knowledge myself, of course I must leave details to General Scott. He hastily said this morning in the presence of these gentlemen, "March them around Baltimore, and not through it." I sincerely hope the General, on fuller reflection, will consider this practical and proper, and that you will not object to it. By this a collision of the people of Baltimore with the troops will be avoided, unless they go out of their way to seek it. I hope you will exert your influence to prevent this.

Now and ever I shall do all in my power for peace consistently with the maintenance of the Government.

Your obedient servant,

A. LINCOLN.

TO GOVERNOR HICKS.

WASHINGTON, April 20, 1861

GOVERNOR HICKS:

I desire to consult with you and the Mayor of Baltimore relative to preserving the peace of Maryland. Please come immediately by special train, which you can take at Baltimore; or, if necessary, one can be sent from here. Answer forthwith.

LINCOLN.

ORDER TO DEFEND FROM A MARYLAND INSURRECTION

**ORDER TO GENERAL SCOTT. WASHINGTON, April 25,
1861**

LIEUTENANT-GENERAL SCOTT.

MY DEAR SIR—The Maryland Legislature assembles to-morrow at Annapolis, and not improbably will take action to arm the people of that State against the United States. The question has been submitted to and considered by me whether it would not be justifiable, upon the ground of necessary defense, for you, as General in Chief of the United States Army, to arrest or disperse the members of that body. I think it would not be justifiable nor efficient for the desired object.

First. They have a clearly legal right to assemble, and we cannot know in advance that their action will not be lawful and peaceful, and if we wait until they shall have acted their arrest or dispersion will not lessen the effect of their action.

Secondly. We cannot permanently prevent their action. If we arrest them, we cannot long hold them as prisoners, and when liberated they will immediately reassemble and take their action; and precisely the same if we simply disperse them—they will immediately reassemble in some other place.

I therefore conclude that it is only left to the Commanding General to watch and await their action, which, if it shall be to arm their people against the United States, he is to adopt the most prompt and efficient means to counteract, even, if necessary, to the bombardment of their cities and, in the extremist necessity, the suspension of the writ of habeas corpus.

Your obedient servant,

A. LINCOLN.

PROCLAMATION OF BLOCKADE, APRIL 27, 1861

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA:

A Proclamation.

Whereas, for the reasons assigned in my proclamation of the nineteenth instant, a blockade of the ports of the States of South Carolina, Georgia, Florida, Alabama, Louisiana, Mississippi, and Texas was ordered to be established:

And whereas, since that date, public property of the United States has been seized, the collection of the revenue obstructed, and duly commissioned officers of the United States, while engaged in executing the orders of their superiors, have been arrested and held in custody as prisoners, or have been impeded in the discharge of their official duties, without due legal process, by persons claiming to act under authorities of the States of Virginia and North Carolina:

An efficient blockade of the ports of those States will also be established.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this twenty seventh day of April, in the year of our Lord one thousand eight hundred and sixty-one, and of the independence of the United States the eighty-fifth.

A. LINCOLN.

REMARKS TO A MILITARY COMPANY, WASHINGTON, APRIL 27, 1861

I have desired as sincerely as any man, and I sometimes think more than any other man, that our present difficulties might be settled without the shedding of blood. I will not say that all hope has yet gone; but if the alternative is presented whether the Union is to be broken in fragments and the liberties of the people lost, or blood be shed, you will probably make the choice with which I shall not be dissatisfied.

LOCALIZED REPEAL OF WRIT OF HABEAS CORPUS

TO GENERAL SCOTT.

TO THE COMMANDING GENERAL, ARMY OF THE UNITED STATES.

You are engaged in suppressing an insurrection against the laws of the United States. If at any point on or in the vicinity of any military line which is now or which shall be used between the City of Philadelphia and the city of Washington you find resistance which renders it necessary to suspend the writ of habeas corpus for the public safety, you personally, or through the officer in command at the point at which resistance occurs, are authorized to suspend that writ.

A. LINCOLN.

WASHINGTON, April 17, 1861

MILITARY ENROLLMENT OF ST. LOUIS CITIZENS

**FROM THE SECRETARY OF WAR WAR DEPARTMENT,
April 30, 1861**

TO CAPTAIN NATHANIEL LYON.

CAPT. NATHANIEL LYON, Commanding Department of the West.

SIR:—The President of the United States directs that you enroll in the military service of the United States the loyal citizens of Saint Louis and vicinity, not exceeding, with those heretofore enlisted, ten thousand in number, for the purpose of maintaining the authority of the United States; for the protection of the peaceful inhabitants of Missouri; and you will, if deemed necessary for that purpose by yourself, by Messrs. Oliver F. Ferny, John How, James O. Broadhead, Samuel T. Glover, J. Wilzie, Francis P. Blair, Jr., proclaim martial law in the city of Saint Louis.

The additional force hereby authorized shall be discharged in part or in whole, if enlisted. As soon as it appears to you and the gentlemen above mentioned that there is no danger of an attempt on the part of the enemies of the Government to take military possession of the city of Saint Louis, or put the city in control of the combination against the Government of the United States; and whilst such additional force remains in the service the same shall be governed by the Rules and Articles of War, and such special regulations as you may prescribe. I shall like the force hereafter directed to be enrolled to be under your command.

The arms and other military stores in the Saint Louis Arsenal not needed for the forces of the United States in Missouri must be removed to Springfield, or some other safe place of deposit in the State of Illinois, as speedily as practicable, by the ordnance officers in charge at Saint Louis.

(Indorsement.)

It is revolutionary times, and therefore I do not object to the irregularity of this. W. S.

Approved, April 30, 1861.

A. LINCOLN.

Colonel Thomas will make this order. SIMON CAMERON, Secretary of War.

CONDOLENCE OVER FAILURE OF FT. SUMTER RELIEF

TO GUSTAVUS V. FOX.

WASHINGTON, D.C., May 1, 1861

CAPTAIN G. V. FOX.

MY DEAR SIR:—I sincerely regret that the failure of the late attempt to provision Fort Sumter should be the source of any annoyance to you.

The practicability of your plan was not, in fact, brought to a test. By reason of a gale, well known in advance to be possible and not improbable, the tugs, an essential part of the plan, never reached the ground; while, by an accident for which you were in no wise responsible, and possibly I to some extent was, you were deprived of a war vessel, with her men, which you deemed of great importance to the enterprise.

I most cheerfully and truly declare that the failure of the undertaking has not lowered you a particle, while the qualities you developed in the effort have greatly heightened you in my estimation.

For a daring and dangerous enterprise of a similar character you would to-day be the man of all my acquaintances whom I would select. You and I both anticipated that the cause of the country would be advanced by making the attempt to provision Fort Sumter, even if it should fail; and it is no small consolation now to feel that our anticipation is justified by the result.

Very truly your friend,

A. LINCOLN.

PROCLAMATION CALLING FOR 42,034 VOLUNTEERS,

MAY 3, 1861

BY THE PRESIDENT OF THE UNITED STATES.

A Proclamation..

Whereas existing exigencies demand immediate and adequate measures for the protection of the National Constitution and the preservation of the National Union by the suppression of the insurrectionary combinations now existing in several States for opposing the laws of the Union and obstructing the execution thereof, to which end a military force in addition to that called forth by my proclamation of the 15th day of April in the present year appears to be indispensably necessary:

Now, therefore, I, Abraham Lincoln, President of the United States and Commander in Chief of the Army and Navy thereof and of the militia of the several States when called into actual service, do hereby call into the service of the United States 42,034 volunteers to serve for the period of three years, unless sooner discharged, and to be mustered into service as infantry and cavalry. The proportions of each arm and the details of enrollment and organization will be made known through the Department of War.

And I also direct that the Regular Army of the United States be increased by the addition of eight regiments of infantry, one regiment of cavalry, and one regiment of artillery, making altogether a maximum aggregate increase of 22,714 officers and enlisted men, the details of which increase will also be made known through the Department of War.

And I further direct the enlistment for not less than one or more than three years of 18,000 seamen, in addition to the present force, for the naval service of the United States. The details of the enlistment and organization will be made known through the Department of the Navy.

The call for volunteers hereby made and the direction for the increase of the Regular Army and for the enlistment of seamen hereby given, together with the plan of organization adopted for the volunteer and for the regular forces hereby authorized, will be submitted to Congress as soon as assembled.

In the meantime I earnestly invoke the co-operation of all good citizens in the measures hereby adopted for the effectual suppression of unlawful violence, for the impartial enforcement of constitutional laws, and for the speediest possible restoration of peace and order, and with these of happiness and prosperity, throughout our country.

In testimony whereof I have hereunto set my band and caused the seal of the United States to be affixed.....

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

**COMMUNICATION WITH VICE-PRESIDENT
TO VICE-PRESIDENT HAMLIN.**

WASHINGTON, D.C., May 6, 1861

HON. H. HAMLIN, New York.

MY DEAR SIR:-Please advise me at the close of each day what troops left during the day, where going, and by what route; what remaining at New York, and what expected in the next day. Give the numbers, as near as convenient, and what corps they are. This information, reaching us daily, will be very useful as well as satisfactory.

Yours very truly,

A. LINCOLN.

ORDER TO COLONEL ANDERSON,

MAY 7, 1861

TO ALL WHO SHALL SEE THESE PRESENTS, GREETING:

Know ye that, reposing special trust and confidence in the patriotism, valor, fidelity, and ability of Colonel Robert Anderson, U. S. Army, I have empowered him, and do hereby empower him, to receive into the army of the United States as many regiments of volunteer troops from the State of Kentucky and from the western part of the State of Virginia as shall be willing to engage in the Service of the United States for the term of three years, upon the terms and according to the plan proposed by the proclamation of May 3, 1861, and General Orders No. 15, from the War Department, of May 4, 1861.

The troops whom he receives shall be on the same footing in every respect as those of the like kind called for in the proclamation above cited, except that the officers shall be commissioned by the United States. He is therefore carefully and diligently to discharge the duty hereby devolved upon him by doing and performing all manner of things thereunto belonging.

Given under my hand, at the city of Washington, this 7th day of May, A. D. 1861, and in the eighty-fifth year of the independence of the United States.

A. LINCOLN.

By the President: SIMON CAMERON, Secretary of War,

PROCLAMATION SUSPENDING THE WRIT OF HABEAS CORPUS IN FLORIDA,

MAY 10, 1861.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA:

A Proclamation.

Whereas an insurrection exists in the State of Florida, by which the lives, liberty, and property of loyal citizens of the United States are endangered:

And whereas it is deemed proper that all needful measures should be taken for the protection of such citizens and all officers of the United States in the discharge of their public duties in the State aforesaid:

Now, therefore, be it known that I, Abraham LINCOLN, President of the United States, do hereby direct the commander of the forces of the United States on the Florida coast to permit no person to exercise any office or authority upon the islands of Key West, the Tortugas, and Santa Rosa, which may be inconsistent with the laws and Constitution of the United States, authorizing him at the same time, if he shall find it necessary, to suspend there the writ of habeas corpus, and to remove from the vicinity of the United States fortresses all dangerous or suspected persons.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.....

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

TO SECRETARY WELLES.

EXECUTIVE MANSION, May 11, 1861

TO THE SECRETARY OF THE NAVY.

SIR:-Lieut. D. D. Porter was placed in command of the steamer Powhatan, and Captain Samuel Mercer was detached therefrom, by my special order, and neither of them is responsible for any apparent or real irregularity on their part or in connection with that vessel.

Hereafter Captain Porter is relieved from that special service and placed under the direction of the Navy Department, from which he will receive instructions and to which he will report.

Very respectfully,

A. LINCOLN.

PRESIDENT LINCOLN'S CORRECTIONS OF A DIPLOMATIC DESPATCH

**WRITTEN BY THE SECRETARY OF STATE TO MINISTER
ADAMS**

NO. 10.

DEPARTMENT OF STATE. WASHINGTON, May 21, 1861

SIR:—Mr. Dallas, in a brief despatch of May 2d (No. 333), tells us that Lord John Russell recently requested an interview with him on account of the solicitude which his lordship felt concerning the effect of certain measures represented as likely to be adopted by the President. In that conversation the British secretary told Mr. Dallas that the three representatives of the Southern Confederacy were then in London, that Lord John Russell had not yet seen them, but that he was not unwilling to see them unofficially. He further informed Mr. Dallas that an understanding exists between the British and French governments which would lead both to take one and the same course as to recognition. His lordship then referred to the rumor of a meditated blockade by us of Southern ports, and a discontinuance of them as ports of entry. Mr. Dallas answered that he knew nothing on those topics, and therefore

(The President's corrections, both in notes and text, are in caps. All matter between brackets was to be marked out.)

could say nothing. He added that you were expected to arrive in two weeks. Upon this statement Lord John Russell acquiesced in the expediency of waiting for the full knowledge you were expected to bring.

Mr. Dallas transmitted to us some newspaper reports of ministerial explanations made in Parliament.

You will base no proceedings on parliamentary debates further than to seek explanations when necessary and communicate them to this department. [We intend to have a clear and simple record of whatever issue may arise between us and Great Britain.]

The President [is surprised and grieved] regrets that Mr. Dallas did not protest against the proposed unofficial intercourse between the British Government and the missionaries of the insurgents [as well as against the demand for explanations made by the British Government]. It is due, however, to Mr. Dallas to say that our instructions had been given only to you and not to him, and that his loyalty and fidelity, too rare in these times [among our late representatives abroad, are confessed and] are appreciated.

Intercourse of any kind with the so-called commissioners is liable to be construed as a recognition of the authority which appointed them. Such intercourse would be none the less [wrongful] hurtful to us for being called unofficial, and it might be even more injurious, because we should have no means of knowing what points might be resolved by it. Moreover, unofficial intercourse is useless and meaningless if it is not expected to ripen into official intercourse and direct recognition. It is left doubtful here whether the proposed unofficial intercourse has yet actually begun. Your own [present] antecedent instructions are deemed explicit enough, and it is hoped that you have not misunderstood them. You will in any event desist from all intercourse whatever, unofficial as well as official, with the British Government, so long as it shall continue intercourse of either kind with the domestic enemies of this country [confining yourself to a delivery of a copy of this paper to the Secretary of State. After doing this.] When intercourse shall have been arrested for this cause, you will communicate with this department and receive further directions.

Lord John Russell has informed us of an understanding between the British and French governments that they will act together in regard to our affairs. This communication, however, loses something of its value from the circumstance that the communication was withheld until after knowledge of the fact had been acquired by us from other sources. We know also another fact that has not yet been officially communicated to us—namely, that other European States are apprised by France and England of their agreement, and are expected to concur with or follow them in whatever measures they adopt on the subject of recognition. The United States have been impartial and just in all their conduct toward the several nations of Europe. They will not complain, however, of the combination now announced by the two leading powers, although they think they had a right to expect a more independent, if not a more friendly, course from each of them. You will take no notice of that or any other alliance. Whenever the European governments

shall see fit to communicate directly with us, we shall be, as heretofore, frank and explicit in our reply.

As to the blockade, you will say that by [the] our own laws [of nature] and the laws of nature and the laws of nations, this Government has a clear right to suppress insurrection. An exclusion of commerce from national ports which have been seized by the insurgents, in the equitable form of blockade, is the proper means to that end. You will [admit] not insist that our blockade is [not] to be respected if it be not maintained by a competent force; but passing by that question as not now a practical, or at least an urgent, one, you will add that [it] the blockade is now, and it will continue to be so maintained, and therefore we expect it to be respected by Great Britain. You will add that we have already revoked the exequatur of a Russian consul who had enlisted in the military service of the insurgents, and we shall dismiss or demand the recall of every foreign agent, consular or diplomatic, who shall either disobey the Federal laws or disown the Federal authority.

As to the recognition of the so-called Southern Confederacy, it is not to be made a subject of technical definition. It is, of course, [quasi] direct recognition to publish an acknowledgment of the sovereignty and independence of a new power. It is [quasi] direct recognition to receive its ambassadors, ministers, agents, or commissioners officially. A concession of belligerent rights is liable to be construed as a recognition of them. No one of these proceedings will [be borne] pass [unnoticed] unquestioned by the United States in this case.

Hitherto recognition has been moved only on the assumption that the so-called Confederate States are de facto a self-sustaining power. Now, after long forbearance, designed to soothe discontent and avert the need of civil war, the land and naval forces of the United States have been put in motion to repress the insurrection. The true character of the pretended new State is at once revealed. It is seen to be a power existing in pronunciamiento only, It has never won a field. It has obtained no forts that were not virtually betrayed into its hands or seized in breach of trust. It commands not a single port on the coast nor any highway out from its pretended capital by land. Under these circumstances Great Britain is called upon to intervene and give it body and independence by resisting our measures of suppression. British recognition would be British intervention to create within our own

territory a hostile state by overthrowing this republic itself. [When this act of intervention is distinctly performed, we from that hour shall cease to be friends, and become once more, as we have twice before been forced to be, enemies of Great Britain.]

As to the treatment of privateers in the insurgent service, you will say that this is a question exclusively our own. We treat them as pirates. They are our own citizens, or persons employed by our citizens, preying on the commerce of our country. If Great Britain shall choose to recognize them as lawful belligerents, and give them shelter from our pursuit and punishment, the laws of nations afford an adequate and proper remedy [and we shall avail ourselves of it. And while you need not say this in advance, be sure that you say nothing inconsistent with it.]

Happily, however, her Britannic Majesty's government can avoid all these difficulties. It invited us in 1856 to accede to the declaration of the Congress of Paris, of which body Great Britain was herself a member, abolishing privateering everywhere in all cases and forever. You already have our authority to propose to her our accession to that declaration. If she refuse to receive it, it can only be because she is willing to become the patron of privateering when aimed at our devastation.

These positions are not elaborately defended now, because to vindicate them would imply a possibility of our waiving them.

1 We are not insensible of the grave importance of

1 (Drop all from this line to the end, and in lieu of it write, "This paper is for your own guidance only, and not [sic] to be read or shown to any one.")

(Secretary Seward, when the despatch was returned to him, added an introductory paragraph stating that the document was strictly confidential. For this reason these last two paragraphs remained as they are here printed.)

this occasion. We see how, upon the result of the debate in which we are engaged, a war may ensue between the United States and one, two, or even more European nations. War in any case is as exceptionable from the habits as it is revolting from the sentiments of the American people. But if it come, it will be fully seen that it results from the action of Great Britain, not our own; that Great Britain will have decided to fraternize with our domestic enemy, either without waiting to hear from you our remonstrances and our warnings, or after having heard them. War in defense of national life is not

immoral, and war in defense of independence is an inevitable part of the discipline of nations.

The dispute will be between the European and the American branches of the British race. All who belong to that race will especially deprecate it, as they ought. It may well be believed that men of every race and kindred will deplore it. A war not unlike it between the same parties occurred at the close of the last century. Europe atoned by forty years of suffering for the error that Great Britain committed in provoking that contest. If that nation shall now repeat the same great error, the social convulsions which will follow may not be so long, but they will be more general. When they shall have ceased, it will, we think, be seen, whatever may have been the fortunes of other nations, that it is not the United States that will have come out of them with its precious Constitution altered or its honestly obtained dominion in any degree abridged. Great Britain has but to wait a few months and all her present inconveniences will cease with all our own troubles. If she take a different course, she will calculate for herself the ultimate as well as the immediate consequences, and will consider what position she will hold when she shall have forever lost the sympathies and the affections of the only nation on whose sympathies and affections she has a natural claim. In making that calculation she will do well to remember that in the controversy she proposes to open we shall be actuated by neither pride, nor passion, nor cupidity, nor ambition; but we shall stand simply on the principle of self-preservation, and that our cause will involve the independence of nations and the rights of human nature.

I am, Sir, respectfully your obedient servant, W. H. S.

CHARLES FRANCIS ADAMS, Esq., etc,

TO THE SECRETARY OF WAR,

EXECUTIVE MANSION, May 21, 1861.

HON. SECRETARY OF WAR. MY DEAR SIR:—Why cannot Colonel Small's Philadelphia regiment be received? I sincerely wish it could. There is something strange about it. Give these gentlemen an interview, and take their regiment.

Yours truly,

A. LINCOLN.

TO GOVERNOR MORGAN.

WASHINGTON, May 12, 1861

GOVERNOR E. D. MORGAN, Albany, N.Y.

I wish to see you face to face to clear these difficulties about forwarding troops from New York.

A. LINCOLN.

TO CAPTAIN DAHLGREEN.

EXECUTIVE, MANSION, May 23, 1863.

CAPT. DAHLGREEN.

MY DEAR SIR:—Allow me to introduce Col. J. A. McLernand, M.C. of my own district in Illinois. If he should desire to visit Fortress Monroe, please introduce him to the captain of one of the vessels in our service, and pass him down and back.

Yours very truly,

A. LINCOLN.

LETTER OF CONDOLENCE TO ONE OF FIRST CASUALTIES

TO COLONEL ELLSWORTH'S PARENTS, WASHINGTON,
D.C., May 25, 1861

TO THE FATHER AND MOTHER OF COL. ELMER E.
ELLSWORTH.

MY DEAR SIR AND MADAME:—In the untimely loss of your noble son, our affliction here is scarcely less than your own. So much of promised usefulness to one's country, and of bright hopes for one's self and friends, have never been so suddenly dashed as in his fall. In size, in years, and in youthful appearance a boy only, his power to command men was surpassingly great. This power, combined with a fine intellectual and indomitable energy, and a taste altogether military, constituted in him, as seemed to me, the best natural talent in that department I ever knew. And yet he was singularly modest and deferential in social intercourse. My acquaintance with him began less than two years ago; yet, through the latter half of the intervening period, it was as intense as the disparity of our ages and my engrossing engagements would permit. To me he appeared to have no indulgences or pastimes, and I never heard him utter a profane or an intemperate word. What was conclusive of his good heart, he never forgot his parents. The honors he labored for so laudably, and for which, in the sad end, he so gallantly gave his life, he meant for them no less than for himself.

In the hope that it may be no intrusion upon the sacredness of your sorrow, I have ventured to address you this tribute to the memory of my young friend and your brave and early fallen son.

May God give you the consolation which is beyond all early power.

Sincerely your friend in common affliction,

A. LINCOLN.

TO COLONEL BARTLETT.

WASHINGTON, May 27, 1861

COL. W. A. BARTLETT, New York.

The Naval Brigade was to go to Fort Monroe without trouble to the government, and must so go or not at all.

A. LINCOLN.

MEMORANDUM ABOUT INDIANA REGIMENTS.

WASHINGTON, JUNE 11, 1861

The government has already accepted ten regiments from the State of Indiana. I think at least six more ought to be received from that State, two to be those of Colonel James W. McMillan and Colonel William L. Brown, and the other four to be designated by the Governor of the State of Indiana, and to be received into the volunteer service of the United States according to the "Plan of Organization" in the General Orders of the War Department, No.15. When they report to Major-General McClellan in condition to pass muster according to that order, and with the approval of the Secretary of War to be indorsed hereon, and left in his department, I direct that the whole six, or any smaller number of such regiments, be received.

A. LINCOLN.

TO THE SECRETARY OF WAR.

EXECUTIVE MANSION, JUNE 13, 1861

HON. SECRETARY OF WAR.

MY DEAR SIR:—There is, it seems, a regiment in Massachusetts commanded by Fletcher Webster, and which HON. Daniel Webster's old friends very much wish to get into the service. If it can be received with the approval of your department and the consent of the Governor of Massachusetts I shall indeed be much gratified. Give Mr. Ashmun a chance to explain fully.

Yours truly,

A. LINCOLN.

TO THE SECRETARY OF WAR.

**EXECUTIVE MANSION, JUNE 13, 1861 HON. SECRETARY
OF WAR.**

MY DEAR SIR—I think it is entirely safe to accept a fifth regiment from Michigan, and with your approbation I should say a regiment presented by Col. T. B. W. Stockton, ready for service within two weeks from now, will be received. Look at Colonel Stockton's testimonials.

Yours truly,

A. LINCOLN.

TO THE SECRETARY OF WAR.

EXECUTIVE MANSION, June 17, 1861

HON. SECRETARY OF WAR.

MY DEAR SIR:—With your concurrence, and that of the Governor of Indiana, I am in favor of accepting into what we call the three years' service any number not exceeding four additional regiments from that State. Probably they should come from the triangular region between the Ohio and Wabash Rivers, including my own old boyhood home. Please see HON. C. M. Allen, Speaker of the Indiana House of Representatives, and unless you perceive good reason to the contrary, draw up an order for him according to the above.

Yours truly,

A. LINCOLN.

TO THE SECRETARY OF WAR.

EXECUTIVE MANSION, JUNE 17, 1861

HON. SECRETARY OF WAR. MY DEAR SIR:—With your concurrence, and that of the Governor of Ohio, I am in favor of receiving into what we call the three years' service any number not exceeding six additional regiments from that State, unless you perceive good reasons to the contrary. Please see HON. John A. Gurley, who bears this, and make an order corresponding with the above.

Yours truly,

A. LINCOLN.

TO N. W. EDWARDS

WASHINGTON, D. C., June 19, 1861

Hon. N. W. EDWARDS MY DEAR SIR:

....When you wrote me some time ago in reference to looking up something in the departments here, I thought I would inquire into the thing and write you, but the extraordinary pressure upon me diverted me from it, and soon it passed out of my mind. The thing you proposed, it seemed to me, I ought to understand myself before it was set on foot by my direction or permission; and I really had no time to make myself acquainted with it. Nor have I yet. And yet I am unwilling, of course, that you should be deprived of a chance to make something, if it can be done without injustice to the Government, or to any individual. If you choose to come here and point out to me how this can be done I shall not only not object, but shall be gratified to be able to oblige you.

Your friend as ever

A. LINCOLN.

TO SECRETARY CAMERON.

EXECUTIVE MANSION, June 20, 1861.

MY DEAR SIR:—Since you spoke to me yesterday about General J. H. Lane, of Kansas, I have been reflecting upon the subject, and have concluded that we need the service of such a man out there at once; that we had better appoint him a brigadier-general of volunteers to-day, and send him off with such authority to raise a force (I think two regiments better than three, but as to this I am not particular) as you think will get him into actual work quickest. Tell him, when he starts, to put it through not to be writing or telegraphing back here, but put it through.

Yours truly,

A. LINCOLN.

HON. SECRETARY OF WAR.

[Indorsement.]

General Lane has been authorized to raise two additional regiments of volunteers.

SIMON CAMERON, Secretary of War.

TO THE KENTUCKY DELEGATION.

EXECUTIVE MANSION, June 29, 1861.

GENTLEMEN OF THE KENTUCKY DELEGATION WHO ARE FOR
THE UNION:

I somewhat wish to authorize my friend Jesse Bayles to raise a Kentucky regiment, but I do not wish to do it without your consent. If you consent, please write so at the bottom of this.

Yours truly,

A. LINCOLN.

We consent:

R. MALLORY.

H. GRIDER.

G. W. DUNLAP.

J. S. JACKSON.

C. A. WICKLIFFE.

August 5, 1861.

I repeat, I would like for Col. Bayles to raise a regiment of cavalry whenever the Union men of Kentucky desire or consent to it.

A. LINCOLN.

ORDER AUTHORIZING GENERAL SCOTT TO SUSPEND THE WRIT OF HABEAS CORPUS, JULY

2, 1861 TO THE COMMANDING GENERAL, ARMY OF THE
UNITED STATES:

You are engaged in suppressing an insurrection against the laws of the United States. If at any point on or in the vicinity of any military line which is now or which shall be used between the city of New York and the city of Washington you find resistance which renders it necessary to suspend the writ of habeas corpus for the public safety, you personally, or through the officer in command at the point where resistance occurs, are authorized to suspend that writ.

Given under my hand and the seal of the United States at the city of Washington, this second day of July, A.D. 1861, and of the independence of the United States the eighty-fifth.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

TO SECRETARY SEWARD.

EXECUTIVE MANSION, JULY 3, 1861

HON. SECRETARY OF STATE.

MY DEAR SIR:—General Scott had sent me a copy of the despatch of which you kindly sent one. Thanks to both him and you. Please assemble the Cabinet at twelve to-day to look over the message and reports.

And now, suppose you step over at once and let us see General Scott (and) General Cameron about assigning a position to General Fremont.

Yours as ever,

A. LINCOLN.

MESSAGE TO CONGRESS IN SPECIAL SESSION,

JULY 4, 1861.

FELLOW-CITIZENS OF THE SENATE AND HOUSE OF REPRESENTATIVES:—Having been convened on an extraordinary occasion, as authorized by the Constitution, your attention is not called to any ordinary subject of legislation.

At the beginning of the present Presidential term, four months ago, the functions of the Federal Government were found to be generally suspended within the several States of South Carolina, Georgia, Alabama, Mississippi, Louisiana, and Florida, excepting only those of the Post-Office Department.

Within these States all the forts, arsenals, dockyards, custom-houses, and the like, including the movable and stationary property in and about them, had been seized, and were held in open hostility to this government, excepting only Forts Pickens, Taylor, and Jefferson, on and near the Florida coast, and Fort Sumter, in Charleston Harbor, South Carolina. The forts thus seized had been put in improved condition, new ones had been built, and armed forces had been organized and were organizing, all avowedly with the same hostile purpose.

The forts remaining in the possession of the Federal Government in and near these States were either besieged or menaced by warlike preparations, and especially Fort Sumter was nearly surrounded by well-protected hostile batteries, with guns equal in quality to the best of its own, and outnumbering the latter as perhaps ten to one. A disproportionate share of the Federal muskets and rifles had somehow found their way into these States, and had been seized to be used against the government. Accumulations of the public revenue lying within them had been seized for the same object. The navy was scattered in distant seas, leaving but a very small part of it within the immediate reach of the government. Officers of the Federal army and navy had resigned in great numbers; and of those resigning a large proportion had taken up arms against the government.

Simultaneously, and in connection with all this, the purpose to sever the Federal Union was openly avowed. In accordance with this purpose, an ordinance had been adopted in each of these States, declaring the States respectively to be separated from the national Union. A formula for instituting a combined government of these States had been promulgated; and this illegal organization, in the character of confederate States, was already invoking recognition, aid, and intervention from foreign powers.

Finding this condition of things, and believing it to be an imperative duty upon the incoming executive to prevent, if possible, the consummation of such attempt to destroy the Federal Union, a choice of means to that end became indispensable. This choice was made and was declared in the inaugural address. The policy chosen looked to the exhaustion of all peaceful measures before a resort to any stronger ones. It sought only to hold the public places and property not already wrested from the government, and to collect the revenue, relying for the rest on time, discussion, and the ballot-box. It promised a continuance of the mails, at government expense, to the very people who were resisting the government; and it gave repeated pledges against any disturbance to any of the people, or any of their rights. Of all that which a President might constitutionally and justifiably do in such a case, everything was forborne without which it was believed possible to keep the government on foot.

On the 5th of March (the present incumbent's first full day in office), a letter of Major Anderson, commanding at Fort Sumter, written on the 28th of February and received at the War Department on the 4th of March, was by that department placed in his hands. This letter expressed the professional opinion of the writer that reinforcements could not be thrown into that fort within the time for his relief, rendered necessary by the limited supply of provisions, and with a view of holding possession of the same, with a force of less than twenty thousand good and well-disciplined men. This opinion was concurred in by all the officers of his command, and their memoranda on the subject were made inclosures of Major Anderson's letter. The whole was immediately laid before Lieutenant-General Scott, who at once concurred with Major Anderson in opinion. On reflection, however, he took full time, consulting with other officers, both of the army and the navy, and at the end of four days came reluctantly but decidedly to the same conclusion as before. He also stated at the same time that no such sufficient force was then at the control of the government, or could be raised and

brought to the ground within the time when the provisions in the fort would be exhausted. In a purely military point of view, this reduced the duty of the administration in the case to the mere matter of getting the garrison safely out of the fort.

It was believed, however, that to so abandon that position, under the circumstances, would be utterly ruinous; that the necessity under which it was to be done would not be fully understood; that by many it would be construed as a part of a voluntary policy; that at home it would discourage the friends of the Union, embolden its adversaries, and go far to insure to the latter a recognition abroad; that in fact, it would be our national destruction consummated. This could not be allowed. Starvation was not yet upon the garrison, and ere it would be reached Fort Pickens might be reinforced. This last would be a clear indication of policy, and would better enable the country to accept the evacuation of Fort Sumter as a military necessity. An order was at once directed to be sent for the landing of the troops from the steamship Brooklyn into Fort Pickens. This order could not go by land, but must take the longer and slower route by sea. The first return news from the order was received just one week before the fall of Fort Sumter. The news itself was that the officer commanding the Sabine, to which vessel the troops had been transferred from the Brooklyn, acting upon some quasi armistice of the late administration (and of the existence of which the present administration, up to the time the order was despatched, had only too vague and uncertain rumors to fix attention), had refused to land the troops. To now reinforce Fort Pickens before a crisis would be reached at Fort Sumter was impossible—rendered so by the near exhaustion of provisions in the latter-named fort. In precaution against such a conjuncture, the government had, a few days before, commenced preparing an expedition as well adapted as might be to relieve Fort Sumter, which expedition was intended to be ultimately used, or not, according to circumstances. The strongest anticipated case for using it was now presented, and it was resolved to send it forward. As had been intended in this contingency, it was also resolved to notify the governor of South Carolina that he might expect an attempt would be made to provision the fort; and that, if the attempt should not be resisted, there would be no effort to throw in men, arms, or ammunition, without further notice, or in case of an attack upon the fort. This notice was accordingly given; whereupon the

fort was attacked and bombarded to its fall, without even awaiting the arrival of the provisioning expedition.

It is thus seen that the assault upon and reduction of Fort Sumter was in no sense a matter of self-defense on the part of the assailants. They well knew that the garrison in the fort could by no possibility commit aggression upon them. They knew—they were expressly notified—that the giving of bread to the few brave and hungry men of the garrison was all which would on that occasion be attempted, unless themselves, by resisting so much, should provoke more. They knew that this government desired to keep the garrison in the fort, not to assail them, but merely to maintain visible possession, and thus to preserve the Union from actual and immediate dissolution—trusting, as hereinbefore stated, to time, discussion, and the ballot-box for final adjustment; and they assailed and reduced the fort for precisely the reverse object—to drive out the visible authority of the Federal Union, and thus force it to immediate dissolution. That this was their object the executive well understood; and having said to them in the inaugural address, "You can have no conflict without being yourselves the aggressors," he took pains not only to keep this declaration good, but also to keep the case so free from the power of ingenious sophistry that the world should not be able to misunderstand it. By the affair at Fort Sumter, with its surrounding circumstances, that point was reached. Then and thereby the assailants of the government began the conflict of arms, without a gun in sight or in expectancy to return their fire, save only the few in the fort sent to that harbor years before for their own protection, and still ready to give that protection in whatever was lawful. In this act, discarding all else, they have forced upon the country the distinct issue, "immediate dissolution or blood."

And this issue embraces more than the fate of these United States. It presents to the whole family of man the question whether a constitutional republic or democracy—a government of the people by the same people—can or cannot maintain its territorial integrity against its own domestic foes. It presents the question whether discontented individuals, too few in numbers to control administration according to organic law in any case, can always, upon the pretenses made in this case, or on any other pretenses, or arbitrarily without any pretense, break up their government, and thus practically put an end to free government upon the earth. It forces us to ask: Is there in all republics this inherent and fatal weakness? Must a

government, of necessity, be too strong for the liberties of its own people, or too weak to maintain its own existence?

So viewing the issue, no choice was left but to call out the war power of the government, and so to resist force employed for its destruction by force for its preservation.

The call was made, and the response of the country was most gratifying, surpassing in unanimity and spirit the most sanguine expectation. Yet none of the States commonly called slave States, except Delaware, gave a regiment through regular State organization. A few regiments have been organized within some others of those States by individual enterprise, and received into the government service. Of course the seceded States, so called (and to which Texas had been joined about the time of the inauguration), gave no troops to the cause of the Union.

The border States, so called, were not uniform in their action, some of them being almost for the Union, while in others—as Virginia, North Carolina, Tennessee, and Arkansas—the Union sentiment was nearly repressed and silenced. The course taken in Virginia was the most remarkable—perhaps the most important. A convention elected by the people of that State to consider this very question of disrupting the Federal Union was in session at the capital of Virginia when Fort Sumter fell. To this body the people had chosen a large majority of professed Union men. Almost immediately after the fall of Sumter, many members of that majority went over to the original disunion minority, and with them adopted an ordinance for withdrawing the State from the Union. Whether this change was wrought by their great approval of the assault upon Sumter, or their great resentment at the government's resistance to that assault, is not definitely known. Although they submitted the ordinance for ratification to a vote of the people, to be taken on a day then somewhat more than a month distant, the convention and the Legislature (which was also in session at the same time and place), with leading men of the State not members of either, immediately commenced acting as if the State were already out of the Union. They pushed military preparations vigorously forward all over the State. They seized the United States armory at Harper's Ferry, and the navy-yard at Gosport, near Norfolk. They received perhaps invited—into their State large bodies of troops, with their warlike appointments, from the so-called seceded States. They formally entered into a treaty of temporary

alliance and co-operation with the so-called "Confederate States," and sent members to their congress at Montgomery. And finally, they permitted the insurrectionary government to be transferred to their capital at Richmond.

The people of Virginia have thus allowed this giant insurrection to make its nest within her borders; and this government has no choice left but to deal with it where it finds it. And it has the less regret as the loyal citizens have, in due form, claimed its protection. Those loyal citizens this government is bound to recognize and protect, as being Virginia.

In the border States, so called,—in fact, the middle States,—there are those who favor a policy which they call "armed neutrality"; that is, an arming of those States to prevent the Union forces passing one way, or the disunion the other, over their soil. This would be disunion completed. Figuratively speaking, it would be the building of an impassable wall along the line of separation—and yet not quite an impassable one, for under the guise of neutrality it would tie the hands of Union men and freely pass supplies from among them to the insurrectionists, which it could not do as an open enemy. At a stroke it would take all the trouble off the hands of secession, except only what proceeds from the external blockade. It would do for the disunionists that which, of all things, they most desire—feed them well and give them disunion without a struggle of their own. It recognizes no fidelity to the Constitution, no obligation to maintain the Union; and while very many who have favored it are doubtless loyal citizens, it is, nevertheless, very injurious in effect.

Recurring to the action of the government, it may be stated that at first a call was made for 75,000 militia; and, rapidly following this, a proclamation was issued for closing the ports of the insurrectionary districts by proceedings in the nature of blockade. So far all was believed to be strictly legal. At this point the insurrectionists announced their purpose to enter upon the practice of privateering.

Other calls were made for volunteers to serve for three years, unless sooner discharged, and also for large additions to the regular army and navy. These measures, whether strictly legal or not, were ventured upon, under what appeared to be a popular demand and a public necessity; trusting then, as now, that Congress would readily ratify them. It is believed that nothing has been done beyond the constitutional competency of Congress.

Soon after the first call for militia, it was considered a duty to authorize the commanding general in proper cases, according to his discretion, to suspend the privilege of the writ of habeas corpus, or, in other words, to arrest and detain, without resort to the ordinary processes and forms of law, such individuals as he might deem dangerous to the public safety. This authority has purposely been exercised but very sparingly. Nevertheless, the legality and propriety of what has been done under it are questioned, and the attention of the country has been called to the proposition that one who has sworn to "take care that the laws be faithfully executed" should not himself violate them. Of course some consideration was given to the questions of power and propriety before this matter was acted upon. The whole of the laws which were required to be faithfully executed were being resisted and failing of execution in nearly one third of the States. Must they be allowed to finally fail of execution, even had it been perfectly clear that by the use of the means necessary to their execution some single law, made in such extreme tenderness of the citizen's liberty that, practically, it relieves more of the guilty than of the innocent, should to a very limited extent be violated? To state the question more directly, are all the laws but one to go unexecuted, and the government itself go to pieces lest that one be violated? Even in such a case, would not the official oath be broken if the government should be overthrown when it was believed that disregarding the single law would tend to preserve it? But it was not believed that this question was presented. It was not believed that any law was violated. The provision of the Constitution that "the privilege of the writ of habeas corpus shall not be suspended, unless when, in cases of rebellion or invasion, the public safety may require it," is equivalent to a provision—is a provision—that such privilege may be suspended when, in case of rebellion or invasion, the public safety does require it. It was decided that we have a case of rebellion, and that the public safety does require the qualified suspension of the privilege of the writ which was authorized to be made. Now it is insisted that Congress, and not the executive, is vested with this power. But the Constitution itself is silent as to which or who is to exercise the power; and as the provision was plainly made for a dangerous emergency, it cannot be believed the framers of the instrument intended that in every case the danger should run its course until Congress could be called together, the very assembling of which might be prevented, as was intended in this case, by the rebellion.

No more extended argument is now offered, as an opinion at some length will probably be presented by the attorney-general. Whether there shall be any legislation upon the subject, and if any, what, is submitted entirely to the better judgment of Congress.

The forbearance of this government had been so extraordinary and so long continued as to lead some foreign nations to shape their action as if they supposed the early destruction of our national Union was probable. While this, on discovery, gave the executive some concern, he is now happy to say that the sovereignty and rights of the United States are now everywhere practically respected by foreign powers; and a general sympathy with the country is manifested throughout the world.

The reports of the Secretaries of the Treasury, War, and the Navy will give the information in detail deemed necessary and convenient for your deliberation and action; while the executive and all the departments will stand ready to supply omissions, or to communicate new facts considered important for you to know.

It is now recommended that you give the legal means for making this contest a short and decisive one: that you place at the control of the government for the work at least four hundred thousand men and \$400,000,000. That number of men is about one-tenth of those of proper ages within the regions where, apparently, all are willing to engage; and the sum is less than a twenty-third part of the money value owned by the men who seem ready to devote the whole. A debt of \$600,000,000 now is a less sum per head than was the debt of our Revolution when we came out of that struggle; and the money value in the country now bears even a greater proportion to what it was then than does the population. Surely each man has as strong a motive now to preserve our liberties as each had then to establish them.

A right result at this time will be worth more to the world than ten times the men and ten times the money. The evidence reaching us from the country leaves no doubt that the material for the work is abundant, and that it needs only the hand of legislation to give it legal sanction, and the hand of the executive to give it practical shape and efficiency. One of the greatest perplexities of the government is to avoid receiving troops faster than it can provide for them. In a word, the people will save their government if the government itself will do its part only indifferently well.

It might seem, at first thought, to be of little difference whether the present movement at the South be called "secession" or "rebellion." The movers, however, well understand the difference. At the beginning they knew they could never raise their treason to any respectable magnitude by any name which implies violation of law. They knew their people possessed as much of moral sense, as much of devotion to law and order, and as much pride in and reverence for the history and government of their common country as any other civilized and patriotic people. They knew they could make no advancement directly in the teeth of these strong and noble sentiments. Accordingly, they commenced by an insidious debauching of the public mind. They invented an ingenious sophism which, if conceded, was followed by perfectly logical steps, through all the incidents, to the complete destruction of the Union. The sophism itself is that any State of the Union may consistently with the national Constitution, and therefore lawfully and peacefully, withdraw from the Union without the consent of the Union or of any other State. The little disguise that the supposed right is to be exercised only for just cause, themselves to be the sole judges of its justice, is too thin to merit any notice.

With rebellion thus sugar-coated they have been drugging the public mind of their section for more than thirty years, and until at length they have brought many good men to a willingness to take up arms against the government the day after some assemblage of men have enacted the farcical pretense of taking their State out of the Union, who could have been brought to no such thing the day before.

This sophism derives much, perhaps the whole, of its currency from the assumption that there is some omnipotent and sacred supremacy pertaining to a State—to each State of our Federal Union. Our States have neither more nor less power than that reserved to them in the Union by the Constitution—no one of them ever having been a State out of the Union. The original ones passed into the Union even before they cast off their British colonial dependence; and the new ones each came into the Union directly from a condition of dependence, excepting Texas. And even Texas in its temporary independence was never designated a State. The new ones only took the designation of States on coming into the Union, while that name was first adopted for the old ones in and by the Declaration of Independence. Therein the "United Colonies" were declared to be "free and independent States"; but even then the object plainly was not to declare

their independence of one another or of the Union, but directly the contrary, as their mutual pledge and their mutual action before, at the time, and afterward, abundantly show. The express plighting of faith by each and all of the original thirteen in the Articles of Confederation, two years later, that the Union shall be perpetual, is most conclusive. Having never been States either in substance or in name outside of the Union, whence this magical omnipotence of "State rights," asserting a claim of power to lawfully destroy the Union itself? Much is said about the "sovereignty" of the States; but the word even is not in the national Constitution, nor, as is believed, in any of the State constitutions. What is "sovereignty" in the political sense of the term? Would it be far wrong to define it as "a political community without a political superior"? Tested by this, no one of our States except Texas ever was a sovereignty. And even Texas gave up the character on coming into the Union; by which act she acknowledged the Constitution of the United States, and the laws and treaties of the United States made in pursuance of the Constitution, to be for her the supreme law of the land. The States have their status in the Union, and they have no other legal status. If they break from this, they can only do so against law and by revolution. The Union, and not themselves separately, procured their independence and their liberty. By conquest or purchase the Union gave each of them whatever of independence or liberty it has. The Union is older than any of the States, and, in fact, it created them as States. Originally some dependent colonies made the Union, and, in turn, the Union threw off their old dependence for them, and made them States, such as they are. Not one of them ever had a State constitution independent of the Union. Of course, it is not forgotten that all the new States framed their constitutions before they entered the Union nevertheless, dependent upon and preparatory to coming into the Union.

Unquestionably the States have the powers and rights reserved to them in and by the national Constitution; but among these surely are not included all conceivable powers, however mischievous or destructive, but, at most, such only as were known in the world at the time as governmental powers; and certainly a power to destroy the government itself had never been known as a governmental, as a merely administrative power. This relative matter of national power and State rights, as a principle, is no other than the principle of generality and locality. Whatever concerns the whole should be confided to the whole—to the General Government; while whatever

concerns only the State should be left exclusively to the State. This is all there is of original principle about it. Whether the national Constitution in defining boundaries between the two has applied the principle with exact accuracy, is not to be questioned. We are all bound by that defining, without question.

What is now combated is the position that secession is consistent with the Constitution—is lawful and peaceful. It is not contended that there is any express law for it; and nothing should ever be implied as law which leads to unjust or absurd consequences. The nation purchased with money the countries out of which several of these States were formed. Is it just that they shall go off without leave and without refunding? The nation paid very large sums (in the aggregate, I believe, nearly a hundred millions) to relieve Florida of the aboriginal tribes. Is it just that she shall now be off without consent or without making any return? The nation is now in debt for money applied to the benefit of these so-called seceding States in common with the rest. Is it just either that creditors shall go unpaid or the remaining States pay the whole? A part of the present national debt was contracted to pay the old debts of Texas. Is it just that she shall leave and pay no part of this herself?

Again, if one State may secede, so may another; and when all shall have seceded, none is left to pay the debts. Is this quite just for creditors? Did we notify them of this sage view of ours when we borrowed their money? If we now recognize this doctrine by allowing the seceders to go in peace, it is difficult to see what we can do if others choose to go or to extort terms upon which they will promise to remain.

The seceders insist that our Constitution admits of secession. They have assumed to make a national constitution of their own, in which of necessity they have either discarded or retained the right of secession as they insist it exists in ours. If they have discarded it, they thereby admit that on principle it ought not to be in ours. If they have retained it, by their own construction of ours, they show that to be consistent they must secede from one another whenever they shall find it the easiest way of settling their debts, or effecting any other selfish or unjust object. The principle itself is one of disintegration and upon which no government can possibly endure.

If all the States save one should assert the power to drive that one out of the Union, it is presumed the whole class of seceder politicians would at

once deny the power and denounce the act as the greatest outrage upon State rights. But suppose that precisely the same act, instead of being called "driving the one out," should be called "the seceding of the others from that one," it would be exactly what the seceders claim to do, unless, indeed, they make the point that the one, because it is a minority, may rightfully do what the others, because they are a majority, may not rightfully do. These politicians are subtle and profound on the rights of minorities. They are not partial to that power which made the Constitution and speaks from the preamble calling itself "We, the People."

It may well be questioned whether there is to-day a majority of the legally qualified voters of any State except perhaps South Carolina in favor of disunion. There is much reason to believe that the Union men are the majority in many, if not in every other one, of the so-called seceded States. The contrary has not been demonstrated in any one of them. It is ventured to affirm this even of Virginia and Tennessee; for the result of an election held in military camps, where the bayonets are all on one side of the question voted upon, can scarcely be considered as demonstrating popular sentiment. At such an election, all that large class who are at once for the Union and against coercion would be coerced to vote against the Union.

It may be affirmed without extravagance that the free institutions we enjoy have developed the powers and improved the condition of our whole people beyond any example in the world. Of this we now have a striking and an impressive illustration. So large an army as the government has now on foot was never before known without a soldier in it but who has taken his place there of his own free choice. But more than this, there are many single regiments whose members, one and another, possess full practical knowledge of all the arts, sciences, professions, and whatever else, whether useful or elegant, is known in the world; and there is scarcely one from which there could not be selected a President, a Cabinet, a Congress, and perhaps a court, abundantly competent to administer the government itself. Nor do I say this is not true also in the army of our late friends, now adversaries in this contest; but if it is, so much better the reason why the government which has conferred such benefits on both them and us should not be broken up. Whoever in any section proposes to abandon such a government would do well to consider in deference to what principle it is that he does it; what better he is likely to get in its stead; whether the substitute will give, or be intended to give, so much of good to the people.

There are some foreshadowings on this subject. Our adversaries have adopted some declarations of independence in which, unlike the good old one, penned by Jefferson, they omit the words "all men are created equal." Why? They have adopted a temporary national constitution, in the preamble of which, unlike our good old one, signed by Washington, they omit "We, the People," and substitute, "We, the deputies of the sovereign and independent States." Why? Why this deliberate pressing out of view the rights of men and the authority of the people?

This is essentially a people's contest. On the side of the Union it is a struggle for maintaining in the world that form and substance of government whose leading object is to elevate the condition of men to lift artificial weights from all shoulders; to clear the paths of laudable pursuit for all; to afford all an unfettered start, and a fair chance in the race of life. Yielding to partial and temporary departures, from necessity; this is the leading object of the government for whose existence we contend.

I am most happy to believe that the plain people understand and appreciate this. It is worthy of note that, while in this the government's hour of trial large numbers of those in the army and navy who have been favored with the offices have resigned and proved false to the hand which had pampered them, not one common soldier or common sailor is known to have deserted his flag.

Great honor is due to those officers who remained true, despite the example of their treacherous associates; but the greatest honor, and most important fact of all, is the unanimous firmness of the common soldiers and common sailors. To the last man, so far as known, they have successfully resisted the traitorous efforts of those whose commands, but an hour before, they obeyed as absolute law. This is the patriotic instinct of the plain people. They understand, without an argument, that the destroying of the government which was made by Washington means no good to them.

Our popular government has often been called an experiment. Two points in it our people have already settled—the successful establishing and the successful administering of it. One still remains—its successful maintenance against a formidable internal attempt to overthrow it. It is now for them to demonstrate to the world that those who can fairly carry an election can also suppress a rebellion; that ballots are the rightful and peaceful successors of bullets; and that when ballots have fairly and

constitutionally decided, there can be no successful appeal back to bullets; that there can be no successful appeal, except to ballots themselves, at succeeding elections. Such will be a great lesson of peace: teaching men that what they cannot take by an election, neither can they take it by a war; teaching all the folly of being the beginners of a war.

Lest there be some uneasiness in the minds of candid men as to what is to be the course of the government toward the Southern States after the rebellion shall have been suppressed, the executive deems it proper to say it will be his purpose then, as ever, to be guided by the Constitution and the laws; and that he probably will have no different understanding of the powers and duties of the Federal Government relatively to the rights of the States and the people, under the Constitution, than that expressed in the inaugural address.

He desires to preserve the government, that it may be administered for all as it was administered by the men who made it. Loyal citizens everywhere have the right to claim this of their government, and the government has no right to withhold or neglect it. It is not perceived that in giving it there is any coercion, any conquest, or any subjugation, in any just sense of those terms.

The Constitution provides, and all the States have accepted the provision, that "the United States shall guarantee to every State in this Union a republican form of government." But if a State may lawfully go out of the Union, having done so it may also discard the republican form of government, so that to prevent its going out is an indispensable means to the end of maintaining the guarantee mentioned; and when an end is lawful and obligatory, the indispensable means to it are also lawful and obligatory.

It was with the deepest regret that the executive found the duty of employing the war power in defense of the government forced upon him. He could but perform this duty or surrender the existence of the government. No compromise by public servants could, in this case, be a cure; not that compromises are not often proper, but that no popular government can long survive a marked precedent that those who carry an election can only save the government from immediate destruction by giving up the main point upon which the people gave the election. The people themselves, and not their servants, can safely reverse their own deliberate decisions.

As a private citizen the executive could not have consented that these institutions shall perish; much less could he in betrayal of so vast and so sacred a trust as these free people had confided to him. He felt that he had no moral right to shrink, nor even to count the chances of his own life, in what might follow. In full view of his great responsibility he has, so far, done what he has deemed his duty. You will now, according to your own judgment, perform yours. He sincerely hopes that your views and your action may so accord with his as to assure all faithful citizens who have been disturbed in their rights of a certain and speedy restoration to them, under the Constitution and the laws.

And having thus chosen our course, without guile and with pure purpose, let us renew our trust in God, and go forward without fear and with manly hearts.

A. LINCOLN,

July 4, 1861

TO THE SECRETARY OF THE INTERIOR.

EXECUTIVE MANSION, July 6, 1861.

HON. SEC. OF INTERIOR.

MY DEAR SIR:—Please ask the Comr. of Indian Affairs, and of the Gen'l Land Office to come with you, and see me at once. I want the assistance of all of you in overhauling the list of appointments a little before I send them to the Senate.

Yours truly,

A. LINCOLN.

MESSAGE TO THE HOUSE OF REPRESENTATIVES.

TO THE HOUSE OF REPRESENTATIVES:

In answer to the resolution of the House of Representatives of the 9th instant, requesting a copy of correspondence upon the subject of the incorporation of the Dominican republic with the Spanish monarchy, I transmit a report from the Secretary of State; to whom the resolution was referred.

WASHINGTON, July 11, 1861.

MESSAGE TO CONGRESS.

TO THE SENATE AND HOUSE OF REPRESENTATIVES:

I transmit to Congress a copy of correspondence between the Secretary of State and her Britannic Majesty's envoy extraordinary and minister plenipotentiary accredited to this government, relative to the exhibition of the products of industry of all nations, which is to take place at London in the course of next year. As citizens of the United States may justly pride themselves upon their proficiency in industrial arts, it is desirable that they should have proper facilities toward taking part in the exhibition. With this view I recommend such legislation by Congress at this session as may be necessary for that purpose.

A. LINCOLN.

WASHINGTON, July 16, 1861

MESSAGE TO CONGRESS.

TO THE SENATE AND HOUSE OF REPRESENTATIVES:

As the United States have, in common with Great Britain and France, a deep interest in the preservation and development of the fisheries adjacent to the northeastern coast and islands of this continent, it seems proper that we should concert with the governments of those countries such measures as may be conducive to those important objects. With this view I transmit to Congress a copy of a correspondence between the Secretary of State and the British minister here, in which the latter proposes, on behalf of his government, the appointment of a joint commission to inquire into the matter, in order that such ulterior measures may be adopted as may be advisable for the objects proposed. Such legislation recommended as may be necessary to enable the executive to provide for a commissioner on behalf of the United States:

WASHINGTON, JULY 19, 1861. A. LINCOLN.

TO THE ADJUTANT-GENERAL

WASHINGTON, JULY 19, 1861

ADJUTANT-GENERAL:

I have agreed, and do agree, that the two Indian regiments named within shall be accepted if the act of Congress shall admit it. Let there be no further question about it.

A. LINCOLN.

MEMORANDA OF MILITARY POLICY SUGGESTED BY THE BULL RUN DEFEAT. JULY 23,

1861

1. Let the plan for making the blockade effective be pushed forward with all possible despatch.

2. Let the volunteer forces at Fort Monroe and vicinity under General Butler be constantly drilled, disciplined, and instructed without more for the present.

3. Let Baltimore be held as now, with a gentle but firm and certain hand.

4. Let the force now under Patterson or Banks be strengthened and made secure in its position.

5. Let the forces in Western Virginia act till further orders according to instructions or orders from General McClellan.

6. [Let] General Fremont push forward his organization and operations in the West as rapidly as possible, giving rather special attention to Missouri.

7. Let the forces late before Manassas, except the three-months men, be reorganized as rapidly as possible in their camps here and about Arlington.

8. Let the three-months forces who decline to enter the longer service be discharged as rapidly as circumstances will permit.

9. Let the new volunteer forces be brought forward as fast as possible, and especially into the camps on the two sides of the river here.

When the foregoing shall be substantially attended to:

1. Let Manassas Junction (or some point on one or other of the railroads near it) and Strasburg be seized, and permanently held, with an open line from Washington to Manassas, and an open line from Harper's Ferry to Strasburg the military men to find the way of doing these.

2. This done, a joint movement from Cairo on Memphis; and from Cincinnati on East Tennessee.

TO THE GOVERNOR OF NEW JERSEY.

WASHINGTON, D.C., July 24, 1861

THE GOVERNOR OF NEW JERSEY.

SIR:—Together with the regiments of three years' volunteers which the government already has in service in your State, enough to make eight in all, if tendered in a reasonable time, will be accepted, the new regiments to be taken, as far as convenient, from the three months' men and officers just discharged, and to be organized, equipped, and sent forward as fast as single regiments are ready, On the same terms as were those already in the service from that State.

Your obedient servant,

A. LINCOLN.

[Indorsement.]

This order is entered in the War Department, and the Governor of New Jersey is authorized to furnish the regiments with wagons and horses.

S. CAMERON, Secretary of War.

MESSAGE TO THE HOUSE OF REPRESENTATIVES.

TO THE HOUSE OF REPRESENTATIVES:

In answer to the resolution of the House of Representatives of the 22d instant; requesting a copy of the correspondence between this, government and foreign powers with reference to maritime right, I transmit a report from the Secretary of State.

A. LINCOLN.

WASHINGTON, July 25, 1861

MESSAGE TO THE HOUSE OF REPRESENTATIVES.

TO THE HOUSE OF REPRESENTATIVES:

In answer to the resolution of the House of Representatives of the 15th instant, requesting a copy of the correspondence between this government and foreign powers on the subject of the existing insurrection in the United States, I transmit a report from the Secretary of State.

WASHINGTON, July 25, 1861.

A. LINCOLN.

TO SECRETARY CHASE.

EXECUTIVE MANSION, JULY 16, 1861

MR CHASE:—The bearer, Mr. ———, wants ——— in the custom house at Baltimore. If his recommendations are satisfactory, and I recollect them to have been so, the fact that he is urged by the Methodists should be in his favor, as they complain of us some.

LINCOLN.

MESSAGE TO THE HOUSE OF REPRESENTATIVES.

TO THE HOUSE OF REPRESENTATIVES:

In answer to the resolution of the House of Representatives of the 24th instant, asking the grounds, reasons, and evidence upon which the police Commissioners of Baltimore were arrested and are now detained as prisoners at Port McHenry, I have to state that it is judged to be incompatible with the public interest at this time to furnish the information called for by the resolution.

A. LINCOLN. WASHINGTON, JULY 27, 1861

MESSAGE TO THE SENATE.

TO THE SENATE OF THE UNITED STATES:

In answer to the resolution of the Senate of the 19th instant requesting information concerning the quasi armistice alluded to in my message of the 4th instant, I transmit a report from the Secretary of the Navy.

A. LINCOLN. JULY 30, 1861

MESSAGE TO THE SENATE.

TO THE SENATE OF THE UNITED STATES:

In answer to the resolution of the Senate of the 23d instant requesting information concerning the imprisonment of Lieutenant John J. Worden (John L. Worden) of the United States navy, I transmit a report from the Secretary of the Navy.

A. LINCOLN.

July 30, 1861

ORDER TO UNITED STATES MARSHALS.

**EXECUTIVE MANSION, WASHINGTON, D.C., JULY 31,
1861**

The Marshals of the United States in the vicinity of forts where political prisoners are held will supply decent lodging and sustenance for such prisoners unless they shall prefer to provide in those respects for themselves, in which case they will be allowed to do so by the commanding officer in charge.

Approved, and the Secretary of the State will transmit the order to the Marshals, to the Lieutenant-General, and the Secretary of the Interior.

A. LINCOLN.

MESSAGE TO THE HOUSE OF REPRESENTATIVES.

TO THE HOUSE OF REPRESENTATIVES:

In answer to the resolution of the House of Representatives of yesterday, requesting information regarding the imprisonment of loyal citizens of the United States by the forces now in rebellion against this government, I transmit a report from the Secretary of State, and the copy of a telegraphic despatch by which it was accompanied.

A. LINCOLN.

WASHINGTON, August 2, 1861.

MESSAGE TO THE SENATE.

TO THE SENATE OF THE UNITED STATES:

In answer to the resolution of your honorable body of date July 31, 1861, requesting the President to inform the Senate whether the Hon. James H. Lane, a member of that body from Kansas, has been appointed a brigadier-general in the army of the United States, and if so, whether he has accepted such appointment, I have the honor to transmit herewith certain papers, numbered 1, 2, 3, 4, 5, 6, and 7, which, taken together, explain themselves, and which contain all the information I possess upon the questions propounded.

It was my intention, as shown by my letter of June 20, 1861, to appoint Hon. James H. Lane, of Kansas, a brigadier-general of United States volunteers in anticipation of the act of Congress, since passed, for raising such volunteers; and I have no further knowledge upon the subject, except as derived from the papers herewith enclosed.

EXECUTIVE MANSION, August 5, 1861

TO SECRETARY CAMERON.

EXECUTIVE MANSION, AUGUST 7, 1861

HON. SECRETARY OF WAR

MY DEAR SIR:—The within paper, as you see, is by HON. John S. Phelps and HON. Frank P. Blair, Jr., both members of the present Congress from Missouri. The object is to get up an efficient force of Missourians in the southwestern part of the State. It ought to be done, and Mr. Phelps ought to have general superintendence of it. I see by a private report to me from the department that eighteen regiments are already accepted from Missouri. Can it not be arranged that part of them (not yet organized, as I understand) may be taken from the locality mentioned and put under the control of Mr. Phelps, and let him have discretion to accept them for a shorter term than three years—or the war—understanding, however, that he will get them for the full term if he can? I hope this can be done, because Mr. Phelps is too zealous and efficient and understands his ground too well for us to lose his service. Of course provision for arming, equipping, etc., must be made. Mr. Phelps is here, and wishes to carry home with him authority for this matter.

Yours truly,

A. LINCOLN

PROCLAMATION OF A NATIONAL FAST-DAY, AUGUST 12, 1861.

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA**

A Proclamation.

Whereas a joint committee of both houses of Congress has waited on the President of the United States and requested him to "recommend a day of public humiliation, prayer, and fasting to be observed by the people of the United States with religious solemnities and the offering of fervent supplications to Almighty God for the safety and welfare of these States, His blessings on their arms, and a speedy restoration of peace"; and

Whereas it is fit and becoming in all people at all times to acknowledge and revere the supreme government of God, to bow in humble submission to His chastisements, to confess and deplore their sins and transgressions in the full conviction that the fear of the Lord is the beginning of wisdom, and to pray with all fervency and contrition for the pardon of their past offences and for a blessing upon their present and prospective action; and

Whereas when our own beloved country, once, by the blessing of God, united, prosperous, and happy, is now afflicted with faction and civil war, it is peculiarly fit for us to recognize the hand of God in this terrible visitation, and in sorrowful remembrance of our own faults and crimes as a nation and as individuals to humble ourselves before Him and to pray for His mercy-to pray that we may be spared further punishment, though most justly deserved, that our arms may be blessed and made effectual for the re-establishment of order, law, and peace throughout the wide extent of our country, and that the inestimable boon of civil and religious liberty, earned under His guidance and blessing by the labors and sufferings of our fathers, may be restored in all its original excellence.

Therefore I, Abraham Lincoln, President of the United States, do appoint the last Thursday in September next as a day of humiliation, prayer, and fasting for all the people of the nation. And I do earnestly recommend to all

the people, and especially to all ministers and teachers of religion of all denominations and to all heads of families, to observe and keep that day according to their several creeds and modes of worship in all humility and with all religious solemnity, to the end that the united prayer of the nation may ascend to the Throne of Grace and bring down plentiful blessings upon our country.

*In testimony whereof I have hereunto set my hand
and caused the seal of the United States to
[SEAL.]
be affixed, this twelfth day of August, A. D.
1861, and of the independence of the United
States of America the eighty-sixth.*

A. LINCOLN.

*By the President: WILLIAM H. SEWARD,
Secretary of State.*

TO JAMES POLLOCK.

WASHINGTON, AUGUST 15, 1861

HON. JAMES POLLOCK.

MY DEAR SIR:—You must make a job for the bearer of this—make a job of it with the collector and have it done. You can do it for me and you must.

Yours as ever,

A. LINCOLN.

TELEGRAM TO GOVERNOR O. P. MORTON.

WASHINGTON, D.C., AUGUST 15, 1861

GOVERNOR MORTON, Indiana: Start your four regiments to St. Louis at the earliest moment possible. Get such harness as may be necessary for your rifled guns. Do not delay a single regiment, but hasten everything forward as soon as any one regiment is ready. Have your three additional regiments organized at once. We shall endeavor to send you the arms this week.

A. LINCOLN

TELEGRAM TO GENERAL FREMONT,

WASHINGTON, August 15, 1861

TO MAJOR-GENERAL FREMONT:

Been answering your messages since day before yesterday. Do you receive the answers? The War Department has notified all the governors you designate to forward all available force. So telegraphed you. Have you received these messages? Answer immediately.

A. LINCOLN.

**PROCLAMATION FORBIDDING
INTERCOURSE WITH REBEL STATES,
AUGUST 16, 1861.**

**BY THE PRESIDENT OF THE UNITED STATES OF
AMERICA:**

A Proclamation.

Whereas on the fifteenth day of April, eighteen hundred and sixty-one, the President of the United States, in view of an insurrection against the laws, Constitution, and government of the United States which had broken out within the States of South Carolina, Georgia, Alabama, Florida, Mississippi, Louisiana, and Texas, and in pursuance of the provisions of the act entitled "An act to provide for calling forth the militia to execute the laws of the Union, suppress insurrections, and repel invasions, and to repeal the act now in force for that purpose," approved February twenty-eighth, seventeen hundred and ninety-five, did call forth the militia to suppress said insurrection, and to cause the laws of the Union to be duly executed, and the insurgents have failed to disperse by the time directed by the President; and whereas such insurrection has since broken out and yet exists within the States of Virginia, North Carolina, Tennessee, and Arkansas; and whereas the insurgents in all the said States claim to act under the authority thereof, and such claim is not disclaimed or repudiated by the persons exercising the functions of government in such State or States, or in the part or parts thereof in which such combinations exist, nor has such insurrection been suppressed by said States:

Now, therefore, I, Abraham Lincoln, President of the United States, in pursuance of an act of Congress approved July thirteen, eighteen hundred and sixty-one, do hereby declare that the inhabitants of the said States of Georgia, South Carolina, Virginia, North Carolina, Tennessee, Alabama, Louisiana, Texas, Arkansas, Mississippi, and Florida (except the inhabitants of that part of the State of Virginia lying west of the Allegheny Mountains, and of such other parts of that State, and the other States hereinbefore

named, as may maintain a loyal adhesion to the Union and the Constitution, or may be time to time occupied and controlled by forces of the United States engaged in the dispersion of said insurgents), are in a state of insurrection against the United States, and that all commercial intercourse between the same and the inhabitants thereof, with the exceptions aforesaid, and the citizens of other States and other parts of the United States, is unlawful, and will remain unlawful until such insurrection shall cease or has been suppressed; that all goods and chattels, wares and merchandise, coming from any of said States, with the exceptions aforesaid, into other parts of the United States, without the special license and permission of the President, through the Secretary of the Treasury, or proceeding to any of said States, with the exceptions aforesaid, by land or water, together with the vessel or vehicle conveying the same, or conveying persons to or from said States, with said exceptions, will be forfeited to the United States; and that from and after fifteen days from the issuing of this proclamation all ships and vessels belonging in whole or in part to any citizen or inhabitant of any of said States, with said exceptions, found at sea, or in any port of the United States, will be forfeited to the United States; and I hereby enjoin upon all district attorneys, marshals, and officers of the revenue and of the military and naval forces of the United States to be vigilant in the execution of said act, and in the enforcement of the penalties and forfeitures imposed or declared by it; leaving any party who may think himself aggrieved thereby to his application to the Secretary of the Treasury for the remission of any penalty or forfeiture, which the said Secretary is authorized by law to grant if, in his judgment, the special circumstances of any case shall require such remission.

In witness whereof, I have hereunto set my hand,....

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

TO SECRETARY CAMERON.

EXECUTIVE MANSION, August 17, 1861

HON. SECRETARY OF WAR.

MY DEAR SIR:—Unless there be reason to the contrary, not known to me, make out a commission for Simon B. Buckner, of Kentucky, as a brigadier-general of volunteers. It is to be put into the hands of General Anderson, and delivered to General Buckner or not, at the discretion of General Anderson. Of course it is to remain a secret unless and until the commission is delivered.

Yours truly, A. LINCOLN

Same day made.

[Indorsement.]

TO GOVERNOR MAGOFFIN,

WASHINGTON, D.C., AUGUST 24, 1861

To HIS EXCELLENCY B. MAGOFFIN, Governor of the State of Kentucky.

SIR:—Your letter of the 19th instant, in which you urge the "removal from the limits of Kentucky of the military force now organized and in camp within that State," is received.

I may not possess full and precisely accurate knowledge upon this subject; but I believe it is true that there is a military force in camp within Kentucky, acting by authority of the United States, which force is not very large, and is not now being augmented.

I also believe that some arms have been furnished to this force by the United States.

I also believe this force consists exclusively of Kentuckians, having their camp in the immediate vicinity of their own homes, and not assailing or menacing any of the good people of Kentucky.

In all I have done in the premises I have acted upon the urgent solicitation of many Kentuckians, and in accordance with what I believed, and still believe, to be the wish of a majority of all the Union-loving people of Kentucky.

While I have conversed on this subject with many eminent men of Kentucky, including a large majority of her members of Congress, I do not remember that any one of them, or any other person, except your Excellency and the bearers of your Excellency's letter, has urged me to remove the military force from Kentucky or to disband it. One other very worthy citizen of Kentucky did solicit me to have the augmenting of the force suspended for a time.

Taking all the means within my reach to form a judgment, I do not believe it is the popular wish of Kentucky that this force shall be removed beyond her limits; and, with this impression, I must respectfully decline to so remove it.

I most cordially sympathize with your Excellency in the wish to preserve the peace of my own native State, Kentucky. It is with regret I search, and cannot find, in your not very short letter, any declaration or intimation that you entertain any desire for the preservation of the Federal Union.

Your obedient servant,

A. LINCOLN.

TO GENERAL FREMONT.

WASHINGTON, D.C., SEPTEMBER 2, 1861

MAJOR-GENERAL FREMONT.

MY DEAR SIR:—Two points in your proclamation of August 30 give me some anxiety.

First. Should you shoot a man, according to the proclamation, the Confederates would very certainly shoot our best men in their hands in retaliation; and so, man for man, indefinitely. It is, therefore, my order that you allow no man to be shot under the proclamation without first having my approbation or consent.

Second. I think there is great danger that the closing paragraph, in relation to the confiscation of property and the liberating slaves of traitorous owners, will alarm our Southern Union friends and turn them against us; perhaps ruin our rather fair prospect for Kentucky. Allow me, therefore, to ask that you will, as of your own motion, modify that paragraph so as to conform to the first and fourth sections of the act of Congress entitled "An act to confiscate property used for insurrectionary purposes," approved August 6, 1861, and a copy of which act I herewith send you.

This letter is written in a spirit of caution, and not of censure. I send it by special messenger, in order that it may certainly and speedily reach you.

Yours very truly,

A. LINCOLN.

TELEGRAM TO GOVERNORS

WASHBURN OF MAINE, FAIRBANKS OF VERMONT, BERRY OF NEW HAMPSHIRE, ANDREW OF MASSACHUSETTS, BUCKINGHAM OF CONNECTICUT, AND SPRAGUE OF RHODE ISLAND.

WAR DEPARTMENT, September 11, 1861.

General Butler proposes raising in New England six regiments, to be recruited and commanded by himself, and to go on special service.

I shall be glad if you, as governor of ———, will answer by telegraph if you consent.

A. LINCOLN.

TO GENERAL FREMONT.

WASHINGTON, D.C., SEPTEMBER 11, 1861

MAJOR-GENERAL JOHN C. FREMONT.

SIR:-Yours of the 8th, in answer to mine of the 2d instant, is just received. Assuming that you, upon the ground, could better judge of the necessities of your position than I could at this distance, on seeing your proclamation of August 30 I perceived no general objection to it. The particular clause, however, in relation to the confiscation of property and the liberation of slaves appeared to me to be objectionable in its nonconformity to the act of Congress passed the 6th of last August upon the same subjects; and hence I wrote you, expressing my wish that that clause should be modified accordingly. Your answer, just received, expresses the preference on your part that I should make an open order for the modification, which I very cheerfully do. It is therefore ordered that the said clause of said proclamation be so modified, held, and construed as to conform to, and not to transcend, the provisions on the same subject contained in the act of Congress entitled "An act to confiscate property used for insurrectionary purposes," approved August 6, 1861, and that said act be published at length with this order.

Your obedient servant,

A. LINCOLN.

TO MRS. FREMONT.

WASHINGTON, D.C., September 12, 1861

Mrs. GENERAL FREMONT.

MY DEAR MADAM:—Your two notes of to-day are before me. I answered the letter you bore me from General Fremont on yesterday, and not hearing from you during the day, I sent the answer to him by mail. It is not exactly correct, as you say you were told by the elder Mr. Blair, to say that I sent Postmaster-General Blair to St. Louis to examine into that department and report. Postmaster-General Blair did go, with my approbation, to see and converse with General Fremont as a friend. I do not feel authorized to furnish you with copies of letters in my possession without the consent of the writers. No impression has been made on my mind against the honor or integrity of General Fremont, and I now enter my protest against being understood as acting in any hostility toward him.

Your obedient servant,

A. LINCOLN.

TO JOSEPH HOLT,

EXECUTIVE MANSION, SEPTEMBER 12, 1861

HON. JOSEPH HOLT.

DEAR SIR:—Yours of this day in relation to the late proclamation of General Fremont is received yesterday I addressed a letter to him, by mail, on the same subject, and which is to be made public when he receives it. I herewith send you a copy of that letter, which perhaps shows my position as distinctly as any new one I could write. I will thank you not to make it public until General Fremont shall have had time to receive the original.

Your obedient servant,

A. LINCOLN.

TO GENERAL SCOTT

WASHINGTON, D.C., September 16, 1861.

DEAR SIR:—Since conversing with you I have concluded to request you to frame an order for recruiting North Carolinians at Fort Hatteras. I suggest it to be so framed as for us to accept a smaller force—even a company—if we cannot get a regiment or more. What is necessary to now say about officers you will judge. Governor Seward says he has a nephew (Clarence A. Seward, I believe) who would be willing to go and play colonel and assist in raising the force. Still it is to be considered whether the North Carolinians will not prefer officers of their own. I should expect they would.

Yours very truly,

A. LINCOLN.

TO SECRETARY CAMERON.

EXECUTIVE MANSION, September 18, 1861

HON. SECRETARY OF WAR. MY DEAR SIR:—To guard against misunderstanding, I think fit to say that the joint expedition of the army and navy agreed upon some time since, and in which General T. W. Sherman was and is to bear a conspicuous part, is in no wise to be abandoned, but must be ready to move by the 1st of, or very early in, October. Let all preparations go forward accordingly.

Yours truly,

A. LINCOLN.

TO GENERAL FREMONT,

WASHINGTON, SEPTEMBER 12, 1861

MAJOR-GENERAL FREMONT:

Governor Morton telegraphs as follows: "Colonel Lane, just arrived by special train, represents Owensborough, forty miles above Evansville, in possession of secessionists. Green River is navigable. Owensborough must be seized. We want a gunboat sent up from Paducah for that purpose." Send up the gunboat if, in your discretion, you think it right. Perhaps you had better order those in charge of the Ohio River to guard it vigilantly at all points.

A. LINCOLN.

To O. H. BROWNING.

(Private and Confidential)

EXECUTIVE MANSION, WASHINGTON SEPTEMBER 22, 1861
HON. O. H. BROWNING.

MY DEAR SIR:—Yours of the 17th is just received; and coming from you, I confess it astonishes me. That you should object to my adhering to a law which you had assisted in making and presenting to me less than a month before is odd enough. But this is a very small part. General Fremont's proclamation as to confiscation of property and the liberation of slaves is purely political and not within the range of military law or necessity. If a commanding general finds a necessity to seize the farm of a private owner for a pasture, an encampment, or a fortification, he has the right to do so, and to so hold it as long as the necessity lasts; and this is within military law, because within military necessity. But to say the farm shall no longer belong to the owner, or his heirs forever, and this as well when the farm is not needed for military purposes as when it is, is purely political, without the savor of military law about it. And the same is true of slaves. If the general needs them, he can seize them and use them; but when the need is past, it is not for him to fix their permanent future condition. That must be settled according to laws made by law-makers, and not by military proclamations. The proclamation in the point in question is simply "dictatorship." It assumes that the general may do anything he pleases confiscate the lands and free the slaves of loyal people, as well as of disloyal ones. And going the whole figure, I have no doubt, would be more popular with some thoughtless people than that which has been done, But I cannot assume this reckless position, nor allow others to assume it on my responsibility.

You speak of it as being the only means of saving the government. On the contrary, it is itself the surrender of the government. Can it be pretended that it is any longer the Government of the United States—any government of constitution and laws wherein a general or a president may make permanent rules of property by proclamation? I do not say Congress might

not with propriety pass a law on the point, just such as General Fremont proclaimed.

I do not say I might not, as a member of Congress, vote for it. What I object to is, that I, as President, shall expressly or impliedly seize and exercise the permanent legislative functions of the government.

So much as to principle. Now as to policy. No doubt the thing was popular in some quarters, and would have been more so if it had been a general declaration of emancipation. The Kentucky Legislature would not budge till that proclamation was modified; and General Anderson telegraphed me that on the news of General Fremont having actually issued deeds of manumission, a whole company of our volunteers threw down their arms and disbanded. I was so assured as to think it probable that the very arms we had furnished Kentucky would be turned against us. I think to lose Kentucky is nearly the same as to lose the whole game. Kentucky gone, we cannot hold Missouri, nor, as I think, Maryland. These all against us, and the job on our hands is too large for us. We would as well consent to separation at once, including the surrender of this Capital. On the contrary, if you will give up your restlessness for new positions, and back me manfully on the grounds upon which you and other kind friends gave me the election and have approved in my public documents, we shall go through triumphantly. You must not understand I took my course on the proclamation because of Kentucky. I took the same ground in a private letter to General Fremont before I heard from Kentucky.

You think I am inconsistent because I did not also forbid General Fremont to shoot men under the proclamation. I understand that part to be within military law, but I also think, and so privately wrote General Fremont, that it is impolitic in this, that our adversaries have the power, and will certainly exercise it, to shoot as many of our men as we shoot of theirs. I did not say this in the public letter, because it is a subject I prefer not to discuss in the hearing of our enemies.

There has been no thought of removing General Fremont on any ground connected with his proclamation, and if there has been any wish for his removal on any ground, our mutual friend Sam. Glover can probably tell you what it was. I hope no real necessity for it exists on any ground.

Your friend, as ever,

A. LINCOLN.

MEMORANDUM FOR A PLAN OF CAMPAIGN

[OCTOBER 1?] 1861

On or about the 5th of October (the exact date to be determined hereafter) I wish a movement made to seize and hold a point on the railroad connecting Virginia and Tennessee near the mountain-pass called Cumberland Gap. That point is now guarded against us by Zollicoffer, with 6000 or 8000 rebels at Barboursville Ky.,—say twenty-five miles from the Gap, toward Lexington. We have a force of 5000 or 6000 under General Thomas, at Camp Dick Robinson, about twenty-five miles from Lexington and seventy-five from Zollicoffer's camp, On the road between the two. There is not a railroad anywhere between Lexington and the point to be seized, and along the whole length of which the Union sentiment among the people largely predominates. We have military possession of the railroad from Cincinnati to Lexington, and from Louisville to Lexington, and some home guards, under General Crittenden, are on the latter line. We have possession of the railroad from Louisville to Nashville, Tenn., so far as Muldraugh's Hill, about forty miles, and the rebels have possession of that road all south of there. At the Hill we have a force of 8000, under General Sherman, and about an equal force of rebels is a very short distance south, under General Buckner.

We have a large force at Paducah, and a smaller at Port Holt, both on the Kentucky side, with some at Bird's Point, Cairo, Mound City, Evansville, and New Albany, all on the other side, and all which, with the gunboats on the river, are perhaps sufficient to guard the Ohio from Louisville to its mouth.

About supplies of troops, my general idea is that all from Wisconsin, Minnesota, Iowa, Illinois, Missouri, and Kansas, not now elsewhere, be left to Fremont. All from Indiana and Michigan, not now elsewhere, be sent to Anderson at Louisville. All from Ohio needed in western Virginia be sent there, and any remainder be sent to Mitchell at Cincinnati, for Anderson. All east of the mountains be appropriated to McClellan and to the coast.

As to movements, my idea is that the one for the coast and that on Cumberland Gap be simultaneous, and that in the meantime preparation, vigilant watching, and the defensive only be acted upon; this, however, not to apply to Fremont's operations in northern and middle Missouri. That before these movements Thomas and Sherman shall respectively watch but not attack Zollicoffer and Buckner. That when the coast and Gap movements shall be ready Sherman is merely to stand fast, while all at Cincinnati and all at Louisville, with all on the line, concentrate rapidly at Lexington, and thence to Thomas's camp, joining him, and the whole thence upon the Gap. It is for the military men to decide whether they can find a pass through the mountains at or near the Gap which cannot be defended by the enemy with a greatly inferior force, and what is to be done in regard to this.

The coast and Gap movements made, Generals McClellan and Fremont, in their respective departments, will avail themselves of any advantages the diversions may present.

[He was entirely unable to get this started, Sherman would have taken an active part if given him, the others were too busy getting lines of communication guarded—and discovering many "critical" supply items that had not been sent them. Also the commanding general did not like it. D.W.]

TO THE SECRETARY OF STATE.

EXECUTIVE MANSION, October 4, 1861

HONORABLE SECRETARY OF STATE.

DEAR SIR:—Please see Mr. Walker, well vouched as a Union man and son-in-law of Governor Morehead, and pleading for his release. I understand the Kentucky arrests were not made by special direction from here, and I am willing if you are that any of the parties may be released when James Guthrie and James Speed think they should be.

Yours truly,

A. LINCOLN.

TO THE VICEROY OF EGYPT.

WASHINGTON, October 11, 1861.

GREAT AND GOOD FRIEND:—I have received from Mr. Thayer, Consul-General of the United States at Alexandria, a full account of the liberal, enlightened, and energetic proceedings which, on his complaint, you have adopted in bringing to speedy and condign punishment the parties, subjects of your Highness in Upper Egypt, who were concerned in an act of criminal persecution against Faris, an agent of certain Christian missionaries in Upper Egypt. I pray your Highness to be assured that these proceedings, at once so prompt and so just, will be regarded as a new and unmistakable proof equally of your Highness's friendship for the United States and of the firmness, integrity and wisdom, with which the government of your Highness is conducted. Wishing you great prosperity and success, I am your friend,

A. LINCOLN.

HIS HIGHNESS MOHAMMED SAID PACHA, Viceroy of Egypt and its Dependencies, etc.

By the President: WILLIAM H. SEWARD, Secretary of State.

ORDER AUTHORIZING SUSPENSION OF THE WRIT OF HABEAS CORPUS.

October 14 1861

LIEUTENANT-GENERAL WINFIELD SCOTT:

The military line of the United States for the suppression of the insurrection may be extended so far as Bangor, in Maine. You and any officer acting under your authority are hereby authorized to suspend the writ of habeas corpus in any place between that place and the city of Washington.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

TO SECRETARY OF INTERIOR.

EXECUTIVE MANSION, October 14, 1861

HON. SEC. OF INTERIOR.

DEAR SIR:—How is this? I supposed I was appointing for register of wills a citizen of this District. Now the commission comes to me "Moses Kelly, of New Hampshire." I do not like this.

Yours truly,

A. LINCOLN.

TWO SONS WHO WANT TO WORK

TO MAJOR RAMSEY.

EXECUTIVE MANSION, October 17, 1861

MAJOR RAMSEY.

MY DEAR SIR:—The lady bearer of this says she has two sons who want to work. Set them at it if possible. Wanting to work is so rare a want that it should be encouraged.

Yours truly,

A. LINCOLN.

TO GENERAL THOMAS W. SHERMAN.

WASHINGTON, October 18, 1861.

GENERAL THOMAS SHERMAN, Annapolis, Md.:

Your despatch of yesterday received and shown to General McClellan. I have promised him not to direct his army here without his consent. I do not think I shall come to Annapolis.

A. LINCOLN.

TO GENERAL CURTIS, WITH INCLOSURES.

WASHINGTON, October 24, 1861

BRIGADIER-GENERAL S. R. CURTIS.

MY DEAR SIR:—Herewith is a document—half letter, half order—which, wishing you to see, but not to make public, I send unsealed. Please read it and then inclose it to the officer who may be in command of the Department of the West at the time it reaches him. I cannot now know whether Fremont or Hunter will then be in command.

Yours truly,

A. LINCOLN.

WASHINGTON, October 24, 1861

BRIGADIER-GENERAL S. R. CURTIS.

DEAR SIR:—On receipt of this, with the accompanying inclosures, you will take safe, certain, and suitable measures to have the inclosure addressed to Major-General Fremont delivered to him with all reasonable despatch, subject to these conditions only: that if, when General Fremont shall be reached by the messenger—yourself or any one sent by you—he shall then have, in personal command, fought and won a battle, or shall then be actually in a battle, or shall then be in the immediate presence of the enemy in expectation of a battle, it is not to be delivered, but held for further orders. After, and not till after, the delivery to General Fremont, let the inclosure addressed to General Hunter be delivered to him.

Your obedient servant,

A. LINCOLN.

(General Orders No. 18.) HEADQUARTERS OF THE ARMY,
WASHINGTON, October 24, 1861

Major-General Fremont, of the United States Army, the present commander of the Western Department of the same, will, on the receipt of this order, call Major-General Hunter, of the United States Volunteers, to relieve him temporarily in that command, when he (Major-General Fremont) will report to general headquarters by letter for further orders.

WINFIELD SCOTT. By command: E. D. TOWNSEND, Assistant Adjutant-General.

WASHINGTON, October 24, 1861

**TO THE COMMANDER OF THE DEPARTMENT OF THE
WEST.**

SIR:—The command of the Department of the West having devolved upon you, I propose to offer you a few suggestions. Knowing how hazardous it is to bind down a distant commander in the field to specific lines and operations, as so much always depends on a knowledge of localities and passing events, it is intended, therefore, to leave a considerable margin for the exercise of your judgment and discretion.

The main rebel army (Price's) west of the Mississippi is believed to have passed Dade County in full retreat upon northwestern Arkansas, leaving Missouri almost freed from the enemy, excepting in the southeast of the State. Assuming this basis of fact, it seems desirable, as you are not likely to overtake Price, and are in danger of making too long a line from your own base of supplies and reinforcements, that you should give up the pursuit, halt your main army, divide it into two corps of observation, one occupying Sedalia and the other Rolla, the present termini of railroads; then recruit the condition of both corps by re-establishing and improving their discipline and instructions, perfecting their clothing and equipments, and providing less uncomfortable quarters. Of course, both railroads must be guarded and kept open, judiciously employing just so much force as is necessary for this. From these two points, Sedalia and Rolla, and especially in judicious cooperation with Lane on the Kansas border, it would be so easy to concentrate and repel any army of the enemy returning on Missouri from the southwest, that it is not probable any such attempt will be made before or during the approaching cold weather. Before spring the people of Missouri will probably be in no favorable mood to renew for next year the troubles which have so much afflicted and impoverished them during this. If you adopt this line of policy, and if, as I anticipate, you will see no enemy in great force approaching, you will have a surplus of force which you can withdraw from these points and direct to others as may be needed, the railroads furnishing ready means of reinforcing these main points if

occasion requires. Doubtless local uprisings will for a time continue to occur, but these can be met by detachments and local forces of our own, and will ere long tire out of themselves.

While, as stated in the beginning of the letter, a large discretion must be and is left with yourself, I feel sure that an indefinite pursuit of Price or an attempt by this long and circuitous route to reach Memphis will be exhaustive beyond endurance, and will end in the loss of the whole force engaged in it.

Your obedient servant,

A. LINCOLN.

ORDER RETIRING GENERAL SCOTT AND APPOINTING

**GENERAL McCLELLAN HIS SUCCESSOR. (General
Orders, No.94.)**

WAR DEPARTMENT, ADJUTANT-GENERAL'S OFFICE

WASHINGTON, November 1, 1861

The following order from the President of the United States, announcing the retirement from active command of the honored veteran Lieutenant general Winfield Scott, will be read by the army with profound regret:

EXECUTIVE MANSION, WASHINGTON.

November 1, 1861

On the 1st day of November, A.D. 1861, upon his own application to the President of the United States, Brevet Lieutenant-General Winfield Scott is ordered to be placed, and hereby is placed, upon the list of retired officers of the army of the United States, without reduction in his current pay, subsistence, or allowances.

The American people will hear with sadness and deep emotion that General Scott has withdrawn from the active control of the army, while the President and a unanimous Cabinet express their own and the nation's sympathy in his personal affliction and their profound sense of the important public services rendered by him to his country during his long and brilliant career, among which will ever be gratefully distinguished his faithful devotion to the Constitution, the Union, and the flag when assailed by parricidal rebellion.

A. LINCOLN

The President is pleased to direct that Major general George B. McClellan assume the command of the army of the United States. The headquarters of the army will be established in the city of Washington. All communications intended for the commanding general will hereafter be addressed direct to the adjutant-general. The duplicate returns, orders, and other papers heretofore sent to the assistant adjutant-general, headquarters of the army, will be discontinued.

By order of the Secretary of War: L. THOMAS, Adjutant General.

ORDER APPROVING THE PLAN OF GOVERNOR GAMBLE OF MISSOURI.

EXECUTIVE MANSION, WASHINGTON,

November 5, 1861.

The Governor of the State of Missouri, acting under the direction of the convention of that State, proposes to the Government of the United States that he will raise a military force to serve within the State as State militia during the war there, to cooperate with the troops in the service of the United States in repelling the invasion of the State and suppressing rebellion therein; the said State militia to be embodied and to be held in the camp and in the field, drilled, disciplined, and governed according to the Army Regulations and subject to the Articles of War; the said State militia not to be ordered out of the State except for the immediate defense of the State of Missouri, but to co-operate with the troops in the service of the United States in military operations within the State or necessary to its defense, and when officers of the State militia act with officers in the service of the United States of the same grade the officers of the United States service shall command the combined force; the State militia to be armed, equipped, clothed, subsisted, transported, and paid by the United States during such time as they shall be actually engaged as an embodied military force in service in accordance with regulations of the United States Army or general orders as issued from time to time.

In order that the Treasury of the United States may not be burdened with the pay of unnecessary officers, the governor proposes that, although the State law requires him to appoint upon the general staff an adjutant-general, a commissary-general, an inspector-general, a quartermaster-general, a paymaster-general, and a surgeon-general, each with the rank of colonel of cavalry, yet he proposes that the Government of the United States pay only the adjutant-general, the quartermaster-general, and inspector-general, their services being necessary in the relations which would exist between the State militia and the United States. The governor further proposes that while

he is allowed by the State law to appoint aides-de-camp to the governor at his discretion, with the rank of colonel, three only shall be reported to the United States for payment. He also proposes that the State militia shall be commanded by a single major-general and by such number of brigadier-generals as shall allow one for a brigade of not less than four regiments, and that no greater number of staff officers shall be appointed for regimental, brigade, and division duties than as provided for in the act of Congress of the 22d July, 1861; and that, whatever be the rank of such officers as fixed by the law of the State, the compensation that they shall receive from the United States shall only be that which belongs to the rank given by said act of Congress to officers in the United States service performing the same duties.

The field officers of a regiment in the State militia are one colonel, one lieutenant-colonel, and one major, and the company officers are a captain, a first lieutenant, and a second lieutenant. The governor proposes that, as the money to be disbursed is the money of the United States, such staff officers in the service of the United States as may be necessary to act as disbursing officers for the State militia shall be assigned by the War Department for that duty; or, if such cannot be spared from their present duty, he will appoint such persons disbursing officers for the State militia as the President of the United States may designate. Such regulations as may be required, in the judgment of the President, to insure regularity of returns and to protect the United States from any fraudulent practices shall be observed and obeyed by all in office in the State militia.

The above propositions are accepted on the part of the United States, and the Secretary of War is directed to make the necessary orders upon the Ordnance, Quartermaster's, Commissary, Pay, and Medical departments to carry this agreement into effect. He will cause the necessary staff officers in the United States service to be detailed for duty in connection with the Missouri State militia, and will order them to make the necessary provision in their respective offices for fulfilling this agreement. All requisitions upon the different officers of the United States under this agreement to be made in substance in the same mode for the Missouri State militia as similar requisitions are made for troops in the service of the United States; and the Secretary of War will cause any additional regulations that may be necessary to insure regularity and economy in carrying this agreement into

effect to be adopted and communicated to the Governor of Missouri for the government of the Missouri State militia.

[Indorsement.]

November 6, 1861.

This plan approved, with the modification that the governor stipulates that when he commissions a major-general of militia it shall be the same person at the time in command of the United States Department of the West; and in case the United States shall change such commander of the department, he (the governor) will revoke the State commission given to the person relieved and give one to the person substituted to the United States command of said department.

A. LINCOLN.

REPLY TO THE MINISTER FROM SWEDEN.

November 8, 1861.

SIR:—I receive with great pleasure a Minister from Sweden. That pleasure is enhanced by the information which preceded your arrival here, that his Majesty, your sovereign, had selected you to fill the mission upon the grounds of your derivation from an ancestral stock identified with the most glorious era of your country's noble history, and your own eminent social and political standing in Sweden. This country, sir, maintains, and means to maintain, the rights of human nature, and the capacity of men for self-government. The history of Sweden proves that this is the faith of the people of Sweden, and we know that it is the faith and practice of their respected sovereign. Rest assured, therefore, that we shall be found always just and paternal in our transactions with your government, and that nothing will be omitted on my part to make your residence in this capital agreeable to yourself and satisfactory to your government.

INDORSEMENT AUTHORIZING MARTIAL LAW IN SAINT LOUIS.

St. Louis, November 20, 1861. (Received Nov. 20th.)

GENERAL McCLELLAN,

For the President of the United States.

No written authority is found here to declare and enforce martial law in this department. Please send me such written authority and telegraph me that it has been sent by mail.

H. W. HALLECK, Major-General.

[Indorsement.] November 21, 1861.

If General McClellan and General Halleck deem it necessary to declare and maintain martial law in Saint Louis, the same is hereby authorized.

A. LINCOLN.

OFFER TO COOPERATE AND GIVE SPECIAL LINE OF INFORMATION TO HORACE GREELEY

TO GOVERNOR WALKER.

WASHINGTON, November 21, 1861

DEAR GOVERNOR:—I have thought over the interview which Mr. Gilmore has had with Mr. Greeley, and the proposal that Greeley has made to Gilmore, namely, that he [Gilmore] shall communicate to him [Greeley] all that he learns from you of the inner workings of the administration, in return for his [Greeley's] giving such aid as he can to the new magazine, and allowing you [Walker] from time to time the use of his [Greeley's] columns when it is desirable to feel of, or forestall, public opinion on important subjects. The arrangement meets my unqualified approval, and I shall further it to the extent of my ability, by opening to you—as I do now—fully the policy of the Government,—its present views and future intentions when formed, giving you permission to communicate them to Gilmore for Greeley; and in case you go to Europe I will give these things direct to Gilmore. But all this must be on the express and explicit understanding that the fact of these communications coming from me shall be absolutely confidential,—not to be disclosed by Greeley to his nearest friend, or any of his subordinates. He will be, in effect, my mouthpiece, but I must not be known to be the speaker.

I need not tell you that I have the highest confidence in Mr. Greeley. He is a great power. Having him firmly behind me will be as helpful to me as an army of one hundred thousand men.

This was to be most severely regretted, when Greeley became a traitor to the cause, editorialized for compromise and separation—and promoted McClellan as Democratic candidate for the Presidency.

That he has ever kicked the traces has been owing to his not being fully informed. Tell Gilmore to say to him that, if he ever objects to my policy, I

shall be glad to have him state to me his views frankly and fully. I shall adopt his if I can. If I cannot, I will at least tell him why. He and I should stand together, and let no minor differences come between us; for we both seek one end, which is the saving of our country. Now, Governor, this is a longer letter than I have written in a month,—longer than I would have written for any other man than Horace Greeley.

Your friend, truly,

A. LINCOLN.

P. S.—The sooner Gilmore sees Greeley the better, as you may before long think it wise to ventilate our policy on the Trent affair.

**ORDER AUTHORIZING GENERAL HALLECK
TO SUSPEND THE WRIT OF HABEAS
CORPUS,**

DECEMBER 2, 1861.

MAJOR-GENERAL H. W. HALLECK, Commanding in the Department of Missouri.

GENERAL:—As an insurrection exists in the United States, and is in arms in the State of Missouri, you are hereby authorized and empowered to suspend the writ of habeas corpus within the limits of the military division under your command, and to exercise martial law as you find it necessary in your discretion to secure the public safety and the authority of the United States.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed at Washington, this second day of December, A.D. 1861.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

ANNUAL MESSAGE TO CONGRESS.

WASHINGTON, December 3, 1861

FELLOW-CITIZENS OF THE SENATE AND HOUSE OF REPRESENTATIVES:—In the midst of unprecedented political troubles we have cause of great gratitude to God for unusual good health and most abundant harvests.

You will not be surprised to learn that in the peculiar exigencies of the times our intercourse with foreign nations has been attended with profound solicitude, chiefly turning upon our own domestic affairs.

A disloyal portion of the American people have during the whole year been engaged in an attempt to divide and destroy the Union. A nation which endures factious domestic division is exposed to disrespect abroad, and one party, if not both, is sure sooner or later to invoke foreign intervention.

Nations thus tempted to interfere are not always able to resist the counsels of seeming expediency and ungenerous ambition, although measures adopted under such influences seldom fail to be unfortunate and injurious to those adopting them.

The disloyal citizens of the United States who have offered the ruin of our country in return for the aid and comfort which they have invoked abroad have received less patronage and encouragement than they probably expected. If it were just to suppose, as the insurgents have seemed to assume, that foreign nations in this case, discarding all moral, social, and treaty obligations, would act solely and selfishly for the most speedy restoration of commerce, including especially the acquisition of cotton, those nations appear as yet not to have seen their way to their object more directly or clearly through the destruction than through the preservation of the Union. If we could dare to believe that foreign nations are actuated by no higher principle than this, I am quite sure a sound argument could be made to show them that they can reach their aim more readily and easily by aiding to crush this rebellion than by giving encouragement to it.

The principal lever relied on by the insurgents for exciting foreign nations to hostility against us, as already intimated, is the embarrassment of commerce. Those nations, however, not improbably saw from the first that it was the Union which made as well our foreign as our domestic commerce. They can scarcely have failed to perceive that the effort for disunion produces the existing difficulty, and that one strong nation promises more durable peace and a more extensive, valuable, and reliable commerce than can the same nation broken into hostile fragments.

It is not my purpose to review our discussions with foreign states, because, whatever might be their wishes or dispositions, the integrity of our country and the stability of our government mainly depend not upon them, but on the loyalty, virtue, patriotism, and intelligence of the American people. The correspondence itself, with the usual reservations, is herewith submitted.

I venture to hope it will appear that we have practiced prudence and liberality toward foreign powers, averting causes of irritation and with firmness maintaining our own rights and honor.

Since, however, it is apparent that here, as in every other state, foreign dangers necessarily attend domestic difficulties, I recommend that adequate and ample measures be adopted for maintaining the public defenses on every side. While under this general recommendation provision for defending our seacoast line readily occurs to the mind, I also in the same connection ask the attention of Congress to our great lakes and rivers. It is believed that some fortifications and depots of arms and munitions, with harbor and navigation improvements, all at well-selected points upon these, would be of great importance to the national defense and preservation I ask attention to the views of the Secretary of War, expressed in his report, upon the same general subject.

I deem it of importance that the loyal regions of east Tennessee and western North Carolina should be connected with Kentucky and other faithful parts of the Union by rail-road. I therefore recommend, as a military measure, that Congress provide for the construction of such rail-road as speedily as possible. Kentucky will no doubt co-operate, and through her Legislature make the most judicious selection of a line. The northern terminus must connect with some existing railroad, and whether the route shall be from Lexington or Nicholasville to the Cumberland Gap, or from

Lebanon to the Tennessee line, in the direction of Knoxville, or on some still different line, can easily be determined. Kentucky and the General Government co-operating, the work can be completed in a very short time, and when done it will be not only of vast present usefulness but also a valuable permanent improvement, worth its cost in all the future.

Some treaties, designed chiefly for the interests of commerce, and having no grave political importance, have been negotiated, and will be submitted to the Senate for their consideration.

Although we have failed to induce some of the commercial powers to adopt a desirable melioration of the rigor of maritime war, we have removed all obstructions from the way of this humane reform except such as are merely of temporary and accidental occurrence.

I invite your attention to the correspondence between her Britannic Majesty's minister accredited to this government and the Secretary of State relative to the detention of the British ship *Perthshire* in June last by the United States steamer *Massachusetts* for a supposed breach of the blockade. As this detention was occasioned by an obvious misapprehension of the facts, and as justice requires that we should commit no belligerent act not founded in strict right as sanctioned by public law, I recommend that an appropriation be made to satisfy the reasonable demand of the owners of the vessel for her detention.

I repeat the recommendation of my predecessor in his annual message to Congress in December last in regard to the disposition of the surplus which will probably remain after satisfying the claims of American citizens against China, pursuant to the awards of the commissioners under the act of the 3d of March, 1859. If, however, it should not be deemed advisable to carry that recommendation into effect, I would suggest that authority be given for investing the principal, or the proceeds of the surplus referred to, in good securities, with a view to the satisfaction of such other just claims of our citizens against China as are not unlikely to arise hereafter in the course of our extensive trade with that empire.

By the act of the 5th of August last Congress authorized the President to instruct the commanders of suitable vessels to defend themselves against and to capture pirates. His authority has been exercised in a single instance only. For the more effectual protection of our extensive and valuable commerce in the Eastern seas especially, it seems to me that it would also

be advisable to authorize the commanders of sailing vessels to recapture any prizes which pirates may make of United States vessels and their cargoes, and the consular courts now established by law in Eastern countries to adjudicate the cases in the event that this should not be objected to by the local authorities.

If any good reason exists why we should persevere longer in withholding our recognition of the independence and sovereignty of Haiti and Liberia, I am unable to discern it. Unwilling, however, to inaugurate a novel policy in regard to them without the approbation of Congress, I submit for your consideration the expediency of an appropriation for maintaining a charge d'affaires near each of those new States. It does not admit of doubt that important commercial advantages might be secured by favorable treaties with them.

The operations of the treasury during the period which has elapsed since your adjournment have been conducted with signal success. The patriotism of the people has placed at the disposal of the government the large means demanded by the public exigencies. Much of the national loan has been taken by citizens of the industrial classes, whose confidence in their country's faith and zeal for their country's deliverance from present peril have induced them to contribute to the support of the government the whole of their limited acquisitions. This fact imposes peculiar obligations to economy in disbursement and energy in action.

The revenue from all sources, including loans, for the financial year ending on the 30th of June, 1861, was \$86,835,900.27, and the expenditures for the same period, including payments on account of the public debt, were \$84,578,834.47, leaving a balance in the treasury on the 1st of July of \$2,257,065.80. For the first quarter of the financial year ending on the 30th of September, 1861, the receipts from all sources, including the balance of the 1st of July, were \$102,532,509.27, and the expenses \$98,239,733.09, leaving a balance on the 1st of October, 1861, of \$4,292,776.18.

Estimates for the remaining three quarters of the year and for the financial year 1863, together with his views of ways and means for meeting the demands contemplated by them, will be submitted to Congress by the Secretary of the Treasury. It is gratifying to know that the expenditures made necessary by the rebellion are not beyond the resources of the loyal people, and to believe that the same patriotism which has thus far sustained

the government will continue to sustain it till peace and union shall again bless the land.

I respectfully refer to the report of the Secretary of War for information respecting the numerical strength of the army and for recommendations having in view an increase of its efficiency and the well-being of the various branches of the service intrusted to his care. It is gratifying to know that the patriotism of the people has proved equal to the occasion, and that the number of troops tendered greatly exceeds the force which Congress authorized me to call into the field.

I refer with pleasure to those portions of his report which make allusion to the creditable degree of discipline already attained by our troops and to the excellent sanitary condition of the entire army.

The recommendation of the Secretary for an organization of the militia upon a uniform basis is a subject of vital importance to the future safety of the country, and is commended to the serious attention of Congress.

The large addition to the regular army, in connection with the defection that has so considerably diminished the number of its officers, gives peculiar importance to his recommendation for increasing the corps of cadets to the greatest capacity of the Military Academy.

By mere omission, I presume, Congress has failed to provide chaplains for hospitals occupied by volunteers. This subject was brought to my notice, and I was induced to draw up the form of a letter, one copy of which, properly addressed, has been delivered to each of the persons, and at the dates respectively named and stated in a schedule, containing also the form of the letter, marked A, and herewith transmitted.

These gentlemen, I understand, entered upon the duties designated at the times respectively stated in the schedule, and have labored faithfully therein ever since. I therefore recommend that they be compensated at the same rate as chaplains in the army. I further suggest that general provision be made for chaplains to serve at hospitals, as well as with regiments.

The report of the Secretary of the Navy presents in detail the operations of that branch of the service, the activity and energy which have characterized its administration, and the results of measures to increase its efficiency and power such have been the additions, by construction and purchase, that it may almost be said a navy has been created and brought into service since our difficulties commenced.

Besides blockading our extensive coast, squadrons larger than ever before assembled under our flag have been put afloat and performed deeds which have increased our naval renown.

I would invite special attention to the recommendation of the Secretary for a more perfect organization of the navy by introducing additional grades in the service.

The present organization is defective and unsatisfactory, and the suggestions submitted by the department will, it is believed, if adopted, obviate the difficulties alluded to, promote harmony, and increase the efficiency of the navy.

There are three vacancies on the bench of the Supreme Court—two by the decease of Justices Daniel and McLean and one by the resignation of Justice Campbell. I have so far forbore making nominations to fill these vacancies for reasons which I will now state. Two of the outgoing judges resided within the States now overrun by revolt, so that if successors were appointed in the same localities they could not now serve upon their circuits; and many of the most competent men there probably would not take the personal hazard of accepting to serve, even here, upon the Supreme bench. I have been unwilling to throw all the appointments north-ward, thus disabling myself from doing justice to the South on the return of peace; although I may remark that to transfer to the North one which has heretofore been in the South would not, with reference to territory and population, be unjust.

During the long and brilliant judicial career of Judge McLean his circuit grew into an empire—altogether too large for any one judge to give the courts therein more than a nominal attendance—rising in population from 1,470,018 in 1830 to 6,151,405 in 1860.

Besides this, the country generally has outgrown our present judicial system. If uniformity was at all intended, the system requires that all the States shall be accommodated with circuit courts, attended by Supreme judges, while, in fact, Wisconsin, Minnesota, Iowa, Kansas, Florida, Texas, California, and Oregon have never had any such courts. Nor can this well be remedied without a change in the system, because the adding of judges to the Supreme Court, enough for the accommodation of all parts of the country with circuit courts, would create a court altogether too numerous for a judicial body of any sort. And the evil, if it be one, will increase as

new States come into the Union. Circuit courts are useful or they are not useful. If useful, no State should be denied them; if not useful, no State should have them. Let them be provided for all or abolished as to all.

Three modifications occur to me, either of which, I think, would be an improvement upon our present system. Let the Supreme Court be of convenient number in every event; then, first, let the whole country be divided into circuits of convenient size, the Supreme judges to serve in a number of them corresponding to their own number, and independent circuit judges be provided for all the rest; or, secondly, let the Supreme judges be relieved from circuit duties and circuit judges provided for all the circuits; or, thirdly, dispense with circuit courts altogether, leaving the judicial functions wholly to the district courts and an independent Supreme Court.

I respectfully recommend to the consideration of Congress the present condition of the statute laws, with the hope that Congress will be able to find an easy remedy for many of the inconveniences and evils which constantly embarrass those engaged in the practical administration of them. Since the Organization of the government, Congress has enacted some 5000 acts and joint resolutions, which fill more than 6000 closely printed pages and are scattered through many volumes. Many of these acts have been drawn in haste and without sufficient caution, so that their provisions are often obscure in themselves or in conflict with each other, or at least so doubtful as to render it very difficult for even the best-informed persons to ascertain precisely what the statute law really is.

It seems to me very important that the statute laws should be made as plain and intelligible as possible, and be reduced to as small a compass as may consist with the fullness and precision of the will of the Legislature and the perspicuity of its language. This well done would, I think, greatly facilitate the labors of those whose duty it is to assist in the administration of the laws, and would be a lasting benefit to the people, by placing before them in a more accessible and intelligible form the laws which so deeply concern their interests and their duties.

I am informed by some whose opinions I respect that all the acts of Congress now in force and of a permanent and general nature might be revised and rewritten so as to be embraced in one volume (or at most two volumes) of ordinary and convenient size; and I respectfully recommend to

Congress to consider of the subject, and if my suggestion be approved to devise such plan as to their wisdom shall seem most proper for the attainment of the end proposed.

One of the unavoidable consequences of the present insurrection is the entire suppression in many places of all the ordinary means of administering civil justice by the officers and in the forms of existing law. This is the case, in whole or in part, in all the insurgent States; and as our armies advance upon and take possession of parts of those States the practical evil becomes more apparent. There are no courts or officers to whom the citizens of other States may apply for the enforcement of their lawful claims against citizens of the insurgent States, and there is a vast amount of debt constituting such claims. Some have estimated it as high as \$200,000,000, due in large part from insurgents in open rebellion to loyal citizens who are even now making great sacrifices in the discharge of their patriotic duty to support the government.

Under these circumstances I have been urgently solicited to establish, by military power, courts to administer summary justice in such cases. I have thus far declined to do it, not because I had any doubt that the end proposed—the collection of the debts—was just and right in itself, but because I have been unwilling to go beyond the pressure of necessity in the unusual exercise of power. But the powers of Congress, I suppose, are equal to the anomalous occasion, and therefore I refer the whole matter to Congress, with the hope that a plan maybe devised for the administration of justice in all such parts of the insurgent States and Territories as may be under the control of this government, whether by a voluntary return to allegiance and order or by the power of our arms; this, however, not to be a permanent institution, but a temporary substitute, and to cease as soon as the ordinary courts can be reestablished in peace.

It is important that some more convenient means should be provided, if possible, for the adjustment of claims against the government, especially in view of their increased number by reason of the war. It is as much the duty of government to render prompt justice against itself in favor of citizens as it is to administer the same between private individuals. The investigation and adjudication of claims in their nature belong to the judicial department. Besides, it is apparent that the attention of Congress will be more than usually engaged for some time to come with great national questions. It was

intended by the organization of the Court of Claims mainly to remove this branch of business from the halls of Congress; but, while the court has proved to be an effective and valuable means of investigation, it in great degree fails to effect the object of its creation for want of power to make its judgments final.

Fully aware of the delicacy, not to say the danger of the subject, I commend to your careful consideration whether this power of making judgments final may not properly be given to the court, reserving the right of appeal on questions of law to the Supreme Court, with such other provisions as experience may have shown to be necessary.

I ask attention to the report of the Postmaster general, the following being a summary statement of the condition of the department:

The revenue from all sources during the fiscal year ending June 30, 1861, including the annual permanent appropriation of \$700,000 for the transportation of "free mail matter," was \$9,049,296.40, being about 2 per cent. less than the revenue for 1860.

The expenditures were \$13,606,759.11, showing a decrease of more than 8 per cent. as compared with those of the previous year and leaving an excess of expenditure over the revenue for the last fiscal year of \$4,557,462.71.

The gross revenue for the year ending June 30, 1863, is estimated at an increase of 4 per cent. on that of 1861, making \$8,683,000, to which should be added the earnings of the department in carrying free matter, viz., \$700,000, making \$9,383,000.

The total expenditures for 1863 are estimated at \$12,528,000, leaving an estimated deficiency of \$3,145,000 to be supplied from the treasury in addition to the permanent appropriation.

The present insurrection shows, I think, that the extension of this District across the Potomac River at the time of establishing the capital here was eminently wise, and consequently that the relinquishment of that portion of it which lies within the State of Virginia was unwise and dangerous. I submit for your consideration the expediency of regaining that part of the District and the restoration of the original boundaries thereof through negotiations with the State of Virginia.

The report of the Secretary of the Interior, with the accompanying documents, exhibits the condition of the several branches of the public business pertaining to that department. The depressing influences of the insurrection have been specially felt in the operations of the Patent and General Land Offices. The cash receipts from the sales of public lands during the past year have exceeded the expenses of our land system only about \$200,000. The sales have been entirely suspended in the Southern States, while the interruptions to the business of the country and the diversion of large numbers of men from labor to military service have obstructed settlements in the new States and Territories of the Northwest.

The receipts of the Patent Office have declined in nine months about \$100,000.00 rendering a large reduction of the force employed necessary to make it self-sustaining.

The demands upon the Pension Office will be largely increased by the insurrection. Numerous applications for pensions, based upon the casualties of the existing war, have already been made. There is reason to believe that many who are now upon the pension rolls and in receipt of the bounty of the government are in the ranks of the insurgent army or giving them aid and comfort. The Secretary of the Interior has directed a suspension of the payment of the pensions of such persons upon proof of their disloyalty. I recommend that Congress authorize that officer to cause the names of such persons to be stricken from the pension rolls.

The relations of the government with the Indian tribes have been greatly disturbed by the insurrection, especially in the southern superintendency and in that of New Mexico. The Indian country south of Kansas is in the possession of insurgents from Texas and Arkansas. The agents of the United States appointed since the 4th of March for this superintendency have been unable to reach their posts, while the most of those who were in office before that time have espoused the insurrectionary cause, and assume to exercise the powers of agents by virtue of commissions from the insurrectionists. It has been stated in the public press that a portion of those Indians have been organized as a military force and are attached to the army of the insurgents. Although the government has no official information upon this subject, letters have been written to the Commissioner of Indian Affairs by several prominent chiefs giving assurance of their loyalty to the United States and expressing a wish for the presence of Federal troops to

protect them. It is believed that upon the repossession of the country by the Federal forces the Indians will readily cease all hostile demonstrations and resume their former relations to the government.

Agriculture, confessedly the largest interest of the nation, has not a department nor a bureau, but a clerkship only, assigned to it in the government. While it is fortunate that this great interest is so independent in its nature as not to have demanded and extorted more from the government, I respectfully ask Congress to consider whether something more cannot be given voluntarily with general advantage.

Annual reports exhibiting the condition of our agriculture, commerce, and manufactures would present a fund of information of great practical value to the country. While I make no suggestion as to details, I venture the opinion that an agricultural and statistical bureau might profitably be organized.

The execution of the laws for the suppression of the African slave trade has been confided to the Department of the Interior. It is a subject of gratulation that the efforts which have been made for the suppression of this inhuman traffic have been recently attended with unusual success. Five vessels being fitted out for the slave trade have been seized and condemned. Two mates of vessels engaged in the trade and one person in equipping a vessel as a slaver have been convicted and subjected to the penalty of fine and imprisonment, and one captain, taken with a cargo of Africans on board his vessel, has been convicted of the highest grade of offense under our laws, the punishment of which is death.

The Territories of Colorado, Dakota, and Nevada, created by the last Congress, have been organized, and civil administration has been inaugurated therein under auspices especially gratifying when it is considered that the leaven of treason was found existing in some of these new countries when the Federal officers arrived there.

The abundant natural resources of these Territories, with the security and protection afforded by organized government, will doubtless invite to them a large immigration when peace shall restore the business of the country to its accustomed channels. I submit the resolutions of the Legislature of Colorado, which evidence the patriotic spirit of the people of the Territory. So far the authority of the United States has been upheld in all the

Territories, as it is hoped it will be in the future. I commend their interests and defense to the enlightened and generous care of Congress.

I recommend to the favorable consideration of Congress the interests of the District of Columbia. The insurrection has been the cause of much suffering and sacrifice to its inhabitants, and as they have no representative in Congress that body should not overlook their just claims upon the government.

At your late session a joint resolution was adopted authorizing the President to take measures for facilitating a proper representation of the industrial interests of the United States at the exhibition of the industry of all nations to be holden at London in the year 1862. I regret to say I have been unable to give personal attention to this subject—a subject at once so interesting in itself and so extensively and intimately connected with the material prosperity of the world. Through the Secretaries of State and of the Interior a plan or system has been devised and partly matured, and which will be laid before you.

Under and by virtue of the act of Congress entitled "An act to confiscate property used for insurrectionary purposes," approved August 6, 1861, the legal claims of certain persons to the labor and service of certain other persons have become forfeited, and numbers of the latter thus liberated are already dependent on the United States, and must be provided for in some way. Besides this, it is not impossible that some of the States will pass similar enactments for their own benefit respectively, and by operation of which persons of the same class will be thrown upon them for disposal. In such case I recommend that Congress provide for accepting such persons from such States, according to some mode of valuation, in lieu, pro tanto, of direct taxes, or upon some other plan to be agreed on with such States respectively; that such persons, on such acceptance by the General Government, be at once deemed free, and that in any event steps be taken for colonizing both classes (or the one first mentioned if the other shall not be brought into existence) at some place or places in a climate congenial to them. It might be well to consider, too, whether the free colored people already in the United States could not, so far as individuals may desire, be included in such colonization.

To carry out the plan of colonization may involve the acquiring of territory, and also the appropriation of money beyond that to be expended in

the territorial acquisition. Having practised the acquisition of territory for nearly sixty years, the question of constitutional power to do so is no longer an open one with us. The power was questioned at first by Mr. Jefferson, who, however, in the purchase of Louisiana, yielded his scruples on the plea of great expediency. If it be said that the only legitimate object of acquiring territory is to furnish homes for white men, this measure effects that object, for emigration of colored men leaves additional room for white men remaining or coming here. Mr. Jefferson, however, placed the importance of procuring Louisiana more on political and commercial grounds than on providing room for population.

On this whole proposition, including the appropriation of money with the acquisition of territory, does not the expediency amount to absolute necessity—that without which the government itself cannot be perpetuated?

The war continues. In considering the policy to be adopted for suppressing the insurrection I have been anxious and careful that the inevitable conflict for this purpose shall not degenerate into a violent and remorseless revolutionary struggle. I have therefore in every case thought it proper to keep the integrity of the Union prominent as the primary object of the contest on our part, leaving all questions which are not of vital military importance to the more deliberate action of the Legislature.

In the exercise of my best discretion I have adhered to the blockade of the ports held by the insurgents, instead of putting in force by proclamation the law of Congress enacted at the late session for closing those ports.

So also, obeying the dictates of prudence, as well as the obligations of law, instead of transcending I have adhered to the act of Congress to confiscate property used for insurrectionary purposes. If a new law upon the same subject shall be proposed, its propriety will be duly considered. The Union must be preserved, and hence all indispensable means must be employed. We should not be in haste to determine that radical and extreme measures, which may reach the loyal as well as the disloyal, are indispensable.

The inaugural address at the beginning of the Administration and the message to Congress at the late special session were both mainly devoted to topics domestic controversy out of which the insurrection and consequent war have sprung. Nothing now occurs to add or subtract to or from the principles or general purposes stated and expressed in those documents.

The last ray of hope for preserving the Union peaceably expired at the assault upon Fort Sumter, and a general review of what has occurred since may not be unprofitable. What was painfully uncertain then is much better defined and more distinct now, and the progress of events is plainly in the right direction. The insurgents confidently claimed a strong support from north of Mason and Dixon's line, and the friends of the Union were not free from apprehension on the point. This, however, was soon settled definitely, and on the right side. South of the line noble little Delaware led off right from the first. Maryland was made to seem against the Union. Our soldiers were assaulted, bridges were burned, and railroads torn up within her limits, and we were many days at one time without the ability to bring a single regiment over her soil to the capital. Now her bridges and railroads are repaired and open to the government; she already gives seven regiments to the cause of the Union, and none to the enemy; and her people, at a regular election, have sustained the Union by a larger majority and a larger aggregate vote than they ever before gave to any candidate or any question. Kentucky, too, for some time in doubt, is now decidedly and, I think, unchangeably ranged on the side of the Union. Missouri is comparatively quiet, and, I believe, can, not again be overrun by the insurrectionists. These three States of Maryland, Kentucky, and Missouri, neither of which would promise a single soldier at first, have now an aggregate of not less than forty thousand in the field for the Union, while of their citizens certainly not more than a third of that number, and they of doubtful whereabouts and doubtful existence, are in arms against us. After a somewhat bloody struggle of months, winter closes on the Union people of western Virginia, leaving them masters of their own country.

An insurgent force of about fifteen hundred, for months dominating the narrow peninsular region constituting the counties of Accomac and Northampton, and known as Eastern Shore of Virginia, together with some contiguous parts of Maryland, have laid down their arms, and the people there have renewed their allegiance to and accepted the protection of the old flag. This leaves no armed insurrectionist north of the Potomac or east of the Chesapeake.

Also we have obtained a footing at each of the isolated points on the southern coast of Hatteras, Port Royal, Tybee Island (near Savannah), and Ship Island; and we likewise have some general accounts of popular movements in behalf of the Union in North Carolina and Tennessee.

These things demonstrate that the cause of the Union is advancing steadily and certainly southward.

Since your last adjournment Lieutenant-General Scott has retired from the head of the army. During his long life the nation has not been unmindful of his merit; yet on calling to mind how faithfully, ably, and brilliantly he has served the country, from a time far back in our history, when few of the now living had been born, and thenceforward continually, I cannot but think we are still his debtors. I submit, therefore, for your consideration what further mark of recognition is due to him, and to ourselves as a grateful people.

With the retirement of General Scott came the Executive duty of appointing in his stead a general-in-chief of the army. It is a fortunate circumstance that neither in council nor country was there, so far as I know, any difference of opinion as to the proper person to be selected. The retiring chief repeatedly expressed his judgment in favor of General McClellan for the position, and in this the nation seemed to give a unanimous concurrence. The designation of General McClellan is therefore in considerable degree the selection of the country as well as of the Executive, and hence there is better reason to hope there will be given him the confidence and cordial support thus by fair implication promised, and without which he cannot with so full efficiency serve the country.

It has been said that one bad general is better than two good ones, and the saying is true if taken to mean no more than that an army is better directed by a single mind, though inferior, than by two superior ones at variance and cross-purposes with each other.

And the same is true in all joint operations wherein those engaged can have none but a common end in view and can differ only as to the choice of means. In a storm at sea no one on board can wish the ship to sink, and yet not unfrequently all go down together because too many will direct and no single mind can be allowed to control.

It continues to develop that the insurrection is largely, if not exclusively, a war upon the first principle of popular government—the rights of the people. Conclusive evidence of this is found in the most grave and maturely considered public documents, as well as in the general tone of the insurgents. In those documents we find the abridgment of the existing right of suffrage and the denial to the people of all right to participate in the

selection of public officers except the legislative boldly advocated, with labored arguments to prove that large control of the people in government is the source of all political evil. Monarchy itself is sometimes hinted at as a possible refuge from the power of the people.

In my present position I could scarcely be justified were I to omit raising a warning voice against this approach of returning despotism. It is not needed nor fitting here that a general argument should be made in favor of popular institutions, but there is one point, with its connections, not so hackneyed as most others, to which I ask a brief attention. It is the effort to place capital on an equal footing with, if not above, labor in the structure of government. It is assumed that labor is available only in connection with capital; that nobody labors unless somebody else, owning capital, somehow by the use of it induces him to labor. This assumed, it is next considered whether it is best that capital shall hire laborers, and thus induce them to work by their own consent, or buy them and drive them to it without their consent. Having proceeded so far, it is naturally concluded that all laborers are either hired laborers or what we call slaves. And further, it is assumed that whoever is once a hired laborer is fixed in that condition for life.

Now there is no such relation between capital and labor as assumed, nor is there any such thing as a free man being fixed for life in the condition of a hired laborer. Both these assumptions are false, and all inferences from them are groundless.

Labor is prior to and independent of capital. Capital is only the fruit of labor, and could never have existed if labor had not first existed. Labor is the superior of capital, and deserves much the higher consideration. Capital has its rights, which are as worthy of protection as any other rights. Nor is it denied that there is, and probably always will be, a relation between labor and capital producing mutual benefits. The error is in assuming that the whole labor of community exists within that relation. A few men own capital, and that few avoid labor themselves, and with their capital hire or buy another few to labor for them. A large majority belong to neither class—neither work for others nor have others working for them. In most of the Southern States a majority of the whole people of all colors are neither slaves nor masters, while in the Northern a large majority are neither hirers nor hired. Men, with their families—wives, sons, and daughters,—work for themselves on their farms, in their houses, and in their shops, taking the

whole product to themselves, and asking no favors of capital on the one hand nor of hired laborers or slaves on the other. It is not forgotten that a considerable number of persons mingle their own labor with capital; that is, they labor with their own hands and also buy or hire others to labor for them; but this is only a mixed and not a distinct class. No principle stated is disturbed by the existence of this mixed class.

Again, as has already been said, there is not of necessity any such thing as the free hired laborer being fixed to that condition for life. Many independent men everywhere in these States a few years back in their lives were hired laborers. The prudent, penniless beginner in the world labors for wages awhile, saves a surplus with which to buy tools or land for himself, then labors on his own account another while, and at length hires another new beginner to help him. This is the just and generous and prosperous system which opens the way to all, gives hope to all, and consequent energy and progress and improvement of condition to all. No men living are more worthy to be trusted than those who toil up from poverty; none less inclined to take or touch aught which they have not honestly earned. Let them beware of surrendering a political power which they already possess, and which if surrendered will surely be used to close the door of advancement against such as they and to fix new disabilities and burdens upon them till all of liberty shall be lost.

From the first taking of our national census to the last are seventy years, and we find our population at the end of the period eight times as great as it was at the beginning. The increase of those other things which men deem desirable has been even greater. We thus have at one view what the popular principle, applied to government through the machinery of the States and the Union, has produced in a given time, and also what if firmly maintained it promises for the future. There are already among us those who if the Union be preserved will live to see it contain 200,000,000. The struggle of to-day is not altogether for to-day; it is for a vast future also. With a reliance on Providence all the more firm and earnest, let us proceed in the great task which events have devolved upon us.

A. LINCOLN.

MESSAGE TO CONGRESS.

WASHINGTON, December 20, 1861.

TO THE SENATE AND HOUSE OF REPRESENTATIVES:

I transmit to Congress a letter from the secretary of the executive committee of the commission appointed to represent the interests of those American citizens who may desire to become exhibitors at the industrial exhibition to be held in London in 1862, and a memorial of that commission, with a report of the executive committee thereof and copies of circulars announcing the decisions of Her Majesty's commissioners in London, giving directions to be observed in regard to articles intended for exhibition, and also of circular forms of application, demands for space, approvals, etc., according to the rules prescribed by the British commissioners.

As these papers fully set forth the requirements necessary to enable those citizens of the United States who may wish to become exhibitors to avail themselves of the privileges of the exhibition, I commend them to your early consideration, especially in view of the near approach of the time when the exhibition will begin.

A. LINCOLN.

LETTER OF REPRIMAND TO GENERAL HUNTER

TO GENERAL HUNTER.

EXECUTIVE MANSION, WASHINGTON,

Dec.31, 1861

MAJOR-GENERAL HUNTER.

DEAR SIR:—Yours of the 23d is received, and I am constrained to say it is difficult to answer so ugly a letter in good temper. I am, as you intimate, losing much of the great confidence I placed in you, not from any act or omission of yours touching the public service, up to the time you were sent to Leavenworth, but from the flood of grumbling despatches and letters I have seen from you since. I knew you were being ordered to Leavenworth at the time it was done; and I aver that with as tender a regard for your honor and your sensibilities as I had for my own, it never occurred to me that you were being "humiliated, insulted, and disgraced"; nor have I, up to this day, heard an intimation that you have been wronged, coming from any one but yourself. No one has blamed you for the retrograde movement from Springfield, nor for the information you gave General Cameron; and this you could readily understand, if it were not for your unwarranted assumption that the ordering you to Leavenworth must necessarily have been done as a punishment for some fault. I thought then, and think yet, the position assigned to you is as responsible, and as honorable, as that assigned to Buell—I know that General McClellan expected more important results from it. My impression is that at the time you were assigned to the new Western Department, it had not been determined to replace General Sherman in Kentucky; but of this I am not certain, because the idea that a command in Kentucky was very desirable, and one in the farther West undesirable, had never occurred to me. You constantly speak of being placed in command of only 3000. Now, tell me, is this not mere impatience? Have you not known all the while that you are to command four or five times that many.

I have been, and am sincerely your friend; and if, as such, I dare to make a suggestion, I would say you are adopting the best possible way to ruin yourself. "Act well your part, there all the honor lies." He who does something at the head of one regiment, will eclipse him who does nothing at the head of a hundred.

Your friend, as ever,

A. LINCOLN.

TELEGRAM TO GENERAL HALLECK.

WASHINGTON, D.C., December 31, 1861

GENERAL H. W. HALLECK, St. Louis, Missouri:

General McClellan is sick. Are General Buell and yourself in concert? When he moves on Bowling Green, what hinders it being reinforced from Columbus? A simultaneous movement by you on Columbus might prevent it.

A. LINCOLN.

[Similar despatch to Buell same date.]

1862

TELEGRAM TO GENERAL D. C. BUELL.

WASHINGTON CITY, January 1, 1862

BRIGADIER-GENERAL BUELL, Louisville:

General McClellan should not yet be disturbed with business. I think you better get in concert with General Halleck at once. I write you to-night. I also telegraph and write Halleck.

A. LINCOLN.

TO GENERAL H. W. HALLECK.

EXECUTIVE MANSION, January 1, 1862

DEAR GENERAL HALLECK:

General McClellan is not dangerously ill, as I hope, but would better not be disturbed with business. I am very anxious that, in case of General Buell's moving toward Nashville, the enemy shall not be greatly reinforced, and I think there is danger he will be from Columbus. It seems to me that a real or feigned attack upon Columbus from up the river at the same time would either prevent this or compensate for it by throwing Columbus into our hands. I wrote General Buell a letter similar to this, meaning that he and you shall communicate and act in concert, unless it be your judgment and his that there is no necessity for it. You and he will understand much better than I how to do it. Please do not lose time in this matter.

Yours very truly,

A. LINCOLN.

TO THE PEOPLE OF MARYLAND,

In view of the recent declaration of the people of Maryland of their adhesion to the Union, so distinctly made in their recent election, the President directs that all the prisoners who having heretofore been arrested in that State are now detained in military custody by the President's authority, be released from their imprisonment on the following conditions, namely: that if they were holding any civil or military offices when arrested, the terms of which have expired, they shall not resume or reclaim such office; and secondly, all persons availing themselves of this proclamation shall engage by oath or parole of honor to maintain the Union and the Constitution of the United States, and in no way to aid or abet by arms, counsel, conversation, or information of any kind the existing insurrection against the Government of the United States.

To guard against misapprehension it is proper to state that this proclamation does not apply to prisoners of war.

MESSAGE TO CONGRESS.

WASHINGTON, January 2, 1862

To THE SENATE AND HOUSE OF REPRESENTATIVES

I transmit to Congress a copy of a letter to the Secretary of State from James R. Partridge, secretary to the executive committee to the in exhibition to be held in London in the course present year, and a copy of the correspond which it refers, relative to a vessel for the of taking such articles as persons in this country may wish to exhibit on that occasion. As it appears no naval vessel can be spared for the purpose, I recommend that authority be given to charter a suitable merchant vessel, in order that facilities similar to those afforded by the government exhibition of 1851 may also be extended to citizens of the United States who may desire to contribute to the exhibition of this year.

A. LINCOLN

MESSAGES OF DISAPPOINTMENT WITH HIS GENERALS

TELEGRAM TO GENERAL D. C. BUELL.

WASHINGTON, January 4, 1862.

GENERAL BUELL:

Have arms gone forward for East Tennessee? Please tell me the progress and condition of the movement in that direction. Answer.

A. LINCOLN.

TO GENERAL D. C. BUELL.

EXECUTIVE MANSION, WASHINGTON,

January 6, 1862.

BRIGADIER-GENERAL BUELL.

MY DEAR SIR:—Your despatch of yesterday has been received, and it disappoints and distresses me. I have shown it to General McClellan, who says he will write you to-day. I am not competent to criticize your views, and therefore what I offer is in justification of myself. Of the two, I would rather have a point on the railroad south of Cumberland Gap than Nashville. First, because it cuts a great artery of the enemy's communication, which Nashville does not; and secondly, because it is in the midst of loyal people who would rally around it, while Nashville is not. Again, I cannot see why the movement on East Tennessee would not be a diversion in your favor rather than a disadvantage, assuming that a movement toward Nashville is the main object. But my distress is that our friends in East Tennessee are being hanged and driven to despair, and even now, I fear, are thinking of taking rebel arms for the sake of personal protection. In this we lose the most valuable stake we have in the South. My despatch, to which yours is an answer, was sent with the knowledge of Senator Johnson and Representative Maynard of East Tennessee, and they will be upon me to know the answer, which I cannot safely show them. They would despair, possibly resign to go and save their families somehow, or die with them. I do not intend this to be an order in any sense, but merely, as intimated before, to show you the grounds of my anxiety.

Yours very truly,

A. LINCOLN.

TELEGRAM TO GENERAL BUELL.

WASHINGTON, January 7, 1862.

BRIGADIER-GENERAL D.C. BUELL, Louisville:

Please name as early a day as you safely can on or before which you can be ready to move southward in concert with Major-General Halleck. Delay is ruining us, and it is indispensable for me to have something definite. I send a like despatch to Major-General Halleck.

A. LINCOLN.

MESSAGE TO CONGRESS.

WASHINGTON, January 10, 1862

TO THE SENATE AND HOUSE OF REPRESENTATIVES:

I transmit to Congress a translation of an instruction to the minister of his Majesty the Emperor of Austria accredited to this government, and a copy of a note to that minister from the Secretary of State relative to the questions involved in the taking from the British steamer Trent of certain citizens of the United States by order of Captain Wilkes of the United States Navy. This correspondence may be considered as a sequel to that previously communicated to Congress relating to the same subject.

A. LINCOLN.

INDORSEMENT ON LETTER FROM GENERAL HALLECK,

JANUARY 10, 1862.

HEADQUARTERS DEPARTMENT OF THE MISSOURI ST. Louis,
January 6, 1862.

To His EXCELLENCY THE PRESIDENT:

In reply to your Excellency's letter of the 1st instant, I have to state that on receiving your telegram I immediately communicated with General Buell and have since sent him all the information I could obtain of the enemy's movements about Columbus and Camp Beauregard. No considerable force has been sent from those places to Bowling Green. They have about 22,000 men at Columbus, and the place is strongly fortified. I have at Cairo, Port Holt, and Paducah only about 15,000, which, after leaving guards at these places, would give me but little over 10,000 men with which to assist General Buell. It would be madness to attempt anything serious with such a force, and I cannot at the present time withdraw any from Missouri without risking the loss of this State. The troops recently raised in other States of this department have, without my knowledge, been sent to Kentucky and Kansas.

I am satisfied that the authorities at Washington do not appreciate the difficulties with which we have to contend here. The operations of Lane, Jennison, and others have so enraged the people of Missouri that it is estimated that there is a majority of 80,000 against the government. We are virtually in an enemy's country. Price and others have a considerable army in the southwest, against which I am operating with all my available force.

This city and most of the middle and northern counties are insurrectionary,—burning bridges, destroying telegraph lines, etc.,—and can be kept down only by the presence of troops. A large portion of the foreign troops organized by General Fremont are unreliable; indeed, many of them are already mutinous. They have been tampered with by politicians, and made to believe that if they get up a mutiny and demand Fremont's

return the government will be forced to restore him to duty here. It is believed that some high officers are in the plot I have already been obliged to disarm several of these organizations, and I am daily expecting more serious outbreaks. Another grave difficulty is the want of proper general officers to command the troops and enforce order and discipline, and especially to protect public property from robbery and plunder. Some of the brigadier-generals assigned to this department are entirely ignorant of their duties and unfit for any command. I assure you, Mr. President, it is very difficult to accomplish much with such means. I am in the condition of a carpenter who is required to build a bridge with a dull axe, a broken saw, and rotten timber. It is true that I have some very good green timber, which will answer the purpose as soon as I can get it into shape and season it a little.

I know nothing of General Buell's intended operations, never having received any information in regard to the general plan of campaign. If it be intended that his column shall move on Bowling Green while another moves from Cairo or Paducah on Columbus or Camp Beauregard, it will be a repetition of the same strategic error which produced the disaster of Bull Run. To operate on exterior lines against an enemy occupying a central position will fail, as it always has failed, in ninety-nine cases out of a hundred. It is condemned by every military authority I have ever read.

General Buell's army and the forces at Paducah occupy precisely the same position in relation to each other and to the enemy as did the armies of McDowell and Patterson before the battle of Bull Run.

Very respectfully, your obedient servant,

H. W. HALLECK, Major-General

[Indorsement]

The within is a copy of a letter just received from General Halleck. It is exceedingly discouraging. As everywhere else, nothing can be done.

A. LINCOLN.

TELEGRAM TO GOVERNOR ANDREW.

WASHINGTON, D. C., January 11, 1862

GOVERNOR JOHN A. ANDREW, Boston:

I will be greatly obliged if you will arrange; somehow with General Butler to officer his two un-officered regiments.

A. LINCOLN

TO GENERAL D. C. BUELL.

EXECUTIVE MANSION, WASHINGTON, January 13, 1861

BRIGADIER-GENERAL BUELL.

MY DEAR SIR—Your despatch of yesterday is received, in which you say, "I received your letter and General McClellan's, and will at once devote my efforts to your views and his." In the midst of my many cares I have not seen, nor asked to see, General McClellan's letter to you. For my own views, I have not offered and do not now offer them as orders; and while I am glad to have them respectfully considered, I would blame you to follow them contrary to your own clear judgment, unless I should put them in the form of orders. As to General McClellan's views, you understand your duty in regard to them better than I do.

With this preliminary I state my general idea of this war to be, that we have the greater numbers and the enemy has the greater facility of concentrating forces upon points of collision; that we must fail unless we can find some way of making our advantage an overmatch for his; and that this can only be done by menacing him with superior forces at different points at the same time, so that we can safely attack one or both if he makes no change; and if he weakens one to strengthen the other, forbear to attack the strengthened one, but seize and hold the weakened one, gaining so much.

To illustrate: Suppose last summer, when Winchester ran away to reinforce Manassas, we had forbore to attack Manassas, but had seized and held Winchester. I mention this to illustrate and not to criticise. I did not lose confidence in McDowell, and I think less harshly of Patterson than some others seem to.... Applying the principle to your case, my idea is that Halleck shall menace Columbus and "down river" generally, while you menace Bowling Green and East Tennessee. If the enemy shall concentrate at Bowling Green, do not retire from his front, yet do not fight him there either, but seize Columbus and East Tennessee, one or both, left exposed by the concentration at Bowling Green. It is a matter of no small anxiety to me,

and which I am sure you will not overlook, that the East Tennessee line is so long and over so bad a road.

Yours very truly,

A. LINCOLN.

(Indorsement.)

Having to-day written General Buell a letter, it occurs to me to send General Halleck a copy of it.

A. LINCOLN.

TO GENERAL H. W. HALLECK.

EXECUTIVE MANSION, WASHINGTON, January 1, 1862.

MAJOR-GENERAL HALLECK.

MY DEAR SIR:—The Germans are true and patriotic and so far as they have got cross in Missouri it is upon mistake and misunderstanding. Without a knowledge of its contents, Governor Koerner, of Illinois, will hand you this letter. He is an educated and talented German gentleman, as true a man as lives. With his assistance you can set everything right with the Germans.... My clear judgment is that, with reference to the German element in your command, you should have Governor Koerner with you; and if agreeable to you and him, I will make him a brigadier-general, so that he can afford to give his time. He does not wish to command in the field, though he has more military knowledge than some who do. If he goes into the place, he will simply be an efficient, zealous, and unselfish assistant to you. I say all this upon intimate personal acquaintance with Governor Koerner.

Yours very truly,

A. LINCOLN

MESSAGE TO CONGRESS.

WASHINGTON, January 17, 1862

TO THE SENATE AND HOUSE OF REPRESENTATIVES:

I transmit to Congress a translation of an instruction to the minister of his Majesty the King of Prussia accredited to this government, and a copy of a note to that minister from the Secretary of State relating to the capture and detention of certain citizens of the United States, passengers on board the British steamer Trent, by order of Captain Wilkes of the United States Navy.

A. LINCOLN

TO GENERAL McCLELLAN.

DEPARTMENT OF STATE, WASHINGTON.

January 20, 1862.

MAJOR-GENERAL GEORGE B. McCLELLAN,

Commanding Armies of the United States:

You or any officer you may designate will in your discretion suspend the writ of habeas corpus so far as may relate to Major Chase, lately of the Engineer Corps of the Army of the United States, now alleged to be guilty of treasonable practices against this government.

A. LINCOLN.

By the President: WILLIAM H. SEWARD.

PRESIDENT'S GENERAL WAR ORDER NO. 1

EXECUTIVE MANSION, WASHINGTON, January 27, 1862.

Ordered, That the 22d day of February, 1862, be the day for a general movement of the land and the naval forces of the United States against the insurgent forces.

That especially the army at and about Fortress Monroe, the Army of the Potomac, the Army of Western Virginia, the army near Munfordville, Kentucky, the army and flotilla at Cairo, and a naval force in the Gulf of Mexico, be ready for a movement on that day.

That all other forces, both land and naval, with their respective commanders, obey existing orders for the time, and be ready to obey additional orders when duly given.

That the heads of departments, and especially the Secretaries of War and of the Navy, with all their subordinates, and the General-in-chief, with all other commanders and subordinates of land and naval forces, will severally be held to their strict and full responsibilities for the prompt execution of this order.

A. LINCOLN.

TO SECRETARY STANTON,

EXECUTIVE MANSION WASHINGTON, January 31, 1862

HON. SECRETARY OF WAR.

MY DEAR SIR:—It is my wish that the expedition commonly called the "Lane Expedition" shall be, as much as has been promised at the adjutant-general's office, under the supervision of General McClellan, and not any more. I have not intended, and do not now intend, that it shall be a great, exhausting affair, but a snug, sober column of 10,000 or 15,000. General Lane has been told by me many times that he is under the command of General Hunter, and assented to it as often as told. It was the distinct agreement between him and me, when I appointed him, that he was to be under Hunter.

Yours truly,

A. LINCOLN.

PRESIDENT'S SPECIAL WAR ORDER NO. 1.

EXECUTIVE MANSION, WASHINGTON, January 31, 1862.

Ordered, That all the disposable force of the Army of the Potomac, after providing safely for the defence of Washington, be formed into an expedition for the immediate object of seizing and occupying a point upon the railroad southwestward of what is known as Manassas Junction, all details to be in the discretion of the commander-in-chief, and the expedition to move before or on the 22d day of February next.

A. LINCOLN.

OPPOSITION TO McCLELLAN'S PLANS

TO GENERAL G. B. McCLELLAN,

EXECUTIVE MANSION, WASHINGTON, February 3, 1862.

MAJOR-GENERAL MCCLELLAN.

DEAR SIR—You and I have distinct and different plans for a movement of the Army of the Potomac—yours to be down the Chesapeake, up the Rappahannock to Urbana, and across land to the terminus of the railroad on the York River; mine to move directly to a point on the railroad southwest of Manassas.

If you will give me satisfactory answers to the following questions, I shall gladly yield my plan to yours.

First. Does not your plan involve a greatly larger expenditure of time and money than mine?

Second. Wherein is a victory more certain by your plan than mine?

Third. Wherein is a victory more valuable by your plan than mine?

Fourth. In fact, would it not be less valuable in this, that it would break no great line of the enemy's communications, while mine would?

Fifth. In case of disaster, would not a retreat be more difficult by your plan than mine?

Yours truly,

A. LINCOLN.

**Memorandum accompanying Letter of President
Lincoln to General McClellan,
dated February 3, 1862.**

First. Suppose the enemy should attack us in force before we reach the Occoquan, what?

Second. Suppose the enemy in force shall dispute the crossing of the Occoquan, what? In view of this, might it not be safest for us to cross the Occoquan at Coichester, rather than at the village of Occoquan? This would cost the enemy two miles of travel to meet us, but would, on the contrary, leave us two miles farther from our ultimate destination.

Third. Suppose we reach Maple Valley without an attack, will we not be attacked there in force by the enemy marching by the several roads from Manassas; and if so, what?

TO WM. H. HERNDON.

EXECUTIVE MANSION, WASHINGTON, February 3, 1862.

DEAR WILLIAM:—Yours of January 30th just received. Do just as you say about the money matter.

As you well know, I have not time to write a letter of respectable length. God bless you, says

Your friend,

A. LINCOLN.

RESPIRE FOR NATHANIEL GORDON

February 4, 1862

A. LINCOLN, PRESIDENT OF THE UNITED STATES OF AMERICA,
To all to whom these Presents shall come, Greeting:

Whereas it appears that at a term of the Circuit Court of the United States of America for the Southern District of New York held in the month of November, A.D. 1861, Nathaniel Gordon was indicted and convicted for being engaged in the slave trade, and was by the said court sentenced to be put to death by hanging by the neck, on Friday the 7th day of February, AD. 1862:

And whereas a large number of respectable citizens have earnestly besought me to commute the said sentence of the said Nathaniel Gordon to a term of imprisonment for life, which application I have felt it to be my duty to refuse:

And whereas it has seemed to me probable that the unsuccessful application made for the commutation of his sentence may have prevented the said Nathaniel Gordon from making the necessary preparation for the awful change which awaits him;

Now, therefore, be it known, that I, Abraham Lincoln, President of the United States of America, have granted and do hereby grant unto him, the said Nathaniel Gordon, a respite of the above recited sentence, until Friday the twenty-first day of February, A.D. 1862, between the hours of twelve o'clock at noon and three o'clock in the afternoon of the said day, when the said sentence shall be executed.

In granting this respite, it becomes my painful duty to admonish the prisoner that, relinquishing all expectation of pardon by human authority, he refer himself alone to the mercy of the common God and Father of all men.

In testimony whereof I have hereunto signed my name and caused the seal of the United States to be affixed.

Done at the City of Washington, this fourth day of February, A.D. 1862,
and of the independence of the United States the eighty-sixth.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

MESSAGE TO THE SENATE.

WASHINGTON CITY, February 4. 1862

To THE SENATE OF THE UNITED STATES:

The third section of the "Act further to promote the efficiency of the Navy," approved December 21, 1862, provides:

"That the President of the United States, by and with the advice and consent of the Senate, shall have the authority to detail from the retired list of the navy for the command of squadrons and single ships such officers as he may believe that the good of the service requires to be thus placed in command; and such officers may, if upon the recommendation of the President of the United States they shall receive a vote of thanks of Congress for their services and gallantry in action against an enemy, be restored to the active list, and not otherwise."

In conformity with this law, Captain Samuel F. Du Pont, of the navy, was nominated to the Senate for continuance as the flag-officer in command of the squadron which recently rendered such important service to the Union in the expedition to the coast of South Carolina.

Believing that no occasion could arise which would more fully correspond with the intention of the law, or be more pregnant with happy influence as an example, I cordially recommend that Captain Samuel F. Du Pont receive a vote of thanks of Congress for his services and gallantry displayed in the capture of Forts Walker and Beauregard, commanding the entrance of Port Royal Harbor, on the 7th of November, 1861.

A. LINCOLN.

TO GENERALS D. HUNTER AND J. H. LANE.

**EXECUTIVE MANSION WASHINGTON, FEBRUARY 4,
1862.**

MAJOR-GENERAL HUNTER AND BRIGADIER-GENERAL LANE,
Leavenworth, Kansas:

My wish has been and is to avail the government of the services of both General Hunter and General Lane, and, so far as possible, to personally oblige both. General Hunter is the senior officer, and must command when they serve together; though in so far as he can consistently with the public service and his own honor oblige General Lane, he will also oblige me. If they cannot come to an amicable understanding, General Lane must report to General Hunter for duty, according to the rules, or decline the service.

A. LINCOLN.

EXECUTIVE ORDER NO. 1, RELATING TO POLITICAL PRISONERS.

WAR DEPARTMENT, WASHINGTON, February 14, 1862.

The breaking out of a formidable insurrection based on a conflict of political ideas, being an event without precedent in the United States, was necessarily attended by great confusion and perplexity of the public mind. Disloyalty before unsuspected suddenly became bold, and treason astonished the world by bringing at once into the field military forces superior in number to the standing army of the United States.

Every department of the government was paralyzed by treason. Defection appeared in the Senate, in the House of Representatives, in the Cabinet, in the Federal courts; ministers and consuls returned from foreign countries to enter the insurrectionary councils of land or naval forces; commanding and other officers of the army and in the navy betrayed our councils or deserted their posts for commands in the insurgent forces. Treason was flagrant in the revenue and in the post-office service, as well as in the Territorial governments and in the Indian reserves.

Not only governors, judges, legislators, and ministerial officers in the States, but even whole States rushed one after another with apparent unanimity into rebellion. The capital was besieged and its connection with all the States cut off. Even in the portions of the country which were most loyal, political combinations and secret societies were formed furthering the work of disunion, while, from motives of disloyalty or cupidity or from excited passions or perverted sympathies, individuals were found furnishing men, money, and materials of war and supplies to the insurgents' military and naval forces. Armies, ships, fortifications, navy yards, arsenals, military posts, and garrisons one after another were betrayed or abandoned to the insurgents.

Congress had not anticipated, and so had not provided for, the emergency. The municipal authorities were powerless and inactive. The

judicial machinery seemed as if it had been designed, not to sustain the government, but to embarrass and betray it.

Foreign intervention, openly invited and industriously instigated by the abettors of the insurrection, became imminent, and has only been prevented by the practice of strict and impartial justice, with the most perfect moderation, in our intercourse with nations.

The public mind was alarmed and apprehensive, though fortunately not distracted or disheartened. It seemed to be doubtful whether the Federal Government, which one year before had been thought a model worthy of universal acceptance, had indeed the ability to defend and maintain itself.

Some reverses, which, perhaps, were unavoidable, suffered by newly levied and inefficient forces, discouraged the loyal and gave new hopes to the insurgents. Voluntary enlistments seemed about to cease and desertions commenced. Parties speculated upon the question whether conscription had not become necessary to fill up the armies of the United States.

In this emergency the President felt it his duty to employ with energy the extraordinary powers which the Constitution confides to him in cases of insurrection. He called into the field such military and naval forces, unauthorized by the existing laws, as seemed necessary. He directed measures to prevent the use of the post-office for treasonable correspondence. He subjected passengers to and from foreign countries to new passport regulations, and he instituted a blockade, suspended the writ of habeas corpus in various places, and caused persons who were represented to him as being or about to engage in disloyal and treasonable practices to be arrested by special civil as well as military agencies and detained in military custody when necessary to prevent them and deter others from such practices. Examinations of such cases were instituted, and some of the persons so arrested have been discharged from time to time under circumstances or upon conditions compatible, as was thought, with the public safety.

Meantime a favorable change of public opinion has occurred. The line between loyalty and disloyalty is plainly defined. The whole structure of the government is firm and stable. Apprehension of public danger and facilities for treasonable practices have diminished with the passions which prompted heedless persons to adopt them. The insurrection is believed to have culminated and to be declining.

The President, in view of these facts, and anxious to favor a return to the normal course of the administration as far as regard for the public welfare will allow, directs that all political prisoners or state prisoners now held in military custody be released on their subscribing to a parole engaging them to render no aid or comfort to the enemies in hostility to the United States.

The Secretary of War will, however, in his discretion, except from the effect of this order any persons detained as spies in the service of the insurgents, or others whose release at the present moment may be deemed incompatible with the public safety.

To all persons who shall be so released, and who shall keep their parole, the President grants an amnesty for any past offences of treason or disloyalty which they may have committed.

Extraordinary arrests will hereafter be made under the direction of the military authorities alone.

By order of the President EDWIN M. STANTON, Secretary of War.

MESSAGE TO CONGRESS. WASHINGTON CITY, February 15, 1862

TO THE SENATE AND HOUSE OF REPRESENTATIVES OF THE UNITED STATES:

The third section of the "Act further to promote the efficiency of the Navy," approved December 21, 1861, provides

"That the President of the United States, by and with the advice and consent of the Senate, shall have the authority to detail from the retired list of the navy for the command of squadrons and single ships such officers as he may believe that the good of the service requires to be thus placed in command; and such officers may, if upon the recommendation of the President of the United States they shall receive a vote of thanks of Congress for their services and gallantry in action against an enemy, be restored to the active list, and not otherwise."

In conformity with this law, Captain Louis M. Goldsborough, of the navy, was nominated to the Senate for continuance as the flag-officer in command of the North Atlantic Blockading Squadron, which recently rendered such important service to the Union in the expedition to the coast of North Carolina.

Believing that no occasion could arise which would more fully correspond with the intention of the law or be more pregnant with happy influence as an example, I cordially recommend that Captain Louis M. Goldsborough receive a vote of thanks of Congress for his services and gallantry displayed in the combined attack of the forces commanded by him and Brigadier-General Burnside in the capture of Roanoke Island and the destruction of rebel gunboats On the 7th, 8th, and 10th of February, 1862.

A. LINCOLN.

FIRST WRITTEN NOTICE OF GRANT

TO GENERAL H. W. HALLECK.

EXECUTIVE MANSION, WASHINGTON,

February 16, 1862.

MAJOR-GENERAL HALLECK, St. Louis, Missouri:

You have Fort Donelson safe, unless Grant shall be overwhelmed from outside; to prevent which latter will, I think, require all the vigilance, energy, and skill of yourself and Buell, acting in full co-operation. Columbus will not get at Grant, but the force from Bowling Green will. They hold the railroad from Bowling Green to within a few miles of Fort Donelson, with the bridge at Clarksville undisturbed. It is unsafe to rely that they will not dare to expose Nashville to Buell. A small part of their force can retire slowly toward Nashville, breaking up the railroad as they go, and keep Buell out of that city twenty days. Meanwhile Nashville will be abundantly defended by forces from all South and perhaps from hers at Manassas. Could not a cavalry force from General Thomas on the upper Cumberland dash across, almost unresisted, and cut the railroad at or near Knoxville, Tennessee? In the midst of a bombardment at Fort Donelson, why could not a gunboat run up and destroy the bridge at Clarksville? Our success or failure at Fort Donelson is vastly important, and I beg you to put your soul in the effort. I send a copy of this to Buell.

A. LINCOLN.

EXECUTIVE ORDER NO. 2.—IN RELATION TO STATE PRISONERS.

**WAR DEPARTMENT, WASHINGTON CITY, FEBRUARY 27,
1862**

It is ordered:

First. That a special commission of two persons, one of military rank and the other in civil life, be appointed to examine the cases of the state prisoners remaining in the military custody of the United States, and to determine whether in view of the public Safety and the existing rebellion they should be discharged, or remain in military custody, or be remitted to the civil tribunals for trial.

Second. That Major-General John A. Dix, commanding in Baltimore, and the HON. Edwards Pierrepont, of New York, be, and they are hereby, appointed commissioners for the purpose above mentioned; and they are authorized to examine, hear, and determine the cases aforesaid ex parte and in a summary manner, at such times and places as in their discretion they may appoint, and make full report to the War Department.

By order of the President EDWIN M. STANTON, Secretary of War.

ORDER RELATING TO COMMERCIAL INTERCOURSE.

Considering that the existing circumstances of the country allow a partial restoration of commercial intercourse between the inhabitants of those parts of the United States heretofore declared to be in insurrection and the citizens of the loyal States of the Union, and exercising the authority and discretion confided to me by the act of Congress, approved July 13, 1861, entitled "An act further to provide for the collection of duties on imports, and for other purposes," I hereby license and permit such commercial intercourse in all cases within the rules and regulations which have been or may be prescribed by the Secretary of the Treasury for conducting and carrying on the same on the inland waters and ways of the United States.

WASHINGTON, February 28, 1862.

A. LINCOLN.

SPEECH TO THE PERUVIAN MINISTER,

WASHINGTON, D. C., MARCH 4, 1862

The United States have no enmities, animosities, or rivalries, and no interests which conflict with the welfare, safety, and rights or interests of any other nation. Their own prosperity, happiness, and aggrandizement are sought most safely and advantageously through the preservation not only of peace on their own part, but peace among all other nations. But while the United States are thus a friend to all other nations, they do not seek to conceal the fact that they cherish especial sentiments of friendship for, and sympathies with, those who, like themselves, have founded their institutions on the principle of the equal rights of men; and such nations being more prominently neighbors of the United States, the latter are co-operating with them in establishing civilization and culture on the American continent. Such being the general principles which govern the United States in their foreign relations, you may be assured, sir, that in all things this government will deal justly, frankly, and, if it be possible, even liberally with Peru, whose liberal sentiments toward us you have so kindly expressed.

MESSAGE TO CONGRESS RECOMMENDING COMPENSATED EMANCIPATION.

March 6, 1862

FELLOW-CITIZENS OF THE SENATE AND HOUSE OF REPRESENTATIVES:—I recommend the adoption of a joint resolution by your honorable bodies which shall be substantially as follows:

"Resolved, That the United States ought to co-operate with any State which may adopt gradual abolishment of slavery, giving to such State pecuniary aid, to be used by such State, in its discretion, to compensate for the inconveniences, public and private, produced by such change of system."

If the proposition contained in the resolution does not meet the approval of Congress and the country, there is the end; but if it does command such approval, I deem it of importance that the States and people immediately interested should be at once distinctly notified of the fact, so that they may begin to consider whether to accept or reject it. The Federal Government would find its highest interest in such a measure, as one of the most efficient means of self-preservation. The leaders of the existing insurrection entertain the hope that this government will ultimately be forced to acknowledge the independence of some part of the disaffected region, and that all the slave States north of such part will then say, "The Union for which we have struggled being already gone, we now choose to go with the Southern section." To deprive them of this hope substantially ends the rebellion, and the initiation of emancipation completely deprives them of it as to all the States initiating it. The point is not that all the States tolerating slavery would very soon, if at all, initiate emancipation; but that, while the offer is equally made to all, the more northern shall by such initiation make it certain to the more southern that in no event will the former ever join the latter in their proposed confederacy. I say "initiation" because, in my judgment, gradual and not sudden emancipation is better for all. In the mere financial or pecuniary view, any member of Congress with the census tables

and treasury reports before him can readily see for himself how very soon the current expenditures of this war would purchase, at fair valuation, all the slaves in any named State. Such a proposition on the part of the General Government sets up no claim of a right by Federal authority to interfere with slavery within State limits, referring, as it does, the absolute control of the subject in each case to the State and its people immediately interested. It is proposed as a matter of perfectly free choice with them.

In the annual message last December, I thought fit to say, "The Union must be preserved, and hence all indispensable means must be employed." I said this not hastily, but deliberately. War has been made and continues to be an indispensable means to this end. A practical reacknowledgment of the national authority would render the war unnecessary, and it would at once cease. If, however, resistance continues, the war must also continue; and it is impossible to foresee all the incidents which may attend and all the ruin which may follow it. Such as may seem indispensable or may obviously promise great efficiency toward ending the struggle must and will come.

The proposition now made (though an offer only), I hope it may be esteemed no offense to ask whether the pecuniary consideration tendered would not be of more value to the States and private persons concerned than are the institution and property in it in the present aspect of affairs.

While it is true that the adoption of the proposed resolution would be merely initiatory, and not within itself a practical measure, it is recommended in the hope that it would soon lead to important practical results. In full view of my great responsibility to my God and to my country, I earnestly beg the attention of Congress and the people to the subject.

A. LINCOLN.

INDORSEMENT ON LETTER FROM GOVERNOR YATES.

**STATE OF ILLINOIS, EXECUTIVE DEPARTMENT,
SPRINGFIELD, ILL., March 1, 1862**

HON. EDWIN M. STANTON, SECRETARY OF WAR, Washington, D.
C.

SIR:—The government at my special request a few months since contracted for fourteen batteries of the James rifled gun, 6-pounder calibre, and a limited quantity of the James projectiles, weighing about fourteen pounds each. The reports showing the superiority of this gun and projectile, both as regards range, accuracy, and execution, for field service over that of all others at the battle of Fort Donelson, leads me to request that there be furnished to the State of Illinois in the shortest time practicable seven batteries of 12-pounder calibre James rifled guns, with carriages, harness, implements, etc., complete and ready for field service, together with the following fixed ammunition to each gun, viz., 225 shells, 225 canister, and 50 solid projectiles, weighing about 24 pounds each, and also 200 shells, 100 canister, and 100 solid projectiles for each of the guns of the fourteen batteries named above, weighing about 14 pounds each, all to be of the James model.

Very respectfully,

RICHARD YATES, Governor of Illinois.

[Indorsement.]

March 8, 1862.

The within is from the Governor of Illinois. I understand the seven additional batteries now sought are to be 6-gun batteries, and the object is to mix them with the fourteen batteries they already have so as to make each battery consist of four 6-pounders and two 12-pounders. I shall be very glad to have the requisition filled if it can be without detriment to the service.

A. LINCOLN.

PRESIDENT'S GENERAL WAR ORDER NO.2.

EXECUTIVE MANSION, WASHINGTON

March 8, 1862.

Ordered: 1. That the major-general commanding the Army of the Potomac proceed forthwith to organize that part of the said army destined to enter upon active operations (including the reserve, but excluding the troops to be left in the fortifications about Washington) into four army corps, to be commanded according to seniority of rank, as follows:

First Corps to consist of four divisions, and to be commanded by Major-General I. McDowell. Second Corps to consist of three divisions, and to be commanded by Brigadier-General E. V. Sumner. Third Corps to consist of three divisions, and to be commanded by Brigadier-General S. P. Heintzelman. Fourth Corps to consist of three divisions, and to be commanded by Brigadier-General E. D. Keyes.

2. That the divisions now commanded by the officers above assigned to the commands of army corps shall be embraced in and form part of their respective corps.

3. The forces left for the defense of Washington will be placed in command of Brigadier-General James S. Wadsworth, who shall also be military governor of the District of Columbia.

4. That this order be executed with such promptness and dispatch as not to delay the commencement of the operations already directed to be underwritten by the Army of the Potomac.

5. A fifth army corps, to be commanded by Major general N. P. Banks, will be formed from his own and General Shields's (late General Lander's) divisions.

A. LINCOLN.

PRESIDENT'S GENERAL WAR ORDER NO.3.

EXECUTIVE MANSION, WASHINGTON, MARCH 8,1862

Ordered: That no change of the base of operations of the Army of the Potomac shall be made without leaving in and about Washington such a force as in the opinion of the general-in-chief and the commanders of all the army corps shall leave said city entirely secure.

That no more than two army corps (about 50,000 troops) of said Army of the Potomac shall be moved en route for a new base of operations until the navigation of the Potomac from Washington to the Chesapeake Bay shall be freed from enemy's batteries and other obstructions, or until the President shall hereafter give express permission.

That any movements as aforesaid en route for a new base of operations which may be ordered by the general-in-chief, and which may be intended to move upon the Chesapeake Bay, shall begin to move upon the bay as early as the 18th day of March instant, and the general-in-chief shall be responsible that it so move as early as that day.

Ordered, That the army and navy co-operate in an immediate effort to capture the enemy's batteries upon the Potomac between Washington and the Chesapeake Bay.

A. LINCOLN

INTERVIEW BETWEEN THE PRESIDENT AND SOME BORDER SLAVE STATE

REPRESENTATIVES, BY HON. J. W. CRISFIELD.

MEMORANDUM

"DEAR SIR:—I called, at the request of the President, to ask you to come to the White House tomorrow morning, at nine o'clock, and bring such of your colleagues as are in town."

WASHINGTON, March 10, 1862.

Yesterday, on my return from church, I found Mr. Postmaster-General Blair in my room, writing the above note, which he immediately suspended, and verbally communicated the President's invitation, and stated that the President's purpose was to have some conversation with the delegations of Kentucky, Missouri, Maryland, Virginia, and Delaware, in explanation of his message of the 6th instant.

This morning these delegations, or such of them as were in town, assembled at the White House at the appointed time, and after some little delay were admitted to an audience. Mr. Leary and myself were the only members from Maryland present, and, I think, were the only members of the delegation at that time in the city. I know that Mr. Pearoe, of the Senate, and Messrs. Webster and Calvert, of the House, were absent.

After the usual salutations, and we were seated, the President said, in substance, that he had invited us to meet him to have some conversation with us in explanation of his message of the 6th; that since he had sent it in several of the gentlemen then present had visited him, but had avoided any allusion to the message, and he therefore inferred that the import of the message had been misunderstood, and was regarded as inimical to the interests we represented; and he had resolved he would talk with us, and disabuse our minds of that erroneous opinion.

The President then disclaimed any intent to injure the interests or wound the sensibilities of the slave States. On the contrary, his purpose was to

protect the one and respect the other; that we were engaged in a terrible, wasting, and tedious war; immense armies were in the field, and must continue in the field as long as the war lasts; that these armies must, of necessity, be brought into contact with slaves in the States we represented and in other States as they advanced; that slaves would come to the camps, and continual irritation was kept up; that he was constantly annoyed by conflicting and antagonistic complaints: on the one side a certain class complained if the slave was not protected by the army; persons were frequently found who, participating in these views, acted in a way unfriendly to the slaveholder; on the other hand, slaveholders complained that their rights were interfered with, their slaves induced to abscond and protected within the lines; these complaints were numerous, loud and deep; were a serious annoyance to him and embarrassing to the progress of the war; that it kept alive a spirit hostile to the government in the States we represented; strengthened the hopes of the Confederates that at some day the border States would unite with them, and thus tend to prolong the war; and he was of opinion, if this resolution should be adopted by Congress and accepted by our States, these causes of irritation and these hopes would be removed, and more would be accomplished toward shortening the war than could be hoped from the greatest victory achieved by Union armies; that he made this proposition in good faith, and desired it to be accepted, if at all, voluntarily, and in the same patriotic spirit in which it was made; that emancipation was a subject exclusively under the control of the States, and must be adopted or rejected by each for itself; that he did not claim nor had this government any right to coerce them for that purpose; that such was no part of his purpose in making this proposition, and he wished it to be clearly understood; that he did not expect us there to be prepared to give him an answer, but he hoped we would take the subject into serious consideration, confer with one another, and then take such course as we felt our duty and the interests of our constituents required of us.

Mr. Noell, of Missouri, said that in his State slavery was not considered a permanent institution; that natural causes were there in operation which would at no distant day extinguish it, and he did not think that this proposition was necessary for that; and, besides that, he and his friends felt solicitous as to the message on account of the different constructions which the resolution and message had received. The New York Tribune was for it,

and understood it to mean that we must accept gradual emancipation according to the plan suggested, or get something worse.

The President replied that he must not be expected to quarrel with the New York Tribune before the right time; he hoped never to have to do it; he would not anticipate events. In respect to emancipation in Missouri, he said that what had been observed by Mr. Noell was probably true, but the operation of these natural causes had not prevented the irritating conduct to which he had referred, or destroyed the hopes of the Confederates that Missouri would at some time merge herself alongside of them, which, in his judgment, the passage of this resolution by Congress and its acceptance by Missouri would accomplish.

Mr. Crisfield, of Maryland, asked what would be the effect of the refusal of the State to accept this proposal, and he desired to know if the President looked to any policy beyond the acceptance or rejection of this scheme.

The President replied that he had no designs beyond the actions of the States on this particular subject. He should lament their refusal to accept it, but he had no designs beyond their refusal of it.

Mr. Menzies, of Kentucky, inquired if the President thought there was any power except in the States themselves to carry out his scheme of emancipation.

The President replied that he thought there could not be. He then went off into a course of remarks not qualifying the foregoing declaration nor material to be repeated to a just understanding of his meaning.

Mr. Crisfield said he did not think the people of Maryland looked upon slavery as a permanent institution; and he did not know that they would be very reluctant to give it up if provision was made to meet the loss and they could be rid of the race; but they did not like to be coerced into emancipation, either by the direct action of the government or by indirection, as through the emancipation of slaves in this District, or the confiscation of Southern property as now threatened; and he thought before they would consent to consider this proposition they would require to be informed on these points. The President replied that, unless he was expelled by the act of God or the Confederate armies he should occupy that house for three years; and as long as he remained there Maryland had nothing to fear either for her institutions or her interests on the points referred to.

Mr. Crisfield immediately added: "Mr. President, if what you now say could be heard by the people of Maryland, they would consider your proposition with a much better feeling than I fear without it they will be inclined to do."

The President: "That [meaning a publication of what he said] will not do; it would force me into a quarrel before the proper time "; and, again intimating, as he had before done, that a quarrel with the "Greeley faction" was impending, he said he did not wish to encounter it before the proper time, nor at all if it could be avoided.

[The Greeley faction wanted an immediate Emancipation Proclamation. D.W.]

Governor Wickliffe, of Kentucky, then asked him respecting the constitutionality of his scheme.

The President replied: "As you may suppose, I have considered that; and the proposition now submitted does not encounter any constitutional difficulty. It proposes simply to co-operate with any State by giving such State pecuniary aid"; and he thought that the resolution, as proposed by him, would be considered rather as the expression of a sentiment than as involving any constitutional question.

Mr. Hall, of Missouri, thought that if this proposition was adopted at all it should be by the votes of the free States, and come as a proposition from them to the slave States, affording them an inducement to put aside this subject of discord; that it ought not to be expected that members representing slaveholding constituencies should declare at once, and in advance of any proposition to them, for the emancipation of slavery.

The President said he saw and felt the force of the objection; it was a fearful responsibility, and every gentleman must do as he thought best; that he did not know how this scheme was received by the members from the free States; some of them had spoken to him and received it kindly; but for the most part they were as reserved and chary as we had been, and he could not tell how they would vote. And in reply to some expression of Mr. Hall as to his own opinion regarding slavery, he said he did not pretend to disguise his anti-slavery feeling; that he thought it was wrong, and should continue to think so; but that was not the question we had to deal with now. Slavery existed, and that, too, as well by the act of the North as of the South; and in any scheme to get rid of it the North as well as the South was

morally bound to do its full and equal share. He thought the institution wrong and ought never to have existed; but yet he recognized the rights of property which had grown out of it, and would respect those rights as fully as similar rights in any other property; that property can exist and does legally exist. He thought such a law wrong, but the rights of property resulting must be respected; he would get rid of the odious law, not by violating the rights, but by encouraging the proposition and offering inducements to give it up.

Here the interview, so far as this subject is concerned, terminated by Mr. Crittenden's assuring the President that, whatever might be our final action, we all thought him solely moved by a high patriotism and sincere devotion to the happiness and glory of his country; and with that conviction we should consider respectfully the important suggestions he had made.

After some conversation on the current war news, we retired, and I immediately proceeded to my room and wrote out this paper. J. W. CRISFIELD.

We were present at the interview described in the foregoing paper of Mr. Crisfield, and we certify that the substance of what passed on the occasion is in this paper faithfully and fully given.

J. W. MENZIES, J. J. CRITTENDEN, R. MALLORY.

March 10, 1862.

PRESIDENT'S SPECIAL WAR ORDER NO.3.

EXECUTIVE MANSION, WASHINGTON, March 11, 1862.

Major-General McClellan having personally taken the field at the head of the Army of the Potomac, until otherwise ordered he is relieved from the command of the other military departments, he retaining command of the Department of the Potomac.

Ordered further, That the departments now under the respective commands of Generals Halleck and Hunter, together with so much of that under General Buell as lies west of a north and south line indefinitely drawn through Knoxville, Tenn., be consolidated and designated the Department of the Mississippi, and that until otherwise ordered Major General Halleck have command of said department.

Ordered also, That the country west of the Department of the Potomac and east of the Department of the Mississippi be a military department, to be called the Mountain Department, and that the same be commanded by Major-General Fremont.

That all the commanders of departments, after the receipt of this order by them, respectively report severally and directly to the Secretary of War, and that prompt, full, and frequent reports will be expected of all and each of them.

A. LINCOLN.

FROM SECRETARY STANTON TO GENERAL MCCLELLAN.

WAR DEPARTMENT, March 13, 1862.

MAJOR-GENERAL GEORGE B. MCCLELLAN:

The President, having considered the plan of operations agreed upon by yourself and the commanders of army corps, makes no objection to the same but gives the following directions as to its execution:

1. Leave such force at Manassas Junction as shall make it entirely certain that the enemy shall no repossess himself of that position and line of communication.
2. Leave Washington entirely secure.
3. Move the remainder of the force down the Potomac, choosing a new base at Fortress Monroe or anywhere between here and there, or, at all events, move such remainder of the army at once in pursuit of the enemy by some route.

EDWARD M. STANTON, Secretary of War.

SPEECH TO A PARTY OF MASSACHUSETTS GENTLEMAN

WASHINGTON, MARCH 13, 1862

I thank you, Mr. Train, for your kindness in presenting me with this truly elegant and highly creditable specimen of the handiwork of the mechanics of your State of Massachusetts, and I beg of you to express my hearty thanks to the donors. It displays a perfection of workmanship which I really wish I had time to acknowledge in more fitting words, and I might then follow your idea that it is suggestive, for it is evidently expected that a good deal of whipping is to be done. But as we meet here socially let us not think only of whipping rebels, or of those who seem to think only of whipping negroes, but of those pleasant days, which it is to be hoped are in store for us, when seated behind a good pair of horses we can crack our whips and drive through a peaceful, happy, and prosperous land. With this idea, gentlemen, I must leave you for my business duties. [It was likely a Buggy-Whip D.W.]

MESSAGE TO CONGRESS.

WASHINGTON CITY, March 20, 1862.

TO THE SENATE AND HOUSE OF REPRESENTATIVES:

The third section of the "Act further to promote the efficiency of the Navy," approved December 21, 1861, provides:

"That the President of the United States, by and with the advice and consent of the Senate, shall have the authority to detail from the retired list of the navy for the command of squadrons and single ships such officers as he may believe the good of the service requires to be thus placed in command; and such officers may, if upon the recommendation of the President of the United States they shall receive a vote of thanks of Congress for their services and gallantry in action against an enemy, be restored to the active list, and not otherwise."

In conformity with this law, Captain Samuel F. Du Pont, of the navy, was nominated to the Senate for continuance as the flag-officer in command of the squadron which recently rendered such important service to the Union in the expedition to the coasts of South Carolina, Georgia, and Florida.

Believing that no occasion could arise which would more fully correspond with the intention of the law or be more pregnant with happy influence as an example, I cordially recommend that Captain Samuel F. Du Pont receive a vote of thanks of Congress for his service and gallantry displayed in the capture since the 21st December, 1861, of various ports on the coasts of Georgia and Florida, particularly Brunswick, Cumberland Island and Sound, Amelia Island, the towns of St. Mary's, St. Augustine, and Jacksonville and Fernandina.

A. LINCOLN.

TO GENERAL G. B. McCLELLAN.

EXECUTIVE MANSION, WASHINGTON, MARCH 31, 1862

MAJOR-GENERAL McCLELLAN.

MY DEAR SIR:-This morning I felt constrained to order Blenker's division to Fremont, and I write this to assure you I did so with great pain, understanding that you would wish it otherwise. If you could know the full pressure of the case, I am confident that you would justify it, even beyond a mere acknowledgment that the commander-in-chief may order what he pleases.

Yours very truly,

A. LINCOLN.

GIFT OF SOME RABBITS

TO MICHAEL CROCK. 360 N. Fourth St., Philadelphia.

EXECUTIVE MANSION, WASHINGTON, April 2, 1862.

MY DEAR SIR:-Allow me to thank you in behalf of my little son for your present of white rabbits. He is very much pleased with them.

Yours truly,

A. LINCOLN.

INSTRUCTION TO SECRETARY STANTON.

EXECUTIVE MANSION, April 3, 1862.

The Secretary of War will order that one or the other of the corps of General McDowell and General Sumner remain in front of Washington until further orders from the department, to operate at or in the direction of Manassas Junction, or otherwise, as occasion may require; that the other Corps not so ordered to remain go forward to General McClellan as speedily as possible; that General McClellan commence his forward movements from his new base at once, and that such incidental modifications as the foregoing may render proper be also made. A. LINCOLN.

TELEGRAM TO GENERAL McCLELLAN.

WASHINGTON, April 6, 1862.

GENERAL G. B. McCLELLAN:

Yours of 11 A. M. today received. Secretary of War informs me that the forwarding of transportation, ammunition, and Woodbury's brigade, under your orders, is not, and will not be, interfered with. You now have over one hundred thousand troops with you, independent of General Wool's command. I think you better break the enemy's line from Yorktown to Warwick River at once. This will probably use time as advantageously as you can.

A. LINCOLN, President

TO GENERAL G. B. McCLELLAN.

WASHINGTON, April 9, 1862

MAJOR-GENERAL McCLELLAN.

MY DEAR SIR+—Your despatches, complaining that you are not properly sustained, while they do not offend me, do pain me very much.

Blenker's division was withdrawn from you before you left here, and you knew the pressure under which I did it, and, as I thought, acquiesced in it certainly not without reluctance.

After you left I ascertained that less than 20,000 unorganized men, without a single field battery, were all you designed to be left for the defense of Washington and Manassas Junction, and part of this even to go to General Hooker's old position; General Banks's corps, once designed for Manassas Junction, was divided and tied up on the line of Winchester and Strasburg, and could not leave it without again exposing the upper Potomac and the Baltimore and Ohio Railroad. This presented (or would present when McDowell and Sumner should be gone) a great temptation to the enemy to turn back from the Rappahannock and sack Washington. My explicit order that Washington should, by the judgment of all the Commanders of corps, be left entirely secure, had been neglected. It was precisely this that drove me to detain McDowell.

I do not forget that I was satisfied with your arrangement to leave Banks at Manassas Junction; but when that arrangement was broken up and nothing substituted for it, of course I was not satisfied. I was constrained to substitute something for it myself.

And now allow me to ask, do you really think I should permit the line from Richmond via Manassas Junction to this city to be entirely open, except what resistance could be presented by less than 20,000 unorganized troops? This is a question which the country will not allow me to evade.

There is a curious mystery about the number of the troops now with you. When I telegraphed you on the 6th, saying you had over 100,000 with you, I had just obtained from the Secretary of War a statement, taken as he said

from your own returns, making 108,000 then with you and en route to you. You now say you will have but 85,000 when all enroute to you shall have reached you. How can this discrepancy of 23,000 be accounted for?

As to General Wool's command, I understand it is doing for you precisely what a like number of your own would have to do if that command was away. I suppose the whole force which has gone forward to you is with you by this time; and if so, I think it is the precise time for you to strike a blow. By delay the enemy will relatively gain upon you—that is, he will gain faster by fortifications and reinforcements than you can by reinforcements alone.

And once more let me tell you it is indispensable to you that you strike a blow. I am powerless to help this. You will do me the justice to remember I always insisted that going down the bay in search of a field, instead of fighting at or near Manassas, was only shifting and not surmounting a difficulty; that we would find the same enemy and the same or equal entrenchments at either place. The country will not fail to note—is noting now—that the present hesitation to move upon an entrenched enemy is but the story of Manassas repeated.

I beg to assure you that I have never written you or spoken to you in greater kindness of feeling than now, nor with a fuller purpose to sustain you, so far as in my most anxious judgment I consistently can; but you must act.

Yours very truly,
A. LINCOLN.

TO GENERAL H. W. HALLECK.

EXECUTIVE MANSION, WASHINGTON, April 9, 1862.

MAJOR-GENERAL HALLECK, Saint Louis, Mo.: If the rigor of the confinement of Magoffin (Governor of Kentucky) at Alton is endangering his life, or materially impairing his health, I wish it mitigated as far as it can be consistently with his safe detention.

A. LINCOLN.

Please send above, by order of the President. JOHN HAY.

PROCLAMATION RECOMMENDING THANKSGIVING FOR VICTORIES,

APRIL 10, 1862.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA:

A Proclamation

It has pleased Almighty God to vouchsafe signal victories to the land and naval forces engaged in suppressing, an internal rebellion, and at the same time to avert from our country the dangers of foreign intervention and invasion.

It is therefore recommended to the people of the United States that at their next weekly assemblages in their accustomed places of public worship which shall occur after notice of this proclamation shall have been received, they especially acknowledge and render thanks to our Heavenly Father for these inestimable blessings, that they then and there implore spiritual consolation in behalf of all who have been brought into affliction by the casualties and calamities of sedition and civil war, and that they reverently invoke the divine guidance for our national counsels, to the end that they may speedily result in the restoration of peace, harmony, and unity throughout our borders and hasten the establishment of fraternal relations among all the countries of the earth.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this tenth day of April, A.D. 1862, and of the independence of the United States the eighty-sixth.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

ABOLISHING SLAVERY IN WASHINGTON, D.C.

MESSAGE TO CONGRESS. April 16, 1862.

FELLOW-CITIZENS OF THE SENATE AND HOUSE OF REPRESENTATIVES: The act entitled "An act for the relief of certain persons held to service or labor in the District of Columbia" has this day been approved and signed.

I have never doubted the constitutional authority of Congress to abolish slavery in this District, and I have ever desired to see the national capital freed from the institution in some satisfactory way. Hence there has never been in my mind any question on the subject except the one of expediency, arising in view of all the circumstances. If there be matters within and about this act which might have taken a course or shape more satisfactory to my judgment, I do not attempt to specify them. I am gratified that the two principles of compensation and colonization are both recognized and practically applied in the act.

In the matter of compensation, it is provided that claims may be presented within ninety days from the passage of the act, "but not thereafter"; and there is no saving for minors, femmes covert, insane or absent persons. I presume this is an omission by mere oversight, and I recommend that it be supplied by an amendatory or supplemental act.

A. LINCOLN.

**TELEGRAM TO GENERAL G. B.
McCLELLAN.**

WASHINGTON, April 21, 1862.

MAJOR-GENERAL McCLELLAN:

Your despatch of the 19th was received that day. Fredericksburg is evacuated and the bridges destroyed by the enemy, and a small part of McDowell's command occupies this side of the Rappahannock, opposite the town. He purposes moving his whole force to that point.

A. LINCOLN.

TO POSTMASTER-GENERAL

A. LINCOLN. EXECUTIVE MANSION, WASHINGTON, April 24, 1862.

Hon. POSTMASTER-GENERAL.

MY DEAR SIR:—The member of Congress from the district including Tiffin, O., calls on me about the postmaster at that place. I believe I turned over a despatch to you from some persons there, asking a suspension, so as for them to be heard, or something of the sort. If nothing, or nothing amounting to anything, has been done, I think the suspension might now be suspended, and the commission go forward.

Yours truly,

A. LINCOLN.

**TELEGRAM TO GENERAL G. B.
McCLELLAN.**

WASHINGTON, April 29, 1862.

MAJOR-GENERAL McCLELLAN:

Would it derange or embarrass your operations if I were to appoint Captain Charles Griffin a brigadier-general of volunteers? Please answer.

A. LINCOLN.

MESSAGE TO THE SENATE, MAY 1, 1862.

TO THE SENATE OF THE UNITED STATES:

In answer to the resolution of the Senate [of April 22] in relation to Brigadier-General Stone, I have the honor to state that he was arrested and imprisoned under my general authority, and upon evidence which whether he be guilty or innocent, required, as appears to me, such proceedings to be had against him for the public safety. I deem it incompatible with the public interest, as also, perhaps, unjust to General Stone, to make a more particular statement of the evidence.

He has not been tried because, in the state of military operations at the time of his arrest and since, the officers to constitute a court martial and for witnesses could not be withdrawn from duty without serious injury to the service. He will be allowed a trial without any unnecessary delay; the charges and specifications will be furnished him in due season, and every facility for his defense will be afforded him by the War Department.

A. LINCOLN, WASHINGTON, MAY 1, 1862

TELEGRAM TO GENERAL McCLELLAN

EXECUTIVE MANSION, WASHINGTON, MAY 1, 1862

MAJOR-GENERAL McCLELLAN:

Your call for Parrott guns from Washington alarms me, chiefly because it argues indefinite procrastination. Is anything to be done?

A. LINCOLN.

TELEGRAM TO GENERAL H. W. HALLECK.

WAR DEPARTMENT, MAY 1, 1862

MAJOR-GENERAL HALLECK, Pittsburgh Landing, Tennessee:

I am pressed by the Missouri members of Congress to give General Schofield independent command in Missouri. They insist that for want of this their local troubles gradually grow worse. I have forbore, so far, for fear of interfering with and embarrassing your operations. Please answer telling me whether anything, and what, I can do for them without injuriously interfering with you.

A. LINCOLN.

RESPONSE TO EVANGELICAL LUTHERANS, MAY 6, 1862

GENTLEMEN:—I welcome here the representatives of the Evangelical Lutherans of the United States. I accept with gratitude their assurances of the sympathy and support of that enlightened, influential, and loyal class of my fellow citizens in an important crisis which involves, in my judgment, not only the civil and religious liberties of our own dear land, but in a large degree the civil and religious liberties of mankind in many countries and through many ages. You well know, gentlemen, and the world knows, how reluctantly I accepted this issue of battle forced upon me on my advent to this place by the internal enemies of our country. You all know, the world knows, the forces and the resources the public agents have brought into employment to sustain a government against which there has been brought not one complaint of real injury committed against society at home or abroad. You all may recollect that in taking up the sword thus forced into our hands this government appealed to the prayers of the pious and the good, and declared that it placed its whole dependence on the favor of God. I now humbly and reverently, in your presence, reiterate the acknowledgment of that dependence, not doubting that, if it shall please the Divine Being who determines the destinies of nations, this shall remain a united people, and that they will, humbly seeking the divine guidance, make their prolonged national existence a source of new benefits to themselves and their successors, and to all classes and conditions of mankind.

TELEGRAM TO FLAG-OFFICER L. M. GOLDSBOROUGH.

FORT MONROE, VIRGINIA, MAY 7, 1862

FLAG-OFFICER GOLDSBOROUGH.

SIR:—Major-General McClellan telegraphs that he has ascertained by a reconnaissance that the battery at Jamestown has been abandoned, and he again requests that gunboats may be sent up the James River.

If you have tolerable confidence that you can successfully contend with the Merrimac without the help of the Galena and two accompanying gunboats, send the Galena and two gunboats up the James River at once. Please report your action on this to me at once. I shall be found either at General Wool's headquarters or on board the Miami.

Your obedient servant,

A. LINCOLN.

FURTHER REPRIMAND OF McCLELLAN

TO GENERAL G. B. McCLELLAN.

FORT MONROE, VIRGINIA, May 9, 1862

MAJOR-GENERAL McCLELLAN:

MY DEAR SIR:—I have just assisted the Secretary of War in framing part of a despatch to you relating to army corps, which despatch, of course, will have reached you long before this will. I wish to say a few words to you privately on this subject. I ordered the army corps organization not only on the unanimous opinion of the twelve generals whom you had selected and assigned as generals of divisions, but also on the unanimous opinion of every military man I could get an opinion from, and every modern military book, yourself only excepted. Of course, I did not on my own judgment pretend to understand the subject. I now think it indispensable for you to know how your struggle against it is received in quarters which we cannot entirely disregard. It is looked upon as merely an effort to pamper one or two pets, and to persecute and degrade their supposed rivals. I have had no word from Sumner, Heintzleman, or Keyes the commanders of these corps are, of course, the three highest officers with you; but I am constantly told that you have no consultation or communication with them; that you consult and communicate with nobody but General Fitz John Porter, and perhaps General Franklin. I do not say these complaints are true or just; but at all events, it is proper you should know of their existence. Do the commanders of corps disobey your orders in anything?

When you relieved General Hamilton of his command the other day, you thereby lost the confidence of at least one of your best friends in the Senate. And here let me say, not as applicable to you personally, that Senators and Representatives speak of me in their places without question, and that officers of the army must cease addressing insulting letters to them for taking no greater liberty with them.

But to return. Are you strong enough—are you strong enough even with my help—to set your foot upon the necks of Sumner, Heintzleman, and

Keyes all at once? This is a practical and very serious question to you?

The success of your army and the cause of the country are the same, and, of course, I only desire the good of the cause.

Yours truly,

A. LINCOLN.

TO FLAG-OFFICER L. M. GOLDSBOROUGH,

FORT MONROE, VIRGINIA, May 10, 1862

FLAG-OFFICER GOLDSBOROUGH.

MY DEAR SIR:—I send you this copy of your report of yesterday for the purpose of saying to you in writing that you are quite right in supposing the movement made by you and therein reported was made in accordance with my wishes verbally expressed to you in advance. I avail myself of the occasion to thank you for your courtesy and all your conduct, so far as known to me, during my brief visit here.

Yours very truly,

A. LINCOLN.

PROCLAMATION RAISING THE BLOCKADE OF CERTAIN PORTS.

May 12, 1862.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA:

A Proclamation.

Whereas, by my proclamation of the 19th of April, one thousand eight hundred and sixty-one, it was declared that the ports of certain States, including those of Beaufort, in the State of North Carolina, Port Royal, in the State of South Carolina, and New Orleans, in the State of Louisiana, were, for reasons therein set forth, intended to be placed under blockade; and whereas the said ports of Beaufort, Port Royal, and New Orleans have since been blockaded; but as the blockade of the same ports may now be safely relaxed with advantage to the interests of commerce:

Now, therefore, be it known that I, Abraham Lincoln, President of the United States, pursuant to the authority in me vested by the fifth section of the act of Congress approved on the 13th of July last, entitled "An act further to provide for the collection of duties on imports, and for other purposes," do hereby declare that the blockade of the said ports of Beaufort, Port Royal, and New Orleans shall so far cease and determine, from and after the first day of June next, that commercial intercourse with those ports, except as to persons, things, and information contraband of war, may from that time be carried on, subject to the laws of the United States, and to the limitations and in pursuance of the regulations which are prescribed by the Secretary of the Treasury in his order of this date, which is appended to this proclamation.

In witness whereof, I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this twelfth day of May, in the year of our Lord one thousand eight hundred and sixty-two, and of the independence of the United States the eighty-sixth.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

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